Naskapi Law (Lake St. John and Lake Mistassini Bands) Law and Order in a Hunting Society

Julius E. Lips

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NEW SERIES—VOLUME 37, PART 4

NASKAPI LAW

(LAKE ST. JOHN AND LAKE MISTASSINI BANDS) LAW AND ORDER IN A HUNTING SOCIETY

JULIUS E. LIPS

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New School for Social Research

THE AMERICAN PHILOSOPHICAL SOCIETY
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DECEMBER, 1947

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PREFACE

The present study is the result of my field work during the summer of 1935 and of subsequent research in the London archives of the Hudson's Bay Company in the summers of 1936 and 1937. Upon the initiative of Professor Karl N. Llewellyn my trip to Labrador was made possible by the Social Science Research Council of Columbia University, New York. My trips to London and my research in the archives were financed by my own means. A grant from the American Philosophical Society, initiated by Professor Joseph P. Chamberlain, and the generosity of Dr. Alvin Johnson, President Emeritus of the New School for Social Research, New York, and his friends enabled me to complete this study. I take this opportunity to express my profound gratitude to these persons and institutions who, by their financial aid, made this study possible.

I am equally indebted to those among my personal friends who provided information, spiritual help, and encouragement without which this study never could have been accomplished. I owe gratitude to the dean of Naskapi ethnology, Dr. Frank G. Speck, Professor of Anthropology at the University of Pennsylvania, who gave me most valuable assistance not only by furnishing useful suggestions for my field work but also by looking over and discussing with me the manuscript of this study.

During my stay with the Indians I learned to appreciate highly their intelligence. Even though the special subject of my research soon necessitated a screening of informants, I am obliged to those occasional informants who, by their cooperativeness, helped to clarify many points of doubt. The work could not have been done without the intelligent cooperation of the principal Indian informants who are mentioned in the following chapter. I wish to express my gratitude to them all. I am also very much obliged to Mr. Fawley, Manager of the Hudson's Bay Post at Pointe Bleue, and to Mr. Sandy Ritchie, Manager of the Chibougamau Post. In long discussions with them it was possible to shed light on many problems, especially concerning the trading customs of the Indians. Through them, I also gained knowledge of the possible existence of the old managers' diaries in the London archives. I have to thank Sir Patrick Ashley Cooper, Governor of the Hudson's Bay Company, and Mr. Leweson Gower, Director of the Archives, for the permission to work during two summers in the London Archives of the Hudson's Bay Company and to publish my findings. Both gentlemen took a vivid personal interest in my studies.

During the process of working out my material I had the advice and assistance of Professors Chamberlain and Llewellyn of Columbia University, New York. In numerous discussions, material and facts were evaluated and analyzed and their constructive criticism was extremely helpful for the proceeding of the work. At these occasions I gained a new appreciation of the value and the application of "cases" in primitive law. So I am happy indeed to have had this opportunity to deal with the law of primitive peoples on a broader basis. I therefore owe to Professors Joseph P. Chamberlain and Karl N. Llewellyn my profound gratitude not only for their cooperation in the completion of this study, but also for their efforts in familiarizing me with the spirit of Common Law and its philosophy.

From the inception of my research on, the Naskapi law study was intended to be the first part of a comprehensive study of early American law, dedicated to an investigation of the legal institutions of various Indian tribes with different forms of economics. On account of their relatively homogeneous and primitive form of economy, the Naskapi were chosen as the object of the first study. Further investigations should follow, which should deal with the law of such Indian tribes whose form of economy is not the hunt but rather the harvesting of wild-growing plants or agriculture, to culminate finally in a study of the law of the American Indian high cultures. Only after the publication of a series of monographs dealing with the legal concepts in different economic stages will it become possible—considering the close relationship between economics and law—to clarify the problems of the development of primitive law and of the growth of legal institutions of early American primitive law.

Thus, the present study is only a modest brick to the larger building: an investigation of the development of primitive law and its institutions, especially among the Indians of America. Whether time and fate will allow me to continue these studies and to reach the final goal, only the future can tell.

JULIUS E. LIPS

NASKAPI LAW

JULIUS E. LIPS

CONTENTS

PAGE

I. Procedure and informants 381
II. General aspects of Montagnais-Naskapi economy 387
III. The band 397
IV. The individual 412
V. The family 416
VI. Property and inheritance 427
VII. Contracts and tradeways 438
VIII. The diaries 453
IX. Crime and punishment 469
X. Law-enforcing agencies 471
XI. The spirit of Naskapi law 483
Phonetic key 488
References 489
Index 491

I. PROCEDURE AND INFORMANTS

One might be tempted to begin this monograph with an essay on the principles, the contents, and the characteristics of primitive law as a science. This, however, shall not be attempted here [1] although it has become quite customary in recent times to preface monographs dealing with the law of one individual tribe with exhaustive discussions of the nature of primitive law and to work out and lay down as general rules of primitive law certain definitions based upon the principles found with just one single tribe. The discussions are still in full swing, with the different opinions widely diverging from each other. The reason for these widely divergent opinions, interpretations, and conclusions does not lie only with the heterogeneity of the material alone which includes peoples and tribes of completely dissimilar and different cultures which, in the sequence of time and development, comprise tens of millenniums. The difference of opinion is also due to the different cultural and national backgrounds of the authors themselves.

The legal-minded Romans, for instance, saw the laws of the Barbarians living within the sphere of Roman culture in the light of Roman law and applied the principles of Roman law to their institutions. For the modern scientist it would be very natural to apply in his studies of primitive law the principles of the law in which he himself has been trained. This explains many differences of opinion and of theory in the treatment of primitive law. Another reason for the existence of so many divergent conceptions of primitive legal conditions lies in the fact that students from various sciences who are not jurists and not trained in legal methods became interested in the problems of primitive law. They were mostly sociologists, anthropologists, and philosophers who quite naturally tried to apply the special methods of their peculiar fields to the study of primitive law.

Such divergences of opinion became especially evident if they concerned studies in which the authors attempted to undertake an analysis of primitive law as a whole and to evaluate the findings, for instance, by constructing an entire history of legal institutions. When a monograph of an individual tribe was concerned, the very facts forced the author—to whatever school he might belong—to follow a more sober and more realistic course. In this case the margin left open for his theoretical reflections and constructions was narrowed down considerably and his interpretations could be checked and compared with the reported facts. Yet, even here, especially in the procedure of investigation, was enough possibility for differences of opinion.

The procedure of investigation or, simpler put, the manner of collecting and utilizing the material, will be dealt with in a few remarks.

In order to collect the laws of especially the colonial peoples, European science and European governments used the method of questionnaires. These questionnaires were sent to civil servants, missionaries, and employees of trade companies in the colonies of the European powers. They were also used as guides by independent scientists who wished to investigate on the spot the laws and customs of some tribe. The Belgian Société d'Etudes Coloniales sent especially to the Belgian possessions a questionnaire compiled by Cattier and Wodon. Another questionnaire by Felix Meyer and A. H. Post, published by the International Society for Comparative Jurisprudence and Economics was sent to the colonies of all colonial powers. Other authors of questionnaires for the investigation of primi-

[1] The author has discussed some aspects of primitive law in his publications, Government (1938), Kamerun (1930), and Regierungs- und Verwaltungsformen bei den Naturvölkern (1938). See references, p. 489.

tive law are the Institut D'Ethnologie, Paris; the Italian Giuseppe Mozzarella, the Dutchman Steinmetz and the Germans Kohler and Thurnwald. All these questionnaires had three common characteristics: (1) They were not limited to questions of law exclusively but stressed the general cultural and especially the economic background of the tribes in question. (2) The questions were directed to the investigators—civil service employees, missionaries, etc.—for the purpose of obtaining answers based upon their previous observations and experiences, or they were destined to serve as patterns for their own interrogations of the natives. (3) The main emphasis was laid on the finding of the general "norms" and "rules" of the primitive law in question.

The reason for this type of procedure may be that most nations of Europe have codified and systematized laws. On account of this the question of the development of primitive law, of its philosophy, its tensions and tendencies was less emphasized; the aim was to get the substance and the picture of the material and positive law. The questionnaires, to be sure, had certain shortcomings which were often peculiar to the very nature of this method. It was impossible to use the same pattern without modifications for so many heterogeneous cultures from the food gatherers to the high cultures. According to the type of society to be investigated many questions proved useless and senseless while other necessary questions were omitted. For this reason, the questionnaires could be used only as general outlines for the purpose of guiding the investigator. Finally, it was up to the civil servant, the missionary, and explorer themselves to collect the material, and the quality of the results depended largely on their special interest, their ability, knowledge, and training. Occasionally, the questions were so alien to the field-worker that a missionary, filling out a Cameroons questionnaire answered the question: "Do the children follow the mother or the father?" with the statement: "When young, they follow the mother—in later years, the father"!

From the judicial point of view it was significant that none of the answering officials—even when they were Englishmen—attempted to answer any of the questions by a collection of cases. The desire to find out the general rules was prevalent throughout. Besides, it was completely left to the discretion of the observer whether he selected for his source material either law cases observed by himself or reported to him, or information of other nature. Some of the answers to the many questionnaires examined by this author show clearly that the recorded facts were partly based upon actual cases observed by either the informants or the writers. The whole approach of European science in the field of primitive law tended more towards a treatment of law cases as mere material for preliminary studies collected in order to illustrate and analyze the generally applicable rules. The European student of law is by no means unaware of the importance of cases. On the contrary, in the law seminars the student is obliged to deal exclusively with cases of law. Any of us older jurists in whose curriculum the exegesis of the Pandects was obligatory has retained for life a healthy respect for legal cases, especially, if they had to be analyzed in the Latin language. But the law cases were discussed within the framework of a systematized and codified law, in contrast to the case law which Llewellyn calls *"ebensowenig systematisiert wie die Rechtssätze, die sich aus ihm ergeben"* (Llewellyn, 1933). It is only fair to point this out in answer to such ethnologists who, although themselves neither jurists nor trained case lawyers, try to dispose with one stroke of their pen of the entire European research in the field of primitive law as worthless, just because the scholars in question did not apply the method of case law. In fact, outstanding work in the field of primitive law has been accomplished in countless publications by Belgian, French, Italian, British, Dutch, and German scientists, however critical our approach toward the methods applied by the individual scholars may be.

Recently, Llewellyn has suggested a new method in investigating the law of primitive peoples, namely, the method of case law. Methodologically speaking, this appeared at first glance to be nothing else but an application of the legal pattern in which he himself happened to be trained, just as French scientists have applied the *Code Civil* and German scientists the *Bürgerliches Gesetzbuch* in their investigations of completely heterogenious cultures. At closer range, however, a certain distinction becomes evident. One is reminded of the fact that both case law and primitive law are not codified and that the cases as such constitute what Llewellyn terms *"Urlehrstoff"*: the basic material from which to fashion the theory and the law of a people. This indeed, if the assumption is right, would be a fascinating task to undertake. However, any scientist applying the case law method to the law of a primitive tribe will soon become aware also of the limits of this method. Some of these limitations, as far as they concern the practical ethnological gathering of facts in the field will be discussed here although I have no intention to deal on this occasion with the philosophy of case law or of primitive law as a whole or to attempt any evaluation.

When the student of primitive law sets out to investigate the laws and customs of a primitive tribe he desires to bring back, if possible, the entire law of the tribe, including the material and positive law. Let us assume the ethnologist in question (and most probably it will be an ethnologist rather than a trained lawyer who is sent out to collect the facts of primitive law in the field during the next years) brings home from his field trip a maximum of fifty cases, gathered from a participant in the case or through reports of informants who experienced the cases (or who might have obtained

them second hand—which alone would diminish their value as first-rate material). Despite this unlikely wealth of case material it still could be very probable that the material law of the tribe contained in the reported cases would be distorted, mutilated or, at least, incompletely represented. If this holds true for fifty cases of American or English case law (Llewellyn, 1933) there is no reason for the assumption that the situation should be different with fifty cases of primitive law. Consequently, supplementary methods will be necessary for the collection of the law-stuff of a primitive tribe. I fully agree with Llewellyn's statement:

> What has been said lays out three roads into the exploration of the law-stuff of a culture. The one road . . . goes to "rules" which are felt as proper for channeling and controlling behavior. . . . The second road is descriptive . . . it explores the problems according to which behavior actually occurs. The third road is a search for instances of hitch, dispute, grievance, trouble; and inquiring into what the trouble was and what was done about it. . . . The three approaches are thus related; nor can any of them be understood without the others (Llewellyn and Hoebel, 1941: 20–21).

In many primitive cultures, just as with many law-abiding citizens of the United States, there prevails a desire to have nothing to do with enforcement authorities —and even among us may exist some small communities, larger in number than many a native tribe, where we would look in vain for any reportable law cases. By what method should a scholar study there the American law? Perhaps by collecting some non-existent cases? Or would such a model community—with case law used as the only yardstick—have no law at all? Of course, it is ruled by American law with all its norms of behavior excellently applied; and only the circumstances make it impossible to find and to analyze the law and the norms by means of law cases. After all, in modern law, codified or not, as well as in primitive law, no individual case can be considered in isolated fashion. Any individual case gains its sense and significance only if studied against the background of rules and norms and therewith of the entire culture of a people. Each case has a past and, occasionally, also a future when, as a trouble case, it modifies the norm and thus may serve to create new law. In fact, a case becomes sometimes comprehensible only if regarded within the framework of a people's culture as a whole.

I certainly agree with Llewellyn that "cases are valuable, provided they are valid" (Llewellyn and Hoebel, 1941: 29) and I believe that in certain primitive cultures cases are "the safest main road into the discovery of law" (*ibid.*). But even here, cases are "no substitute for sound theory," they are one of the means "for checking on the theorizing" (*ibid.*, 40). The law-stuff of the law cases has to be supplemented by other material which is not presented to the investigator by case histories alone. In the last analysis it depends on the individual student himself which way of procedure and of investigation he may choose. There is no general pattern ready which he may apply to any given culture and civilization. His background, his training, his powers of observation, his psychological ability, his feel for the particular culture and people will always play a decisive role in his investigation, regardless of whatever school of thought he may belong to and which method he may apply.

What, then, are the sources for the exploring and collecting of the laws and customs of a primitive society?

They are:

(1) The researcher's own personal observations. Amount and value of the material collected by autopsy depend often on many greatly differing factors which are beyond the powers of the investigator. Such factors, to mention only a few, which exert great influence upon the material collected by personal observations, may be: (*a*) Whether or not the fieldwork is being done among tribes with a living culture still intact. (*b*) Whether the object of research is a culture subjected to a constant process of change or acculturation caused by outside pressure of certain alien, mostly European, influences. (*c*) Whether or not the culture investigated is already broken down and defunct, so that only in the memories of some old people a spark of the conditions of former times is left.

In the last instance, the exploring student cannot gather any material by his own observation. But even while working with still living societies the possibilities of his personal observations may greatly depend on chance, on the length of time spent among the people and, sometimes, on the more or less dynamic attitude of the different primitive societies concerning legal matters. Law-stuff has the peculiarity of hiding itself easily before the eyes of the observer; in contrast, for instance, to the manifestations of material culture or the forms of economic life. As to the Naskapi, I was fortunate enough to collect some law material by autopsy, especially in the fields of family law, property law, and contracts and tradeways.

However, the main sources for the collecting of material are:

(2) The reports and statements by native informants. They may be subdivided in: (*a*) Testimonies relating *personal experiences* in the life of the informant, i.e., what happened to him personally. (*b*) Testimonies based on the informants' own *observations*. These two different kinds of testimony are the most valuable. From the psychological point of view it was most interesting that the Naskapi informants who related these types of testimony were so involved in their own stories that questions of a general nature put to them in connection with the facts of their testimonies sometimes met with difficulties. This does not mean, however, that the individual informant did not have a concept of the general norms or did not want to state an abstract case, but he wanted to tell his own story first. (*c*)

Testimonies *told to the informants by third parties* as their respective experiences and observations, or known to the informants from hearsay. (*d*) Testimonies relating the *subjective opinions* of the informants on questions dealing with different law-stuff which they could not answer by drawing from their own experiences. Instead, as natives of a specific culture with the background and the feel for this culture they could give their own opinion on the legal problem in question. This subdivision comprised the answers to questions referring to fictitious and abstract cases. It may be assumed that the uttered opinions correspond in most cases with the felt right of the tribe's members and may therefore be used to clarify the rules and norms of that tribe.

Apart from dividing the testimonies into different categories, a discrimination between the finally chosen informants according to their abilities, character, background, and so forth is necessary if the student wants to collect reliable material. Here again, the investigator occasionally sees himself confronted with a difficult psychological job the success of which depends almost entirely upon his own faculties and qualifications. For this Naskapi study the principal informants were the following persons:

JOSEPH KURTNESS (KAK'WA) [2]

A full blooded Indian, in 1935 about sixty-five years old. He was a man of extraordinary intelligence who enjoyed the highest regard and esteem of his fellow tribesmen. Besides his native language, Montagnais-Naskapi, he spoke French and English fluently and maintained the best relations with all those who were in authority, i.e., the Company, the Indian Agent, and the Catholic priest. He was on good terms not only with the Naskapi but with the half-breeds of the region and the Canadian authorities as well, since he had served in the Canadian contingent during World War I. From 1924 to 1927 he was chief of the Lake St. John Band, for which reason Indians and whites alike continued to seek his advice and to consider him an expert on all questions pertaining to Indian life. For his second wife he chose a white woman of French-Canadian origin. His father, deceased before 1935, was greatly respected as a well-known shaman. Although Joe had learned from him the magic profession, he did not perform, probably, because the white man's life and customs had already left their mark on him.

Of all informants Joe Kak'wa had the most exhaustive knowledge of Indian life and its traditions. His mind was versatile to such a degree that the inquiring scientist had to take care not to ask him any leading questions to which he would have responded immediately with shrewd intuition. I noticed this especially while discussing with him the problems of lien which, as a rule, exists only rudimentarily among these Indians. Joe, obviously influenced by the conceptions of the white world, construed offhand a plausible-sounding theory in which the white man's lien was transposed into Indian law in a seemingly logical manner. In general, however, his information was thoroughly dependable, and was always verified by a careful checking of his statements. The case of the lien remained the only instance where his construction had to be reduced to the few facts confirmed by other Indians. The one negative trend of his character was his possessiveness. At times it was difficult to obtain information from other Indians without his presence. He alone wished to be the official interpreter and informant. This sometimes went so far that he even questioned the intelligence of his fellow-Indians and denied their ability to answer without his cooperation any question concerning the band.

His memory was excellent. Without making any mistakes in the years he could think back to his boyhood without difficulty; and the correctness of his statements was always proven by repeated double-checking. In the beginning he was shy, suspicious, and restrained, but later opened up completely and considered it a matter of high pride to assist a friend from the white world in the recording of the customs, thoughts and principles of his band in as undistorted a fashion as possible.

TOMO KAK'WA

He was Joe Kak'wa's older brother, seventy-two years old in 1935. This infirm and wretched old man —he probably suffered from polio—who had completely lost the use of his legs and could move about only by crawling was the philosopher of the band. Once an honored hunter and trapper he now quietly cowered within or in front of his tent at the shore of Lake St. John. In addition to his Indian language he spoke French fluently. His mind and memory were clear; whatever he said was profoundly sincere and was termed "true" and "correct" by the other Indians. Of him, they used to remark: "He preserved the spirit of the olden times." He never tired while telling the old tales and sagas, and it was a familiar sight to see him surrounded by the youngsters of the band who crowded about him to listen to his stories and yarns. It may be that it was his chosen task of a teacher of youth that made his mind search for the norm to a much higher degree than did other informants. In any case his final answer to some of my questions which suggested a variety of possibilities was often: "Thus it is and not otherwise!"

JOSÈPHE JOURDAIN

An Indian in his fifties, an expert canoe builder. For generations the art of this traditional Indian craft had been handed down from the fathers to the sons of his family. This made Josèphe one of the most sought-after canoe builders of the Lake St. John Band who

[2] Died in 1942.

knew like no other man how to construct birch-bark canoes in the ancient Indian manner.

As an informant he was cautious and pondering, with special emphasis on details. For this reason his experience and knowledge were especially useful when the correctness of statements made by other Indians was to be rechecked. With him as with all Indians who were outstanding in one of the native handicrafts his great interest not only in his own skill but in all aspects, rules, and problems of Indian life was remarkable. The information he furnished was reliable and correct.

NAPOLÉON BÉJEAN

A good-natured, cooperative and well-respected Indian trapper in his late fifties whose experience was the source of many a valuable bit of information. Most of our discussions emanated from the fact that he had transferred part of his hunting-ground to Tommy Moar and the interpretations of this transaction by his fellow-tribesmen.

Normally, Napoléon was quite indolent. Even on the summer place he was fond of solitude and idled away hours and days on the lake shore without any desire for chats with other people. It was difficult to make him speak, and his answers came slowly and in long intervals.

FRANÇOIS GERMAIN

About fifty-two years old, he was very outspoken in his answers as long as the questions suited his whims. As a whole, he certainly was no ideal informant, and general cooperativeness was not a part of his make-up. Questions he did not like he did not answer. Whenever it was attempted to amplify his answers by additional inquiries, he either remained silent or repeated in a dogmatic manner his first statement. He assumed exactly the same attitude when his fellow-tribesmen discussed among themselves some special problem.

Despite this somewhat negative approach, as far as his cooperativeness was concerned, the information he cared to give was always the result of shrewd analysis, clear and correct in the principal points, even if it did not include many details and was presented as a readily constructed pattern. He gave the impression of having built for himself his own individualistic view of the world in order to have a defense mechanism to counteract the influences of the approaching white as well as the decaying Indian civilizations. A religious medal showing the Virgin was attached to his canoe and he was during the summer months the holder of an expensive seat (paid for in furs) in one of the front pews in the small Catholic church. And yet, the rumor had it that he practiced shamanism during the winter months.

TOMMY MOAR

A man of mixed Scotch-Indian descent, in his middle sixties. For more than forty years he had been employed as an interpreter and servant at different posts of the Hudson's Bay Company: Ruperts House,[3] Mistassini, Chibougamau, Pointe Bleue. Yet, he thought and felt as an Indian, a "Company Indian." For many years he had been the official interpreter of the Company during the annual sellings of the Indian fur harvest to the Company and the buying of the winter supplies. He stood high in the esteem of his tribesmen who had full confidence in him. I do not know of one single case of Indians using their own interpreter in instances when Tommy Moar acted as official interpreter for the Company—a practice otherwise customary whenever the interpreter chosen by the Company did not enjoy their full confidence. Tommy Moar was a champion of the rights of the Indians, and he frequently turned bitter and was quite outspoken when he talked about the numerous encroachments by white trappers upon the hunting rights of the Indians. His experience and his knowledge of Indian life were outstanding, with his special interest centering around the rules and rights of the hunting-grounds. His interpretations of facts and occurrences were, however, sometimes challenged by other informants and thus became the starting-points of many fascinating discussions which, in turn, furnished the author with much valuable material.

MAGGY MOAR

Tommy's wife was a few years younger than her husband. She, too, claimed Scotch ancestry from her grandfather. Her mother was a Nichikun girl. With special stress on details, she was an expert on all questions pertaining to the feminine aspects of Indian life. For her mastership in women's handicraft she was highly thought of by the entire band. Besides being an excellent cook she was also a master in the art of moccasin making. Most outstanding were her beadwork and her embroideries. Gifted with an unusually delicate feeling for artistic color combinations, she manufactured her own birch-bark stencils through which she traced with charcoal geometrical as well as bird, flower, and animal patterns on garments and other materials to suit her original and artistic taste. Her needlework was of such daintiness and neatness in the most minute details that white experts later refused to acknowledge it as handmade.

Not only women came to seek her advice but men as well submitted their problems to her judgment and followed whatever suggestions she had to offer. It was difficult to find her alone in the circle of her family because almost invariably there was some neighbor present who had come to ask either Maggy's advice or her assistance in some emergency. During the regularly held Protestant church meetings of the summer time she translated the sermons of the English-speaking reverend into Montagnais-Naskapi for the benefit of

[3] The spelling of "Ruperts House" follows the spelling applied in the records of the Hudson's Bay Company.

those Indians who did not understand English. Her judgment was sound; her information, always the result of slow, careful consideration, was to the point. The facts she furnished were never incompatible or in contrast with those of other informants, although they were more detailed, more exhaustive than the statements of facts procured from other Indians.

JOHNNY CONELLY AND HIS FAMILY

Johnny, about fifty-nine years old, was the head of a family which at the time of my visit consisted of his wife, Christine, a grown-up son, Lonny, a daughter of about twenty-five, and a younger boy, Achille. Johnny and the members of his family were my teachers, especially concerning Indian material culture. I watched them manufacture snowshoes and moccasins and all imaginable kinds of birch-bark containers. Their explanations of each phase and detail of the working process were quite complete and exhaustive. Whenever I visited them they were always at work at some gadget, tool, or implement needed in an Indian household. In addition, Johnny and his older son were expert trappers and fishermen, and many a meal was provided by their traps. It is only natural that during the many hours spent with watching and taking part in these activities of the different members of the Conelly family many other aspects of Indian life were discussed as well, especially those which had legal and sociological bearings. Here again it became evident that especially such Indians who were masters in one or the other branch of native handicraft displayed a much higher interest also in spiritual questions than their more mediocre fellow-tribesmen. The different family members liked to amplify or correct their mutual statements and complemented each other so perfectly that the final result of these discussions was an accumulation of valuable material.

JOSÈPHE MANIGOUCHE AND FAMILY

The Manigouches offered a good example to study the daily life of an Indian family from the first day of their arrival at the summer place to the minute of their autumn departure for the hunting-grounds. The family consisted of Josèphe Manigouche, fifty-one years old, the father, and his slightly younger wife; their two unmarried daughters, Angélique and Marie Louise, seventeen and sixteen years of age respectively, their sickly brother, Michael (twenty-one), and another son, Pierre (twenty-five) who, being married, lived with his seventeen year old wife in his own private tent.

A characteristic feature of this family, typical of many others, was their almost complete neglect of any planning for the future. Another informant, Jacques Germain, expressed once the same idea by saying: *"Nous sommes ici pour ne penser à rien."* They lived for the moment and had a good time as long as there was enough food to get around during the summer. When they began to run out of supplies, when there was just enough flour left for a *banock,* they decided earlier than other Indians to return to the woods, to try to get some game. Besides a few pairs of moccasins plainly and honestly sewn together by Angélique, and a caribou skin smoked by mother, nothing was produced during the summer. Their summer was spent in pleasure and complacency. Angélique and her sister, Marie-Louise, were very talkative and never tired describing in typical teen-age fashion their own and their family's winter lives in the woods, while the Manigouche men furnished information on their hunting-ground and hunting habits.

Additional Indians who occasionally served as informants were: Albert Blacksmith, a Mistassini shaman; one-eyed Joseph Basil; Antoine Conelly, almost an octogenarian and his equally aged little wife, Clarisse Conelly, née Calish; furthermore, Honésime Nepton and Clarisse's beautiful and vivacious granddaughter Estelle Verrault, the sixteen year old daughter of Fabien Verrault.

The most important white-skinned informants were, of course, the managers of the Hudson's Bay Company Posts.

Mr. Fawley, about forty years old, was the manager of the Hudson's Bay Company Post at Pointe Bleue. The information obtained from him was naturally limited to all the different phases of Indian trade with the Company. Upon his initiative, lists of all larger purchases were written on birch bark or paper by the Indian buyers; as a means of evidence, these commercial orders were kept with the Indians' accounts. This practice, if not ruling out completely all possible complaints concerning the delivery of merchandise, at least narrowed down such unpleasant possibilities. Mr. Fawley represented the type of the conservative merchant whose interest in the Indians was limited to that sector of their lives which pertained to them as customers of the "Honourable Company."

In contrast to Factor Fawley, Mr. Sandy Ritchie, the manager of Chibougamau Post in the interior of Labrador, was himself a part of Indian life. He was a Scotchman in his late thirties, married to one of the daughters of Tommy and Maggy Moar who unfortunately died of tuberculosis in 1935. Although no full-blooded Indian in the strictest sense, she was nevertheless a member of the Mistassini Band. Through this marriage Ritchie was considered by the Indians as one of them and, in addition, he enjoyed a high reputation in his capacity as manager of the Post. By his many years of staying in the region of the band he had gained an exhaustive knowledge of all aspects of Indian life, and the information he contributed was extremely valuable. The extent of Indian confidence he enjoyed may best be demonstrated by the fact that they often called upon him to act as their judge or mediator in cases of dispute, as verified by the stories reported by him.

In this connection credit is due to those informants who have been managers in charge of Mistassini Post during the years from 1820 to 1840. Their reports on the Indians contained in the diaries have been widely used in this study. In chronological sequence their names were: James Clouston, John Walford, J. Kellock, Richard Hardisty, and William M. Kay.

The author being a museum man, the actual procedure of questioning very often started with the discussion of a piece of material culture, to be further developed from there on. Thus, the starting-off point for the very difficult hunting-ground rights was the construction of wooden traps with the informants, the setting of these traps in the woods and the cooking and eating of the partridges, rabbits, and muskrats caught by these devices. The manufacturing of a pair of moccasins by a woman gave me the opportunity to clarify with her and other members of her family many questions of individual and family property rights and the division of labor. As to contracts and tradeways, the furs and the merchandise in the Hudson's Bay Company store were easy starting points. The questions were never put in a general manner but were always connected with the personal life of the informants and even in fictitious cases the Indians were never asked: "What was the rule?" but rather: "What would you do, if this happened to you?"—in short, the questions were individualized. For all cases answers were checked and rechecked. If there were unsurmountable discrepancies, I invited a group of informants to discuss a certain question. I did this, for instance, during the investigation of the complex of chieftaincy, or to clear up the transference of a hunting-ground from Napoléon Béjean to Tommy Moar. Other instances are related in the following chapters. The cooperativeness of all concerned was very gratifying. I set out to collect as much material about Naskapi law as I could possibly get. I have refrained from a too exhaustive interpretation, to avoid the danger of projecting thoughts and concepts into the Naskapi law which were not originally contained in it. However, in merely describing the facts, I sometimes had to use modern conceptions and wordings of legal institutions, in order to make myself understood; this could not be avoided. But I took care not to distort the facts while describing them. I did not argue the cases in the fashion of a practicing lawyer because the lawyer of the other party would have been absent and therefore not heard, and Naskapi law does not provide for a court of appeals. I just listened and collected. The cooperative spirit and the strong interest which the Indians displayed in our mutual work in this study of Naskapi law were best expressed by one informant who remarked: "I like that. You ask me about human beings and not about the devil or the soul of a leaf."

II. GENERAL ASPECTS OF MONTAGNAIS–NASKAPI ECONOMY [1]

The form of economics of the Lake St. John and Mistassini Indians is the acquisitive economy of the subarctic hunters. Productive economy, agriculture, and cattle raising, are unknown to them and attempts to induce the Indians to settle down and to educate them to become farmers have never produced any encouraging results. The Naskapi have always been, and always want to remain, a people of hunters. Today, just as at the time when the first white man appeared in their region, their form of economy has remained the same, namely, the hunt for moose and caribou and the trapping of fur-bearing animals: beaver, otter, fisher, lynx, muskrat, mink, and marten. These skins, formerly exchanged for other types of merchandise with the Indian bands mainly living south of them, are nowadays sold to the white merchant.

The well defined hunting-ground of the band is subdivided into family hunting-grounds; and a communal hunt by the band does not ordinarily take place. The individual family is the hunting unit. Thus, the economic unit, too, is the family although as we shall see later the band will in cases of emergency subsidiarily come to its aid. We may rightly say that the band in this respect has developed a kind of social security agency. The individual tribesmen are, economically speaking, strongly bound to the band despite the fact that their political organization in general is but loosely knit. Judging by the sources, the subdivision of the tribal land into family hunting-grounds is very old indeed and certainly can be dated back prior to the establishment of the Hudson's Bay Company posts. At what time, however, this ancient institution came into being and what economic reasons brought it about, it still a matter of conjecture.[2]

Whether or not the bands who roam the interior of Labrador east and north of the Mistassini have the same characteristics of the family hunting group, we have so far no knowledge. All we know is that flora and fauna in these districts are different and that the tundra of their region harbors large herds of caribou

[1] Originally, the economy of the Montagnais-Naskapi was described in this book in six separate chapters. Since, however, this study primarily deals with the customary law of the Montagnais-Naskapi Indians it has been decided to omit the detailed chapters on economics and to condense the economic background into the present chapter: "General Aspects of Montagnais-Naskapi Economy." A special study on Naskapi Economy is being published separately in *Ethnos*, 1: 2, Stockholm, 1947.

[2] In recent years the question whether or not the family hunting-ground system is pre-Columbian among the Algonkian tribes has been widely discussed (see Cooper, 1939; Jenness, 1932; Speck and Eiseley, 1939, 1942; Speck, 1935–1936*a*). As far as the Lake St. John and Mistassini bands are concerned, I have approached the matter, especially the different hunting rights, from the legal point of view in the effort to contribute my mite toward a clearer understanding of the problems involved. Compare chapter VI, "Property and Inheritance."

determining a different aspect for hunting methods. Caribou and moose have become scarce in the Mistassini and Lake St. John regions where beaver and bear furnish the main supply of meat. A gradual slackening of the intensity of the typical family hunting institution has been reported by Speck [3] from the Lake Mitchikamau Indians in the far Northeast and of the St. Augustin band in the far East. Both bands hunt the caribou in communal hunt, but only for approximately one month, and scatter in family units thereafter to hunt for themselves. Unfortunately, the existing data are too scarce to allow further conclusions about the economic organization of the northerly tribes of the interior.

As far as the Mistassini are concerned, W. M. Clark reports in a letter dated April 1, 1830, to M. R. Hardisty [4] among other communications the following statement:

> When I came to Catspitsiway's tent I was surprised to find that they had not their furs by them—all they had was not above two or three beaver in martins. They told me that they had left them far from where they were then stopping and did not intend to fetch them before spring. I was away on this journey not less than 20 days, owing to the distance I had to go and not having a guide we could not go straight—not being able always to keep the Indian's track.
>
> The following day after I came to the Indians they asked me to go after some deer with them, which I complied with to please them for the sake of drawing all their attachment towards the Honorary Company's servants—and we had the good luck to assist them in killing 27 deer out of a herd of above 40. I stopped with them five days trying all I could to get them to trap martins, as they were pretty numerous about there. Since I had been at the trouble of assisting them to kill deer I now expected they would endeavour to catch some—which they agreed to and promised to do all they could.

The contents of this letter clearly show that the described hunt was purely accidental and by no means constituted an organized tribal hunting party. It was sheer luck that brought a herd of deer in the region of some family groups camping together. The diaries furnish many a proof that, since and before the establishment of the Hudson's Bay Company, the institution of family hunting-grounds prevailed in the regions of Lake Mistassini and Lake St. John.

In the territories of these bands the hunt was customarily carried on by individual hunters occasionally joined by a few hunting comrades and primarily concentrated on trapping. The trapping of game animals principally determines the economic life of these Indians. This form of hunting has the double advantage of providing meat and furs at the same time. The two products are equally important, since the furs are exchanged for vital supplies like flour, fat, tea, clothing, and important articles of equipment all of which serve toward making secure life and livelihood throughout the coming year in the woods. If the fur harvest is small or, by unfortunate circumstances, entirely unsuccessful, life itself is endangered since essential supplies cannot be traded. This is the reason why the animal trap plays so important a role in their economic and legal life. Theft of traps and unauthorized trapping on foreign hunting-grounds are the cause of many a case before the courts of the law-enforcing agencies of the Naskapi.

If the steel traps purchased from the Hudson's Bay Company did not comply with the expectations of the Indians, they deserted the Post in question and refused to exchange further their precious furs there. Sometimes, the whole band represented by their chieftain—as, for instance in the case of Nosipatan [5] raised their voice in protest against the Hudson's Bay Company.

Since hunting and trapping thus constitute the backbone of the economic structure of these Indians, the catching and killing of the game animals are organized in such a manner as to safeguard a certain amount of economic security. The game of the region is not decimated but, rather, preserved and skillfully protected. One was and still is interested in the increase of the game. No Indian would kill all beavers populating a beaver house or harm the mother of a number of very young beavers since the offspring would perish miserably if the mother were killed or caught. Similar precautions were observed with all other game animals. In addition to the friendly relations which thus grew out of economic reasons, certain totemistic conceptions prevail in the relationship between man and animal.

For the Montagnais-Naskapi Indian the game animal is gifted with a soul similar to that of man; its reactions and social organization are imagined as similar to those of their human brethren. These observations were expressed as early as 1694 by Father Le Clerq:

> They believe that many kinds of animals have reasonable souls. They have superstitions against profaning certain bones of elk, beaver and other beasts of letting dogs gnaw them. They preserve them carefully or throw them into rivers. They pretend that the souls of these animals come to see how bodies are treated and tell the living beasts and those that are dead, so that if ill treated the beasts of the same kind will no longer allow themselves to be taken in this world or the next (Shea, 1881: I: 220).

Animals and fish—caribou and beaver and the lesser beasts—have their masters, overlords, and chiefs, just as the Naskapi have their chiefs; except for the bear who is always "a chief by himself." In some cases, the chieftains of the animals—especially of the caribou—gain almost divine attributes. Animals may pray to the same supreme powers as man, for instance to *wuapan* nishu ("The Daylight Man"), the "Man of the East," in order to beg him kindly to stop the snowfall. Such a prayer is especially proper for the caribou which—thinks the Indian—not being equipped with snowshoes

[3] Orally, to the author, and in Speck, 1936*a*; Speck and Eiseley, 1942.

[4] Hudson's Bay Company, Mistassini Post. Journal of Occurrences and Transactions, 1829–1830.

[5] Compare pp. 406, 407.

and therefore breaking into the deep snow, is unable to escape the hunter. A bear is never known to walk through the snow because his footprints would betray him and be the cause of his death. Varied discussions with my informants about this subject, the game animal, and the hunting-grounds revealed that many Indians seem to believe that not the Indians but rather the game animals were the true owners of the hunting-grounds. It seemed to me that the Naskapi hunters regard themselves merely as servants of the chieftains of the game animals whose ceremonial prescriptions at the hunt they have to follow in order to safeguard their own livelihood. The Indian's rights against his fellows concerning his hunting-ground may well be governed by the legal concepts of man and the nature of these rights may furnish some interesting material for the discussions of ethnologists and lawyers—yet, in his relationship to the animal kingdom the Indian feels that his rights in his hunting-ground are shared with the animals. No wonder, therefore, that as far as hunting and fishing are concerned, certain magic ceremonies rule the economic life of these Indians. Scapulamancy and divination, the interpretation of dreams, hunting and trapping charms occupy an outstanding place in the cultural and economic set-up of the Naskapi.[6] Most elaborate and most clearly defined are the magico-religious formalities accompanying the bear hunt.[7] It is no overstatement to say that, in Naskapi belief, the bear has human qualities and human reason. No wonder, then, that after the hunt they treat even its dead body with reverence.

All these conceptions and actions which mostly belong in the field of religion are mentioned here merely because they illustrate from the economic angle the relationship between the Indian and the animal who furnish him the base of his livelihood. This attitude is, as a whole, not much different from that of the primitive cattle breeders or from that of farmers in primitive societies to their animals. The principle of the preservation of the game animals is in any event evident.

In the olden times, the beginning of the great hunting and trapping season was ceremoniously celebrated. According to my informants, even today there are supposed to be some Mistassini families in the northern territories who faithfully perform this ceremony. They gather on the day before the start of the hunting season to celebrate the event with a common ceremonial meal of beaver. This is done in the following way:

After the beaver has been caught and killed, his fur is singed off, he is disembowelled, cleaned, and washed, and then boiled in a large kettle. When the meat is well cooked it is removed from the kettle and placed in a birch-bark bowl. All inhabitants of the tent gather together and sit down to smoke to the beating of a big drum with their eyes in the direction of the meat. Calling each animal they hope to hunt during the coming season by its name, they sing a special song for the bear, the beaver, the caribou, and each other game animal. Only one hunter sings at a time while the others quietly smoke and listen. When the song is finished the drum is passed on to the next Indian who begins to sing while his predecessor takes his pipe and joins the others in smoking. When each man present has finished singing and the beaver meat is ready, the oldest in the circle approaches the bowl with the cooked meat and, taking small pieces from all parts of it he throws them ceremoniously and slowly into the fire while he addresses the spirits of the caribou, wolves, beavers, bears, and other game animals with the words: "Here I give you this—be satisfied!" Pleased by this remembrance the spirits of the animals he called upon will now send him during the coming winter many members of their own tribes, to keep starvation away from the tent community. After this consideration of the game animals, the dogs are called in and offered different parts of beaver meat. This will satisfy them, too, and inspire them to help their Indian masters efficiently with the hunt. Not before then do the men themselves begin to eat. The oldest takes the first mouthful of meat; after him come the other hunters and trappers who must eat all of the meat, since no left-overs are allowed. Women and children join in, and, if there are not enough persons to eat all of the beaver at once, the meat is not removed and stored away but left in the middle of the tent so that whoever passes the bowl may help himself to some additional mouthfuls. If the meat has not been all eaten by sunrise, any left-over pieces are thrown into the fire. The bones of this special beaver are wrapped into birch bark and hung up high in the trees to make sure that the dogs cannot humiliate the beaver's spirit by eating them. If one of the bones should accidentally fall to the ground and be gnawed by a dog, misery and bad luck would befall the whole band.

Thus prepared, the hunters are ready to start out next day for their first great hunt of the season.

It lies in the nature of acquisitive economy that the different branches of economic life are rather simple. This holds true not only for the Naskapi way of making a living but also for the activities which serve the satisfaction of their human needs of which the search for food is only one sector. But just as important as caribou, bear, and beaver, their meat and their skins, are the woods used by Indian craftsmen for their tools and implements: birch, spruce, and tamarack.

In contrast to higher forms of cultural development or to our own civilization with its manifold differentiations and divisions of labor, the Naskapi culture knows of division of labor almost exclusively as between the sexes. Generally speaking, every Indian family has the same economic abilities and performs the same type of work,

[6] In his excellent book, *Naskapi, the savage hunters of the Labrador peninsula*, 1935, Frank G. Speck has dedicated much space to these phenomena. *Vide* there additional literature. Compare also Cooper, 1927.

[7] A. J. Hallowell (1926) has dealt extensively with this subject, including the data from the Montagnais-Naskapi.

therefore, a description of the economics of these bands offers a rather homogeneous picture. Let us, therefore, at least sketch these manifestations of Naskapi economy,[8] since the law-ways of our Indians naturally often refer to them.

Before the arrival of the whites and their fire arms, the Indian hunting weapons were bows, arrows, spears, and their various systems of animal traps.

Their bow was the simple bow made of spruce wood and five to six feet long. Another type of bow had in its center a notch for the hunter's left hand. My informants claimed that this model in which a curved cross profile constitutes the oldest variety, while the flat and simple bow is supposed to be of more recent date. The string consisted of braided strands of caribou leather, because one single leather string alone would not have been powerful enough to bear the tension of the bow. These types of hunting bows served at the same time as weapons of war.

Three kinds of arrows, all carved from birch wood or white spruce, were used with these bows. The most important type was the tangentially feathered arrow, two and a half to three feet long and armed with a pointed bone. It was used especially for the hunt of big game. For the hunt of smaller game and birds another type of arrow was used whose upper end was reenforced and which either was not armored at all or simply equipped with a bone or flintstone point.

The hunting spear, either short or extremely long, was used for the killing of bears and caribou. The lance had a bone part which was either tied to the shaft or inserted into and tied to the slightly split upper end of the spear.

The introduction of the white man's rifle has reduced any further use of the original Indian hunting weapons to insignificance. Occasionally, however, some birds and small game are still today killed with bow and arrow, especially in cases of emergency either when a saving of ammunition seems advisable or when all ammunition has been used up.

The most important element of Montagnais-Naskapi economy is, however, the trapping of game animals. Most animals on whose meat the Indian relies for his subsistence, and whose precious pelts can be exchanged in the Hudson's Bay Company's store for goods which, in turn, are essential for his life in the woods, are caught in traps. Thus, trapping does not only furnish his food, it also gives the Naskapi the opportunity to acquire all such goods as his heart may desire.

Apart from the genuine traps of different mechanical principles, trap-like catching methods are in use. With simple snares used by hand, partridges are caught, occasionally also the lynx or even a bear cub which the hunter does not want to shoot. The available fishing nets are also used to catch ducks, loons, and partridges, and with the aid of a special net-bag the beaver is caught alive and killed by an axe-blow between the shoulder blades. The author has exhaustively dealt with the trap systems among the Montagnais-Naskapi in a special treatise (Lips, 1936) and it may, therefore, suffice here merely to mention it.

The introduction of steel traps changed the economic situation of the Indians in so far as a family relying on wooden traps would not be able to set more than about one hundred and fifty of them, while nowadays four hundred and fifty steel traps are the average for one single family. In any case of emergency, however, the hunter falls back on his knowledge of building wooden traps which has been passed on to him by his forefathers.

Fishing is done either with nets, fish spears, rod, or line. The most important of the three is the fish net which is used in still water, in bays, and on lakes. The whole family including the children participate in the fishing. Although the manufacture of a net is mostly women's work, the male members of the family are well acquainted with all steps of the working process.

Compared to Naskapi hunting and fishing, the gathering of plants and the picking of berries plays a rather insignificant role. When I asked my informants about the Indian consumption of berries and vegetables, they displayed astonishment because they were of the opinion that the animals they shoot and eat feed on these foodstuffs which means to them that, consequently, the consumer of the meat enjoys at least the same healthy benefits as though he had eaten all those vegetables himself. The picking of blueberries is in this respect an exception. From the first time of their maturity in August to the time when frost begins to impair them, they are picked in very large quantities, serving for the manufacture of jam and pemmican. Raspberries, too are collected systematically but eaten only raw and in their natural consistence. Although wild honey does exist in this region, it is not customary to collect it. Maple syrup is obtained by incising the bark of the tree which, after an elongation of the cut with the help of a few pieces of bark, yields the desired liquid into a vessel standing beneath. The contents of this container are emptied into a huge kettle in which the juice boils from two to three days.

Mushrooms, often growing in abundance, are never picked and eaten. The arrowroot was singled out by the informants as the most desirable root, worthy of being collected for consumption. Another plant, "a little thing growing on the rocks" called by the Indians *wakunapishkuts,* "span of the rocks," was collected in the olden times. After having been dried it was boiled for two to three hours to produce a thick syrup. Another way of preparing it was to boil it down to the

[8] The author has collected in the field most terms used by the Indians for their material culture and their economy. However, he feels that this study, dealing primarily with the law of the Montagnais-Naskapi, should only give the aboriginal legal terms, if possible, and should not be burdened with native expressions not pertaining to legal conceptions.

degree of extreme thickness, the hardened mixture was then eaten as though it were a pancake.

Before the arrival of the white man the use of salt was unknown to these Indians. They enjoyed, however, some type of chewing gum made of spruce resin. The bark of the red willow is used for various purposes. For tobacco, it is cut into long, narrow strips, tied together in bundles and dried over the fire place. In addition to this, it is used in fresh or dried condition as a tea drunk in spring or fall as a purifier of the blood. Finally, the Montagnais-Naskapi Indians make use of the dyeing qualities of the red willow bark. Boiled down to a thick decoction it furnishes them a red dye for their wooden household articles like spoons, etc.

The principal sources of meat for the Indian family are caribou, moose, bear, and beaver. When, in need, however, they will eat any animal they can lay their hands on. If starvation strikes, they eat even the skins prepared and stored as means of exchange and trade with the Hudson's Bay Company. Wild ducks, wild geese, snow owls, and partridges furnish them with additional delicious meals, and also rabbits are not rejected. Yet it is a well-known fact that rabbits alone would not suffice as a source of food. The old records claim, and the Indian informants corroborated, that a family living exclusively on rabbit meat would invariably fall victim to starvation.

It is the task of the father and the sons to keep the family supplied with meat. One of the main dishes of Indian cookery made of meat and fat is the *pemmican* which, if properly preserved, can be stored up to three years. Not even the warmest summer day will spoil its quality.

All fish are prepared carefully. They are cleaned, split, cut into pieces, and boiled. The edibility of crabs has not been recognized by the Indians. Frogs, snails, and shells are not considered food fit for human consumption. The drying and smoking of fish is a common practice. Especially the Mistassini Indians are known for their outstanding skill in the preparation of fish preserves.

Whenever possible, meat and fish are served together with *banock,* the Indian bread. Quite frequently, the *banock* is the only food available when the hunter returns from the wilds empty-handed and when there is no other food around but, perhaps, a few berries picked by the children. The preparation of the *banock* is extremely simple. It is a flat round cake consisting of flour, salt, and baking powder, mixed with some water and baked in a greased black iron pan. The Indians often make this bread in advance and in considerable quantities, especially when they are traveling. In the olden times the flour was blended with soda rather than with the still unknown baking powder and baked in the hot ashes of the tent fire always into large cakes. Before the times of the Hudson's Bay Company, and therefore before the times when flour and soda could be bought, the *banock* was unknown altogether since the Indians had no proper substitute for the flour.

The tent of the olden times was the tepee. Alike for summer and winter, its material was birch bark. Only in regions far north where no birch trees grow the tepee was covered with caribou hide whose hair had been scraped off. Its base was round, with the size depending upon the size of the family that was to occupy it, the average size being about fifteen feet in diameter.

In modern times the shape of the tent as well as the material of the cover are different from the traditional model. The tent canvas used as covering material is made in the white man's factories and in most cases it is sold already cut and sewn together in the shape of a tent. Yet, some Indian families still prefer to buy canvas from the bale and to cut and sew it themselves. The canvas cover has two round openings for the pole forming the upper "ridge" of the tent and, in addition, a round tin-plate covered hole for the stove-pipe.

While the erection of the tent itself is men's work, the necessary inside jobs are attended to by women and children. This includes especially the providing of balsam and spruce twigs for the floor covering. When this "carpet" is spread out thickly throughout the tent, the stove can be brought in and set up, with its pipe emerging from the fitting hole in the canvas. Immediately afterwards, the fire is started and the cooking of the first meal takes place. A tent is always set up with the same care and love of detail and it is without importance whether it will stand on the chosen spot for merely one day or for weeks to come.

It may, however, be that an Indian, especially when traveling alone, uses an open, topped windbreak constructed of branches, twigs, and snowpacks for his over-night protection. A cover of canvas or of hide, thrown around a row of standing poles, may also be used for this "open-top camp." [9]

The customary clothing of the olden times consisted merely of rabbit skin coats made in the same technique as the rabbit skin blankets and worn by men, women, and children alike. The coat is long enough to cover the knees; women wear it even longer. While for men's coats the long sleeved garments are crocheted in sweater-like technique, women's sleeves are, in their upper parts, slit and merely tied together with strips of fur, probably to facilitate the nursing of babies. No other piece of clothing, not even a shirt, is worn under this type of coat. For both sexes alike, the outfit is completed by leggings of caribou hide or rabbit skin. Caribou hide is also used for another type of coat equipped with a hood and long sleeves. For these coats a number of pieces of leather are sewn together with the help of a bone needle cut from the leg-bone of a lynx and threaded with caribou string. The leg-

[9] This type of windbreak has been described by Speck (1926*c*: 61–67).

gings are often decorated with intricate ornaments of vermilion, the red oxide of mercury provided by nature, serving as a paint. The two sexes wear the same type of clothing with but little variation. The rabbit skin coats are closed with small strips of fur tied through the meshes of the knitting.

The women wear their hair wrapped around small wooden blocks hanging over each ear and tied to them with ribbons. A special beret is customary among the married women. In the olden times it was made of caribou hide. Its modern variety is cut from fine, mostly navy blue, cloth, richly embroidered with colorful beads. This beret ends in a long-cut hind part which covers part of the wearer's back. Young girls wear a simple scarf or handkerchief or animal skin draped around their heads.

The men wear their hair either bobbed at the neck or still longer, with a band to keep it out of the eyes. Their traditional hats are small smooth caps of caribou hide, richly trimmed with loon feathers taken from under the wings of these birds and, in addition, embroidered with floral ornaments of multicolored beads. This same type of cap, only simpler and less ornate, is also worn by children. Nowadays, these caps are still cut in the traditional way but cloth has, in most cases, replaced the leather material.

Moccasins serve as footwear and are important as an article of trade. Mittens are worn to protect the hands from the cold. Often, however, these fancier accessories of caribou or rabbit skin are replaced by a piece of fur simply wrapped around the wearer's hand. To keep the leggings safely up, richly beaded garters with fancy ornaments are worn by the men and tied to the leg with leather strings. Nowadays, some men also wear garters tied together with attractively colored wool cords sold to them in the white man's store. The women, whose longer coats cover the upper rims of their leggings, use as garters plain leather strings without beads or other decorations.

In modern times this original Indian clothing is only rarely worn. Unfortunately, it has been replaced by cheap European garments.

No Indian household could be thought of without the various boxes and containers, baskets, bowls, and drinking cups made of birch bark. The shapes of these objects are exceedingly manifold: round, oval, or square and, occasionally, a combination of all three. Besides the treatment of the animal skins and their fine beadwork the artistry of the Naskapi Indians manifests itself especially in the manufacture of birch-bark articles. This is women's work. The division of labor is observed so strictly that, for instance, the husband of a wife whose injured arm prevents her from doing the customary birch-bark work, needs her advice for every detail when he tries to do it in her place. During my stay at Pointe Bleue I observed a case like this. The man, usually very skillful in all other branches of Indian handicraft, had to rely entirely on the working instructions given him by his sick wife when he tried to made a birch-bark basket urgently needed in their household.

However, not all such objects require the careful treatment of skilled craftswomen. Some objects, not destined for permanent use, are quickly put together and discarded when their purpose has been accomplished. When the Indians travel to and from their hunting-grounds, most of their supplies and household articles are safely stored away somewhere in a cache in the woods and there is often not time enough to make carefully the needed containers for berries, fish, or meat. Therefore, substitutes have to be improvised. Two principal models of such containers are in constant use: the three-cornered drinking cup and the square-shaped fish or berry basket. Both are crudely put together and held in shape by wooden pins but they serve their purpose well and are of great practical value. The drinking cup, folded from one single piece of squarely cut bark and held in shape by just one wooden pin, can be made in any desired size. The same holds true for the berry basket, also folded from one piece of bark and held together by two pins, which occasionally may reach considerable size.

These provisory containers have the same shapes as the more elaborate containers for permanent use, even if not all kinds can be thus imitated. The used material is the same for all of them: birch bark. Thin strings of caribou leather are used as sewing material for the more durable models. A close inspection of the different shapes clearly shows the difference between the ancient and the more modern patterns. Square and wedgeshaped containers—the latter used for the storage of pemmican—as well as the cylindric models of drinking cups waterproofed with canoe-gum seem to be of older origin, while the round and bowlshaped baskets appear as of more recent date. Also the ornaments used for the decoration of the different models can easily be divided into younger and older style groups.

While the birch bark necessary for the building of a canoe is always cut by a man, the women manufacturers of birch-bark baskets cut their own bark needed as the material for their work. The birch bark is used in such a way that the side of the bark from the outer side of the tree forms the inner part of the container while the inner layer of the bark forms the outside of the manufactured article.

As means of transportation during the summer season the canoe serves, in winter toboggan and snowshoe. The material for the canoe is furnished by a species of birch tree whose bark is thicker than that of the ordinary white birch, namely, the "paper birch" (*Betula papyrifera*). Only thick, tall trees with as few knot holes as possible are suitable to furnish the material necessary for a canoe which preferably consists of one single piece of bark. It is not at all necessary to make imme-

diate use of the harvested bark. It may be stored for years without losing its usefulness. In most cases, however, an Indian will cut the bark only if he intends to build a canoe.

While her husband is busy with the cutting, peeling off, and carrying home of the bark, his wife has, in the meantime, collected from the ground long pieces of spruce root. After the black outside bark has been removed, the roots are split in long, white, flexible strips and wound into a small wreath which also may be preserved for years. Before use the root must be boiled and afterwards left in the water to restore its flexibility, necessary for its use as "sewing thread" of the canoe. All wooden parts of a canoe consist of white cedar wood; the paddles alone are manufactured of birch wood.

Although the sewing and gluing of a canoe are women's work in the strictest sense of the word, it often happens that women even assist with the manufacture of the gunwale. One of my informants told me that some women, especially single ones, are indeed able to build their own canoes. Certain families are especially famous for their skill in canoe building. My own informant, Josèphe Jourdain, who built before my eyes a canoe (whereby I could study every single phase of its building) was the member of such a renowned family. Nowadays the art of canoe building is only rarely to be found. The canvas canoe sold by the Hudson's Bay Company displaces the birch-bark vessel of the olden times. It is of identical shape, although it is about two feet larger. It is sturdier and of longer wear than the birch-bark canoe which can be used only for about five years.

The usual means of transportation for the winter time is the toboggan. Whatever has to be hauled through the snow—small children still unable to walk, bagged game, firewood, and the bodies of the departed —is moved about on it. Birch wood serves as its building material. An Indian who desires to construct a toboggan first looks out for a suitable birch tree which he cuts down with his axe. The wooden boards necessary for the body of the sledge are chopped off the trunk with the help of the axe and that indispensible tool, the crooked knife.

Before the Indians leave their hunting-grounds for the summer camps they lift their toboggans into a tree. The headpiece, attached to some strong branch, must face either East or South. The Indians believe that, if this rule would be disregarded, illness or death would afflict the careless owners of the toboggan.

The material for the manufacture of snowshoe frames is birch wood. To give it the desired circular shape, a suitable long stick is laid in hot water and then bent over the knee into an arch. In order to make the frame maintain the desired form while drying the lower part forming the handle is firmly tied together with leather strings while the center part is held open by a strut. Instead of the caribou strings, wooden or steel screws furnished by the Hudson's Bay Company are used in modern times for this purpose. The average length of a snowshoe is about three feet, the width at its broadest part about two feet. Occasionally, narrower and longer models are used which are, according to my informants, especially customary with the Têtes de Boule and the Hurons of Lorette. The more ancient kind of snowshoe, made and used still today, known as "bear paw" has no handle or "beaver tail"; its shape is approximately that of the length cross section of an egg. Snowshoes are not made to measure but vary in size only in so far as men's, women's, or children's models are concerned. Snowshoes worn at the reservation are smaller than those used by the trappers and hunters in the woods. The frame and the heavy lacings and loops in the middle destined for holding the wearer's foot in place are men's work.

In the economy of the Montagnais-Naskapi the manufacture of goods is carried on by the individual family, so that the individual family is also the production unit. No traces of any development of guilds are noticeable, even though certain individuals enjoy special esteem on account of their craftsmanship in one or the other field of production. So, for instance, the already mentioned Josèphe Jourdain is sought after as an expert canoe builder; Maggy Moar is famed for her artistry in all needle and beadwork; and it is generally agreed that, when it comes to birch-bark articles, no one can measure up to the Johnny Conellys. As a consequence, successful specialists occasionally receive orders from other families or they even keep on hand some specimen of their skill for possible future demand. Legally, this fact finds its expression in service contracts and contracts of specified manufactures which are dealt with in the chapter on "Contracts and Tradeways."

Particularly the Mistassini Indians are known for their outstanding leather work; and, since practically all families turn out the same high-class products, they do not exchange them within the band but rather with other tribes, trading them as far south as the St. Lawrence. Given a possible surplus of tradable goods manufactured by one individual family the Indian producer can always reckon with the Hudson's Bay Company as a possible buyer of their semi-manufacture such as, for instance, caribou hide as well as for their finished products (moccasins, beaded tobacco pouches, snowshoes, and the like). The Company, in turn, sells these articles to tourists from the white world.

It cannot, however, be assumed that with the establishment of the Hudson's Bay Company a form of production has sprung into existence which might exceed the immediate necessities of the single family, even though the interest of the Company in certain goods has acted as a strong incentive for the production of such articles. In process of time this may later lead to a development of guilds and professional trade

groups—at present, however, nothing of the kind is evident. With the Montagnais-Naskapi the situation concerning the manufacture of goods is still that—except in the few above-mentioned cases—each family relies exclusively upon itself for its supply of Indian-manufactured articles of daily use. The ability to make these things right at home is a cultural tradition with every Indian family. We have here in fact a form of economic system about which in the history of economics many books have been written—an economy of self-sufficiency within the family.

In view of the great hardships of the Naskapi hunter in the old days the question is only natural whether their trading business with the Hudson's Bay Company had not enabled them to live a more secure form of economic life which might exclude the characteristic element of insecurity. This seems to be the case only to a very small degree. The traded food supplies are merely additions, seasonings, and supplements to the principal meat diet; and psychological as well as factual reasons seem to weigh up the advantages. Psychologically, the individual Indian is still, as long as his exchanged supplies are abundant, not very much inclined to worry about possible shortages in the future, since planning for the far future remains more or less foreign to his mind. On the other hand, the advance of civilization, the use of large numbers of steel traps instead of the fewer self-built wooden traps of old, have contributed to the decrease of the game. The Indians' struggle for subsistence is thus today as severe as it was in ancient times. The reports about Indians dying of hunger run through the annual reports of the Hudson's Bay Company managers like a red thread and it still happens that entire families are wiped out by starvation. The Lake St. John Journal of Occurrences for the years 1849 and 1850 contains these entries:

Friday, 1st February, 1849:

NW wind and fine weather. Men setting lines. Gugone, Michel, and Jerome came in the morning and Milow with his family in the evening, every one of them without a skin of fur of any kind, and the whole lot complained of hunger.

Tuesday, 29th January, 1850:

Fine cold weather, wind N.W. Ataquapie arrives in the morning. Reports the death of Polish and family which took place last fall. Also, that F. Jordan and family were starving. In consequence of such information, I sent him to Jordan's camp upon the river Misticinch with 5 scs Flour, 10 H. Beef and 3 H. Butter which I trust, if he arrives in time, will enable them all to arrive here in safety.

30th January 1850:

Still fine weather. Men differently employed. John Batiste arrived in the afternoon in a starving state, he wintered with F. Jordan.

The Mistassini Reports, too, often contain descriptions of the desperate situation facing the starving Indian families.

1824–1825

Several of them came to the house starving in the early part of the winter, but afterwards they were pretty well off, having been successful in killing deer.

1827–1828

Missenahegganish is a good hunter, but having been very nigh starved to death last winter—prevented him from hunting so well as usual.

1834–1835

Noosipatan. The principal Indian belonging to Mistassinny Post. Died some time during the winter. It [is] said that the Gruvel was the cause of this man's death. I was told that he had 55 MBr at the time—but they were all made use for food to his family and others when they were starving.

Missinnahagonish. Brother to the deceased Noosipatan. It is supposed that he died through want of food. He was a good hunter. His wife is still living and was at Mistasinny this spring. She says that her husband was not able to walk when she left him and only one of her daughters was able to get a little wood for fire. The reason she assigns for leaving him was because she . . . that she was going to be. . . . He had 7 or 8 children with him at the time. This man had hunted upwards of 80 MBr in the fall and the beginning of the winter, all of which was made use for food.

1837–1838

Espabinwescome. A tolerable good hunter. Died last winter through starvation.[10]

These quotations speak more eloquently of the economic situation of the Indians than any other sources or reports compiled by scientists could possibly do since the Hudson's Bay Company manager was, as a merchant, primarily interested in the Indians in their capacity as his customers.

But starvation is not the only danger facing the Indians in the woods. Their fur harvest is especially threatened by the voracity especially of the wolverine, the "Indian devil." My own informants, as well as the Hudson's Bay Company managers' diaries, reported instances in which this destructive animal had reduced to nought a hunter's whole stock of furs gathered under the hardships of the arctic winter, therewith jeopardizing the economic future of the entire family.

The Journal of Mistasinny Post contains an entry of June 4, 1823, which says of an unnamed Indian hunting to the southeast of the Post:

He brought here only 11 MBr—he says wolverine eat or spoiled all the rest of his furs to the amount of 40 MBr, five of the skins he brought had parts of them eaten away.

The same report names the Indians Mechimagau and Watehicotaish who, too, were victims of the same kind of mishap:

Wechimagan . . . hunted very little last winter. It is reported a wolverine ate the greater part of his furs. He sent a few skins to me which had parts of them eaten away.

Watehicotaish. . . . He unfortunately had 40 MBr prime furs eaten by a wolverine last winter, brought 12 MBr,

[10] For explanation of term "made beaver" (MBr) see pp. 439, 447.

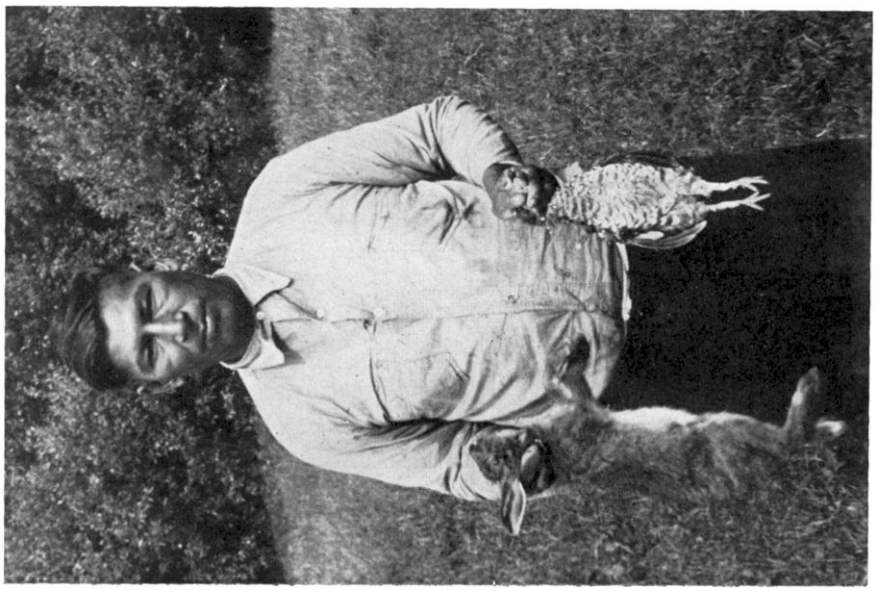


FIG. 4. Informant Johnny ("Lonny") Conelly with trapped hare and partridge.

FIG. 1. Informant Tomo Kak'wa in front of his tent.

FIG. 3. Informant Josèphe Manigouche.

FIG. 2. Informant Tommy Moar.

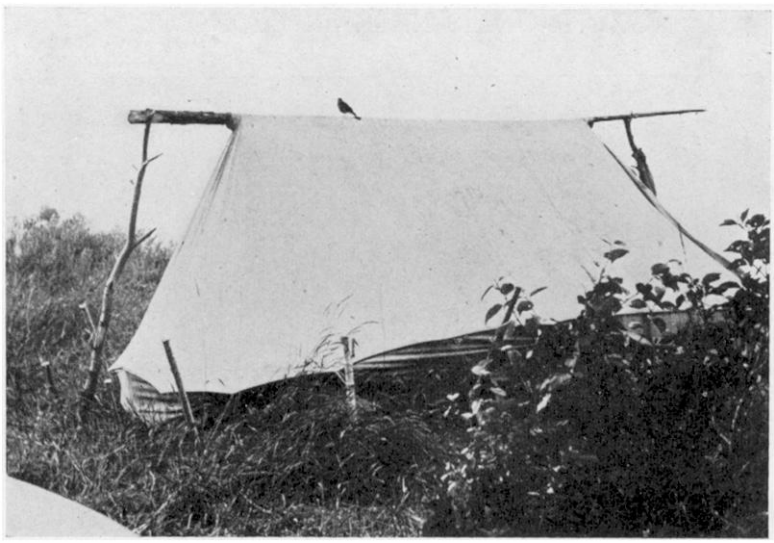


FIG. 5. Modern canvas tent of the Montagnais-Naskapi.

FIG. 6. Naskapi matron (Lake St. John Band).

FIG. 7. Mistassini voyageurs near Chibougamau.

FIG. 8. Lake St. John with Indian canoe.

the remains. 7 of this were damaged. He says he took every precaution to secure the furs at the place where he hid them.

Besides hunting and trapping, fishing, the gathering of plants, and the picking of berries play, as has already been pointed out, a lesser role in the Indian economy. Another field of endeavor has, however, been opened to the Indians since the arrival of the Hudson's Bay Company. The employment of whole bands as transport workers during the summer months has become an important factor in the economic life of the Indians—a factor which, indeed, safeguards the economic security of the entire band during the summer and is counted upon by the Indians.

With the exception of Lake St. John, which has a railroad connection to Quebec, and those Posts of the Company which, situated directly on Hudson Bay, can be taken care of by ships, the whole region of the interior of Labrador north of the St. Lawrence is supplied with the help of Indian voyageurs who are in charge of the transport of goods. As for the Mistassini, they are employed as transport workers in one of the most important overland routes. The Hudson's Bay Company ships by rail up to the station Oskalanea on the great transcontinental route Montreal-Winnipeg all goods and supplies destined for the northerly Posts of Osklalanea, Obidjuan, Chibougamau, and Lake Mistassini. From Oskalanea on, half of the way to Lynx Eye Lake is taken over by the Obidjuan Indians who are met by the Mistassini who, in turn, take care of the further transport of the goods destined for the Posts of Chibougamau and Lake Mistassini. Since the Obidjuan hunting-grounds are situated around Lake Obidjuan, these Indians proceed during the summer southward to the railroad station where they receive the shipments for the four Posts, all marked with four different types of symbols. Bags of flour, for instance, show a special marking, as do sugar and coffee bales, and all markings are, in turn, painted in different colors so that even an illiterate person is able to distinguish the nature of the merchandise and its place of destination. The distance between the railroad station and Obidjuan Post is about forty-five miles and can, under favorable circumstances, be covered by canoe in one day. The capacity of one carrier canoe is one thousand pounds. Two sluices along this waterway have to be handled by the Indian voyageur alone. His remuneration for this trip is five dollars.

Much more difficult is the second part of the way from Obidjuan Post to Lynx Eye Lake. It takes eight to ten, even at times twelve, days to make this eighty-mile trip. Because of the many portages the canoe has to be unloaded and reloaded twenty-three times, whereby goods and canoe have to be carried over the different necks of land. The Indian voyageur nets four dollars for every hundred pounds for this transport work.

At Lynx Eye Lake the bales of goods are turned over to the Mistassini Indians who have been notified of their arrival by the transport manager of Obidjuan or by the Hudson's Bay Company managers. The stretch from Lynx Eye Lake to the next Posts at Lake Chibougamau requires about six days of traveling. The last section of the way, from Chibougamau to Mistassini Post, takes approximately four to five days. The Mistassini Indians use for their transports large birch-bark canoes manned with six to eight voyageurs. Such a canoe has a capacity of about four thousand pounds and is thirty feet in length. For this last stretch of the way, each man receives thirty dollars. Years ago the Mistassini transported their supplies inland from Ruperts House in similar canoes, a stretch of about four hundred miles.

Even though in general the Obidjuan Indians transport the freight from Oskalanea to Lynx Eye Lake, the Chibougamau from Lynx Eye to Chibougamau and the Mistassini from Chibougamau to Mistassini, it may happen on occasion that the Mistassini Indians are occupied as far down as Osklalanea.

All Hudson's Bay Company Posts situated in the interior of Labrador have such transportation agreements with the Indians. At times the whole tribe, with the exception of women, children, the aged, and some lazybones, is traveling during the summer to take care of this transportation of goods. The earned "money" is paid in goods so that, in the end, the amount of the earnings is dependent upon the current prices of the merchandise.

This outline of Naskapi economy may be sufficient to give us at least a general picture of the Indian way of making a living. It is against this background that we may better appreciate their law-ways, since economics and law are correlative component factors of human civilization and can exist only in their reciprocal effects.

III. THE BAND

POPULATION

The territory of the Montagnais-Naskapi comprises about 625,000 square miles, populated by scarcely more than 4,000 Indians (Speck, 1931; 1926*a*). Hind (1863: 336) estimated in 1857 the population of the twenty-four independent local groups or bands at 3,910 souls. The census of the Canadian Government for the year 1924 listed the number of the Indians at 4,648, and the Census for the year 1929 at 4,950. That these figures actually prove an increase of the population of "pure-blooded" Montagnais-Naskapi is doubtful. Rather it seems to me that this increase might be explained by the fact that in border regions as, for instance, Pointe Bleue, the half-breeds increased in number and that the vague definition of an Indian as given by the Indian Act is responsible for the difference in numbers. The old sources as well as the diaries dealing with the region are very definite and outspoken concerning the rapid decline of the Montagnais-Naskapi even if the reasons given for it are different. The population figures for the two bands

FIG. 9. Distribution of Montagnais-Naskapi and Eskimo bands throughout Labrador peninsula (after Speck).

(Lake St. John and Lake Mistassini Bands) with which we are mainly concerned here are as follows:

	1857	*1924*	*1929*
Lake St. John	250	773	670
Lake Mistassini	200	159	281

The Mistassini Reports for the years 1823 and 1828 contain statistics of the Indians who traded with this Post.[1] The list of 1823 registers 29 families comprising 146 individuals and 5 single men. However, only the smaller part of this group have been actual members of the Mistassini Band, since the statistics rather summarizes all Indians who used to trade at Mistassini Post. Among the names given are, for instance, members of the Ruperts House, Nichikun, and Waswanipi bands. The Report of 1828 lists 14 families composed of 79 individuals and 3 single women. On the average, less than twenty families traded annually at Mistassini Post during the years of 1820–1840.

Speck (1917: 90) estimated in 1914 the Mistassini Band as consisting of 31 families with 187 individuals and in 1892–1895 Low (1891) counted twenty-five families. The Lake St. John Band is the most numerous, the Mistassini Band is an average medium-sized band while, for instance, the Escoumains, East Main, and Davis Inlet Bands are small bands comprising merely five to eight families each.

[1] Compare pp. 454 and 457.

POLITICAL ORGANIZATION

The political organization of the tribes is extremely loosely knit. The political unit is the band, as a rule, headed by a chief. If the band is large, a council of older men assists the chieftain. These Indians have not succeeded in creating a more distinctly developed political organization. The political unit depends upon the territorial principle and not upon the kinship system. The territory of a band is rather well defined and its borders are respected by the neighboring bands. However, it is considered permissible to trespass the border line and to pass through the territory of a foreign band, without any legal or bodily harmful consequences. The institution of chieftaincy is relatively weakly developed, even with the northern tribes who, with lands not di-

vided into family hunting-grounds, jointly hunt the caribou.

There exists no political organization beyond the band proper. The economic unit is the family. With the northerly bands where all members hunt together it may be disputable whether or not the band, rather than the family, may be regarded as the basic economic unit. The different Montagnais-Naskapi bands maintain the friendliest relations with each other; they have never fought each other in any wars. The same language and common culture are the connecting link between the members of the different local groups. Looked upon as enemies were the Eskimo and the Iroquois who, in former times, pressed against the Montagnais-Naskapi from the north, the south and southwest. The wars fought against Iroquois and Eskimo still linger in the memories of our Indians.

During the main part of the year, when the individual families hunt on their hunting-grounds, the functions of their political organization become hardly evident at all. Only during the short annual stay in the gathering places does it go into effect.

THE CHIEF

(oochémakan) [2]

ELECTION

(*kāuchemáo hakent,* "When he was made boss")

Nowadays the position of the chief, his election, his rights and duties are technically governed by The Indian Act of 1927, as Amended by 20–21 Geo. V, 1930–C 25,[3] chapters 96 to 101. Section 96, dealing with The Election of Chiefs, runs as follows:

1) Whenever the Governor in Council deems it advisable for the good government of a band, to introduce the elective system of chiefs and councillors or headmen *he may provide that the chief and councillors or headmen of any band shall be elected,*[4] as hereinafter provided, at such time and place as the Superintendent General directs; and they shall in such case be elected for a term of three years.

2) The councillors or headmen may be in the proportion of two for every two hundred Indians.

3) No band shall have more than one chief and fifteen councillors or headmen.

4) Any band composed of at least thirty members may have a chief.

The qualifying word *may* implies that this rule was not necessarily applied rigidly. Indeed the Mistassini Band, for example, has elected no new chief since the year 1928, despite the Indian Agent's demand that they do so. (The last Mistassini chief, Ntahoota (traveler), died of influenza in 1928.) The election of a chief takes place during the summer when the whole band is gathered at the bartering places and with all male members of the band who are over twenty-one years old taking part.

The Lake St. John band elects its chief during the summer in the school house in Pointe Bleue (its bartering Post) in the presence and under the supervision of the Indian Agent. Different groups of voters present their candidates. Occasionally more than one man—sometimes indeed as many as three or four—are presented as candidates to the tribespeople. These candidates, together with the Indian agent, remain in the same room with the voters. The name of each candidate heads a special list and the number of lists depends upon the number of candidates. The election is not secret; as the Indian tribesmen come singly to the table the Indian Agent asks them whom they wish to vote for and the voter's name is entered on his candidate's list. The candidate whose list shows the largest number of voter's names becomes the new chief. The approval of the Government secured,[5] he holds his position for three years, nor is he disbarred from reelection.

The rules about the duties and privileges of the chieftain are, as set forth in the Indian Act, hardly applicable, however, to our Indians. They refer to such tribes as have become more or less settled and remain on the reservation all year long. These regulations deal among other matters with the religious denominations, schools, health, the observance of order and decorum at assemblies, the prevention of disorderly conduct, the construction and maintenance of watercourses, roads, bridges, ditches, and fences; the supervision of public games, athletic contests, and other amusements on the Sabbath etc., etc.

Our Indians, however, are hunting tribes. As such they remain on the reservation for not more than three months a year. The rest of their lives they spend on their hunting grounds, trapping and hunting in family groups. During their long periods in the wilderness they are physically as well as mentally beyond the reach of the white man's legal sphere and deep in the woods the Government's Indian legislation ceases to be relevant; our Indians continue to observe the ancient traditions which have governed their lives for centuries. This fact, together with the physical remoteness from the white man's world, has made for the preservation right down to the present of many aspects of the tribe's original legal customs. Consequently, the position of the chieftain has, despite the regulations set forth in the

[2] For the phonetic key see p. 488.

[3] F. A. Acland, Printer to the King's Most Excellent Majesty, Ottawa, 1932.

[4] Italics by the author.

[5] Reason for which an election may be set aside is stressed in § 98 of the Act: "An election may be set aside by the Governor in Council, on a report of the Superintendent General, if it is proved by two witnesses before the Indian agent for the locality, or such other person as is deputed by the Superintendent General to take evidence in the matter, that fraud or gross irregularity was practiced at the said election. (2) Every Indian who is proved guilty of such fraud or irregularity, or connivance thereat, may be declared ineligible for re-election for a period not exceeding six years, if the Governor in Council, on the report of the Superintendent General, so directs."

Indian Act, undergone but small changes since the olden times.

Frequent discussions with my informants about the conception of chieftainship revealed, especially as far as election, succession, and the influence of the chieftain in the olden times were concerned, quite some divergences of opinion on some points. To get a clearer picture of conditions I asked Joe Kak'wa, in whose "wooden tent" I stayed, to invite some Sunday afternoon the following informants to take part in a mutual discussion: Tommy Moar, Sandy Ritchie, Napoléon Béjean, François Germain, Johnny Conelly, Albert Blacksmith. I chose these particular informants because they were the ones with whom I had already previously discussed the question of chieftainship. Joe Kak'wa himself had been a chief from 1924 to 1927; François Germain belonged to the family of Jacques Germain who was chieftain since 1930; Tommy Moar, a halfbreed, was in the service of different posts of the Hudson's Bay Company (Ruperts House, Mistassini, Pointe Bleue) for forty years. Ritchie, son-in-law of Tommy Moar, was the manager of the Hudson's Bay Company at Chibougamau; Albert Blacksmith was a shaman and a good hunter who stood in high esteem with the Mistassini Indians; and Johnny Conelly and Napoléon Béjean of the Lake St. John Band were experienced and seasoned enough to express authoritative opinions. Consequently, the group of experts included Mistassini and Lake St. John Indians alike; former chieftains and employees of the Hudson's Bay Company and even a shaman who could in some respect be regarded as a counterpart to a chief. The following short summary was the result of this discussion.

The first Indian Agent was assigned to Pointe Bleue as early as 1884. His name was L. E. Otis and he arrived at the time when François Jourdain was chief of the Lake St. John Indians (since 1882). None of the informants was able to recall the circumstances accompanying the elevation of F. Jourdain to the chieftaincy, or even the identity of his predecessor. Jourdain himself, as the head of a numerous family and an excellent hunter, stood in high esteem with the Indians. After his death (there was no possibility of determining the exact date) in 1900, not his son, Charles Jourdain, but another Indian, Patrick Clairy, was chosen his successor. This election of Clairy appears to have been an emergency measure rather than the result of a logical choice. Some informants claimed that at that time Charles Jourdain was too young for the office while others expressed the opinion that P. L. Marcotte, then Indian Agent, had "fixed" the election. Whatever the reasons may have been, Patrick Clairy died three years later and in 1904 Charles Jourdain followed him as a chieftain, holding the office until his death in 1923. In 1924 he was succeeded by Joe Kak'wa who was elected for a three-year term according to the Indian Act, although at this time the Act had not yet become law. Kak'wa's successor in 1927 was Xavier Gill who, in turn, was succeeded by Jacques Germain in 1930. Joe himself ascribes his election to the chieftaincy mainly to the fact that, during World War I, he fought as a member of the Canadian army at the Western front and later returned home a hero. Be this as it may, he believes that this record was one of the chief factors contributing to his election.

SUCCESSION

All informants agreed on the point that chieftaincy with the Mistassini and the Lake St. John Band was originally hereditary, descending usually from the chieftain to his eldest son or, if he was without a son, to his next brother. Only when the incumbent was without a legal heir a new chieftain was elected. Although the above kind of succession seems to have been the norm, the norm could be broken and was broken under certain circumstances. As stated above, it was not the chieftain François Jourdain's son Charles of the St. John Band who followed his father in 1900 but Patrick Clairy. It seems, however, that after the latter's death public opinion called for a restoration of the norm which was achieved by the election of Charles Jourdain.

Informant Albert Blacksmith recorded from the Mistassini another deviation from the norm: "This happened at the time when Johnny Bosun was chieftain of the Mistassini. He had three sons two of whom died. After Johnny's passing not his surviving son became his successor but Salomon Voyageur Ntahoota, his son-in-law." The other informants confirmed this as far as the non-succession of Johnny Bosun's son was concerned. However, they questioned the fact of Ntahoota being Johnny Bosun's son-in-law. They described him as the adopted son of Bosun's wife known as the "Partridge Woman."

The last chief of the Mistassini, the said Ntahoota, died of influenza in 1928. At the time of my visit in 1935 they had not yet elected his successor, despite the provisions of the Indian Act and the Indian Agent's urging to do so. One of the informants claimed that during the interim between the death of Bosun and the election of his successor, Ntahoota, a period of about two years, Bosun's wife, the "Partridge Woman," acted as chieftain of the Mistassini. Others, however, denied this. This dispute led to a discussion of the position of a chieftain's widow as a prospective chief. Informant Joe Kak'wa claimed that the right to chieftaincy of the deceased chief's widow took precedence over that of all male relatives excepting a son or brother and that even then she became a chief if the son was too young for the position. Later on, after the son was old enough, he was recognized as chieftain only if his mother formally resigned her post. As an example, Joe Kak'wa mentioned the fact that in 1913 the Mistassini Band had a female chief, the mother of Tommy Moar. "She was originally a Nichikun girl but afterwards became chief of the Mistassini Band, a position she held for

several years." On the other hand Tommy Moar when questioned stated that his mother, although she was in high standing with the Mistassini Indians, "never actually was their chief."

As to the question of Bosun's successor, another informant mentioned the fact that the surviving son was too young at the time, while Tommy Moar made the simple statement: "He was just no good." The Mistassini informants explained the length of the chiefless period between Bosun's death and the election of Ntahoota with the contention that by nature the Mistassini is, like the bear, "a chieftain by himself." They gave the same reason for the fact that since the death of Ntahoota, a period of seven years, no new chief has been elected. It seems to me that in this case the span of time was too long indeed to be explained by a mere necessity to give public opinion a chance to crystallize. More likely, with the Mistassini perhaps even more than with the Lake St. John Indians, this is due to an individualistic tendency, intensified by their life in the woods which forces each man to rely upon himself alone. It would have been absurd for an Indian tribesman, explained Tommy Moar, to depend upon the authority of a chieftain hundreds of miles away, hunting perhaps with another far-distant band. He could hardly in such circumstances have obtained swift justice. During his months in the woods, which make up by far the greatest part of his year, the Indian therefore relies upon far different powers to hold his own against men, animals, and spirits.

QUALIFICATIONS FOR THE CHIEFTAINCY

There was general agreement among the informants that the chief has to be a person of high ethical standards, conscious of his responsibilities toward his fellow-tribesmen. Above all else, a good chieftain is expected to be an excellent hunter. If he fails in this respect (perhaps on account of his advanced years) he is no longer looked upon as a chief and consequently loses his influence. There was, however, no case referred to me in which public opinion crystallized itself to such a degree to enforce action by removing from office the inefficient chieftain. Besides being a skillful hunter the chief has to be a shrewd negotiator not only with the Hudson's Bay Company but also as far as his fellow-tribesmen are concerned. His importance as a chieftain is especially evident during the short periods of assembly at the summer gathering places when the Indians come together to exchange furs for provisions, to discuss and straighten out matters of mutual interest and to enjoy social activities.

Another point was stressed by the informants. Not one case of a bachelor being elected chief is known. Practically all chieftains had numerous families, a fact which contributed to their influence upon public opinion, be it only numerically. Even though there was, as stated before, a tendency toward family succession, a certain standard of qualities of efficiency was definitely required of each candidate. If public opinion did not credit the son or brother of the deceased chief with these qualities, the norm of succession was broken and a new chieftain was elected just as if the dead chieftain had left no legal heir at all. The election ceremony took place only at the summer place and it could happen that the band remained without a chief for quite some time until public opinion had taken sufficient shape to point to a desirable candidate.

A well esteemed tribesman then recommended the "choice of the people" and told the others about the good qualities of the proposed chief. Provided that nobody opposed him this man was elected by acclamation. If more than one highly qualified Indian seemed equally desirable for the office, the oldest would be given preference. Competition for the chieftaincy occurred only in very rare cases because no Indian likes to be another's opponent for the chieftaincy.

It was stated that a bad chief may be forced to resign; but none of the informants was able to recall a case of this nature. The Mistassini informants did not attribute to the chieftain much influence or any legal rights especially during the time in the woods. On the other side, any Indian calling upon the chief for assistance would be regarded as unmanly, according to Tommy Moar. Upon my question in what case he would see fit to turn to the chieftain, he exclaimed with pronounced disdain: "To go to a chief—what a dirty business!" Albert Blacksmith fully agreed with Tommy's views; but it must not be forgotten that he was a shaman while Tommy has been for years an employee of the Hudson's Bay Company. Even Tommy had to admit that "in the olden times the chieftain could force the Indians to clear off their debts by selling their furs to the Hudson's Bay Company rather than to any other outside stranger." Tommy also maintained that the Indians prefer the mediation of the Hudson's Bay Company manager to that of the chieftain. As to the Lake St. John Indians, the views of François Germain who belonged to the family of the present chief were outspoken indeed, although he was of the opinion that the Indians had never been without a chief and that the latter's task was mainly "to straighten out things within the tribe." To the question, "In what cases?" he replied: "Whenever there is a quarrel that could not be settled by the tribesmen alone."—"Do you remember any such case?"—"No!"

The rest of the Lake St. John informants, especially Joe Kak'wa, himself once a chief, presented a clearer picture of the chief's privileges and duties, especially in ancient times, and they were able to illustrate this with individual cases. Further inquiries and discussions with other tribesmen, the results of which were checked and rechecked, amplified the picture.

The personality of an Indian chief is also of definite importance to the interests of the Hudson's Bay Com-

pany. As a successful hunter he is found to be in high regard with the Company and therefore exerts considerable influence with its managers. To the Indians it is important to possess in him an influential spokesman to carry on negotiations with the Company. Doubtless, these negotiations with the white world (manifested in the person of the Hudson's Bay Company manager or the Kings Post employees) constitute one of the chieftain's more important tasks.

However, the Company or the white conqueror had no influence upon the election or nomination of a chief. This freedom was in strong contrast to the situation prevailing, for example, in Australia or South Africa—where simply to facilitate the white conqueror's negotiations with the tribesmen, the white intruder often selected one of the aborigines as headman and accorded him a position unacknowledged by the natives. All records, all sources clearly indicate that the Company's recognition of a chieftain followed on his election by the Indian community. The Company never created one. But recognition by the agent was certainly a final symbol.

MARKS OF RANK

As a mark of his rank the chief wore a certain headdress trimmed with feathers and a special chieftain's coat richly decorated with Scotch gartering—often a present from the Hudson's Bay Company (Mistassini Reports 1837/38; 1839/40). He wore these insignia only on public occasions, however, and his donning of the feather crown was a signal to his band to assemble to take official action of some sort. This occurred, of course, only during the summer when the members of the band were together.

Further formal marks of the chieftain's rank cannot be traced. One informant does mention what seems to have been an individual addition to the insignia of office, a sort of scepter carried by a certain chief—a short walking cane of wood, carved in the shape of a caribou leg.[6] The man who carried it was a chieftain of the Têtes de Boule by the name of *Pichikwä* (The Small Neck) who, following the instructions received in a dream, had personally carved this "chief's cane." "As any other Indian," stated the informant, "he was obliged to obey the orders conveyed to him in a dream, otherwise he would have been stricken with ill luck." Upon my question what a man could be supposed to do in case he should receive in a dream the command to kill another man, the informant replied with a sly smile that in this case the command should not be followed since the consequence of murder would certainly bring more ill luck than the neglect to obey the orders received in a dream. Pitschiquä had seen in his dream an image of his caribou-leg cane with all its details and ornaments which he later carved, following the received "instructions" to the dot. According to my informant it was not exactly forbidden to other tribesmen to carry a similar cane, a copy of the original, but "it just was not done." There are no additional reports in literature on other insignia of the chieftaincy among our particular Indians.

It seems, however, that also certain traditional ornaments were exclusively reserved for the chief, since all other men were warned against wearing them. Yet, we have run across reports which indicate that in some sections of Canada other insignia than headdress and coat were used to denote chieftaincy. On September 27, 1793, John M. Kay reported in the Factory Journal of Lac La Pluie,[7] "The Chief wore a silver meddle with the King's Empression on one side and coat of arms on the other" and on May 6, 1793 James Sutherlands wrote in the Factory Journal of Portage de Lisle:

> About noon the great Lake de pluie War Chief Capt. Ka,Ne,Nanuck, with eight Canoes arrived, he wore a huge silver medal and a very large Cressant curiously engraved, both of solid silver. It is customary among the traders when ever they see one of these medals to honour his Majesty's arms with a new silk ribbon. By good luck I had as much of my own private property as did this to. my satisfaction.

RIGHTS AND DUTIES

The main rights and duties devolving upon the chief as one of the law-enforcing agencies consisted of maintaining peace in the community and representing the interests of the band when dealing with the outside world, whether it was other Indian bands or the Hudson's Bay Company. Within his own band he was responsible principally for coping in last resort with violations of hunting rights in one or another form.

But many such violations of hunting rights did not require intervention by the chieftain himself. The toilsome and lonely life of the Indian in the woods made him inclined to accept a compromise in any legal dispute. His dependence upon his neighbor's aid and good will strengthened this tendency to work out an amicable solution, even with members of other bands.

Informant Joe Kaw'wa reported on a hunting-grounds quarrel which took place somewhere around 1885 between a Mistassini man, John Stout, and a Waswanipi man, David Dickson. Early in the spring the offender, Dickson, trapped beavers in the Mistassini bush on John Stout's hunting-ground. Stout went to Dickson's teepee to visit him and, while he was waiting for Dickson to return, noticed six or seven beavers on the floor. Since the river region frequented by the beavers was part of Stout's own hunting-ground he knew that the

[6] With some Indian tribes of the West Coast (e.g., the Tlingit) a staff of office belonged to the insignia of the chief. (Compare, for instance, the painting by W. Langdon Kihn of the Head Chief of the Tlingit who carries a beautifully carved killer-whale staff of office, in *The National Geographic Magazine, 32,* January, 1945.)

[7] The original spelling, though often incorrect, has been retained in all quotations taken from the handwritten reports of the managers of the Hudson's Bay Company.

beavers had been stolen from him. When Dickson finally came back to his tent he brought with him five additional beavers, obviously shot on the same hunting-ground.

John asked him, "Where did you get these beautiful beavers? You had a nice hunt!" David answered, "I got them from that little river there." John said, "These beaver belong to me. I intended to spare them until autumn in order to get young ones from them." David claimed, "I did not know they belonged to you." Then John declared, "You'll have to give me half of them anyway." Without any hesitation David did so and the two men remained as good friends as they had always been. In fact when John said, "There are still more beavers at that spot. Don't kill them because I need them to make new families, they must fatten until fall comes," David promised never to kill any more—and kept his promise. The informant who told this story added the following explanation:

If a member of a tribe has hunted or trapped on someone's else hunting-ground without the owner's permission, the latter will tell him not to do it again and to stop trapping or hunting on his hunting-ground. If the intruder continues hunting and trapping an another man's land, the owner won't hurt the trespasser in any way; he won't even destroy his traps or take the stolen animals away from him. He takes no action; instead he watches the offender's proceedings and waits for an opportunity to see the chief. This opportunity will come the following spring when the hunters leave their grounds to return to the bartering places. There and then, informally and without ceremony or any set hearing day, he goes to the chief to tell him what the trespasser has done. The chief arranges to see the offender and advises him that he did the wrong thing and must never repeat his offense. Then, in order to give the wrongdoer an opportunity for repentance while not punishing him too severely the chief orders the offender to return to the owner of the land one-half the value of everything he took. The chief adds the warning, however, that if the trespasser repeats his offense the owner of the hunting-ground will be entitled to shoot him and explains that if during the coming winter the crime is repeated and the rightful owner kills the illegal trapper or hunter the owner will not be brought to account.

Joe Kak'wa told the story of a case in which a hunting-ground quarrel was settled by the chieftain's intervention.

When I was chief a man came to me in the year 1928. He belonged to the Lake St. John Band and his name was Bartholomy Germain. Bartholomy complained that other Indian trappers prevented him from hunting on a certain hunting-ground. The hunting-ground in question was not his own but neither did it belong to the hunters who used to trap there. The territory was a rather large strip of land in the border region between the Bersimis Band and the Lake St. John Band, a piece of land unoccupied by either side.

Bartholomy asked for my help as a chief. I gave him written word to take to the hunters who prevented him from trapping, and I told them that Bartholomy Germain was as much entitled as they were to hunt there and that every member of the Lake St. John Band was equally entitled to do the same.

The men complied and Germain could trap without disturbance on that hunting-ground.

In the case of a family dying out, the chief saw to the distribution of the hunting-ground among the remaining families of the band. As peacemaker the chief tried to avert premeditated crimes, of which he had knowledge, from being carried out and to prevent wrongdoing in general. If, for example, as one informant remembered, a man attempted to take a married woman away from her husband, the chief intervened in time to forestall the commission of the crime. If a man refused to follow the chief's advice the chief could order him bound hand and foot or tied to a tree in order to force him to accept the chief's advice. He then said merely: "Tie him up!" If the offender still refused to submit, the chief warned him that he would remain tied until starved or that he would be cast, hands and feet still bound, into the lake. Sometimes this was merely a threat; sometimes, however, the threat was actually carried out.

Oaths, witnesses, and ordeals were, according to the informants, originally unknown to these Indians. The defendant and the complainant simply appeared before the chief; and the offender was punished or compelled to pay for the damage done only if the complainant could prove that the defendant was guilty and the defendant in turn admitted his guilt.

According to the informant on this point, oaths, witnesses and ordeals were unnecessary among our Indians because even a guilty man was expected to tell the truth. Kak'wa remembered that somewhere around the year 1875 a Mistassini man whose crime was either adultery or the beating of other people's children, was ordered by the chieftain to have his toenails pulled out.

Sometimes it even devolved upon the chief to interfere in family disputes—as when a father who did not possess the right of life and death over the members of the family unit—beat his children too severely. If this happened during the winter a neighbor was free to tell the chief about it when the tribe came together the following spring. Very rarely does the offender attempt to lie his way out. He mostly admits his guilt, but if he should try to misstate the facts he is punished very severely, certainly more so than if openly admitting his misdeed. I questioned my informants about this statement, and their answers seemed to imply that a confession of the culprit is expected in every case, even though the confession is not considered a necessary prerequisite for a verdict. If he does not confess and his guilt is proven by other evidence the chief punishes him harder than otherwise. For minor offenses punishment consists in tying the culprit to a tree while giving him nothing but water for a period of days.

The chief passed sentence in private and took counsel with no one, since in administering justice he was under no obligation whatever to accept advice from any other member of the tribe. This, however, holds true only

for minor offenses. In cases of a more severe nature the chieftain depended upon the verdict of the entire council of the band.

According to my informants, the chief alone enjoyed the prerogative of extending mercy. On the other hand, if a family was in need, the chief was obliged to offer them his personal assistance and to give them permission to hunt on his own territory. When he was unable to do this he had to ask another family to invite the impoverished tribesmen to use their hunting-ground which, according to my informants, they always did.

The chieftain's tent—that means the tent of the chieftain's family—always stood at the same spot, but then each family tent was assigned a place on the camping grounds. If a new chief was elected he was assigned the spot where his predecessor's tent used to stand and he moved with his tent and his family to the designated place.

The time for leaving the summer places for the hunting-grounds was not within the chieftain's domain. Every family departed whenever it was ready. Sometimes the various families agreed among themselves to leave together and to hunt together.

If misfortune befell the chief, his tribesmen were under no obligation to render him any help beyond the assistance due to an ordinary member of the band. Moreover, his death was marked with the same rites, not by any special ceremonies. He was buried as any other man of his tribe would be. During the period between a chief's death and the election of a successor tribal matters were handled by the elders.

There are scarcely any direct reports dealing with the chieftain's role during times of war, but the few there are indicate sufficiently that the distinct discrimination between civil chief (peace chief) and military leader (war chief) has no application to the Montagnais-Naskapi. Only two accounts mention belligerant action. The author's informants merely stated that in wartime the chief called the band together to lead them against the enemy. Joe Kak-wa's grandfather had related one such episode to his son who in turn told it to Joe.

About one hundred years ago a battle took place between the Eastern Cree and the Eskimos of the eastern shore of Hudson Bay. The Eskimos, who had attacked a band of Crees for no obvious reason and had invaded Cree territory, killed the majority of the Crees (who were about 150 strong), took their scalps and retreated to their own assembly grounds where they erected a pole nearly fifteen to twenty feet high on which they hung the captured scalps. When those Crees who had been fortunate enough to escape recounted what had happened their tribespeople got ready to fight the Eskimos. Their chief told them to fix their war canoes; and he led them against the Eskimos. When they had found the enemy they hid during the night, waiting until daylight to attack. In the morning they killed all the Eskimos they could, scalped them and dried out the scalps on a high pole erected in front of their war canoes. They took the Eskimo women and children captive and kept them in their own tribe as a kind of slave; they did not adopt them into tribal membership.

This story was confirmed by informant Tommy Moar who even claimed that he had visited the battle ground a short time previously and spoke of piles of bones and skulls still lying about.

Concerning the region of Lake St. John and in particular of Pointe Bleue we have a report by John Miles [8] describing the warlike intentions of some "strange Indians":

For three summers past, strange Indians have been about here, armed with bows and arrows, and have flitted round the post during the night, to the great terror of Robertson and his wife. Report affirms them to be on a war expedition, but I question very much whether they will be bold enough to attack the post next spring as it is said they intend doing. They are ten in number, paddle about in black canoes with black paddles and are utterly unknown and dreaded by our more peaceable Indians. I mention this in case of any rupture occurring which our present quietness does not at all indicate, and I am in hopes, by adopting a peaceful policy, when they do come to preclude an appeal to arms; should blood be shed, it shall be no fault of mine, if there be any possibility of preventing it.[9]

The position of the chief or "principal man" in his relationship to the Hudson's Bay Company in dealing on behalf of his band with the white world calls for a more thorough analysis. After the advent of the Hudson's Bay Company the entire economic situation and with it the welfare of the band depended to a large extent upon the Company. Because trade with the Company indeed created a completely new legal sphere in the culture of these Indians the handling of tribal affairs with the Company was, naturally, one of the most important tasks entrusted to the chief. The Company, in turn, had a direct interest in maintaining good relationships with the "Principal Indians," since the influence of such Indians could either furnish new customers to the Company or could prevent even old "Company Indians" from continuing their trade relations. A wise manager never, therefore, tried to anticipate Indian public opinion or to create, influence, or stand in the way of such public opinion. Indeed he conformed to it just as he found it. Consequently he readily acquiesced in the election and authority of the chosen chief or Principal Man and treated him with all the special distinction and consideration due to so influential an Indian.

From the diaries and Annual Reports of the years 1820/40 studied in the archives in London I have been able to compile the life histories of three chieftains of Mistassini Indians, just as they were reported by the managers of a commercial enterprise. Obviously any life history from such sources is colored or perhaps even

[8] Hudson's Bay Company Report from Ashwobmonshwan and Chicoutimi, covering the Period from July 20, 1849, to January 1, 1850.

[9] It might be possible that the "Legend of the Iroquois attack on the Montagnais at Lake St. John" which Speck has published (1925: 22) is a version of this report by John Miles.

biased. The material used comprises, however, the only original contemporaneous source of information about these Indians and supplements my field notes in many and important aspects. Over and above the attempt to clarify legal conditions among the Labrador Indians, this first publication of the managers' remarks about the chieftains may be justified by a further consideration—the fact that in ethnological literature as a whole few efforts have been made to study individuals among primitive peoples.[10]

NOSIPATAN
(NOSEPATAN—NOSIPITAN—NASIPATAN—NOSIPETAN—NOOSIPITAN)

NAOSQUISCAW DISTRICT (MISTASSINI)
REPORT 1820–1821 (JAMES CLOUSTON)

Nosepetan Brought 65 MBr. He did very well till Feb. 7 when he fell in with some Suabamouswam Indians, whom he brought to Mistassinie. Afterwards his attention was directed to procure provisions for those Indians in order to induce them to resort in future to Mistassinie to trade—and their residing with him lessened his chance of procuring furs, as they obtained part of what he would otherwise have procured.

MISTASSINI REPORTS 1823
(JOHN WALFORD, JOSEPH BEIOLEY)

Nosipitan. Brought about 70 MBr principally beaver and otter skins. He is a good hunter and a good Indian and generally pays his debt.

(List of Mistassini Indians)

Nasipatan	:	1
No. of wives	:	2
Sons	:	1
Daughters	:	4
Dependents	:	–
Total	:	8

MISTASSINI REPORTS 1824
(JOHN WALFORD)

Nosepetan. One of the best hunters. Has not been at the Post since last August. He was with the Eastward Indians.

MISTASSINI REPORTS 1824–1825
(JOHN WALFORD)

Nosepetan. Before the union was a captain, formerly belonged to Misquiscow. Have not seen him since August 1823. Have heard from his nephew (who saw him) that he has gone to Mithtinimp, a post said to be situated on the coast of the Gulf of St. Lawrence. Nosepetan is a good hunter.

Misinnaigganish, a brother of Nosipatan . . .

Wechemagan . . . Went away with Nosipetan whose daughter he has got for a wife . . .

[10] It should be emphasized, however, that beginning with the "Autobiography of a Winnebago Indian," edited in 1920 by Paul Radin, especially American anthropologists have since published a long series of bibliographical sketches on individuals of primitive peoples.

MISTASSINI REPORTS 1827–1828
(J. KELLOCK)

List of the Indians belonging to Mistassini Post. 1828.

Nosipitan	:	1
Wives	:	2
Sons	:	1
Daughters	:	4
Total	:	8

Wechemaugan, son-in-law of *Nosipitan*
Cowasowasit, brother of *Nosipitan*
Chuskatawautick, son of *Cowasowasit*
Missenahigganish, brother of *Nosipitan*

Nosipitan. A chief who has a powerful influence amongst the Indians and expects to be treated liberally while at the House. His hunt of furs this year amounts to 77 MBr—which is 20 MBr less than he brought last year. The deficiency is in martens—animals which have been exceedingly scarce during the past winter.

Wechemaugan. Is son-in-law of the above and resides always with him. . . .

MISTASSINI REPORTS 1828–1829
(RICHARD HARDISTY)

Nosipatan. The principal Indian belonging to this Post—and a very expensive one too. He has been more than usually in this winter—owing to his having passed the winter very near to the House—which enabled him to send in here frequently for ammunition, rum, and tobacco, etc. He is getting rather old now and complains of feebleness in his limbs. He is still however a good hunter—and including the furs of his son (a young lad about 14 years of age) has brought this year to the Post 107 MBr of furs, principally beaver skins, which is 30 MBr more than last year. I have no doubt he would have hunted considerably more, but for the ill state of health of his son-in-law (*Weechimaugan*) during great part of the winter, whose family as well as his own he had to provide provisions for.

Cowosowozit, brother of *Nosipatan* . . .
Missenhaigonish, brother of *Nosipatan* . . .
Weechimaugan, son-in-law of *Nosipatan* . . .

. . . The Indians who accompanied me were of opinion that this mark had been placed there either by *Osohaganish* or *Meewoppaish* (Swabmoushwan Indians) for the purpose of giving information to the Indian *Nosipitan* that the Post at Cheepeeshouve was already settled and had a compliment of five men. . . . I do not think there is the least danger of any Indian belonging to this Post being drawn to it—*Nosipitan* and his son-in-law (Weechimaugan) are the only Indians belonging to Mistassiny Post who would find it most convenient to go there—and I think they know their interest too well to attempt such a thing as from what I have heard at different times of the treatment of Indians by the Lessee's people. I do not believe that any are treated so liberally as the Indians at Mistassiny are—especially *Nosipitan.*

MISTASSINI REPORTS 1829–1830
(RICHARD HARDISTY)

Nosipitan. The principal Indian belonging to this Post. An old man but a good hunter. He has a son about 15 or 16 years of age to assist him in hunting. He had brought this year to the Post 115 MBr of furs, principally beaver and otter, which is 8 MBr more than he brought last year. I don't believe this man has either sent—or has any furs by him to send to our opponents. Some musquash which he told me in winter that he intended to send to Swob-

moshwon he brought with him to the House this spring, and I got them from him.

Weechimaugan. Son-in-law of *Nosipitan* . . .

Cowosowozit, brother of *Nosipitan* . . .

Missenhahaigonish, brother of *Nosipitan* . . .

Achappy, Brother-in-law of *Nosipitan* and brother of the Timmiskimay Indian *Neepinnaupai* . . .

Meewoppaish. This man is a principal Indian of a small party of Indians some of whom go to Swobmoothwon, and the others to Swan Lake with their furs. They all meet together in a short distance to the Eastward of little Mistasinny almost every summer and sometimes in winter. *Meewoppaish* was here several years ago and left some furs with Mr. Chief Trader Clouston which he was not paid for then, as the articles he wanted were not at the Post at the time. He has not been at the Post since, but last summer he sent word by *Nosipatan* for payment to be sent to him. I, accordingly, in hopes that it might be an inducement to him to visit this Post at some future time, sent him by *Nosipatan* 7 MBrs of cloth—the amount of debt due to him—and some tobacco. I have no doubt that if people were sent to the place where this Indian and his party met. a few furs might be got from them. I would myself have sent to them last winter, but *Nosipatan* led me to expect that he would endeavor to bring them here with him this spring. I shall not fail in acquainting Mr. Chief Trader Corrigal of these Indians—in case that gentleman may think advisable to send to them at any time. I received a martin skin and a half beaver skin from *Mewoppaish,* he sent them here by *Nosipatan* as a foresent!

MISTASSINI REPORTS 1830–1831
(RICHARD HARDISTY)

Nosipatan. The principal Indian belonging to this Post. He sent three musquash skins to Swobmooshwon last summer for which he got a clasp Knife. The furs he brought to this post this year amount to 114 MBr and consist principally of beaver and otters. It is 7½ MBr less than he hunted last year, which may be attributed to his having been starving and in ill health during great parts of the winter.

Weechimaugan, Son-in-law of *Nosipatan.* . . . He was starving . . . most of the winter . . .

Cowosowozit, Brother . . . starving most of the winter . . .

Missenhahaigonish, Brother of *Nosipatan* . . .

Achappy, Brother-in-law of *Nosipatan* . . .

At the time of the above report R. Hardisty wrote a letter to his superior, the district manager of Ruperts House, J. Beioley. The letter was dated Mistasinny Post, January 12, 1831, and was copied into the Journal of Occurrences and Transactions at Mistassinie Post, covering the period from June 1, 1830, to May 31, 1831. The letter dealt with the complaint made by the Indians (and especially Nosipatan) about the Company's bad beaver traps and Nosipatan's efforts to procure better ones for himself and his Indians. R. Hardisty's letter reads:

I am sorry to say that two Indians belonging to this post (Notoway and Napaiskish) were at Swobmooshwon last summer—they took there with them as well as I can learn about 15 MBr of summer furs belonging to themselves and other Indians—and brought from there four beaver traps, besides some shawls, handkerchiefs, clasp knives, and fine cloth. I questioned the above Indians as to whether or not they took any debt at Swobmoothwon—and they told me they did not. But since I learnt from other Indians that they did take a few articles in debt. Notoway says that Mr. Shaw—the person in charge of Swobmooshwan—told him if he would come to that post, and bring the whole of his family connexion with him, that he would not only clothe the men—but that the women also who had no husbands should get clothing gratis. It does not appear to me that any of the Indians here believe that much promises on the part of the Swabmoothwan Master would be fulfilled—consequently I am not at all under any apprehension at present at losing any of the Indians from this post. At the same time I am afraid the badness of our traps will occasion us to loose a part of their hunt. Notoway, I understand, intends going to Swabmoothwan again next summer for another trap. And I believe it is the intention also of several other Indians either to go or send there for traps likewise. I shall not however relax in my endeavour to dissuade them from their present intention—but I fear I shall not succeed, as on other occasions when I have spoken to them on the same subject their reply has been how were they to get furs if they had not traps that they could depend on—and they all say that they would not go elsewhere for traps if they could get good traps from us. At the desire of *Nosipatan* I send down by this opportunity the jaw of a steel trap, and he wishes that the jaws of the traps sent up here should be of equal substance of it. Complaint was also made of the weakness of the trap springs.

J. Beioley's answer, dated Ruperts House, 21 February, 1831:

It is to be regretted that the beaver traps supplied by us to the Indians should be so universally complained of. And as there is every reason to presume with justice—traps and trap springs and iron works generally have on many occasions furnished a subject for complaint by the Indians and representations have as frequently been made—with a view to procuring them of better quality for the trade. It is an evil for which I can see no remedy—and all that you can do is to prevent the Indians by every means in your power from trafficking their furs for traps with the Lassee's servants or with Indians attached to them. If instead of furs they exchanged our goods with other Indians for serviceable traps—it would be a benefit to us instead of a disadvantage.

MISTASSINI REPORTS 1833–1834
(WILLIAM M. KAY)

Noosipitan. The principal Indian belonging to this Place made but an indifferent hunt when compared with his hunts of former years. He brought this year 84 MBr, being 22 MBr less than last year which may be attributed to the loss of one of his wives who died some time in last April after being ill most of the winter.

Weecheemaugan. Son-in-law to *Noosipitan* . . . his being obliged to hunt for provisions both for himself and his father-in-law as the old man's time and attention was chiefly taken up with his sick son and daughter.

Cauosawisit. Brother to *Noosipitan* . . .

Missinahagonish, Brother to *Noosipitan* . . .

Achappy. Brother-in-law to *Noosipitan* . . .

MISTASSINY POST JOURNAL OF OCCURRENCES AND TRANSACTIONS. 1833–1834

1834, 17th May. Saturday. *Nosipatan* and *Weechemagan* arrived—Brought (blank MBr, they are both very mellancholly, in consequence of *Nosipatan's* son and daughter having died short ago. The son in April and the daughter in this month. His son was almost full grown up to be a man and promised to be a good hunter.

MISTASSINI REPORTS 1834–1835
(WILLIAM M. KAY)

Noosipitan. The principal Indian belonging to Mistassini Post. Died some time during the winter. It [is] said that the Gruvel was the cause of this man's death. I was told he had 55 MBr at the time—but they were all made use of for food to his family and others when they were starving. I believe the skins were principally beaver skins.

Weechemagan. Son-in-law to the before mentioned . . .

Missinnahagonish. Brother of the deceased *Noosipatan.* It is supposed that he died through want of food. . . . This man had hunted upwards of 80 Mbr in the fall and the beginning of the winter, all of which was made use for food.

Achappy. Brother-in-law to the deceased *Noosipitan.* . . .

These reports from the different managers of the Hudson's Bay Company, covering a period of fourteen full years (from 1820–1821 to 1833–1834) provide a clear picture of Nosipatan, the Indian, as an individual as well as a chief. As an individual he enjoyed high esteem because he was an excellent hunter who, together with his numerous family, was able to offer a large number of furs to the Company annually. He was unselfish, cooperative, faithful, and paid his debts regularly. Yet, he was proud and independent. If the Hudson's Bay Company store in Mistassini failed to provide him to his complete satisfaction with the supplies he needed he immediately went to their competitors and, whenever he pleased, traveled as far as St. Lawrence to exchange his wares. Not before the winter of 1827–1828 did he trade regularly with the Mistassini Post. As chieftain of the northern Indians and a person enjoying great influence among them it was up to him to speak for the group of Indians who, dissatisfied with the poor quality of the Company's beaver traps, turned to Swabmoothswan to secure better ones from the Company's competitors. It was Nosipatan, moreover, who handed over the model of a trap-spring to the manager, Hardisty—who in turn hurried to forward it to J. Beioley as an example of what the beaver traps the Indians desired should look like. If the quality of the traps was not improved, said Nosipatan, the Indians would most assuredly be unable to bring in any furs in future.

But Nosipatan's influence seems to have been considerable not only within his own band but also with other Indian bands as well. In 1824 he hunted with the eastern Indians who assembled with their chief, Meewoppaish, practically every summer east of Little Mistassini. As early as 1820–1821 he had tried to persuade some of these Indians to do their trading with Mistassini and, at real personal sacrifice, provided them so generously with supplies of meat that he had time to trap far fewer furs himself. In the year 1829–1830, acting as mediator between the Company and the Indians, he made arrangements for the Hudson's Bay Company to pay the band for furs which they had furnished.

Like his brother, Cawosawisit, Nosipatan had two wives. This fact, however, had nothing to do with his position as chief or his capacities as a good hunter. One might assume that he had two wives because politically it was sound policy and because also he was skillful enough as a hunter to support them. Yet John Walford and Joseph Beioley mention (in the Mistassini Report for 1823) two other Indians, Ootawhiow and Paishabbanawiscam, each of whom had two wives. Neither of these Indians was a chief or even a good hunter, witness their reputation: "Ootawhiow is a Rush Lake Indian. We have not seen him this year. It is supposed he is gone to Grand Lake; he owes a large debt. Paishabbanawiscam never hunts anything worth mentioning. He has two wives and a large debt." Nosipatan's immediate family, in addition to his two wives, consisted of one son and four daughters, one of whom was married to Weechemagan. Other relatives mentioned are his brothers, Cawosawisit and Missenahigganish; his brother-in-law, Achappy; and five nephews (sons of his brother Cawosawisit) four of whom are mentioned by name. During the winter of 1834–1835, only a year after the death of one of his wives and a few months after the death (in April) of his only son and (in May) of one of his daughters, Nosipatan himself died. Practically on the same day starvation killed his brother, Missenahigganish. Thereupon his only surviving brother, Cawosawisit, succeeded him as chief of the Northward Indians.

CAWOSAWISIT
(CAWASAWESET—CAWOSAWOSIT—CAWASAWESU—CAMASAWESET—COWOSOWOSIT—CANOZAWISIT—CANOSAWISIT—CAUOSAWISIT)

NAOSQUICAW DISTRICT (MISTASSINI) REPORTS
1820–1821
(JAMES CLOUSTON)

Cawosawosit. Brought 95 MBr.

MISTASSINI REPORTS 1823
(JOHN WALFORD, JOSEPH BEIOLEY)

Cawasaweset. Brought this year 60 MBr. He generally hunts more. He is one of the best hunters at Mistassini. He formerly belonged to Nusquescaw.

MISTASSINI REPORTS 1823
(JOHN WALFORD, JOSEPH BEIOLEY)

The undermentioned Indians visited Mistassini Post last autumn and took their debts. I have not seen them since. I understand that they have gone to Ruperts House and that most of them have paid their debts to the amount of 125 MBr. They went to Mistassini on account of Nusquescaw having been abandoned.

I have heard that in future they intend to attach themselves to Ruperts House. Their names are as follows: *Cawassawisith.*

List of Mistassini Indians:

Cawasawesu	:	1
No. of wives	:	2
Sons	:	5
Daughters	:	2
Dependents	:	2
Total	:	12

MISTASSINI REPORTS 1824–1825
(JOHN WALFORD)

Cawasaweset. Is the best hunter at Mistassini on an average of years. He brought 86 MBr, chiefly good skins. Has seven children, five sons and two daughters.

Camasaweset. Is the best hunter at Mistassini on an average of years. He and his son have this year hunted about 80 MBr, chiefly prime skins. Has eight children, five sons and three daughters.

MISTASSINI REPORTS 1827–1828
(J. KELLOCK)

Cowosowosit and 2nd son. This Indian is a good hunter and is in the habit of getting a few yards of gartering upon his coat. He expects—and perhaps ought to be—well treated, as he has a number of sons—some of whom are beginning to hunt furs. He brought 121 MBr—which is 40 MBr more than he hunted last year.

Cheeskatawautik is a son of the last mentioned Indian and a young man. He brought 65 MBr which is 30 MBr more than his hunt of last year.

MISTASSINI REPORTS 1827–1828
(J. KELLOCK)

List of the Indians belonging to Mistassini Post. 1828.

Cowasowasit. Brother of *Nosipitan*	:	1
Wives	:	2
Sons	:	5
Daughters	:	4
Total	:	12

MISTASSINI REPORTS 1828–1829
(RICHARD HARDISTY)

Cowosowozit, brother of *Nosipatan.* An old man but a good hunter, has a large family to support and was but poorly off for provisions during the winter. (With the assistance of one of his sons, a very young lad about 14 years of age) he hunted this year 103 MBr of furs, principally beaver and otters, being less than last year by 17 MBr.

Cheeskathawatick, son of *Cowosowozit.* A very industrious young man.

MISTASSINI REPORTS 1829–1830
(RICHARD HARDISTY)

Cowosowozit. Brother of *Nosipitan.* An elderly man. He was very ill for two months during the winter, during which time he could hunt nothing. The furs he brought to the post were hunted by himself and one of his sons, a young lad about 15 or 16 years of age, and amounted to 105 MBr—principally beaver and otters, being only two MBr more than he brought last year.

Cheeskathawatik, his son. A very fine young man and a good hunter . . .

Missenhahaigonish, brother of *Nosipatan* . . .

MISTASSINI REPORTS 1830–1831
(RICHARD HARDISTY)

Cowosowozit. Brother of *Nosipatan.* At one time of the year I was afraid this man would have made but an indifferent hunt, as he was starving and in ill health most of the winter. With the assistance however of two of his sons, he hunted 164 MBr of furs of all sorts—but principally beaver and otters, being 59 MBr more than last year.

Cheekathawatik, his son . . .

MISTASSINI REPORTS 1833–1834
(WILLIAM M. KAY)

Canosawisit. Brother to *Nosipatan.* Hunted 132 MBr in furs, being 20 MBr more than last year. The reason of his hunt being more than last year is owing to his having sent his sons to Newasqueskau River where they found a few beaver.

Cheekaskawatick. 1st son of *Canosawisit* . . .

Cauachemassue. 2nd son of *Canosawisit* . . .

MISTASSINI REPORTS 1834–1835
(WILLIAM M. KAY)

Canosawisit and young sons. Hunted 149 MBr principally in beaver and otters, a few Martins, Musquash, etc. The old man himself is beginning to fail by age and infirmities—he is an honest good Indian, but very troublesome when in a state of intoxication. His hunt is one MBr less this year than last.

Cheeskathawatich. 1st son to *Canosawisit* . . .

Cauachemassue, 2nd son to *Canosawisit* . . .

MISTASSINI REPORTS 1835–1836
(WILLIAM M. KAY)

Cauosawisit. A principal Indian and a good fur hunter for the Honourable Company and is much respected by the other Indians. He is now since the deceise of his brother (*Noosipitan*) the leading man of the Indians who hunt to the Northward of this plan. He has made a very good hunt this year, with the assistance of three of his sons—one of them is a man, having a wife and child. The other two are only lads yet and promise to be good hunters if they live. They brought in all this year 170 MBr, chiefly in beaver, otter and martins, cleared off all their debt and had some to trade.

Cheeskatawatick. 1st son to *Cauosawisit.*

Canochemassne. 2nd son to *Cauosawisit.*

MISTASSINI REPORTS 1837–1838
(W. M. KAY)

14th June. (1837) *Cauosawisit's* youngest wife came in the evening with news that her son was dead. He had been sent off with his mother by his father for to hunt beaver, but fell ill very suddenly and did two or three days ago. He was a stout young lad and promised to be a good hunter, had he lived.

Cauosawisit. A principal Indian, hunts to the Northwest of this place and was a very good hunter, but now he is getting old and sickly and is often laid up with the Gravil. Did not arrive this spring but sent his furs by two of his sons and which amounts to 75 MBr including Castorum and some furs received last August. His [sons] tell me that they were obliged to haul him every time they had occasion to remove during the whole spring—and when they left him last he scarcely could go out and in at the hunt. He is looked upon as a chief by the Indians—and I have indulged him on that account [more] than any of the rest of the Indians. He has received a Chief's coat for these three years past. His hunt this year is 15 MBr less than last year, which they attribute to their being scarce of provisions during the winter.

Cheeskathamatuk. 1st son to *Cauosawisit* . . .

Cauochemassue. 2nd son to *Cauosawisit* . . .

Caupimiquasit, 3rd son to *Cauosawisit* . . .

MISTASSINY REPORTS 1839–1840
(PROBABLY W. M. KAY)

Canosawisit. A principal man among the Indians and when all his sons were alive had a great influence amongst

them. But now has not so much. He generally get what they call a Chief's Coat, trimmed with Scotch Gartering. In former days he was an excellent hunter, but now he is getting old and falling fast, partly owing to having had so many attacks of the Gravel, together with family misfortune. He made a tolerable good hunt this year, having brought 95 MBr including Castorum. This is according to the Indian tariff and including the hunt of his youngest son who is now a lad about 15 or 16 years old, also part of his spring hunt last year is included in this year's trade. He brought last year 50 MBr, being 45 MBr less than this year. His hunt this season is chiefly in beaver skins and martins. He says himself and sons together with all their families were much in want of provisions from the commencement of winter till some time in February, when they began to kill some deer, and since that they did very well.

Cheeskataquatuith. A son to the above Indian . . .

Opisquatie. Canosawisit's 4th son. , . . His two brothers, older than himself, died in the fall of 1838.

The twenty years covered by the reports of the Hudson's Bay Company managers provide a quite clear picture of Cawosawisit's life. He was the head of a numerous family. Just like his brother Nosipatan he had two wives who, by 1827–1828, had borne him five sons and four daughters. But by 1840 (the last year for our reports) only two of his sons were still alive, namely Cheeskathawatik and Opisquatie. Even while his brother Nosipatan was a chief, Cawosawisit was regarded as one of the most important Indians at Mistassini Post. As early as 1823 John Walford and Joseph Beioley described him as "one of the best hunters at Mistassini" and John Walford reported in 1824, "Cawasaweset is the best hunter at Mistassini on an average of years."

Hunting luck seems to have remained with Cawosawisit over a number of years. Both the Indians and the Company respected him profoundly—witness J. Kellock's statement in 1827–1828, "This Indian is a good hunter and is in the habit of getting a few yards of gartering upon his coat. He expects—and perhaps ought to be—well treated." The same informant added a further reason for this privileged treatment, ". . . as he has a number of sons—some of whom are beginning to hunt furs." However the new manager, Richard Hardisty, reporting for the years 1828–1831, had small praise for Cawosawisit. It seems that by that time he was "an old man" and "very ill during the winter." His luck had left him and he and his family were ill and starving. In the very year of Nosipatan's death (1834–1835) William M. Kay wrote of Cawosawisit, "The old man himself is beginning to fail by age and infirmities—he is an honest good Indian, but very troublesome when in a state of intoxication."

Yet, only one year later the same William M. Kay suddenly became very enthusiastic about Cawosawisit, "a principal Indian and a good hunter for the Honorable Company and is much respected by the other Indians." The reason for this sudden enthusiasm on the part of the Hudson's Bay Company manager is clear: Cawosawisit "is now since the decease of his brother (Nosipatan) the leading man of the Indians who hunt to the Northward of this plan." Kay found it opportune to acquiesce completely on Indian public opinion.

There are no reports about Cawosawisit's inauguration as chief. We do not know whether he was formally elected or received his new office through inheritance. Probably it was the latter; for Nosipatan's only son had died and Cawosawisit was the only surviving brother. Since, morever, he had already reached such an advanced age by the time of his elevation to the chieftaincy that his health had been affected it seems doubtful that he would have received office except by virtue of heredity. Only two or three years later (in his report for 1837–1838) W. M. Kay wrote, "He *was* a very good hunter, but now is pretty old and sickly and is often laid up with the Gravil." Even so, "he is looked upon as a chief by the Indians—and I have indulged him on that account [more] than the rest of the Indians. He has received a Chief's coat for those last three years past." But the influence which he had enjoyed among his tribespeople seems to have diminished very rapidly. In his report for 1839–1840 Kay wrote:

Cawosawisit. A principal man among the Indians, and when all his sons were alived *had* a great influence amongst them. *But now has not so much.* . . . In former days he was an excellent hunter, but now is pretty old and failing fast, partly owing to having had so many attacks of the Gravel, together with family misfortune.

In the same report he added that "old Cawosawisit," together with Petabanowescome and Natchecapow, had trespassed on Potish's hunting-ground and had illegally caught the latter's fur-bearing animals. As a result Potish, unable to catch enough for himself, almost died of starvation. Cawosawisit, the chief, a trespasser! The office seems to have died on Cawosawisit!

CHIMOOSHOMINABAN

(CHUMOOSHOMINABAN—CHEEMOOSHOMINABAN—CHEEMEESHUMINABAN—CHEEMOOSHOOMINABAN)

MISTASSINI REPORTS 1823

(JOHN WALFORD AND JOSEPH BEIOLEY)

Chimooshominaban. Lately belonged to Rush Lake Post. Has hunted this year about 40 MBr prim winter furs. He is perfectly satisfied with his treatment at Mistassini. Is a pretty good hunter.

MISTASSINI REPORTS 1823

(JOHN WALFORD)

List of Mistassini Indians.

Chumooshinaban	:	1
No. of wives	:	1
Sons	:	1
Daughters	:	2
Dependents	:	–
Total	:	5

MISTASSINI REPORTS 1824
(JOHN WALFORD)

Chimooshominaban. Formerly belonged to Rush Lake. He came in last March, brought 22 MBr. Since I have not seen him. Has one son and two daughters.

MISTASSINI REPORTS 1824–1825
(JOHN WALFORD)

Cheemooshominaban was at Swabmooshswab last summer but returned to us in December last and brought 25 MBr winter furs at that time, being his fall hunt. The furs we have had from him this year amount to about 90 MBr, but a part of this was deposited summer furs of the preceeding year's hunt. He formerly traded at Rush Lake, but when that post was given up, he came to Mistassinie. Met with an accident last February and had his left hand nearly frozen off. It had not healed when he came in the spring. I believe he has nothing hunted since the accident occurred tho his son has.

In this same report, just as in the preceding one, it is stated under the name of the Indian *Wishetashish* that *Chumooshominaban* was his stepfather.

Wishetashish. Was at Swabmouthswan last summer, but returned to Mistassinie with his stepfather Chumooshinaban last January. Has been lame and unable to hunt this winter. Got about 30 MBr from him, part of this was deposited summer furs of the preceeding year's hunt. He was maintained a part of the winter at the expence of the Post. Lost the use of his left leg and thigh last summer, but is now upright and nearly recovered.

In the Journal of Occurrences and Transactions from Mistassini 1824–1825 John Walford reported on January 23, 1825:

When *Choomooshumunaban* started to go away he addressed himself to me and said: "Take notice. If the [illegible] be little at Mistassini next winter—all the Indians will go to Swabmooswab again. Mind that." He also said: "When the Indians go to Swabmooswan they get plenty of victuals."

MISTASSINI REPORTS 1827–1828
(J. KELLOCK)

Chemushuminaban. A Chief who, together with his son (a youth) brought 88 MBr which is 10 MBr more than they hunted last year.

In the "List of the Indians Belonging to Mistassini Post 1828" Kellock mentioned under the title of "Chemooshuminaban dos. grandsons" only three sons of the former. This seems to have been by error, since during the winter of 1827–1828 Chimooshominaban appeared in Mistassini accompanied by one of his sons, and one year later Hardisty spoke of his "large family of daughters and grandchildren."

MISTASSINI REPORTS 1828–1829
(RICHARD HARDISTY)

Cheemooshoominaban. A principal Indian among the Southward Indians. He is an old man and has a large family of daughters and grandchildren to provide for. Him and his son (a young man about 20 years of age) have brought this year to the post 133½ MBr of furs, a great part of which is in beaver skins—and is 45 MBr more than last year.

Sako. Brother of *Cheemooshoominaban* . . .

MISTASSINI REPORTS 1829–1830
(RICHARD HARDISTY)

Cheemooshoominaban. The principal Indian among the Southward Indians. Last year his son's (*Harshaimank*) hunt was included with his and amounted together to 133⅓ MBr—this year joint hunt amount to 169½ MBr skins and is 36 MBr more than last year. It was this Indian and his son whom I was fearful had gone off to Swobmooshwon—instead of which it appears they went on their own lands near to Nimmiskaum where they hunted most of their furs—their have gone so far off was the reason they did not visit the Post last fall and so often in the winter as usual. I don't believe this man has been with or sent any part of his furs to Swabmooshwon.

Harshaimauk, his son. This is the young man who after having engaged last August's to accompany the Company's servants as a voyageur down to the coast—deserted them the same day he left the house. He has However done his best since to make up for his bad conduct.

Sako. Half-brother of *Cheemooshoominaban.*

Napaiskish. Nephew of *Sako.*

Toochasaiquon; Notoway. Nephews of *Sako* . . .

JOURNAL OF OCCURRENCES AND TRANSACTIONS COMMENCING JUNE 1ST, 1829 ENDING MAY 31ST, 1830

(From a letter of Richard Hardisty, Clerk in charge of Mistassini Post, to Jos. Beioley, Chief Factor, Ruperts House District, dated, Mistassiny Post, February 2, 1830)

I am greatly afraid that two of our Indians (*Cheemooshoominaban* and son) have already gone to Swobmooshwon—as I have not seen them since they took their debts last summer. They told me at the time they took their debt that they would not be here again before the spring—but as they said the same summer before and came in notwithstanding in the fall and also several times during the winter I expected they would do the same this year, as I do not think the ammunition they were supplied with would have been sufficient to serve them till this time. I intend to do all in my power to find them out if they do not come in—but unfortunately there is no person belonging to this post that knows where to go with any hopes of finding them. Jacob Borrigal is the only man in the Mistasinny or Timmiskimay quarter who is the least acquainted with any part of the country in the direction which they hunt. If *Cheemooshominaban* has gone to Swobmooshwon, it is—I sincerely believe—with the view of getting husbands from among the Indians at that post for his daughters, as also a wife for his son—he having said as much to me last summer that he would do so, but I did not believe at the time that he was in earnest. I have also heard other reports as to what may be the cause of his leaving this post—if he really has left it. One is, the Ruperts House Indian Potoshish having threatened to kill him unless he gives him one of his daughters. The other is his being afraid to come in—in consequence of his son having deserted from our people last summer after engaging to go down with them to the coast as a voyageur. Of this last circumstance, however, he has no reason to be under any alarm—for on his son's return here the day after he deserted from the people, not an angry word was said to either father or son for the latter's conduct. And on their taking debt I gave to each of them a present of a measure of ammunition, more than they ever got before—and when they went away they appeared both perfectly pleased and satisfied.

MISTASSINI REPORTS 1830–1831
(RICHARD HARDISTY)

Cheemooshoominaban. The principal Indian among the Southward Indians. Brought this year 106 MBr of furs—principally beavers and otters—being 20 MBr more than he hunted last year—as 35 MBr included in his last year's acct. were given to him by his son.
Harshaimauk. Son of *Cheemooshoominaban* . . .
Saiko. Half brother of *Cheemooshoominaban* . . .
Napaiskish. Toochasaiquon. Notoway. Nephews of *Saiko.*

MISTASSINI REPORTS 1833–1834
(WILLIAM M. KAY)

Cheemooshoominabin. A principal Indian amongst the Southward Indians. Has hunted 54 MBr, being 17½ MBr less than last year—which I attribute to his being sickly all the spring.
Harsheemauk. Son of *Cheemooshoominabin.*
Saiko. Half-brother of *Cheemooshoominabin* . . .

MISTASSINI REPORTS 1834–1835
(WILLIAM M. KAY)

Cheemooshoominabin. A principal Indian of the Indians who hunt to the Southward of this place. He brought 61 MBr, chiefly beaver skins, probably he might have hunted more had his son not died some time in the early part of the winter. But I am told that he caused his son to be strangled: when he was near the last stage being apprehensive that his son would turn out to be a cannibal if he should recover. This man brought 7 MBr more than last year.
Havsheemauk, son of the aforementioned Indian. This young man died last winter or was strangled to death. . . . He had hunted 20 MBr before his demise, which the father brought.
Saiko. Half brother of *Chumooshoominabin* . . .
Napaishkish. Nephew to *Saiko* . . .
Tootchesauquon. Brother to *Napaishkish* . . .
Nantoway. Brother to *Tootshesaiquon* . . .
Etapao. Son-in-law to *Chumaoshoominabin* . . .

MISTASSINI REPORTS 1835–1836
(WILLIAM M. KAY)

Cheemaoshominabin. A principal Indian formerly when young had great influence over the Indians who hunt to the Southward of this plan and was titled chief amongst them. He has made a very poor hunt this year. He brought in his furs last April, which only amount to 33 MBr, being 29 MBr less than last year.
Saiko. Brother to *Cheemaoshominabin.* Sent in his furs by his nephews . . .
Naipaiskish. Nephew to *Saiko.* Brought this year between him and his grandmother 27⅓ MBr . . .
Toochusaiquon. Nephew to *Saiko.*
Nautoway. Nephew to *Saiko* . . .

MISTASSINI REPORT 1837–1838
(W. M. KAY)

Cheemooshominabin. A very old man and does not hunt near so much as he used to do. But one of his grandsons, a young lad, makes up for his failings, as he is getting to be a pretty good hunter. But this year the old man met with a misfortune the martins having destroyed no less than 30 MBr of furs, and mostly beaver skins, the old man says. He brought 34 MBr this year which is no less than 58 MBr less than last year.
Napaiskish. Tootcheesaiquon. Nautoway. Nephews to *Saiko.*

MISTASINNI REPORT 1839–1840
(PROBABLY BY W. M. KAY)

Cheemooshoominabin was once an excellent fur hunter. But now he is old and cannot hunt much. He has three grandsons, one of them is a man, the 2nd one a stout lad, the 3rd a stout boy. The old man was almost starved to death this last winter, had he not fallen in with his brother Saiko, he said he could not have lived. He was once considered as a chief over the Indians who hunt to the southward of this place, but now all that is done away with. Him and his grandson brought this season 46 MBr, including Castorum, being 8 ¼ MBr more than last year. His eldest grandson (*Wemitsagooshew*) went to Swabmoosewan last fall and took a debt of 20 MBr, I am told.

Originally the chief of the Southward Indians, Chimooshominaban, belonged to Rush Lake Post. When this Post was given up, however, he went to Mistassini and, when he disliked the treatment he received there, he turned to Swabmoosewan. It seems that the Hudson's Bay Company managers were not too pleased with his personality. He was a bit too independent; and if he could not have his way, he simply threatened to leave the Post: "Take notice—if the [pay] be little at Mistassini next winter—all the Indians will go to Swabmooswab again. Mind that!" The fact of his making this announcement indicates that he was already a chieftain, although the reports did not mention the fact of his chieftainship before 1827–1828. He seems to have been rather old when he became a chief, (which, incidentally, holds true for all these chiefs) because Hardisty described him as "an old man and has a large family of daughters and grandchildren to provide for."

In February 1830, when Chimooshominaban had not yet returned to Mistassini, Hardisty began to worry that he might have gone over to the Company's competitors at Swabmoosewan. But he tried to calm himself and his superiors by assuring, "If Chimooshominaban has gone to Swabmoosewan, it is—I sincerely believe— with the view of getting husbands from among the Indians at that post for his daughters, as also a wife for his son—he having said as much to me last summer that he would do so, but I did not believe at the time that he was in earnest." He hastened to add another possible reason for the non-appearance of Chimooshominaban—"The Ruperts House Indian Potoshish having threatened to kill him unless he gives him one of his daughters."

The winter 1834–1835 was a turning point in the life of Chimooshominaban. In the report covering that year, William M. Kay stated, "I am told that [Chimooshominaban] caused his son to be strangled when he was near the last stage of being apprehensive that his son would turn out to be a cannibal if he should recover." This brief statement does more than describe the tragedy which took place somewhere deep in the

woods: it also touches profoundly upon the religious and magic conceptions of our Indians. The concept of the *wi'tigo* (Mistassini: *wi'ntsigo*), of the "Great Man" who overcomes human beings and turns them into cannibals, is involved here. Chimooshominaban "caused" his son to be strangled because their tribe believed that only a powerful conjurer can destroy a *wi'tigo* who has taken possession of the soul of a human being, thereby transforming him into a cannibal. Chimooshominaban must have asked a shaman for help in fighting the Maneater *wi'tigo* who the father was convinced had taken possession of his son, Harsheemauk, because it was not within the chieftain's function or open to any. At this point, however, this incident is of interest primarily in so far as it affected Chimooshominaban's position as a chief. And indeed the apparent secrecy surrounding the death of his son seems to have forfeited Chimooshominaban—his hunting luck and so his influence as a chief. A year after the above-mentioned occurrence, William M. Kay reported about him: "A principal Indian, *formerly* when young had great influence over the Indians who hunt to the Southward of this plane and was titled chief amongst them. He has made a very poor hunt this year." We have no definite indications to go on in regard to whether or not the son's manner of death, as contrasted with the loss of his aid in the hunt, contributed to the result. What does appear is that Chimooshominaban was no longer regarded as a chief. We do not know whether he was deposed or whether the Indians, without formally removing him from office, simply ceased to look up to him as their chief. His hunting luck had turned, and he had become very aged. "A very old man and does not hunt near so much as he used to do" (1837–1838). Judging by the last available report (1839–1840) Chimooshominaban seems to have been completely finished both as an individual and as a chief. "Chimooshominaban *was once* an excellent fur hunter. But he is now old and cannot hunt much. . . . He was once considered as a chief over the Indians who hunt to the southward of this place, but now all that is done away with."

Chimooshominaban suffered a fate worse than death —his reputation as a hunter had vanished, and though he continued to live it was no longer as chieftain of his band.

IV. THE INDIVIDUAL

BIRTH

(*niucooshit:* "when he appeared"; *eliniut:* "when he came to life")

If a woman gives birth to a child while in the woods, she usually receives the assistance of her mother-in-law, with whom she and her husband may reside. Her own mother will rarely be at hand since she probably lives far away. However, any other married woman can be called in to help. Single girls, even the young mother's own sister, are strictly excluded from her childbed. If no married woman is nearby and the husband happens to be at home, instead of trapping and hunting, it is considered proper for him to render his wife the necessary assistance.

A beautiful handkerchief or other piece of material is hung up over the baby's cradle as a token of good luck for the child's future happiness. Sometimes, the umbilical cord is attached at the head of the cradle for the same purpose. These charms are supposed to bring happiness to the child and to make it become strong and virtuous. If the birth occurs during the summer months, the child is dipped into a tub filled with water so that he may become a good canoe-expert and that he may not lose his life in the wet element. If the child is born during the winter, the tub is packed with ice and filled to the brim with water. Any new-born baby who emerges safely from this bath—whether boy or girl—is supposed to be able to stand the coldest weather during later life. Twins receive no different treatment after birth from that of any other baby.

The afterbirth is buried on the family's hunting-ground. Immediately after the birth, in any case on the same day, the neighbors are invited for a celebration. If it can be possibly managed, the guests are treated to a dinner consisting of a roast of beaver, the most desirable animal. Such a beaver meal, too, is definitely regarded as an omen of good luck for the child's future.

The mother nurses her child for at least a year. Should illness prevent her from doing so, another woman, if available, takes over to fulfill the functions of a nurse. Such a nurse does not receive any remuneration for her services.

The period of sexual abstinence for the mother is entirely dependent on her health. No general rule exists. Special taboos forbidding mother or father to eat certain foods on account of the birth of a child do not exist. During the time of the actual birth other children who may be in the tent are ordered outside.

Traditional lullabies are unknown. The mother herself improvises children's songs to fit the occasion.

When a child is born, the father's power supposedly passes into the child. If the baby is a boy, his father tells him that he wants him to become a good hunter and a strong and brave man. The father also advises the child that after his death he will leave to his offspring all his trapping tools and everything he possesses.

THE GIVING OF NAMES

If the child is born during the winter months, i.e. in the woods on the hunting-ground far away from the missions, he usually receives a nickname or pet name without any formal baptism. The name is derived from certain events occurring in connection with the child during the first days of his life. In one case, for in-

stance, the child lay outside of the tent in his cradle when a sudden rainfall descended on his face. His logical name was, therefore, "Rain-in-the-Face": *chimun tastemakwao*.

Not until the summer and the return to the summer place does a child receive all the rites of Christian baptism, as performed by the priests. In cases of emergency, however, the parents may take charge, even on the hunting-grounds, of a certain private baptism ceremony which is considered as valid and legal. The priests have taught its details to the parents.

The giving of a Christian name by no means excludes the addition of an Indian name which, however, does not originate with the baptism ceremony but rather derives itself from some special incident considered by the Indians as especially remarkable. The child is usually known and called by this Indian name rather than by his Christian name. A few examples may serve to illustrate this point.

Adrienne Béjean of the Lake St. John Band, for instance, was known by the name of *Tepishkwesh* ("Female Root") because of an event that took place during her earliest childhood. As she lay playing on her back in the tent, a bundle of spruce roots, called *utipi* in Montagnais and usually used for the sewing together of birch-bark baskets, fell upon her face from the place where they hung for drying. Ever since the girl had been called exclusively by her Indian name.

A Mistassini man received his name, *Baschikennabesh* ("Boy-of-the-Gun") in this manner. He was lying in his cradle as a baby when a dog entered the tent and, touching a nearby gun, caused the gun to fall into the boy's cradle.

Joe Kak'wa's grandfather had the nickname of *Cashenópitéo* ("Long Tooth"), and according to Joe he himself inherited the same name, because his grandfather wished it. The grandfather received this name when two years old. Biting a small piece of leather, he held it so stubbornly with his teeth that his mother could not get it out of his mouth.

In Pointe Bleue, the author knew a small boy of the Lake St. John Band, Joseph Raphaél, who was nicknamed "Little Dog" (*A'timúsh*) because he had been a bad little boy who liked to bite everybody, even his parents.

If a baby is born during the summer while the Indians are still at their assembly place, baptism and the giving of a Christian name are, if possible, attended to on the very first day of his life. The godmother carries the child to church, his father acting as a witness, while the mother remains in the tent. Even if the child is born during the winter and the baptism takes place on the summer place during the warm season, the mother is not present at the baptism ceremony.

Godfathers and godmothers may ask the parents to give their names to the child. Usually, it is they who determine the child's name, not the parents. Nevertheless, such names as have been used in the family before are preferred. A change of name in later life may take place.

CAPACITY

Initiation and circumcision are unknown to these tribes. The state of legal capacity is determined by other factors, namely the reaching of puberty with the girls and the killing of the first bear with the boys. Although there are no customary celebrations to commemorate the event, the young hunter who passes the test of courage by killing a bear is henceforth regarded and treated as a man. Outward evidence of this newly acquired status is the fact that from now on he may and mostly does establish his own account with the Hudson's Bay Company. No longer will he turn in his hunted skins together with his father's in a mutual fur pack but rather sell them separately on his own account. From now on he is of age and more in our sense of the term. He is considered a legal person, which he was not before in any fullness. As to the law of inheritance, if he happens to be the eldest son it is now he and not his mother who will inherit the hunting-ground.

The moment when capacity is reached marks at the same time a certain termination of the education of the individual for both boys and girls alike. Already at a very tender age the young boys are instructed by their father and the old men who teach them the best way of starting out for adult life. This means, they prepare them for that kind of existence which is largely patterned by their environment and their specific social order. This particular brand of education has indeed led to a harmonious integration with the existing social order—an achievement which in the education of white youth has always been the ideal, although seldom reached, goal. It has again and again amazed me to observe with how much success the Naskapi boy and the Naskapi girl received through experience and skillful training an educational background which did not bring them in conflict with their form of society but rather enabled them to hold their own not only within their natural surroundings but also within their traditional social set-up. In this single-class society the problem of adjustment of the youth is by far not fraught with the difficult and multiple problems facing the young people in our own civilized society.

The paramount goal in the education of a Naskapi boy is obviously to train him to be a good hunter. He is instructed in the different hunting practices; in knowing and observing the behavior and habits of the game animals; in the setting of modern metal traps and in building the ancient wooden models as well; in the manufacture of the tools for his material necessities and in all the crafts which pertain to the mode of life of a Naskapi man. In addition, he is taught the history and customs of his tribe and its ethical conceptions. He sees the performances and the power of the shaman; he

experiences and is taught the magical powers ruling in the woods.

Tomo Kak'wa was one of the teachers of the boys of the Lake St. John Band. I saw him often when he, despite the handicaps of his wretched body, sat before his tent, surrounded by five or six boys who listened attentively to his stories of the olden times. His customary topics were the glorious adventures of the past of their tribe; the four "magic men" from the quarters of the globe; the chieftains of the game animals and practically all other spiritual and technical elements of Naskapi life. He was very skillful at mixing his sincere teachings with gay anecdotes at the right moment, and often enough the wide square resounded with the laughter of the old sage and his disciples.

The education of the girls covers, as far as general knowledge is concerned, partly the same subjects as that of the boys, the "classroom" being for both almost exclusively the family tent and the teachers their parents. But the emphasis is naturally laid upon the teaching of recognized feminine skills. Among them are the arts of snowshoe lacing; the manufacture of moccasins, birch-bark baskets and rabbit-skin blankets and the techniques of netting, needlework, and other handicraft reserved for the feminine sex.

With the event of her first menstruation, a girl is considered as being of age. To her, this day is a gay and happy one. When she feels that the first bleeding has begun, she informs her parents who, often with her own assistance, erect for her a small private tent near the parental one, which is termed "wigwam" like any other ordinary tent. The Montagnais word for it is *mitswap* an expression used also for any other building, tent, or house. Such tents are often put up near the river or lake shore. They are outwardly marked by a green bush attached to the horizontal tent-pole over the entrance. With the growing influence of Christianity this custom slowly vanishes. However, during his stay at Pointe Bleue the author still noticed such a tent, and its removal after a few days, almost within the sight of the Catholic parsonage.

Regarded and treated for the first time as a grown-up person, the girl sits on an especially beautiful caribou or bear skin. As a special gift from her mother she receives a beaded headband, made exclusively for this occasion. It is known as *paskwepso*. Nobody except her mother is allowed to enter the tent—even sisters and girl friends are excluded. Her smaller brothers and sisters are told that something extraordinary has happened to her and that she is not in the mood to receive anyone. To all men it is strictly forbidden to enter this tent; and a trespasser would be unhappy for all his future life. The few objects brought by the girl into this tent, like dishes, etc., are destroyed after the days of menstruation are over. Any further use would bring illness to her and her family. Moss is used as a hygienic aid. The girl herself burns it within the tent.

From now on the girl is considered marriageable. During all following menstruation periods she remains in her parents' tent, using her own cup and plate, just as usual. As a rule, the first menstruation occurs with the fourteenth or fifteenth year.

The evangelization of the Indians through Catholic priests with the Lake St. John Band, and Protestant missionaries with the Mistassini Indians, and therewith the introduction of the customs of communion and confirmation have caused no change in the old concepts of the coming of age of boys and girls. Even though the Indian Act makes the state of full legal capacity dependent upon the completion of the twenty-first year, the old customs still prevail in the public opinion of the Indians.

FREE LOVE, CHASTITY, PROSTITUTION

My informants' views about these topics differed, and they made their statements only reluctantly. The general picture appears to be the following. In the olden times and in the woods, removed from the influences of white civilization, free love affairs were and are, as a rule, nonexistent. The marriageable girls are strictly guarded by their parents, and, if some love affair should become evident, an early marriage is brought about. A bridegroom does not insist upon the virginity of his bride. But pre-marital sexual intercourse is not sanctioned either by parents or community. This is the general rule; exceptions to it are, naturally, possible.

During the summer on the camping places of the Hudson's Bay Company Posts, especially in the Indian-White border region, this strict conception seems, however, to have been abandoned. Here the individual sexual taste and sometimes the impulse of the moment seem to guide the conduct of sexual relations, a fact which induced McKenzie (1808) to make the statement: "Their ideas of chastity are so confined as scarcely to exist, and their conscience in this respect is as elastic as a silk stocking." This would indeed confirm the later quoted report of the Indian Agent about the large percentage of illegitimate children. Speck has, in one of his papers (1933), given some attention to these topics. He mentions in this connection also the interesting case of a hermaphrodite of the Barren Ground band (*ibid.*, 576), reported to him by Richard White. The latter states that "the native name for the individual of this social status is *napekwéo* = 'man-woman'" and that he was "the butt of ridicule in all he says or does, loaded with woman's labor by the other men as well."

I found a similar case of a hermaphrodite in William M. Kay's statement in the Mistassini Reports of 1839–1840: "Merrishan, another Indian belonging to Swabbamoosewon—whom I have not seen since last August, at which time I received 2 MBr. It is said that this person is an Hermaphrodite and goes by the name of Oskanish's Daughter."

According to my informants, prostitution is unknown

among our Indians. Birth control and abortion are not practiced.

Circumstances were, as already stated, not favorable to elucidate further the above topics. My informants were mostly honorable husbands who were, of course, reluctant to indulge in such discussions, and neither I nor my wife who accompanied me deemed it necessary to press the point. From my own experience I found out that shortly after the return of the Indians to their summer places at the reservation some young Indian hunters used to visit Roperval, a hamlet on the shore of Lake St. John, for the purpose of having sexual relations with white prostitutes who flocked there to claim their share of the hunter's fur harvest. It may be that this fact is partly responsible for the trend of laxity in sexual life within the band in modern times.

ILLEGITIMATE CHILDREN

(*äkaka otāuit:* "His father is not known")

The percentage of illegitimate children at Pointe Bleue is, according to the Indian Agent, 15 per cent of all Indian births. In addition, he states: "The Canadian Law does not deal with the illegitimate father, since the Indians take care of this themselves." In contrast to this, the author's Indian informants pointed out that illegitimate children are all but unknown. If, however, such cases occur, the father is forced to marry the girl. If he is already married, he is, perhaps influenced by the white man's laws, obliged to pay alimony. If he is poor, he pays nothing. The child belongs to its unwedded mother and enjoys the same privileges within the band as any legitimate child.

ADOPTION

(Adopted son: *okushé kahún;* adopted daughter: *otanishé kahún;* adopted father: *otāui kahún;* adopted mother: *okāui kahún;* adopted parents: *unichihi kahún*)

The adopted child, often coming from a poor but numerous family, receives the name of its foster parents. No monetary compensation is made. Adoption is not subjected to any formal procedure. The adopted child can be made the heir of his foster parents as well as of his natural father and mother. A recent case of adoption where however an only child was involved is the following, reported by Joe Kak'wa:

> Around about 1910 one case of adoption took place at Pointe Bleue. The parents, both Indians of the Lake St. John Band, were Daniel MacDonald and his wife. From another Indian of that same band, Jérôme Laloche, they adopted his only child, a one-year old boy, Bastien. He received the name Bastien MacDonald.

Blood Brotherhood, an institution known among a number of primitive tribes, whereby men obtain under certain circumstances the status of brothers by drinking ceremoniously each others' blood, is unknown in this tribe.

ILLNESS, DEATH, BURIAL

Exposure of children, sick persons, or the aged is not practiced. On the contrary, elderly and ailing persons are attended to with special care, and public opinion is especially strong and definite on this matter. The Mistassini Reports contain numerous stories and remarks about cases of mutual assistance demanded in all emergencies caused by illness or starvation. This question will be dealt with in full detail in this paper at some later occasion when an analysis of public opinion as a law-enforcing agency will be attempted. Informant Joe Kak'wa reported an especially remarkable case of care for a sick person. The ailing woman, old and paralyzed, was the wife of Josèphe Chelniche (Shooshep). Thirty years older than her husband, she had been a cripple for twenty years. Yet, she was taken care of by her husband even under the hard conditions of the hunting-grounds.

These reported facts from my informants and from the Mistassini Reports are in contrast to statements especially by Hind [1] and Daves (1854: 132) who contend that the aged and incapables are killed. Speck's (1933: 568) experience, however, concurs with my information.

Suicide is not practiced among our Indians.

If a man died in the woods in the olden times, my informants report, he was buried on a platform high up in the trees. The platform was constructed of four posts (ten, fifteen, or twenty feet high) which had forks at their ends. Upon them they put a box made of round sticks about five to seven feet long and, for a man, about three feet high. After the body, well wrapped in canvas, was put in, the box was closed. If the deceased was a woman or a child, the box was accordingly smaller in size. The box and the cover consisted of round sticks so closely joined that not even a mouse could get through. Immediately after the platform had been erected the body was laid in this coffin, sometimes on the same day, sometimes the next morning. A ladder was manufactured from a tree eight to ten inches in diameter. After steps had been cut into that tree, one or two men climbed up with leather ropes, to lift the body into the coffin. If four convenient trees could be found, they were used as posts just as they were, with their roots in the ground. After the coffin rested on the platform the men took off all bark from the trees to prevent animals (bear, wolf, wolverine) from climbing or jumping up to hurt the body. The informants contend that they still saw two graves on platforms when they were boys, at least fifty years ago.

Nowadays, the dead are buried in the soil. The grave is adorned with skulls and bones of the animal the de-

[1] "The horrid practice still obtains among the Nasquapees of killing their parents and relatives when old age leaves them incapable of exertion" (Hind, 1863: II: 99).

ceased liked best to hunt. A number of poles are stuck into the grave and animal skulls are attached to them. If the dead man was a famous hunter, bear skulls are used for this purpose. Occasionally some piece of material or ribbon is fastened over the grave. Other funeral offerings are traps and weapons, the tools of hunting luck. Women's graves are decorated with the skulls of such animals as they used to skin during their lifetime. Another object accompanying a dead man is his tobacco pipe; and a small birch-bark package containing tobacco is placed upon his grave for the deceased man's convenience. Sometimes this tobacco is not imported from the white man's world but consists of a mixture which the Indians used to manufacture for themselves long before the arrival of the whites. For this tobacco the bark of red willows is scraped from the trees in long, thin strips. These strips are bundled and dried over the fireplace on the *akwāuknapashiátŭk,* the center post of the tent. The dried bark is broken by hand into short pieces, similar to those of bought tobacco. This main substance is then blended with some scraped-off spruce bark, the latter needing no drying process, since it is already dry on the tree. This addition is supposed to take the bite off the red willow tobacco. The Montagnais word for tobacco is *stemão,* while their word for Red Willow is *mekwapemishiátŭk.*

If the deceased possessed a good hunting dog, it is forbidden to kill this dog after his owner's death. If anyone would hurt the dog, one of the band would be bound to die very soon or something terrible would happen to the family of the offender. Therefore, the band takes care that nothing happens to the dog.

If someone dies on the hunting-ground the family always leaves the locality where the death occurred, to move away, though not always far, erecting their tent at another spot. Since recent times the widow wears, after her husband's death, dark or black dresses and shawls. The children wear black armbands, mostly made of caribou skin, for about a year.

V. THE FAMILY

RELATIONSHIP AND TERMS OF RELATIONSHIP

Terms of relationship which go beyond the conception of the individual family by referring to the kinsfolk (band) of father or mother are known. Many terms of relationship are equally used by men and by women. In general, the terms of relationship as used by the Mistassini and Lake St. John Indians are identical with those of the neighboring bands like the Bersimis, Nichikun, Ruperts House, Têtes de Boule, and Waswanipi. Wherever differentiations do occur they will, if possible, be pointed out.

Father	:	*nó'tá* (Waswanipi and Têtes de Boule: *ta'tá*)
My father	:	*no'tāui* (Waswanipi and Têtes de Boule: *nta'tám*)
Mother	:	*näka* (Waswanipi and Têtes de Boule: *chuchúm*)
My mother	:	*ni'kāui* (Waswanipi and Têtes de Boule: *n'chuchúm*)
Mother's brother	:	*no'kumísh* ("My uncle")
Father's brother	:	*no'kumísh* ("My uncle")
Mother's sister	:	*n'túsh* ("Aunt")
Father's sister	:	*n'túsh* ("Aunt")

The same term is used for aunts related by marriage, just as *no'kumísh* is equally used for uncles related by marriage.

Grandfather (paternal or maternal)	:	*némushúm*
Grandmother (paternal or maternal)	:	*nokúm*
Father's brother's son Father's brother's daughter Mother's brother's son Mother's brother's daughter	:	No special terms. For male and female cousins the same terms are used as for brothers and sisters.
Brother (older brother)	:	*nistêsh*
Younger brother, younger sibling	:	*nishím*
Twin-brother	:	*nishám*
Sister (older sister)	:	*nimísh*
Younger sister, younger sibling	:	*nishím*

As evidenced by the above, *nishím* is the term used for all younger brothers or sisters, regardless of sex.

Father-in-law	:	*ni'shísh*
Mother-in-law	:	*ni'shikush*
Son-in-law	:	*naháchim*
Daughter-in-law	:	*naháchkwem*
Brother-in-law	:	*nishtāu*

Sister-in-law	:	*nitĕm*
Great-grandfather	:	*chenemúshum*
Great-grandmother	:	*chenókum*
Great-great-grandfather	:	*ntan'skotápeo'nemúshum*
Great-great-grandmother	:	*ntan'skotápenókum*
Grandchild (male or female)	:	*no'shishím*
Son, "my son"	:	*nikúsh*
Daughter, "my daughter"	:	*ntánish*
Husband	:	*ná'apem* ("My husband")
Stepfather	:	*no'tawí'kahún* ("My stepfather")
Stepmother	:	*nika'wí'kahún* ("My stepmother")
Stepson	:	*nikúsh'kahún* ("My stepson")
Stepdaughter	:	*ntánish'kahún* ("My stepdaughter")

A general term for "family" does not exist. For this reason, the Indians describe this unit by circumlocution, for instance:

"My family" (from the husband's point of view; "My wife and my children"): *nitíshkuem kíe nituáshimits.*
"My family" (from the wife's point of view; "My husband and my children"): *ná'apem kíe nituáshimits.*
Father of the family: *otāui masotuáshim* ("Father who has children").
Mother of the family: *ukāui mōo otuáshim* ("Mother who has children").

When, for instance, a small boy is questioned about his family, he will answer: "My brothers and sisters, my father and my mother." Whenever the notion "family" is mentioned, all individuals who make up the family unit have to be mentioned. As stated before, there is no general term to express this conception. The term: *ntil'nímets* ("my people") means the whole complex of all relatives and, at the same time, the whole band.

Our band, our people: *ntil'nimenánts.*

MARRIAGE PROHIBITIONS

Even if the band is small, marriage within the band is not prohibited. Marriage prohibitions are determined by the stronger or lesser degree of blood relationship, even though no clear differentiation into exogamous societies is distinguishable. Endogamy, i.e. marriage within the group, is nowadays more frequent than marriage outside of the group. The informants questioned were very definite in their answers on this point. All agreed that "there would be no difference made between a man from one's own or another band, even though a father would prefer to see his daughters married to a man of his own band." Definite rules about endogamy or exogamy are not known.

In the olden times a trend toward exogamy seems to have prevailed. In any case, the Mistassini Reports often point out that married couples originated from different Indian bands and that hunters did not show up at the Post for the duration of one whole year because they had traveled to some other Post of the Hudson's Bay Company for the purpose of finding a young man or a girl suitable to become their own son or daughter-in-law. Richard Hardisty, for instance, stated in the Journal of Occurrences and Transactions on February 2, 1830, that Cheemoshonimaban and his son did not show up at Mistassini but rather went to Swobmouswan, ". . . with the view of getting husbands from among the Indians at that post for his daughters, as also a wife for his son." It will be recalled that the report continues: "I have also heard other reports as to what may be the cause of his leaving this post . . . one is, the Ruperts House Indian Potoshish having threatened to kill him unless he gives him one of his daughters." The existence of the Hudson's Bay Company's and Kings Posts furthered in any case the meeting of members of different Indian bands. The hiring of Indians as servants, guides and voyageurs contributed also to a closer contact among entirely different Indian bands. At times, this seems to have developed into an outright nuisance. "The custom of bringing down women by the servants and others has become a complete annoyance this summer," wrote Joseph Beioley of Ruperts House to W. K. Kellock of Mistassini (Mistassini Post Journal, August 18, 1827),

> In future therefore it will be advisable to prevent a reccurrence of similar inconvenience—as far as possible—and for this purpose you will please next summer not allow any of the servants to bring down their wives to the coast—unless it is the intention of the servant or servants (with permission) to leave the district.

The further contents of the correspondence between Joseph Beioley and W. K. Kellock seem to imply that some Mistassini Indians hired by the Mistassini Post of the Hudson's Bay Company had taken along their wives originating from Ruperts House to have them visit their kinsfolk during their trip to that post.

Mixed marriages between whites and Indians are quite frequent in the borderline country, and it happens that both Indian men and Indian girls may be married to whites. Informant Kak'wa, for instance, chose a French Canadian woman for his second wife; while the

wife of Sandy Ritchie, the manager of the Hudson's Bay Company Post at Chibougamau, was a Naskapi girl even though not full blooded. In former times, marriage to a white man usually meant marriage to one of the clerks of the Hudson's Bay Company. An exchange of letters between W. M. Kay, Manager of Mistassini Post, and his superior, J. Beioley of Ruperts House, reveals an interesting case from the year 1834.

W. M. KAY TO J. BEIOLEY. (MISTASSINI POST, JANUARY 10, 1834)

I have to inform you that Jo. B. Aiderson has thought proper for to take an Indian woman for a wife—and J. J. Beads has done the same. This is a thing they have done entirely without any permission from me whatever—indeed I never expected that anything of the kind would take place in such a manner. J. B. Aiderson has already turned his one away from him and intends to send her along with her relations again. He has asked me to intercede for him and to ask your pardon and forgiveness for having behaved so, and promises he will not do so again without permission from you or any other gentleman having the same authority.

J. Beioley's answer to W. M. Kay, dated Ruperts House February 21, 1834, reads as follows:

The young men you mention have acted very improperly in forming connections of the nature you allude to, without first obtaining your permission. If they desire to remain in the Honourable Company's services they must conform to the established Rules and Regulations on this head, which none can pretend ignorance of.

A division into sibs is unknown. Marriages into the maternal family are definitely possible. Only the degree of close relationship regulates the existence of marriage prohibitions. Marriages between brothers, sisters, and first cousins are, according to my informants, therefore strictly forbidden. The informants suggested that the use of the same term for brothers and cousins indicated the fact that first cousin marriages were prohibited. Speck (1930: 421 ff.), however, maintains that at least among the Mistassini "marriage of first cousin, of uncle and niece" are still to be found. Be this as it may, with the Lake St. John Band, the rules concerning marriage prohibitions are now regulated by the principles of the Catholic Church; while the Mistassini take their code of conduct in this respect from the English High Church. As a consequence, straightforward answers to the questions of marriage prohibitions between uncle and niece, sister of the deceased wife and brother of the deceased husband, with the possibility of deriving from them a clear picture of the original Indian regulations in such cases, could hardly be obtained. It is certain, however, that mental diseases and the lack of sexual maturity were regarded as obstacles to marriage.

The case of the Indian Camatuet shows clearly how strongly the community feels and acts in cases where the ancient, sanctioned marriage rules are violated. Camatuet dared to take his own sister for a wife. Consequently, he was threatened with expulsion by the "Timmiskimay" Indians. In his Mistassini Report of 1828–1829, Richard Hardisty reported:

The Indian Camatuet has also a wish to leave Timmiskimay and come to this post. . . . I have however since been informed by Nosipatan that Camatuet's principal motive for not wishing to go to Timmiskimay is his dislike of the Timmiskimay Indians, believing them to be his decided enemies. This appears very feasible to me—as I know a report was current last summer at Timmiskimay that Camatuet was keeping his sister as a wife—in consequence of which the Timmiskimay Indians would not associate with him. The report originated with Catspitsiway (his uncle) with whom he passed part of the winter of 1827–28, but in justice to the young man I must say that I never believed the report—and consequently consider it to have been grossly calumniated.

In the meantime, however, Hardisty evidently convinced himself of the truthfulness of the report, since a few pages later he continued:

I mentioned on a former part of my report a rumour being current last summer at Timmiskimay that Camatuet and his sister were living together as man and wife. I did not believe it at the time—but it has turned out to be true enough—as his sister was during the winter delivered of a child by him.

COURTSHIP AND ENGAGEMENT

(*Shashi chikanipoinanu:* "We are going to get married")

First of all, the young man wants to find out whether or not the girl of his choice returns his feelings. By offering her some gift he tries to show his affection to the girl he likes and intends to marry. If they are in the woods during the time of his courtship he will not try to speak to the girl in order to find out whether she returns his feelings nor will he ask her whether or not she loves him. There are other ways to make sure. He may pick up a small stick, about two or three inches long, and throw it in the direction where the girl happens to stand. If she does not pay attention to the stick falling down at her side, he will throw another stick at her, or a piece of a branch. If she should pick it up and throw it back to him she shows him that she cares. For several days, they play this game, without talking about their feelings in any way. Knowing that his love is returned, the young man will wait in most cases until the next summer season, in order to be able to buy some gifts for her. These presents may be a shawl, a handkerchief, material for a dress or a ring which, in former times, he himself manufactured out of lead. On the summer place he does not again take the trouble to go through the preliminaries of stick throwing but rather gets her some gifts without delay. In showering her with these attentions, he does not mention his marital intentions at all, since the girl understands him without words. If she is willing to marry him, she simply accepts his presents; if not, she will return them. If her mother notices the gifts and asks the

girl who gave them to her she knows the name of the man who intends to marry her daughter. In some cases, she will try to dissuade her from the idea of marrying that particular suitor and may even call in the father for her assistance.

The initiative to bring about an engagement and a future marriage may originate as well with the girl as with the young man. It happens that a young girl who would like to marry a certain young man takes the first step. She may inform her mother of her wish, and the mother consequently pays a visit to the mother of the young man in question or otherwise seeks to arrange the matter. Not infrequently, a girl wishing to marry a certain young man and finding obstacles in her way, stages a regular scene with shouting and crying even in public when everything has not gone all right on her path towards securing the desired husband.

If, however, the girl sincerely loves a man who loves her and to whom her parents persistently object, she will marry him nevertheless. According to my informants, it even happened in the Lake St. John Band that such a young couple eloped to the woods, equipped only with a canoe, a gun, and a few provisions, in order to force their parents' consent to their marriage. The parents then gave in and invited them to return.

According to my informants, the ring of lead plays an important role among the engagement gifts; it is, so to speak, a token of the promise to marry and must be returned if one of the partners wishes to dissolve the engagement. This means that the girl gives it back to indicate the break and the boy can demand it back on his break. The informants reported that he usually gets it back without difficulties because this ring is not studded with diamonds but is, from the monetary point of view, rather worthless. Whether the giving of an engagement ring is a relatively late adopted custom or was also practiced in the olden times could not be determined with certainty.

For a girl, the usual engagement age lies between her sixteenth and twentieth year. The young man is usually somewhat older. If one of the two is too young for marriage, the parents may object until a more mature age has been reached.

The custom of fully avoiding each other during the time of engagement does not exist among these tribes. But the two fiancés hardly speak to each other at all, even in the presence of third persons, and the families concerned keep a strict watch to prevent any possible premarital sexual intercourse.

A return of the engagement presents can occur at any time; it means an annulment of the engagement itself. The parents have no right to force their daughter into marriage, even if she is already engaged. If she wishes to return the engagement presents, they cannot interfere; yet they may try to change her mind by means of persuasion.

There are no age privileges among the children of a family as to priority and the like in regard to engagement and marriage.

MARRIAGE FORMS

Marriages with a time limitation, fictitious marriages (i.e., marriage to a plant or an inanimate object), or marriage by purchase or capture, are unknown. Monogamy is the rule, even if cases of polygamy did occur in the olden times. In the Mistassini Report of 1823 four Indians who had two wives each are mentioned by name. They were Cawasawesu, Nosipatan, Ootahiow, and Paishabbanawiscam. The Mistassini Report of 1827–1828 lists Nosipatan and his brother Cawosawisit as being married to two wives each. Informant Joe Kak'wa remembered two cases of polygamy:

(1) A Tête-de-Boule man by the name of *Washish* ("The Young," "The Child") lived around the year 1860. At a later date, I personally met him in the woods. This man had four wives at the same time, and he had children by all of them. They all lived together as one happy family. They occupied one tent in whose center he slept with two wives at his right and two wives at his left side. In the evening he was known to go to sleep at one side, to rise in the morning at the other.

(2) About the year 1850, a Waswanipi man, *Wa'pachioo* ("Walking-the-Same-Time-as-the-Daylight" or "Early Riser") had two wives. A missionary who had heard about this family condition asked him whether he had two wives. Wa'pachioo answered: "No." The missionary insisted: "But how is this? You are staying with two women. You must have two wives!" The man answered: "No. I certainly don't have two wives, because we are not sleeping under one blanket. Each of them has her own blanket.

Polyandry seems to have been known among the Indians of the Lake St. John Band. Kak'wa reported that his grandfather told him of a case which occurred around 1840 when a woman had two brothers for husbands.

DOWRY

It is not customary to furnish the girl with a dowry, and the bride has no obligation to prepare anything for the married life ahead. Even if her parents are comparatively wealthy, the only property she brings with her are a few dresses and some other wearing apparel. It is the bridegroom's task to take care of the household furnishings. He has to provide pans, kettles, etc. In any case, the father of the bride has no obligation whatsoever to give his daughter any kind of a dowry. It is definitely the future husband's duty to provide all necessary implements for the future household.

CONTRACTING MARRIAGE

(*nipoĭn*)

If a young man has given his ring to his prospective bride (*nipo tapetuchepishun:* "marriage ring" he talks to his parents. It is up to them now to contact the family of the girl. Since the bride-to-be belongs to the female sex, the person closest to her is her own

mother. Consequently, the young man's mother pays a visit to the mother of the girl. If she enters the tent of the girl's family and finds only the father present, she will ask for his wife and will wait until she returns home. Some few cases have been mentioned in which the father of the husband-to-be visits the mother of the girl. However, as a rule the woman goes to the woman.

A different situation arises if the girl herself has the notion that it would be time to discuss the possibility of a marriage. Should she ask her parents to get in touch with her fiancé, it is proper for her father to contact the father of the young man as the person next to his future son-in-law. Even though exceptions to this rule may occur, the custom is as described above.

The Mistassini Indians, known for their more conservative attitude, keep these rules with special care. With them it is, according to the informants, absolutely necessary that the parents of both partners give their consent to the marriage, while with the Lake St. John Band marriage is taken somewhat more lightly and may take place even if the parents do not agree. There is no praise of the children's special qualities on the part of the families concerned.

The summer time is preferred as the most desirable period for any marriage, because then the whole tribe is gathered at the assembly place. Monday and Tuesday are favorite weekdays for the wedding because they mark the beginning of the week.

When an agreement has been reached, the young man's mother leaves the tent of the new in-laws to announce to her son the date set for the marriage. It is not customary for the fiancé to pay a formal visit to his future parents-in-law. He merely takes note of the date, occasionally exchanges a few words with his prospective bride, and both carry on as usual. Invitations for the marriage feast (*nipo makoshán*) are sent out by both parents to the friends of the engaged couple and their families.

The father of the young man is supposed to give him an outfit consisting of a tent, a gun, ammunition, food supplies for the winter, a canoe, traps, clothes, and the necessary household furnishings. Shortly before the marriage ceremony takes place the bridegroom puts up his own tent and makes everything ready for the new home. The tent is fixed as nicely as possible and looks more attractive than on ordinary days. Its floor is covered with fresh cedar or balsam branches.

WEDDING DAY

(*nékashekach kanipoïn*)

Only the day before the actual wedding is the hour of the ceremony set. The usual time is eight o'clock in the morning, yet it sometimes happens that a marriage ceremony takes place at three or four o'clock in the afternoon. Bride and bridegroom, their parents and their friends dress up as fancily as they possibly can, even if they usually will only be able to attach a few special trimmings to their ordinary, everyday clothes. If there is a church at the gathering place, the couple will have a church wedding just like white people. Bride and bridegroom are the first to enter the church for the ceremony; followed by two witnesses —not their parents—usually a man and a woman. There are no flowers at an Indian wedding.

If the nearest church is too far away, but a priest is present at the summer camp, the ceremony takes place in the rooms of the Hudson's Bay Company Post. There is no special decoration used to beautify the room.

If neither church nor priest is at hand, the manager of the Hudson's Bay Company is authorized to marry the young couple in the presence of two witnesses. Such a union may be sanctioned by a minister or a priest at a later date when the benediction of the church may be bestowed upon the newly-weds. But even without the blessings of a priest they are legally married after the ceremony in the rooms of the Hudson's Bay Company house.

However, a marriage may be recognized as legal by public opinion, even if neither priest nor manager have performed the wedding ceremony. Such a case was reported by informant Joe Kak'wa:

> It happened in 1876, when I was six years old. There was a young couple who kept close company in the woods. Their relationship was such that the old people decided that they should stay together for good. They just said to them: "You may now stay together," and then they waited until the next summer when the minister came around to marry them. Yet, in the eyes of the tribe they were already married in the woods through the agreement and advice of the old men. The name of the young man was Jacob; his wife was called Maggie. They were Mistassini Indians. That is a Protestant tribe.

After the wedding ceremony the young people, leaving the church or the Hudson's Bay Company house, go around to shake hands with everybody. Now, they kiss each other in the presence of all the guests. The bridegroom might have bought a box of candies in advance which he now offers to the guests. They then return to the camping place where a house—if there is a wooden house—or an open place has been prepared for the dance in which the whole gathering takes part. They formerly danced to the rhythm of drums which in modern times have been replaced by a violin. If it is a small band, all members are invited; if the band is too numerous, only the closest friends of both families attend the party which begins with an elaborate meal, prepared by both parents and some women helpers. Dry meat and especially large quantities of bread are considered a meal which will bring good luck to the young couple. The dance follows the meal. The first steps are made by the newly-weds; but soon everybody else joins in, even the old people. In the olden times they danced exclusively in the traditional Indian way, and even nowadays the Indian dances are preferred, especially if the dance is held in the open. Then, the

Indians dance around an open fire, and the whole party participates—from the grandma to the smallest toddler. Forming one line, they dance around the lighted wood pile. This dance does not have any magic significance. If a house is used for the wedding party, some white man's steps might be introduced by the younger members of the party. The guests keep on dancing until daylight. Shortly after midnight, bride and bridegroom say good-bye to their friends and quietly steal away to their own tent.

MARITAL LIFE

Every young married couple have their own tent. They never live or sleep in the tent of their father or father-in-law. As a rule, the son does not join the family of his father-in-law but rather remains close to his own father, since it is his hunting-ground on which he is privileged to seek his livelihood. If there are not enough traps in the family, or if there is a lack of any other supplies or materials, the father-in-law may lend a helping hand. It is a definite fact that the wife follows the husband. This means that this aspect of the social order is that of a father-right society and not of a society ruled by mother-right, notwithstanding the fact that the established norm can be and is broken; for instance then when a widow with a hunting-ground of her own remarries, whereupon her new husband may hunt on his wife's hunting-ground. Other exceptions to the rule are the cases mentioned in chapter III; especially the case of Nosipatan's son-in-law who hunted on the hunting-ground of his father-in-law. It seems important to point this out, since it is claimed occasionally that the newly-weds have a right to hunt on the hunting-ground of the husband's father-in-law and that, therefore, the husband follows the wife. Although it may happen that a son-in-law is invited by his father-in-law to hunt on his own hunting-ground, this is not the rule and does not create a family obligation or a social obligation which could be enforced, for instance, by public opinion. Such exceptions may depend upon exclusively private or personal reasons which have nothing to do with the fact that the son-in-law has no right to hunt on his father-in-law's hunting-ground. This legal condition is well illustrated by W. M. Kay's Mistassini Report of the year 1837–1838 in which he stated:

> *Causchemassue,* second son to *Cauosawisit,* a very good hunter, but did not hunt so much this year as he did last, owing to his being with Saiko who is his father-in-law and could take no beaver house, except what the old man pleased to allow him to take.

As a guest on his father-in-law's hunting-ground, the son-in-law is absolutely dependent upon the good-will of his wife's father who can even restrict for him the species and number of animals he is allowed to hunt.

Also in the next reported case it is clearly evident that the father-in-law's hunting-ground was unfamiliar to the son-in-law. For some personal reasons he was invited to hunt for a while on his father-in-law's hunting-ground; but it seems that the young man did not accept joyously since he knew that the result of his hunt would not be too successful. In his Mistassini Report of 1829–1830 Richard Hardisty stated:

> *Etapeo.* Son-in-law of *Achappy* and son of the Ruperts House Indian Artawayham. A very industrious young man. He hunted upon his father-in-law's lands during the winter which being strange lands to him he hunted very little, only having brought 33 MBr of furs, principally beaver and Martins—being 38 MBr less than he brought last year.

In the case of Wechemaugan, son-in-law of Nosipatan, there seems to have been a close friendship between the young man and his father-in-law, strengthened possibly by the early death of Nosipatan's own sons, since the Mistassini Reports contain frequent references to the fact that Wechemaugan "resides always with him" (Nosipatan).

DAILY MEALS

The daily meals are jointly taken by husband and wife. If, with the years, children add to the size of the family, they, too, eat together with their parents. As a rule, the family eats alone and not with their relatives who may hunt on the same hunting-ground. Each family member uses his or her own individual plate during the whole year, distinguished from the others by size and shape. If he would use the plate of some other family member, illness would befall him.

Food taboos (*kāuin miche:* "forbidden to eat") are rather numerous among the Naskapi. We may distinguish between food taboos for the whole band, for sex groups, for age groups, and individual food taboos and we may add even food taboos for the dogs. The Indians of the Lake St. John Band, for instance, do not eat any kind of salt water fish. They touch deer meat only in times of emergency and their feeling against any meat of domesticated animals is very strong. An example of food taboo for a sex group is the prohibition of women to eat certain parts of all animals, especially the meat next to the leg-bone. This holds true particularly in the case of the bear whose leg meat must under no circumstances be eaten by women. The reason for this taboo is the belief that after eating this meat no woman would ever be able to walk normally again, since her legs would be paralyzed by rheumatism. It is equally dangerous for women to eat the head of the loon. If a wife would touch it nevertheless, it would be impossible for her husband ever to shoot a loon again and he never could be lucky at any future loon hunt. Since the loon who frequently dives under the ice and lets its head pop up over the surface only for an instant, it takes much skill to shoot him.

Children of both sexes are bound to observe certain food taboos. They are not allowed to eat the meat next to the bones of the forelegs—especially the right one—

of any animal. If they disregard this rule, misfortune will come to them during their later years. For the girls this would mean that they would remain unmarried or childless; while the boys would never have any hunting luck. In addition to these children's taboos, girls are also submitted to the restrictions customary for all women.

As soon as the children have reached the age of maturity, these children's food taboos fall into disuse. An individual food taboo may be either temporary or permanent. If, for instance, a man dreams that he should not eat a certain type of meat during a certain period of time, he will act accordingly. On the other hand, taboo may be permanent. Only the hunter himself and nobody else is, for instance, entitled to eat the heart of a killed bear. Especially strong is this taboo for the hunter's wife. Should she ever try its taste, she would die from a severe heart ailment. If we finally use with some reserve the term "food taboo" for the dogs we may say that, for example, caribou and bear bones are never given to the dogs, although the dogs themselves would not keep the taboo if they could help it.

A secret women's language does not exist. Certain differences of dialect are maintained in married life. However, they are so small that husband and wife understand each other without any difficulty.

The custom of *couvade*—a fictitious childbed undergone by the husband—is not known.

RIGHTS OF HUSBAND, WIFE, AND CHILDREN[1]

As a rule, a man marries a younger girl or a young woman of equal age. Yet it may happen that a mature widow, twenty years or more her husband's senior, is chosen for a wife because she is the owner of a good hunting-ground. On the other hand, older men frequently marry very young girls, especially among the Mistassini. The relationship between husband and wife is thoroughly harmonious. If the wife is sick, her husband helps with the household duties and takes care of the children. Contrary to certain West African tribes which give absolute rights to the husband and father, the husband's rights over his wife are relatively restricted. It never occurs, for instance, that she might be encouraged to prostitution. Furthermore, it is not customary for her to work for others in order to receive money. If, however, a father has numerous children, he can send his sons or daughters to relatives or to other families to work for the purpose of saving the expenses of their support. Such contracts are concluded only orally and without other formalities. The girl or boy joins the outside family for the duration of the hunting season to help there with the current work. For this, they receive occasional gifts of clothing and shoes and, on returning to the summer place, even some cash. The parents of those young breadwinners have, according to my informants, no legal claim upon such earnings, but as a rule the child will voluntarily give them a share of them. A boy likes to invest his money in a canoe, a gun, a tent, or a similar object of value, while girls may buy clothes or save the money for themselves.

Generally, it is the mother's duty to take care of the smaller children of both sexes. When they grow up the father occupies himself more and more with his sons, while the mother gives special attention to the girls. By the age of ten to thirteen, a boy assists his father with the hunt and often replaces a full-grown man. If the father can afford it, he equips his young boy with a gun of his own, occasionally permitting him to undertake his own independent hunting trips. At that age any healthy Indian boy is already able to handle a canoe without help; he knows how to set the traps properly; he is familiar with the tracks of the various game animals and he has today received enough instruction to express his language in writing so that it may be understood by other members of the tribe and even by the white man. This latter feature is the more striking as it was the white man himself who first transcribed the sounds of the Montagnais language into written characters. However, the Indian children learn this script neither from the missionary nor from any other white man, since in school they are merely taught French or English. It is their own intellectual tradition which transmits the putting of their own language into writing.[2]

Any Indian father is eager to have a numerous family, since the more children he has, the more helpers will contribute toward the support of the family. For this reason he prefers sons to daughters. This does not mean that his daughters are treated with less attention or that he would regret the birth of a girl. All daughters receive the same care as the sons and are in no way less privileged.

When a girl reaches the age of ten to fifteen years, her mother introduces her to the typical feminine duties of her tribe. However, the mother's authority is always surpassed by the father's. It is he who is first served during meals; it is he who receives the best pieces of meat. Only after he is satisfied, does the mother get her share and, after her, their children. The father of the family always ranks first before his wife. This fact may be illustrated by one of the author's own experiences. During a canoe trip on Lake St. John, undertaken by the author and his wife with a Mistassini Indian as boat man, a pillow was offered to the male guest in order to make his seat more comfortable and he was courteously ushered to the place where it was placed for him, while the idea of offering this luxury to a woman—in this case, a white woman—did not even occur to the otherwise most chivalrous tribesman.

[1] Some property and inheritance rights are discussed under the above topic if they belong in substance more under the heading of "Family Law."

[2] Compare also "Capacity," p. 413.

If there is not enough space within the family tent and if the children are too numerous, the parents eat first and the children later. The older children rank above the younger ones, who have to obey their orders and follow their suggestions. The oldest daughter and the oldest son have the privilege of assigning special tasks to the younger members of the brood.

The most privileged place in the tent is the one farthest removed from the entrance. It is offered to the guest of honor or to the foreigner. The bottom of the tent is, during the winter, thickly covered with skins and blankets. The fire is allowed to die down during the night. The sleeping order is such that the mother and the baby (if there is one) occupy the best place in the rear. Next to them are the father and the sons in one row from the back of the tent toward its entrance, with a special place for the daughters to the mother's right.

If a second family resides within the same tent, both families line up in parallel fashion with the daughters by the rear wall, the mothers next to them, then the fathers and, closest to the tent opening, the sons.

Old men and women are treated with special respect and with higher esteem than the younger members of the family. All parents are extremely proud of their offspring. Punishment of children is hardly ever applied, the most extreme penalty being a light slap. Deprivation of food is never used in order to discipline a child. Lying, on the part of a child, is considered detestable.

A married woman may possess property of her own. During the absence of her husband she has the power to dispose of her husband's properties within certain limits. She may, for instance, lend, but not sell, a canoe, a trap, or a gun without having previously secured her husband's consent in each case. Such lending is binding, even if the husband should later protest against it. He cannot insist upon an immediate return of the article. This is different, however, if the husband is present at the time of the lending. Then, he is the one who alone can dispose of his property, and his wife will refer the prospective borrower to him. As a rule, all such deals are made without any compensation.

Women have the right to inherit. Having no political rights they cannot participate in the election of a chief. If the husband dies while the children are still very young, the wife alone inherits all his possessions. If the widow, too, should die, the eldest son alone inherits her property, provided that he is already capable of taking care of the rest of the family, since it is his duty to provide for the younger children. However, he may turn over his mother's clothes to the elder sisters. If the wife dies before her husband, he alone inherits everything and the children nothing. If the oldest son is still too young at the time of his parents' death, his older sister is the one who administers the family property. But she is considered merely a tenant for a limited time who has to turn over the inheritance at the time when her brother has grown up and can, as a man, provide for the family. In no case can such a pre-inheritress, according to my informants, consider the family inheritance as a dowry in case of her marriage, because it is definitely her brother's property.

If a husband should neglect his wife, which may be evidenced by non-provision of clothes or food or by other ill-treatment, the relatives may take it upon themselves to intervene. However, in cases of marital trouble the wife may also bring her grievances before the chief. This happens only at very rare occasions, since no Indian likes to call on the chieftain in order to straighten out whatever disturbances have arisen within his own family circle. If the chief is asked to intervene he will advise the man to take proper care of his wife. Usually, the husband will follow the chieftain's advice. If he does not, the chief may punish him—as a rule this punishment will consist in tying the offender to a tree. The offender has to promise that from now on he will take proper care of his wife. If he should refuse the chief can threaten him with stronger measures.

The institution of foster-parenthood is known. The foster-child has the same rights as the family's own children yet he may inherit from his natural parents as well as from his foster-parents.

It may, of course, also in Indian society happen that some henpecked husbands are among the members of the band. A woman who treats her husband with pronounced lust for power is called *chikamohao alakapashakĕn* ("she wears the pants"). There is no special term known to characterize the henpecked husband himself.

The number of bachelors within the tribe is very small. They are termed *telnius ustsinichish* ("The Old Young Men").

DISSOLUTION OF MARRIAGE

(*chinakateko uteshkwêm:* "his wife left him"; *chinakateko unapem:* "her husband left her")

The information available to me concerning the whole complex of this topic is rather scanty. Cases especially from the olden times where the procedure of divorce, the reasons for a dissolution of marriage and possible cases of remarriage of divorcés could be studied in detail were unavailable. The general opinion of the informants, however, was that desertion of one partner was equal to a dissolution of the marriage and that without any formal procedure public opinion looked upon a separation as upon a legally valid divorce. The right of separation is not vested in the husband alone; the wife, too, has a right to leave her husband. However, my informations seem to indicate that in the case of a wife leaving her husband the community reaction to her conduct is much more critical than in the reverse case. If, for instance, after a struggle with her husband a wife returns to her parents, the latter will insist upon a plausible explanation; because for such a separation

which by no means is looked upon favorably there must be a proper reason. Especially if the couple has children a separation is considered a rather extreme step and as a rule a wife will leave her husband to return to her parents only if she is afraid that her husband might kill her. As reasons for a separation my informants mentioned: adultery; infertility; disobedience and non-attendance to the husband's work; impotence of the husband. If a husband has left his wife, he does not support her any longer. He does not even provide food for her any longer, forcing her thereby to return either to her parents or to some friends who might be willing to help her. In such cases, the husband remains in his tent and, by withholding from her all food and other necessities of life, he forces her out of his tent and his life. There are other cases on record, when the man simply left the mutual tent to vanish somewhere into the woods.

The informants moreover emphasized that the influence of the church did not change much public opinion concerning the dissolution of marriages and that the old rules were still looked upon as valid even by the Roman Catholic Lake St. John Band. My question, "How about remarriage?" in the apparent conflict between church law and the old Indian custom, however, remained unanswered.

From recent times the following cases of separation have been told by Joe Kak'wa:

(1) Around the year 1910 there lived a couple: Louis Chachsheeow, about forty years old, and his wife, Arthemise, née Napany, who was about twenty-five. It so happened that this woman did not like her husband. Once in the spring the man came down to the summer place, but she did not accompany him since she preferred to stay in the woods with another family. When he returned to the woods in the fall, she still lived together with the other family. But since she had a husband able to provide for her, the other family did not like to feed her. Two days after he had returned to his hunting-ground the husband was busy repairing one of his canoes. Suddenly his wife came out of the woods in order to rejoin him and to stay with him again. The only thing he said at the sight of her was: "How is this that you left me and now want to stay with me in my own canoe?" But she answered nothing and just went along with him to stay with him again.

(2) In 1934, Louis Larouche left his wife Vitaline Siméon—both were members of the Lake St. John Band. Louis had the nickname "Piton." [3] They had four or five children, among them daughters between eighteen and twenty. Leaving his family, Louis took with him merely an old tent which he set up in the bush near his sister's dwelling. There he went to eat from time to time. His children remained with their mother. He was in no way obliged to support his separated wife or his children. Neither the chieftain nor the Canadian Government interfere in such cases. There is not even punishment, since the white man's prison appears to a poor Indian like a palace, compared with his own pitiful housing conditions. In prison he can enjoy his own bed and regular meals.

During his stay with the Indians the author himself was able to observe the following case of separation:

Joseph Raphaél and his wife, Adrienne Guy, both members of the Lake St. John Band, were married three to four years when the woman gave birth to a child. Her husband, for some reason, did not believe himself to be the father. After the birth he treated his wife so badly that she left him to return to her parents. Since April, 1935, she had lived separated from him. The tribe did not interfere with the marital problems of this separated couple but rather let them work out their conflicts for themselves.

In this case, too, the author was assured that after a separation there exists no obligation on the part of either husband or wife to take care of the other.

Neither of the two ex-spouses has the right or the power to bring back by force his or her former marriage-partner.

Upon separation, the husband takes along his property. However, he may leave without taking along anything. As a rule, the children, even grown-ups, remain with their mother. Should the wife leave the husband she may take along her children, whom the husband has no right to reclaim.

[3] Originally the name for some kind of hook and, formerly, for a coin. Today, this name is used as a diminutive with a slightly disdainful implication, similar to the French: *"un petit rien."*

DESCRIPTION OF JOE KAK'WA'S HEADDRESS AND COAT (fig. 10)

The chief's headdress was about seven inches high and eight inches wide. Its round headpiece was made of greyish-brown loon feathers flecked with white dots. "The loon," said Joe himself, "is known for its art of diving under the ice. It is unable to walk on its own feet." This round, closed, loon-feather cap was held together by a headband of red cloth going up into a high rounded peak above the face and was lavishly embroidered with colored glass beads. Eight eagle feathers of the same greyish-brown shade as the loon feathers were thrust symmetrically into this strip of cloth, giving the headgear the appearance of a crown. Thick black cotton cords, about twelve inches long, hung from both side-parts of the headdress as a substitute for the long hair the Indians used to have. The back of the crown was trimmed with a cockade of tri-colored silk ribbon to which three silk ribbon streamers of the same colors (dark blue, dark red and light blue) were attached. The red cloth edging was held in place by an inner strip of sturdy black material, while its outer edges were outlined by a white binding. The bead embroidery was arranged in a symmetrical pattern of blue and pink beads, surmounted by a huge green maple leaf, also skillfully embroidered with beads. In olden times three rows of white beads substituted for the maple leaf. Inside the headdress there was a sturdy yellow material lining.

This headdress—a really amazing work of art—was made by Kak'wa's wife and decorated by Mrs. Tommy Moar, famed for her bead work.

The short chieftain's coat was made of especially heavy moose skin, trimmed with leather fringe and a magnificent display of multicolored beadwork. The light brown of the coat made an excellent background for the rainbow-colored beaded patterns—designed with extraordinarily good taste—of pink, red, blue-green, white, mossgreen, light green, vermilion red, yellow, medium blue, light blue. Cuffs, pockets and gartering as well as the broad collar were also lavishly decorated with this type of embroidery.

FIG. 10. The Chief. Joe Kak'wa in chieftain's garb.

Courtesy of Tommy Moar

FIG. 11. Naskapi boy with the first bear he killed.

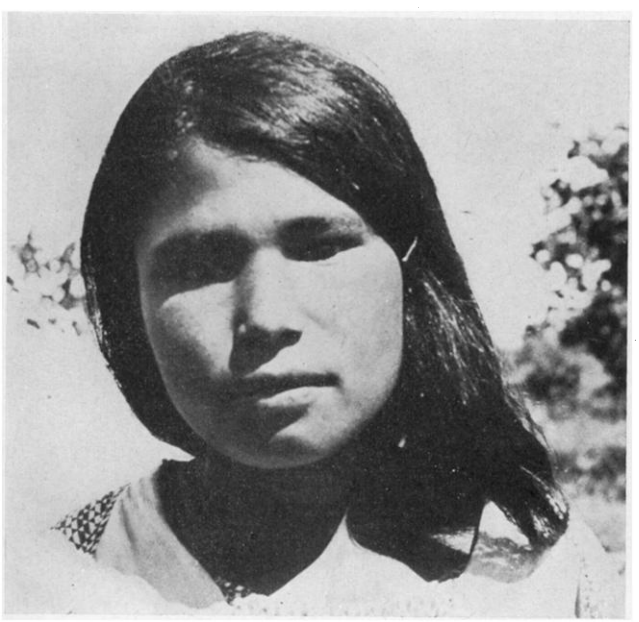


FIG. 12. Coming of age (Estelle Varault).

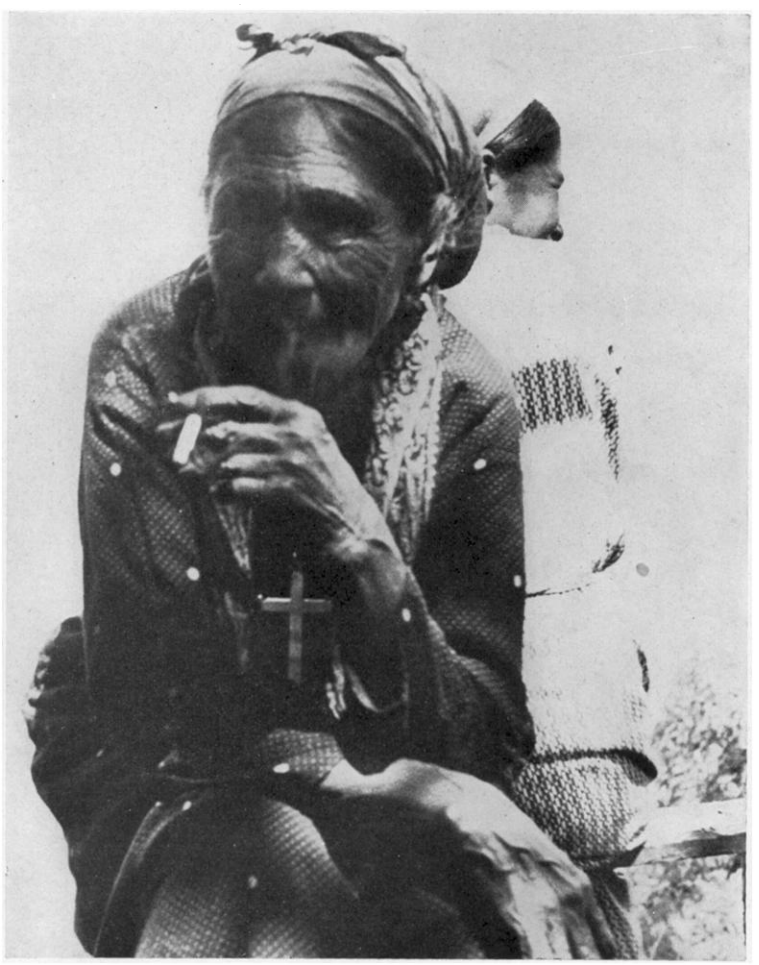
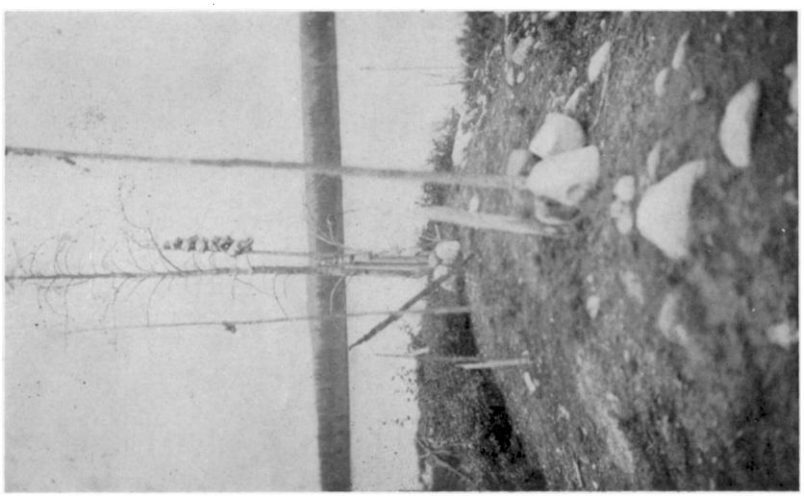


FIG. 13. Old Naskapi woman (Clarisse Conelly, nee Calish).



Courtesy of Joe Kak'wa

FIG. 16, Grave of the shaman, George Meta'bi, who died around 1865. Situated two hundred miles from Lake St. John on the path to Lake Mistassini. The small pole carried bear skulls, the larger pole a duck skull with tobacco packs wrapped in birch bark. All Indians passing this grave leave matches and some tobacco. Neglect of doing this would bring "hunting misfortune whenever hunting bears or ducks."

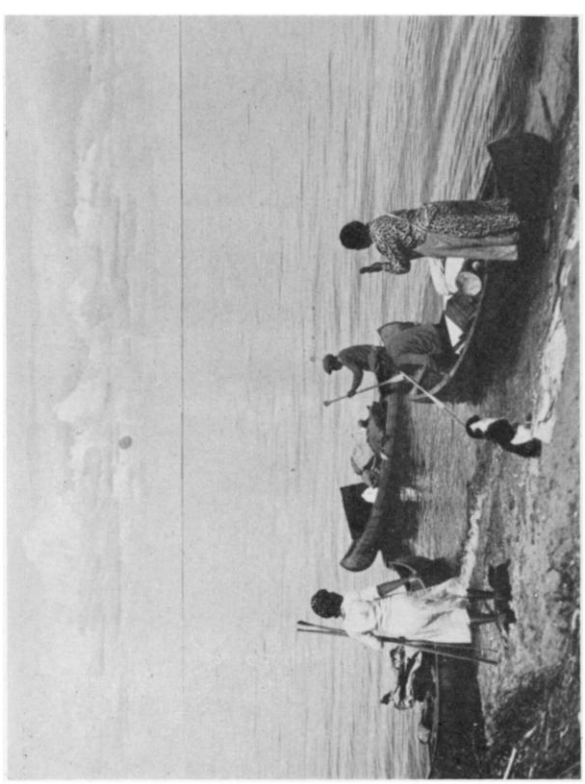


FIG. 14. Returning to the hunting-grounds (the Manigouche family).

FIG. 15. Model of a spirit house, demonstrated by Joe Kak'wa.

WIDOW AND WIDOWER

(*kapeikushit ishkwao:* "a woman by herself"—the same term applies to a spinster; a widower is *kapeikushit napéo:* "a man by himself"—the same term applies to a bachelor)

After the death of her husband, a widow usually does not return to her parents, especially not if she can provide for herself. If she has grown-up children, especially sons, she will carry on her life as before and the family will find their subsistence by hunting and fishing. If the widow has only small children or just one unmarried daughter, she will not be able to provide for herself and will, therefore, not remain on the hunting-ground but rather leave it in order to join the family of some relatives. In this case, the widow's brother inherits the hunting-ground of the deceased brother-in-law; according to some informants permanently, to others only temporarily to give it back if his sister remarries or her young son has grown up. As "the nearest male relation" the widow's brother inherits it even if her husband has been survived by a brother. After her husband's death, a widow with one daughter usually joins her own brother, even if he is married and has a family of his own.

It is proper for any widow (but not legally necessary) to wait at least one year before getting remarried. Often, the younger brother of the deceased marries the widow. As her new husband he has, however, no right to exclude any possible step-sons from their father's hunting-ground. On the contrary, he joins them to hunt together with them.

A widower, too, has to wait one year until he may remarry. As a rule, he will not prefer to marry a very young girl, since this would mean the raising of another family. He will rather choose a good middle-aged houseworker experienced in women's handicraft, who will help him to keep his home and belongings in proper shape. Occasionally, he may marry one of his sisters-in-law. He often prefers a widow to other women. If, in such a case, two hunting-grounds become the property of the couple—the widow's and the widower's—the husband will frequently take his new wife to his own original hunting-ground, leaving her hunting-ground unused. An exception would be made if the widow's hunting-ground should be more profitable. If the wife has grown-up sons from her first marriage, they are entitled to hunt on their deceased father's hunting-ground. If there are no children or only small ones, other relatives of the widow may in this case obtain her permission to hunt on her dead husband's hunting-ground. So long as no one hunts on a widow's hunting-ground, the chieftain may, without asking her permission, authorize another family to hunt there—even against her will.

VI. PROPERTY AND INHERITANCE

PROPERTY RIGHTS

The abstract terms "property"; "possession"; "ownership" are not known in Montagnais. To circumscribe these nouns, either the verb "to own" is used or other terms are applied to indicate the concept of property. For instance: *nilomä* (this is mine); *wilnälo* (this is his); *ne mashinahamuáo* ("I owe him"; creditor); *ne mashinahamákŭ* ("he owes me"; debtor).

In the reservation where some of the Indians own a wooden house, the owner expresses this fact with the words: *nil ntepeltem omä mistuk michuap* ("This wooden house belongs to me"). His rights in a hunting-ground a man describes in such terms as: *nilntas'chi* (my ground), or he uses the narrative *ntas'chinan;* or the more emphatic *chitas'chinoo* (our ground) is resorted to, for example, to warn against trespassing.

LAND TENURE AND THE LEGAL STATUS OF THE HUNTING-GROUND

The gathering and assembly place frequented during the summer belongs to the band rather than to its individual members. At Pointe Bleue, for instance, it is claimed by the Lake St. John Band. Whenever Mistassini Indians come to Lake St. John they are allowed to camp at Pointe Bleue but are always regarded as guests. Before these visitors began to frequent Lake St. John for trading purposes they remained on their own camping place, the area near the south shore of Lake Mistassini owned by the Mistassini Band. Whenever Indian families come to the camping ground belonging to their own local group a space for the erection of their tent is assigned to them. As a rule, moreover, the family returns to the same spot year after year. It is even, so to speak, bequeathed from father to son and the son pitches his tent exactly where his parents' tent used to stand.

The band's hunting lands are divided into family hunting-grounds and can be further subdivided if a family is large and its various members hunt separately. Sometimes, as when the rest of the family have died, a hunting-ground may belong in its entirety to the one surviving member. With the Lake St. John and Mistassini Bands the size of a family hunting-ground varies between a hundred and five hundred square miles and, quite surprisingly to us, the families with smaller hunting-grounds feel no jealousy toward others whose territory is larger. The farther north one goes into the interior of the peninsula the larger are the hunting-grounds, especially those near the boundaries of the respective bands. But artificial border markings separating family hunting-grounds are unknown since landmarks like rivers, lakes, hills, and trees are used as natural border lines. The area of a family hunting-ground is, however, clearly defined in the minds of its proprietors and the neighboring family groups.

The contents of the rights connected with the owner-

ship of a certain family hunting-ground are manifested in the privileges to hunt and trap permanently on this tract of land for the purpose of providing a livelihood. The rights of selling all or part of the hunting territory or involving it in other transactions of partial alienation reserved in our society for a legal proprietor, are not implied. Nor has the "owner" of a hunting-ground the right to cut down trees in order to sell the lumber. He may, however, use as much cedar wood as he needs for tools, just as he is permitted to take all the birch bark necessary for building canoes and for the manufacture of containers. We must not be misled by this definition of hunting rights to assume the existence of a family or individual property, a land tenure in the sense of this term under either Roman Law or English Common Law.[1] Rather we are dealing here with a kind of usufruct similar to that of the Roman Law. There is the difference, however, that the Roman usufruct at best was restricted to the lifetime of the usufructuary, while among the Naskapi hunting rights are inheritable, even without the necessity of first securing the consent of the band, and cease only with the extinction of a family. If we insist on applying the idea "general property" to land occupied under hunting-ground rights, the unqualified term would be appropriate only with reference to the rights of the entire band and then only with aspects unfamiliar to our law.

There are numerous indications that the division of a band's territory into family hunting-grounds, though an old institution, is not an age-old one and that originally the band as a whole was the proprietor of the hunting-ground as a whole. Possibly, it was economic pressure which led to the division of the band's territory into family hunting-grounds.

Thus the Indians' chief prey consists today of various precious fur-bearing animals for which the white man introduced a steady market with strong pressure toward steady dependence thereon. These animals are hunted most successfully by individual families scattered all over the tribal territory. On the other hand, in the regions of the northern bands south of the Ungava district where caribou herds abound, the institution of separate family hunting-grounds would be inappropriate and the entire band, therefore, assembles for a joint hunt of the caribou. But the two practices of tribal hunt and family hunt may exist side by side or even at times alternately.

An excellent example of this was related by Frank Speck.[2] In the St. Augustin Band's territory which consists partly of forest and partly of tundra, hunting is organized according to the species of animal hunted either in family groups or as a joint affair of the entire local group governed by conditions of animal abundance and migratory movements. A similar arrangement, by the way, exists among the Central Eskimo where during the summer the families scatter over a wide territory, hunting by themselves, whereas during the winter the whole group hunts together (Boas, 1888: 461).

The individual Indian does not consider himself the "owner" (in our sense) of his hunting-ground. I have already pointed out [3] that he rather looks upon himself as merely a servant to the real overlord of his hunting-ground, the chief of the game animals. Another point may be added which is not favorable to an accumulation or a creation of proprietorship: the defensive, non-aggressive character so typical of all aspects of his culture. The absence of surplus and the resulting concentration on the job of staying alive, coupled with relative absence of oppressive aggression from without, make him content with pursuit without interference on his vital occupation of hunting the fur-bearing animals on his lands. The felt rights are adjusted to the felt interest, and turn especially on continued user. Some of my informants were even of the opinion that occasionally an Indian entitled to rights in a certain hunting-ground and who has, for some reason, made no use of his rights at times entirely forgets that he has a hunting-ground of his own and is reminded of it only when another Indian asks permission to hunt there.

In the regions near the boundaries between the hunting lands of two local groups the legal practice seems especially to imply that the local group, rather than the family, was the original holder of the hunting rights. Settlement of disputes concerning hunting rights in such lands is reached not by the individual family but rather by the band as a whole through its representative, the chief. Many circumstances indicate the existence of a neutral hunting-ground on which members of both bands are entitled to hunt. For instance, there was a hunting-ground quarrel between a member of the Bersimis Band and a Lake St. John Indian. They fell out over respective rights to hunt in a certain region between their hunting lands, located between the territories of both bands. In this case it not only was decided that members of the two bands were entitled to hunt there, but the "plaintiff's" case as argued by the chief asked no more than that.[4] Apparently, too, in the border region between the Mistassini and the Nichikun Bands, there exist such neutral regions where the members of both bands enjoy hunting and trapping privileges. Indeed, the Mistassini Reports repeatedly refer to joint and mutual hunting parties in the border region between the territories of the two local groups. These two bands seem to have lived in a state of close economic and social cooperation even in ancient times—a relationship which

[1] I am aware of the fact that our law treats "property" as a type of interest in a thing which includes every interest from full fee simple ownership on through all limited interests to a mere right of way or license to cut timber or take coal. To elucidate the content of the exclusive hunting rights I had to go about by way of elimination.

[2] Orally, to the author. Compare also p. 388, footnote 3.

[3] P. 388.

[4] Compare p. 403.

has continued until the present day. These joint hunts seem to have led further to an interchange of certain hunting privileges between the bands: the right to hunt under certain circumstances on the territory of the neighboring bands. Thus an entry of August 16, 1823, in the Journal of Mistassini Post states:

> Several of the Mistassini Indians say they intend to go to the country belonging to the Eastward Indians to hunt with them the [coming] winter.

Of more recent times, Speck (1823:458) reports the existence of reciprocal but qualified privileges between the two bands. The Mistassini, for example, were permitted to hunt porcupines on the lands of the Nichikun Band, while the latter were authorized to hunt bears on Mistassini territory. Apparently, too, the Ruperts House and Mistassini Bands enjoyed mutual hunting privileges in the border region between their lands.

William M. Kay in the Mistassini Report of 1839–1840 reported incidents in which some Mistassini Indians hunting in the border region of the Ruperts House Band, discovered that a group of the latter Indians had already bagged most of the game in this territory:

> *Cheeskatawatuith.* A son of Canosawisit. A very good fur hunter but did not hunt so much this year as what he did the year before which he attributes to the Indian Paitabunoswescome of Ruperts House whom he met this spring on the lands where he expected to find beaver and found himself quite disappointed, as the other man had come there last fall and had passed the winter thereabouts. When he knew all this he intended then to go further on but then he was informed that his uncle Natcheecapaw had been to the very place where he was thinking of going to. So he was obliged to give up his intentions and come back as fast as he could.
>
> *Oposquatie,* Canosawisit's 4th son. His two brothers, older than himself, died in the Fall of 1838. This young man is a mid. good hunter and brought this year 48½ MBr, principally in beaver and martin's skins. His hunt this season is 11 MBr more than last year. He was with his brother when they fell in with Petabinowescome and of course met with the same disappointment. These lands do not belong to these Indians. But as all those are no more who once claimed it, they think they have a prior right to it, being nearly connected with the deceased Indians.

It would seem from the second incident quoted that, when and while a deserted border hunting-ground has not been reappointed, an exclusive claim of a collateral relative is not recognized even as against a foreigner as, in this case, Petabinowescome. Certainly a claim to use the unused grounds of extinct collateral kin is set up by action. How far "prior right" goes, we do not know. That the claim was weak because neither occupation nor use was successful seems probable. But it may be questionable whether the two brothers were staking a claim or just taking a chance on a rich haul from lands presumably undisturbed for several years. Where an unused hunting-ground, deserted either as a result of the family dying out or simply by non-usage, happens to be located near the outskirts of the tribal territory, the chieftain is unlikely to reassign the land.

Travel is indeed free. On this fact depend many modifications of otherwise exclusive rights. Thus equal fishing rights are granted on any hunting-ground to all, even to strangers, since the Indians assume that a man will fish only when he is in need of food. In addition, any Indian will allow a stranger to camp near his own tent and, as a matter of course, will invite him to meals, offer him meat and show him the best fishing spots. It is permissible, similarly, to pick berries on any hunting-ground without securing the owner's consent. If the occasional berry-picker, fisherman or hunter happens to encounter the owner of the hunting-ground, it is as customary for him to share with the owner the meat, fish, or berries, as it is for the owner to invite the stranger to a meal. Neither is, however, obligatory in strict law; the owner may not and does not, in case this tribute is denied him, drive the stranger off his hunting-ground.

Hunting-rights may be acquired either through membership in the tribe—whether by birth or later admission—or through inheritance. Whether usucaption or mere pursuance of the hunt for a prolonged period is or is not recognized as the basis for claim to a hunting-ground is, from the evidence given by the informants, difficult to ascertain. Some official investiture, however, seems to be necessary to exclusive claims. This need not be renewed after death of certain near family relatives, if use persists. Exclusivity tends to lapse on continued non-user, with cases too rare and circumstances therein too different to allow of our drawing clear lines. But user is permitted of abandoned or long unused lands. Whether user would have a preferential basis for asking and getting official assignment and so usucaption would lay a basis for claim and the investiture would be needed to perfect the right is probable but not borne out by available cases or orally by the informants.

Only rarely does a single family, consisting of father, mother, and children, hunt alone. For the most part, brothers with their families, often even accompanied by the grandfather or grandmother, hunt jointly. Neighbors, too, sometimes hunt collectively, alternating from one family hunting-ground to another either during a single winter or from one season to the next.

If several members of a family wish to hunt separately, the hunting-ground may be divided into subsections for one or more years. After his acceptance into the tribe, even a stranger may be granted a hunting-ground of his own on the tribal territory. In such cases it usually falls to the chief to secure for the newcomer a suitable piece of land. So, for instance, reports Father Drohillettes (1647–1648: XXXII: 259) from the olden times that Chief Georges Etouet of the Tadousac Band gave a hunting-ground belonging to the Tadousac Montagnais to a stranger by the name of Negabamat. However, it has not been reported whether Negabamat was only permitted to hunt or whether he was granted exclusive rights to the hunting-ground. If it should

happen that no land is available for this purpose, the chief may, according to my informants, request some family to share its hunting-ground with the stranger or to assign part of their lands to him for hunting. If quarrels should arise, the family, though theoretically entitled to deprive the newcomer of his hunting rights, since no irrevocable right had been conveyed, will refrain from doing so because public opinion would brand such action as unfair. Neither the chief nor the family concerned receives or expects any compensation for such a concession.

From relatively recent times comes the report of a Mistassini Indian Alec Blacksmith who, not wishing to return to his own band, hunted for many years with a family of the Lake St. John Band, without having been formally admitted into that local group. Here the parties concerned, without consulting the chieftain, reached an agreement among themselves concerning the foreigner's hunting rights.

Informant Tommy Moar apparently acquired his hunting-ground under circumstances which reveal the beginning of the influence of the white man's law, at least as far as alienation is concerned. Tommy, formerly employed at the Mistassini Post of the Hudson's Bay Company, could claim no hunting-ground of his own. While working for the Company (he was about thirty years old at that time) he met the Lake St. John Indian Napoléon Béjean. Tommy reported to the author:

> This man told me that I should come to Lake St. John in order to make a better living.. His own hunting-grounds were located halfway between Mistassini and Lake St. John territory, and he invited me to join him there to do my own hunting as I pleased. This should not surprise you at all, since we have lots of land sufficient for all Indians. For about three, four years, I hunted on Napoléon's lands when, during one severe winter, he ran out of all supplies. To save him from starvation I gave him all I possibly could. For this he later rewarded me with a large part of his own hunting-ground.

According to Tommy Moar, the size of the hunting-ground given to him was twelve square miles. He continued:

> I got it truly and forever, and when I die my son will inherit this hunting-ground—this was our agreement. Since that time every year I pay the balance he owes the Company—but I do this of my own free will and this is by no means a compensation for the hunting-ground he turned over to me.

After relating this incident to me, Tommy emphasized that, after the death of both men, Napoléon's son would not have the right to reclaim from Tommy's son the lands in question.

In the course of this discussion of Tommy Moar's hunting rights, in which other informants joined, it became clear that Tommy's view was challenged, as it was explicitly pointed out by the other Indians present that such a transfer of hunting rights by a family to a stranger adopted by the band is valid only during the lifetime of the usufructuary and is not binding on his heirs. Any additional concessions are subject to the good-will of the inheritor. The owner of a hunting-ground may, as has already been pointed out, divide the land among members of his family, but on his death the entire hunting-ground becomes the property of his eldest son. He may, if he wishes, renew any former agreements with relatives or strangers, but he is under no obligation to do so. The discussion made it clear that a case could be made against Tommy's opinion and that the more conservative Indians would back that case.

No financial compensation is exacted for a hunting permit, but if the original holder of the hunting rights should be in need or become ill, custom requires the usufructuary to support him. All contracts, including those granting hunting permits, are mere oral agreements. The wording of a gift-grant transferring hunting rights might be: "Here I give you this hunting-ground as long as I live": *"chimíltin otas'cháshi ntohoyén cháĭshpish ilinéo ā unā"* ("I give you place to hunt for as long as live I").

The agreement expressly includes the phrase "as long as I live," because, as previously mentioned, the owner may not conclude any contracts incurring obligations on his heirs. To this the donee will reply: "That's all right. I am very glad" (*"Äkūn miām, neĭmelueltän"*) ("enough" *äkūn* "correct" *miām* "I am glad" *neĭmelueltän"*).

Even if he is in need, an owner will never ask a grantee for support because the latter in such a case is expected to offer his assistance.

The Mistassini Reports record a case which is of interest particularly because of its implications and unfortunate consequences. It is the story of the Indian Etap, originally a member of the Ruperts House Band. From early youth he had hunted with the Mistassini without, however, ever obtaining hunting-rights on land of his own. One family or another would invite him to participate in their hunt. As he was allowed to hunt only such game as his hosts permitted, he of course became dependent on their good will.

MISTASSINI REPORTS 1824
(JOHN WALFORD)

Etap. A son of Artawayan, a young man, goes with Wapatch. Hunts very little.

MISTASSINI REPORTS 1824–1825
(JOHN WALFORD)

Is a son of Artawayham, goes with Wapatch. Hunts little—hunted this year about 11 MBr. He was hired last spring by Mr. Clouston to work at the house as a hand—by this circumstance lost his spring hunt.

MISTASSINI REPORTS 1827–1828
(J. KELLOCK)

Etapao. Made the best hunt this year he ever did, having brought 49 MBr—which is 28 MBr more than he hunted last year.

List of Indians:

Etapas, son-in-law of Achappy:	Wives	: 1
	Sons	: 1
	Daughters	: 3

MISTASSINI REPORTS 1828–1829
(RICHARD HARDISTY)

Etapao, son-in-law of Achappy.
He is a very industrious young man and hunts well, considering he has such poor lands to hunt upon. He has brought this year to the post 60 MBr of furs (principally beaver and otters) which is 11 MBr more than last year. He also brought during the winter [blank] lbs of green Venison which he traded for ammunition etc.

MISTASSINI REPORTS 1829–1830
(RICHARD HARDISTY)

Etapao, son-in-law of Achappy and son of the Ruperts House Indian Artawayham. A very industrious young man. He hunted upon his father-in-law's lands during the winter which, being strange lands to him, he hunted very little, only having brought 33 MBr of furs, principally beaver and Martins—being 38 MBr less than he brought last year.

MISTASSINI REPORTS 1830–1831
(RICHARD HARDISTY)

Etapao, son-in-law of Achappy. Brought this year 67 MBr of furs of various sorts, being 34 MBr more than he hunted last year. He is engaged to go down as a hand in one of the canoes and wishes to engage for the second trip if he is wanted.

MISTASSINI REPORTS 1833–1834
(WILLIAM M. KAY)

Etapai. Now son-in-law of Cheemoshominabin . . . hunted during the year 40 MBr.

MISTASSINI REPORTS 1834–1835
(WILLIAM M. KAY)

Etapao, son-in-law of Chumaoshoominabin. Hunted during this winter 58 MBr in furs, principally in beaver—being 9 MBr more than last year.

MISTASSINI REPORTS 1835–1836
(WILLIAM M. KAY)

Etapao:
A middling hunter, but made a poor hunt this year, having only brought 38 MBr which is 20 MBr less than last year. He also brought 3½ MBr in Castore. He has a large debt remaining and is another man who run away from the canoes last summer, in company with Wapatch—which causes his debt to be more than it otherwise would have been, had he kept to his engagement.

MISTASSINI REPORTS 1837–1838
(WILLIAM M. KAY)

Etapao:
A middling fur hunter *would be a good one if he had lands which he could call his own.*[5] But as that is not [the] case he is obliged to keep about the outskirts of other Indians' lands, and when he stays with any of them he can *kill no beaver except what they choose to allow him.* He belongs to the coast and was taken inland when he was a boy. He hunted this year 45 MBr, being one MBr less than the last year. He is engaged as a hand to go down to Ruperts House in one of the canoes.

MISTASSINI REPORTS 1839–1840
(WILLIAM M. KAY)

Etapai. A middling fur hunter, but has made a very poor hunt this year having only brought 21 MBr. He went to Swanmoosewon last fall in company with Cheemooshominabin's oldest grandson. He says that he merely went there to see how the Indians were treated and says he did not see much difference, except in ammunition and spirits. Says that an Indian will get a measure of powder for three large musquash. He tells the measure is the same size as what it is here. And spirits, he says, they get as long as they please to drink. I hardly can believe this assertion to be alltogether correct. He brought this season 31 MBr which is 16 MBr less than last year. This difference he attributes to his having been obliged to support his father and mother-in-law all spring, the latter being so helpless with sickness that the old man could do nothing more than attend her.

This life history reveals that Etap, son of the Ruperts House Indian Artawayan, "was taken inland when he was a boy" and that he later married the daughter of the Mistassini Indian Achappy, having by this marriage one son and three daughters. Achappy, in turn, was the brother-in-law of the chief Nosipatan who, as we know, was very influential. Apparently, however, neither Etap's union with a member of Nosipatan's family nor, in 1831–1832, his second marriage to the daughter of the chief Cheemooshominabin, brought him any legal or economic advantages. Certainly in the matter of hunting-grounds, the reports leave no doubt that he had none to call his own. Moreover, the reports make clear a second point of importance: Etapao could make no legal claim on the hunting-grounds of either of his fathers-in-law. Although we learn that, in 1829–1830, he hunted on the hunting-ground of his first father-in-law, Achappy, and, in 1839–1840, on that of his second father-in-law, Cheemoshominabin, it is clearly evident that he did so merely as an invited guest but by no means as a man executing his hunting-rights. Informant William M. Kay, while reviewing the story of Etap, stated clearly:

> A middling good hunter, would be a good one if he had lands which he could call his own. But as that is not [the] case, he is obliged to keep about the outskirts of other Indians' lands, and when he stays with any of them he can kill no beaver except what they choose to allow him.

This report on the legal situation and the hunting rights of Etap, written in 1837–1838 after his second marriage is definite and revealing. Etap's life furthermore clears up a third point, namely, that the Hudson's Bay Company has no possibility, for instance through its influence, to provide him with lands of his own. This should be emphasized for the reason that some scientists[6] are of the opinion that the division of the tribal territory into family hunting-grounds might be attributable to the influence of the Hudson's Bay Com-

[5] Italics are the author's.

[6] Compare p. 387, footnote 2.

pany. If this were really the case, the Company could have provided Etap with proper lands, since it would have indeed served their interests if so good a hunter would have had the possibility of hunting as many furs as possible to be offered for sale to the Company. Having no possibility to do so the Company rather employed Etap upon his own desire: ". . . and wishes to engage for the second trip if he is wanted . . ." as a handyman, a boatsman, voyageur, and transportation worker. We are not told the reasons why Etap had to remain for years in this predicament, despite his two marriages with women of the Mistassini band—both members of chieftain's families. Nor is there any explanation of his not being formally accepted into the tribe, and for which reason he was denied the customary tribal privileges. This treatment of Etap seems to imply that, concerning the hunting rights, a strict succession within the male family line was prevalent; and that, as recorded, sons-in-law could not assert any legal claim upon the hunting-grounds of their fathers-in-law; moreover, that mere marriage into a tribe neither created membership in the band nor entitled them to any claim to hunting-ground rights.

The descendants of Etap seem to have been luckier than their ancestor, since Speck (1923: 470) reports that in 1921 he found the brothers George Etap and Jimmie Etap in the possession of good Mistassini hunting-grounds:

> Eta'p', George Etap, hunts south of Little Mistassini Lake, and a short distance south of the Height of Land. The territory is known as "Towards-Little-Mistassini." Eta'p', Jimmie Etap, brother to the preceding, has the adjoining tract on Little Mistassini, southwest of him. Evidently, this is another case of the subdivision of paternal property among some. This district is known as "Foam River."

Unfortunately, my attempts to find out the circumstances of their acquisition of the hunting-grounds were not successful.

Occasionally the Mistassini Reports also record the amount of MBr which the Company gained through the hunt of its servants. During the years from 1828 to 1831 Hardisty stated:

1828–1829

> Only 40 MBr of Furs (principally Martins) have been hunted by the Company's servants during the year.

1829–1830

> Only 14½ MBr of furs, principally Martins, have been hunted by the Honourable Company's servants during this Year.

1830–1831

> Servants' hunts amount this year to 56 MBr, principally martens.

The documents do not reveal whether or not the Company had a hunting-ground of its own where its employees were entitled to hunt. The oral reports given to me make it possible to assume that the servants of the Company were entitled to hunt within the immediate surroundings of Mistassini Post. I was unable, however, to establish evidence of the existence of a specifically defined hunting-ground where the employees of the Company *alone* were entitled to hunt and had exclusive and expulsionary hunting rights. Equally uncertain is the manner in which such a hunting-ground might have been acquired—assuming that such a title actually existed. Speck's report (*ibid.*, 459) about a quarrel of the owners of the hunting-grounds adjacent to that of the Company with the Factor of Mistassini Post in 1912 over the killing of two moose on the Hudson's Bay Company's hunting-ground equally implies that the Company possessed no legally exclusive rights upon the region claimed as the Company's hunting-ground.

RESTRICTIONS OF THE HUNTING RIGHTS ON THE FAMILY HUNTING-GROUND

A further criterion for the determination of the extent and the contents of the hunting-ground rights may be provided by an analysis of the reaction against a violation of these rights. Here, one fact attracts attention above all: that *trespassing* in the strictest Anglo-American sense—definable as "an entry on another's ground without a lawful authority and doing some damage however inconsiderable to his real property"—is not considered as a wrong by these Indians. This becomes evident in the rule that any stranger passing the territory may do sufficient trapping and hunting to provide for his immediate needs without, however, having the right to gather furs or meat for the purpose of selling them. The traveling Indian may catch as many animals as he needs to appease his hunger while within the territory. Should the intruder into the hunting-ground be near starvation he may even kill a beaver—this most treasured of animals—the shooting or capture of which is otherwise strictly reserved to those entitled exclusively to hunt on the grounds in question. In such cases of emergency the trespasser may even kill all the occupants of a beaver house which has already been marked by its owner as his property. Yet, neither the occasional passer-by who has to cross the territory in order to reach his own hunting-ground nor the Indian traveling as a guide or servant on behalf of the Hudson's Bay Company, but only the victim of bitter need, the starving Indian whose very life thereby be saved, may rob the beaver house. This permissible encroachment upon the rights of the possessor of a hunting-ground is especially interesting for the reason that it clearly breaks one of the most precisely defined property laws of these Indians. For, if an Indian discovers a beaver house on his hunting-ground, he may mark a nearby tree, therewith notifying all possible passers-by as well as his own adult sons and hunting comrades that these beavers belong to him alone and are not to be touched by any other hunter. *uashekwä kahikĕn* ("the beaver has been found already"). This property right is respected even

within the immediate family; it represents perhaps the most sacred property right acknowledged by these Indians.

Informant Joe Kak'wa described from his own youth one trip which throws an interesting light upon the legal situation of the Indian traveling through another man's hunting-ground:

> In 1878, I traveled with a friend, Charles R., of the Mistassini tribes who was at that time eighteen years of age. We went from Lake St. John to the big Lake Mistassini. After about a half day's journey we passed the border of a Mistassini man's hunting-ground. This man's name was Thomas Matabē ("He-Who-Comes-Out-of-the-Woods"). Before we met Thomas we noticed a bear on his hunting-ground. Each of us had a gun. I was only twelve years old then but I succeeded in shooting and killing the bear. Putting the carcass in our canoe we proceeded for about half an hour. When we finally saw Thomas' tent we went there to visit him. Thomas came down to the shore to shake hands with us, expressing delight that we had been able to kill the bear. We asked him about a nice camping place on his hunting-ground, and he showed us one. We took the bear ashore, where Thomas' wife started to skin him—since this is women's work. Later, Thomas' wife cooked some of the meat for all present. When we went away the following morning we gave Thomas a lot of bear meat and he was very happy to receive it. With Thomas was his brother-in-law whose name was Mashinowapesh ("The True Man").

We see that generally and especially from the point of view of the band the exclusive hunting rights of the individual family are subject to certain restrictions. Conversely, one could say that the band reserves for its members certain rights which extend even to the hunting-grounds of the individual families.

If, under the circumstances described, certain infringements upon the hunting rights of the individual family occur, they are not regarded as trespassing. Repeated trespassing, however, is definitely considered encroachment by the Indians. This means a series of such acts committed over a period of time which are all of the same nature and recur and continue again and again. The nature of such encroachment is a continuous, unlawful hunting on another family's hunting-ground committed by an individual or a number of individuals who are neither traveling nor in urgent need of food. Encroachers are, therefore, such persons—whether they are Indians of their own band or members of other tribes or even whites—who kill or capture game on foreign hunting-grounds beyond the needs of travel, for the purpose of making their living by this practice and gainful pecuniary advantages by the selling of furs. In its contents this type of trespass is characterized as trespass for goods carried away and could be classified as a sort of *trespass de bonis asportatis*. The author's informants pointed out that such cases of trespassing between members of their own band hardly occurred at all. At least, there is no case on record. Numerous, however, are the cases of trespasses—recorded in the ancient diaries as well as from modern times—committed by Indians of different bands on other bands' territories. Especially the Ruperts House and Waswanipi Indians seem frequently to have intruded on the Mistassini hunting-grounds. On November 15, 1837, William M. Kay stated:

> Two young lads arrived, being sent by Wapatch for a few provisions. Brought nothing. They say that they have hunted very few beaver—owing to some of the Ruperts House Indians having killed some beaver which they had known of before.

The Mistassini Report of 1839–1840 states that the Indian Potish was the victim of trespassers—some Ruperts House Indians allegedly even joined by the chief Cawosavisit:

> . . . he brought this year 58½ MBr in furs and castorum—which is 33⅓ less than last year—which he attributes to other Indians having gone over his grounds before he got to them last fall. Vizt. Petabanowescome, Natchecapow and old Cauosawisit. Those are Indians belonging to Ruperts House.

The Mistassini Indian Saiko, brother to the chieftain Cheemashominaban, who was a cripple, able to move about "only on all fours" has often been the victim of intruders into his hunting-ground. Not only the Waswanipi but also "Wabbanashkees-Wabbinakus" and other trappers hunted on his territory, causing him much damage. That they wilfully took advantage of the defenselessness of old Saiko is not explicitly reported. In his Mistassini Report of 1827–1828 J. Kellock wrote:

> *Sako* . . . He complains of the Woswenaby Indian Wuchochash having been on his ground last fall and also this spring, who killed a number of his beaver.

In addition, William M. Kay stated in the Mistassini Report, 1835–1836:

> *Saiko.* Brother to Cheemaoshominabin, a very good hunter who's lame that he has not the power to use his legs and goes on all fours. He brought this year 77 MBr in furs—being 20 MBr less than the year before. He did not make his appearance here this spring but sent his furs in by his nephews. Last time I saw him was on last October at which time he told me that the trappers who came up the river St. Maurice had killed a great many beavers on his lands and that he was now at a loss to know where to find any beavers.

The identification of the "Wabbanachkees" and "Wabbinakus" whom the reports occasionally mention as trespassers is not exactly clear. It is equally uncertain whether we have to deal here with foreign Indians, halfbreeds or even whites. Speck (*ibid.*, 468) states that Abenaki hunters coming from south of the St. Lawrence belong to "the dissipated tribal groups of New England and the province of Quebec who have travelled northward into virgin hunting territory and established their residence under conditions which appeal to the taste of the Algonkian nomad." That Abenaki—Wabbanachkees—Wabbinakus mean the same is, according to Speck,[7] certain. In our reports they

[7] Orally, to the author.

are either termed "trappers" or "servants of the Company," and the further contents of the reports imply that, in addition, they also were traveling fur dealers.

William M. Kay of Mistassini stated in a letter to James Robertson of Timmiskimay Post of March 5, 1839 (Journal Mistassini Post, 1838–1839):

> The Indian Aswomagan who was here in the early part of January told me that he saw two Wabbinakus or Trappers last summer on his lands, and that they had hunted up all the beaver which he knew of—and did not even have one musquash—he says that they had one bundle and a half of furs. They were on their way back when he met them. He says they took the few furs which he had in his canoe from him without asking whether he chose to give them up or not, and then paid him afterwards. By his account he had not above 4 to 5 MBr at the time.

In a letter dated April 18, 1835 (Journal of Transactions and Occurrences, Mistassiny Post) Wiliam M. Kay complained very distinctly about the trading competition of the "Wabbanachkees" and the bad example given by them to his Indians:

> Toocheshaiquon and Saiko's 1st son arrived. They brought nothing. They came for ammunition and tobacco. Toosheshaiquon says that the Indian Saiko had 2 Wabbanachkees stopping with him for some time last summer and that they were hunting on his lands, he also traded furs with them for which reason he received three or four beaver traps. I am told that Saiko got several other articles from them as presents! If these people are really servants of the Honble. Company it appears very strange to me that they should be allowed to come and destroy the lands of poor Indians by killing up the fur animals during the summer season—when at the same time the poor Indian is prohibited as much as possible from killing beaver etc. when they are not in season. It must appear very strange to the Indian when he sees others employed by the same concern killing beaver etc. on his lands in the summer when he himself is told not to do the like, except in a case of necessity. Such conduct will encourage the Indians to kill summer beaver and trade them with the above intruders (for I can call them nothing else) or others coming on the same business.

In recent times, the encroachment of white trappers upon the hunting rights of the Indians on their own hunting-grounds has increased to staggering proportions. Especially interesting in this respect is a report by informant Tommy Moar because it illustrates the manner in which the white trapper behaves while violating the well-deserved hunting rights of the Indians. In this reported case Tommy did not happen to hunt on his own hunting-ground but rather "in the general woods where any Indian is allowed to hunt." This reference to the "general woods" invites the conclusion that there either exist whole regions where, with the Mistassini, the right to hunt is open to the entire band—as, for instance, in the woods surrounding the Reservation—or, that a single family hunting-ground had been abandoned, whereby the right to hunt there reverted to all members of the band. Tommy Moar reported:

> In 1927 I hunted in the general woods where every Indian is allowed to hunt. There, I set my traps in a long and well-calculated line. This work had taken me so far away from my tent that I decided not to return but instead to spend the night near the trap line. I had just put up my tent and cooked a meal when a white man passed by. He was a French Canadian whom I knew. He greeted me very courteously. I invited him for dinner and we spent the evening together in a most amicable way. After this, he left me, repeatedly expressing his appreciation of my hospitality. Next morning I had another visitor, the son of this same white man who, as a messenger for his father, informed me that I should immediately remove my traps since the white man—the same who had paid me so friendly a visit the night before—wished to set his own traps on the same spot. I went to a nearby friend, told him what happened and asked him to accompany me to my trap line in order to find a way out of this situation. When we two came to my traps, all of them had been released by pieces of wood and therewith were rendered useless for the catch of any game.

Sadly, Tommy concluded: "I simply removed them. What else could I do?" One year later, Tommy's sons had the same experience on the same spot—the white man had rendered their traps unserviceable by sprinkling them with powder from cartridge cases. No wild animal scenting the smell of gun powder will ever approach a trap. In this case, too, nothing could be done. They hunted elsewhere and took care to avoid the white man.

The fact that unscrupulous white trappers continually abuse the hunting rights of our Indians has aroused also the concern of the Canadian Government. Their attitude is reflected in the Annual Report of the Department of Indian Affairs for the Year Ending March 31, 1929, where Duncan C. Scott stated[8]:

> The condition of the Indians in the northerly and outlying districts who are still dependent upon the chase for their livelihood has become a matter of grave concern to the department.
>
> During recent years there has been an alarming increase in the number of white trappers who are encroaching upon hunting grounds in the northern parts of the various provinces, which were formerly used by Indians only. White trappers are using poison extensively, and this illegal and vicious practice is becoming a grave menace to game conservation. Not a single instance of the use of poison by any Indian trapper anywhere in Canada has ever come to the attention of the department. It is felt that unless some protection is afforded, the Indian trappers in the northern regions, where other means of livelihood are not available, may become dependent, owing to the depletion of the game.
>
> Hunting and fishing are the aboriginal vocations of the primitive Indians. By immemorial usage the Indians are conservationists of the game and fish, and may be expected to continue so, if protected; on the other hand, if whites are allowed to deplete the fish and game on the Indian hunting grounds, the Indians themselves will naturally take all they can, while they can, and there is grave danger that such a situation may bring about intensive competition between whites and Indians, ending in the virtual extermination of valuable species. Indian families, in most cases, are permanent residents, and their hunting grounds are recognized among themselves, and handed down from one

[8] Scott, Duncan C., Deputy Superintendent General of Indian Affairs, to Hon. Charles Stewart, Superintendent of Indian Affairs, Ottawa (Scott, 1930: 7–8).

generation to another, whereas white trappers are frequently of the itinerant class, whose practice is to trap out an area and then move elsewhere.

LOSS OF THE EXCLUSIVE HUNTING RIGHTS

Exclusive hunting rights are not lost by mere non-users, if the claim to them is actively kept alive. But they seem to lapse by abandonment for any long period. With impossibility of user, as when "the owner is incapable of hunting either because of his health or because of his age" they pass to the next in line largely as in the case of death.

When an Indian becomes very old, so aged indeed that he prefers not to hunt any longer and if he nevertheless accompanies his son to the hunting-ground to spend the winter with him in one tent, a stranger desiring the permission to hunt on the same ground must ask the *son* who hunts there whether he may do so, although the old man is still alive. This fact seems to imply that legal competence as far as the administration of the hunting rights is concerned expired with the physical ability to hunt (to kill a bear). In practice, however, the non-execution of the hunt for a long period of time will result in other Indians or white trappers grasping the opportunity to trap and to hunt there without interference, which led one of my informants to state: "Another man has jumped in and nothing can be done about it."

MOVABLES: GOODS AND CHATTELS

Tents, canoe, traps, rifle, sledge, and personal goods and chattels are the property of the father of the family, although his private property is limited as far as goods which serve the sustenance of the entire family are concerned. The bagged caribou, moose, bear or other precious meat-supplying animals belong to the hunter who killed them—yet, he has to share the meat with his family. Even in case of surplus he is not entitled to throw away any of his meat. Moreover, it is not the custom to kill more meat-supplying animals than required for the livelihood of the family—by no means would it be permissible to kill, let us say, ten caribou or more on one day. Surplus meat may not be sold for money to other tribesmen or Indians—except, however, to the Post of the Hudson's Bay Company. The rules are different in the case of the small animals, caught in traps for their furs' sake, whose meat is mostly unfit for consumption.

The fur of any bagged animal is in any case the property of the hunter and the sum of money received for it is his sole property. Fishes and berries, however, have to be used for the benefit of the whole family; they are not the exclusive property of the fisherman or picker.

As a rule, game belongs to the hunter who killed it. If several persons hunt together, the game is divided among all participants by the head, regardless of who did the actual killing.

Women are proprietors of their own goods and chattels, in addition to all kitchen utensils even if these have been bought by their husbands. Also children of both sexes may own private property, even before becoming of age. They have, for instance, the exclusive right of disposal over all fur-bearing animals which they catch. Even in case of need—if their father is unable to pay his debts with the Company from his own fur harvest—he may take his children's furs only if he promises them repayment in kind during the following season.

Hunting and trapping are considered men's work. Yet even daughters may hunt or trap and dispose of the amount paid for their furs by the trader. This, however, is done only on a small scale, as a special allowance, so to speak, with which the girls can buy during the next spring some nice dresses or other desired articles. Such separately gained furs are kept by the daughters in a special pile and not mixed with the general catch of the father and the other male members of the family.

During my stay with the Indians I personally had an interesting opportunity to experience their rather pronounced consciousness of personal property even as far as children are concerned.

Together with one of the clerks of the Hudson's Bay Company Post at Pointe Bleue, I was passing the camping place of the Indians where two frames for children's snowshoes attracted my attention. The clerk, being a collector of Indian handicraft, wanted to buy these two snowshoe frames because of their unusual shape. He discussed his intention with an Indian woman, owner of the tent before which the two frames were displayed. She informed him that she was unable to sell these snowshoe frames because they were the property of her small daughter who, at the moment, was not present. We had to leave the place without making the purchase. On the following day I happened to pass by again and I renewed our offer to buy the snowshoe frames in question. This time, I succeeded. Upon my question why I could buy today what she refused to sell yesterday, the woman replied: "I first asked my husband and my daughter and since he promised the child to make her a new pair of frames, she gave her consent to the sale."

I discussed this case with some of my informants to find out whether we were dealing here only with a well-run family and family by-law or whether we were permitted to generalize at large. Their reaction was: "Parents are authorized to dispose of the property of their children only if they are ready to replace it."

As a rule, the processing of goods creates ownership. If a grown-up unmarried son has killed a moose and his mother processes the skin and manufactures moccasins of the leather, the amount received for the sale of these moccasins belongs to the mother.

PROPERTY MARKS

Property marks are still in the stage of development. For the time being we can merely speak of identification marks and communication marks, since a definite pat-

tern of property marks has not yet been developed. In contrast, for instance, to certain tribes in Arctic Asia (Czaplicka, 1914: 24 ff.) or to the Alaskan Eskimo (Boas, 1899: 601) who use established property marks for certain economic units—be it the crew of a fishing boat or a hunting family—such marks are unknown to the Naskapi. A step toward individual property marks has, however, been made, although we cannot say that an individual has his own property mark which is recognized and known by the other members of the band. But some marking of traps allowed their recognition in the case of the trap thief Cotchits [9] and the marking of a beaver house and of the fur bundles indicate a development in this direction. On the other hand, according to my informants, identification marks are not used to negate theft when for instance somebody in need takes some of another Indian's supplies. The discoverer of the storage depot of such supplies leaves no sign of his identification to indicate who took certain supplies. He rather waits until, in the course of time, he happens to meet the owner to inform him of the taking and to offer him proper restitution—a practice in interesting contrast to the rather well developed machinery of communication signs. Speck (1933: 577) states that the party who in an emergency takes the food and property as a loan "leaves a mark in the form of a syllabic signature or a mark of its identity to inform the owners of the 'cache.'" It may be that both sources of information, those given to Speck and to me, are correct and that the different informants had different cases in mind which they generalized. Going into this matter with my informants they emphasized, however, that the owner anyhow would have a pretty good idea of who could have taken the provisions and if he was a stranger he also would not know his identification sign. Secondly, that the owner would know that he would hear from the party involved in due time. Indeed, the identification marks we have discussed are used by the owner to identify his property that he himself would know it, and in the case of the beaver house it is a warning to the outsider: "Beware, already taken!" The significance of an identification mark in the case of the "cache" would be a different one. It would presuppose that each individual—or, perhaps family—possessed an identification mark known to all the members of the band and recognized as such. In the "cache"-case the identification would mean a positive message addressed to *one* person only: "I (name) was here and took the provisions." In the other described cases the identification mark would say: "To whom it may concern. This (trap, fur bundle, beaver house) belongs to me." That the development of identification marks has already reached the stage of recognized individual property marks is in my opinion not warranted by the information I received.

[9] See p. 483.

LOST AND FOUND PROPERTIES

Stolen properties can be claimed by the owner from the present holder without indemnity. But even if the present holder of a stolen object has not returned it to its owner, the owner still has a claim for damages against the thief and may enforce it by a type of levy-in-pledge. He may, for instance, take away the latter's canoe to return it only when he has received proper compensation. If the thief returns the stolen article, the matter is settled. There is no punishment.[10] If, however, the thief should refuse to return the stolen goods, the chief may punish him by having him tied to a tree. In the previously described case of David Dickson and John Stout [11] the latter merely insisted on the return of half of the stolen beavers which he received. Obviously, this case of dispute was not regarded as a case of theft but rather as one of violation of the hunting rights.

Found objects do not belong to the finder (*napéo nahi mishkam:* "the man who found it") but have to be returned to the owner. Even when improvements have rendered the found object more valuable, a finder's reward is neither expected nor offered. If the found object consists of purchased supplies, namely mostly edible supplies bought from the Hudson's Bay Company, the finder will keep them without consuming them; however, he is expected to do this only as long as he himself does not suffer from lack of food. In this latter case, he may use up half of the found supplies, but he must go on preserving the other half. If, when the tribe assembles annually on the summer place, the owner does not claim his property, the finder is entitled to keep it for himself. If the loser claims the lost provisions at a time when the finder has already used up part of them, the finder will return to him immediately half of the lost property, paying back the rest during the next spring at the next get-together. The loser gets all his property back because, as the informants stated, he paid money for it.

The situation is different when it concerns not "purchased" food supplies, for example, in the case of game accidentally found by the owner of a hunting-ground, but shot by a traveler or hunting guest. The game belongs to the hunter, not to the finder. It is the finder's duty to trace the hunter and to inform him of the bear or moose found on his hunting-ground. In this case the finder is entitled to half of the meat of the game animal, but not to its skin.

It makes no difference whether the finder discovers an object on his own hunting-ground or on lands that are not his own. In the case of found game, the finder is entitled to half of its meat, even if the animal was found on the hunting-ground of the loser. During the interval between the finding of a lost object and its return to its owner, the finder can use the found article. If he, however, thereby damages the object, he is bound

[10] Compare the case of Cotchits, p. 483.

[11] Compare pp. 402, 403.

to remedy the damage either by repair or by furnishing restitution. If a trap has been lost, the finder has the right to use it until he has found the owner. If the finder discovers together with the trap an animal caught in it, he is entitled to half of the animal and, if the game bears a valuable fur, to half of the amount of money received for the skin.

Informant Joe Kak'wa, by reporting the following case, furnished a good illustration of the legal relationship between finder and owner:

In 1927 a man by the name of Johnny Bosson (French form of "Nepooshn" = "Getting-Into-A-Canoe") found a steel trap and, caught in it, a fisher. Since he did not know who was the owner he took home the fisher and the trap. He prepared the skin of the fisher (whose meat is unsuitable for eating) and sold it for one hundred dollars, the owner of the trap was Cotshich ("Little Son"), also known as Little William. Both the finder and the owner of the trap belonged to the Mistassini tribe. The trap had been set on Little William's hunting-ground, but close to the border of Bosson's lands. In the meantime, Little William noticed that an animal had been caught in it. Yet both trap and animal were gone. When he met his neighbor Bosson he asked him whether he found a trap at a certain spot. Bosson said: "Yes." Little William asked: "What was caught in the trap?" and Bosson answered: "A fisher." At that time, he had not yet sold the skin. Little William asked: "May I get back my trap and the fisher?" and Bosson replied: "Well, you lost your trap. If I had'nt found it you would have lost the fisher also." Little William said: "But I found the place again and I would not have lost the trap." Bosson insisted: "I shall keep the trap and the fisher." He said this although he knew that this attitude was against the general rule. Later on, they settled their quarrel deciding that Bosson should sell the fisher's skin, after which he agreed to give to Little William half of the money, together with the trap. And so they did.

LIEN

The institution of lien is known, although exclusively for goods and chattels. A lien dealing with persons is unknown. Lien is created usually by oral contract (but sometimes as shown above by self-help distraint for "stolen" goods), accompanied by the passing of the gaged article from the gager to the gagee. This is done in about the following manner: *"Omä ndosh mishkuts"* ("This, my canoe, exchanged"), or : *"Omä ndosh mishkuts chekaka chimiltana shuliáo"* ("Here is my canoe in case I can't give you any money."

The period of the lien, if expired, may be extended. If the creditor insists upon payment, either he or the debtor may sell the gaged object with the surplus going to the debtor. It is hereby of no bearing whether the gage is at the time of the sale in the possession of the creditor or the debtor.

If, during the period of gaging, the gaged object decreases in value, thereby lowering its sales value, and if the sale therefore covers only part of the debt, the creditor has no claim to additional payment. He can satisfy himself only with the gaged object itself and loses money if its sale brings less money than expected.

The creditor is responsible for possible loss or damage of the gaged object. If he loses it by accident, he has no further claim for repayment, and the debt expires. If the pawnee has also used the object without being justified to do so and the gaged object has, for this reason, been lost, the debtor gets rid of his obligation and has an additional claim of one half on the difference of the value of his, let us say, canoe minus his debt.

The turning over of a gage to a third party is unknown. The use of a gaged object by the gagee is usually prohibited. Occasionally, however, the gagee may be permitted to use the gaged object—for instance, in the case of a canoe—but never to such a degree that a decrease of its value may result from this use.

Never can the hunting-ground or an Indian's hunting-rights be the objects of lien or gage. Concerning this point, the informants stated: "This cannot be done because it belongs to me and it belongs not to me." This, indeed, is no bad formulation of the legal position of the hunting-ground!

RULES OF INHERITANCE

ESTATE AND SUCCESSION

The laws of inheritance show rather clearly traits of conceptions derived from both father and mother right traditions with typical father-right rules prevailing but not exclusively dominating.

The hunting rights are, after the father's death, inherited by the eldest son, together with the traps and other goods and chattels which were his father's property. If the oldest son is still too young to hunt alone, the widow inherits the before-mentioned objects, however only temporarily until her son comes of age. If there are no sons, the widow alone inherits her husband's property. If the widow has only married daughters, the eldest daughter and her husband inherit the hunting-ground after her mother's death. If there are no children at all, the deceased widow's brothers as the nearest male relatives of the widow inherit the hunting-ground. If the widow has no brothers, the brothers and, after them, the nephews of her deceased husband are entitled to the inheritance. After the nephews, the sisters of the deceased are next in line.

If a boy has been born on the hunting-ground of his father, he has a stronger right to inherit it than his other brothers who were not born there. His right to inherit the hunting-ground is nearly equal to that of the oldest brother. If, for instance, three brothers are in the family, the youngest of whom has been born on the hunting-ground, the youngest brother has a greater right to exercise exclusive power concerning hunting rights together with the oldest brother on their father's hunting-ground while the second son comes last. A girl born on the hunting-ground has no special privileges on account of this fact.

If a family dies out, the hunting-ground reverts to the band and the chief distributes it among other members of the local band. Very distant relationship to the

extinct family does not create any right upon their deserted hunting-ground.

INHERITANCE FROM STRANGERS (*mantéo:* "stranger")

The property left by a stranger who lived with a local family is not inherited by this family but by his own relatives. The use of the goods and chattels he leaves is not customary, even if these objects are in the possession of the family for a long time. It is the duty of this family to take proper care of the property of the deceased stranger until the person entitled to his inheritance appears to claim it.

LIABILITY OF THE HEIR OR LEGATEE

The successor by way of inheritance is not liable for the debts of the deceased. A son is not obliged to pay the debts of his deceased father; neither is a widow bound to pay the debts of her late husband. Informant Tommy Moar stated:

> Even if the wife would have the cash at hand, no Indian would ask her to pay with it her deceased husband's debts. If a widow should offer some of her furs in order to pay her husband's debts, the creditor would accept her skins but would never ask her for them first.

It may, however, happen that a widow returns from the hunting-ground with some furs hunted by her deceased husband. With these she may pay a part of her husband's debts, but she will retain some of the skins to pay for her own sustenance. If she returns with a small amount of furs because her husband died in the beginning of the winter, she will not pay his debts because otherwise she would not be able to provide for her own living expenses. Especially with the Indians of the Lake St. John Band it is not customary to hold the relatives responsible for the deceased's debts. Among the more conservative Mistassini the heirs occasionally pay the debts left by a deceased relative, but entirely of their own free will. The Mistassini claim that, if a husband's debts are not paid by his widow or a father's debts are not paid by his son, the band would look upon them as "bad people."

Even the Mistassini have, however, another view when it comes to debts left with the Hudson's Bay Company. "La Compagnie est riche" is the motto of the Indian and the inheritor therefore does not dream of paying to the Company voluntarily the debts of their deceased debtor.

An unsuccessful attempt to make a son liable for his mother's debt is described by Richard Hardisty in the Mistassini Report of 1828–1839.

> Sako's mother died last fall in consequence of an injury she received last summer by being thrown down on a stump by Sako's wife while they were drinking together. She brought 23 MBr of furs last year—and took 11 MBr of goods in the summer in debt. I had hopes that Sako would now have paid his mother's debt. When I mentioned it to him he left it to me to take payment off his furs if I thought it proper—but from the way in which he expressed himself I knew I should displease him if I had done so—and as he has such a felicity of going to Swabmoushivon I consider the Company's interest best attended to by giving up the debt as lost.

LAST WILL

The institution of a last will is known. The Montagnais word for "will" is *matenwäwin* ("distribution"). After Lemoine, another expression for "testament" is *"nelu ka nătuēlītak pūnēliniut."*

Before his death a man may instruct his wife or in default his oldest son or even a daughter to hand over to a certain person some of his traps or other chattels after his death and that specific objects should be given to his daughters. If such a last will would not be respected, ill luck would befall the family—be it, that the deceased would invisibly return after his death to bring evil hunting luck, be it, that he would cause them other misery. Apparently a last will is considered as a sacred obligation to the survivors.

VII. CONTRACTS AND TRADEWAYS

CONTRACTS

GENERAL RULES

Contracts are entered into by oral agreement only. Occasionally, they are confirmed with a handshake. Women as well as men may conclude a contract; the former, for instance, in the case of a service contract for their daughter which is mostly done by the mother. If a wife has concluded a contract for the family or for her husband during his absence, he is obliged to honor it upon his return.

The use of any corroborative or maledictory formulae is not known; nor is it customary to exchange a token of confirmation. There are no witnesses needed for the conclusion of a contract. Breach of contract is not punishable. Contracts concluded under the threat of a fine in case of infringement are unknown.

In no case does the creditor have the right to seize anything from his debtor should the latter be unable to fulfill his obligations. Custom requires that even stolen goods can be removed from the tent of the chief only after asking his consent.

The fact that the law of obligations as such is not very well developed among the Montagnais-Naskapi Indians is mainly a consequence of their peculiar living conditions and their economic situation apart from their dealings with the Hudson's Bay Company. Not many contracts are concluded among themselves, since the families spend the main part of the year in the relative isolation of their hunting-grounds; and except while on the summer places they have hardly much opportunity to get together with other members of their band.

LIABILITY

Liability of one member of the family for the debts of another does not exist, except in the above mentioned

case of contracting by a wife. When Richard Hardisty stated in his Mistassini Report of 1829–1830:

> *Harshaimauk,* son of Cheemooshoominaban. . . . By his account in the Indians' debt book it will appear that he only hunted 48½ MBr all in beaver skins which paid for his debt—besides which he gave 35 MBr to his father which enabled him to pay his debt also,

he thereby did not give proof of the existence of any obligation of the son toward the third party but merely described an arrangement between two family members which might be considered either as a loan or as a gift. In no case is the son legally obliged to pay his father's debts or vice versa.

CONTRACTUAL RELATIONS

In former times, the general value-meter and the valid medium of exchange were the skins of fur animals with preference for the beaver skin. This already existing unit of values was accepted by the Hudson's Bay Company and standardized in their "Beaver Coins." These Beaver Coins were circulated to facilitate trading; to pay the Indians for their furs and to have them pay in turn for their winter supplies by using the same substitute for money. These metal coins of brass had the value of one beaver, one half beaver, or one quarter beaver—without being money or even a general means of exchange in our sense. They were used exclusively for counting and reckoning. A Beaver Coin was the size of a half dollar; and half a Beaver Coin was about the size of a quarter dollar. When an Indian paid his debts he received the balance in beaver coins. Suppose an Indian intends to take for the purchase of the necessary winter supplies a credit of 300 Beaver Coins, the clerk of the Company will give him Beaver Coins amounting to $300, to be used by him as tokens with which help he can count off different sums without being obliged to do any additional reckoning. The Indian will divide his Beaver Coins into separate piles with which to buy the different goods he needs. At the end, he will have returned to the clerk all coins, since they served him merely as an aid for his calculations. He now knows the relative prices of the amounts of each desired article received and paid for with the contracted loan of 300 Beaver Coins which is credited to him by the Company until next spring, when he expects to pay it back with his furs. As their name already implies the Beaver Coins received their designation from beaver skins or parts of them. The beaver was, in all probability, chosen as a counting unit because of the abundance of this animal all over the region, the relative uniformity of the fur and the steadiness of demand. Today, the first condition has changed so considerably that the Canadian Government was forced to decree that no Indian be allowed to bring back from his winter's hunt more than ten beaver skins, a fact which illustrates the growing scarcity of beavers. In former times, when the Hudson's Bay Company still owned the monopoly on furs, the fur prices to the Indians remained stable for decades and the Indians were able to plan ahead for long periods. Today this has changed through the abolition of the monopoly and the instability of international trade prices which execute an immediate influence even upon the Indians in the interior of Labrador.

If the fur harvest yields about five hundred dollars for a family consisting of husband, wife and, perhaps, three grown-up children, it is today considered to be a good average year.

The legal status of the Beaver Coins is similar to that of another unit frequently mentioned in the ancient documents: the "Made Beaver" (MBr). As in the case of the Beaver Coin the Made Beaver was used only as a measure of counting and reckoning. We shall deal with the conception of the MBr at a later occasion when discussing the tradeways with the Hudson's Bay Company.

At present the Canadian dollar has been accepted as the general means of exchange, and even on the hunting-grounds this money is in general use. The Indian term for "one dollar" is *peyk wapists;* for "half a dollar" is *poshk wapists.* The numbers from one to ten are: *peyk; níshŭ; níshtŭ; näyu; patātich;* ("five" means "one hand"); six: *kwuashtsh;* seven: *nishuāsts;* eight: *nishwăsh;* nine: *peyk'kushtéo;* ten: *nékutolno* ("one man"). There is no idea in the language for "zero." The number forty-seven, for instance, would be described as "four people and seven" (*nāulno āshu nīshuāsts*); one hundred: "ten people" (*peyk metāsh shumitúlno*).

SALE AND BARTER

Sale and barter play an important role during the get-togethers of the individual local bands at the summer places. This does not only concern the trading with the Hudson's Bay Company but also the barter among the different Indian bands. As a rule, credit is granted freely and without interest. The title passes upon the goods changing hands. Simultaneously with the delivery the risks, too, pass on to the buyer. If after the deal has been made a defect is discovered in the bought merchandise, the seller is responsible. The buyer has the right of cancelling the contract, or he may insist upon damages, i.e. a reduction of the purchase price. There is no limitation of time concerning the exercise of either right, but the right may be precluded by circumstances which would make it inequitable.

GIFTS

A gift does not have to be reciprocated by a specific counter-gift and does not create a claim actionable or social. With the act of donation the present becomes the property of the donee. It is not possible to revoke a gift. But, if the donor should be in need, the donee may return to him about half of the consumable goods he received. The gift is not returned, even if the person to whom the present has been made shows an unkind or unfair attitude toward the giver.

LENDING

(*"āu hishi":* "lend it to me")

Lending is as a rule free of charge and is widely practiced by the Indians. It would be unthinkable, however, according to my informants, for a vitally needed object, of which the owner possesses only one piece—as, for instance, a gun, an axe, a canoe—to be lent or asked for. But if the owner possesses more than one of these articles, they may readily become the subject of a loan. Yet, the loan of a canoe for a trip of some length is not gratuitous, such a loan falling rather under the classification of rent. It is paid for with goods agreed upon at the time of the loan rather than with money. The borrower is responsible to the lender for all kinds of injury or damage occurring to the borrowed object and it is of no bearing whether his own carelessness or accidents beyond his control have caused the damage. Traps, on the other hand, are loaned out free of charge. The safekeeping of an entrusted object is gratis, too, but occurs only very rarely. A small voluntary remuneration may be offered and accepted. In no case does the safekeeper have any claim to any payment for the service he rendered. The depositary is responsible for all injuries and damages of the deposited thing only if they were caused by his negligence. If the entrusted object is damaged without his guilt, he is not held responsible for the damage. If by fault of the safekeeper an irreparable damage has rendered the object useless, the depositary has to indemnify the owner in kind.

Loans of money were, of course, originally unknown. Not until the Indians became familiar with the white man's money could they also become familiar with this new institution.

It may be agreed that someone who lends money to a man will get it back with a small percentage of interest. However, the most frequent practice is that of the loan free of interest. Even if the receiver has procured with the aid of the received loan an increase of his property, for instance, by financing a trip to a profitable gold mine, the lender will not ask for any interest or share upon return, unless such a remuneration has been agreed upon in advance.

The Montagnais word for "to lend money" is *"āu hishi shuliáo"* ("lend me money"). Loans of money as well of goods are always bound to a definitely fixed time.

AGENCY

The institution of agency is known to the Indians. If, for instance, an Indian asks a man to take along on his trip a tool or other object owned by a third man and if the traveler agrees to return this object to the third party, such an act is, according to my informants, looked upon as "a little favor" which has to be rewarded with another "little favor," i.e. a small gift. That with these Indians such agencies of execution are not entered upon free of charge may be explained by the fact that the distances are so great to make any agency almost invariably turn into a service contract. I am, of course, aware of the fact that, if no price is agreed upon, we cannot term this half-stage service contract a regular contract in our sense of the law. But how to find a better term?

With the advent of the Hudson's Bay Company the institution of agencies has gained more significance. Any Indian prevented by sickness or other obstacles from turning in his fur bundles in person at the Company's Post will commission one of his relatives or friends to transport his skins to the Hudson's Bay Company manager. Such a commission, as a rule, is free of charge, and since the Company's prices were rather fixed than bargained, there is little essential agency of contracting. Saiko, a cripple forced to move about on his hands and feet, was accustomed to send in his furs by another member of his family whenever he personally was unable to return to the Post during springtime. Mistassini Report of 1835–1836:

> *Saiko* . . . he did not make his appearance here this spring, but he sent his furs in by his nephews.

Mistassini Report of 1837–1838:

> He sent in his furs in the spring by his wife and 1st son.

Another Indian, *Tootcheesaiquen,* commissioned his mother-in-law to bring his furs to the Company (Mistassini Report 1837–1838):

> He passed here on the 11th April but had left his furs, which his mother-in-law brought on the 18th June . . . ;

while in a letter to William M. Kay, dated 11 April, 1829 (Mistassini Post Journal, 1828–1829), Richard Hardisty stated:

> The Timmiskimay Indian *Camatuet* . . . traded 2 MBr of furs belonging to his brother.

Missenhahaigonish, the brother of Nosipatan (Mistassini Report 1829–1830),

> . . . sent his furs in the spring by another Indian. . . . I expect he has some more furs by this time. And whatever he has, he promises to give to the people as they pass him on their way down to Ruperts House.

This case represents a prospective agency in pursuance of a business promise.

Another fact bringing into evidence the existence of the institution of agency is the granting of credits for the purchase of the winter supplies. Here, too, an Indian may commission a family member or a third party to act for him in his name.

On Monday, September 16, 1822, John Walford wrote in the Journal of Mistassini Post:

> *Tuppatabbinose* and *Kawatike* took their debts—they also took debt for their brother *Micoosh.* . . .

The Indian Notoway's commission is recorded in more detail:

> He went to Swobmoothwon last summer, accompanied by his brother, *Napaiskish,* where he traded and took in debt

for himself and other Indians 4 beaver traps, besides some shawls, handkerchiefs, and several other articles. As well as I can learn he took about 7 MBr of furs there on that occasion belonging to himself and 8 MBr belonging to other Indians,

stated Richard Hardisty in the Mistassini Report of 1830–1831. The exhaustive report on the middleman's role undertaken by Nosipatan for the purpose of winning over, for Mistassini Post a group of Indians headed by the chief Meewoppaish, surpasses by far the conception of a mere agency (Mistassini Report 1829–1830).

When the author discussed the institution of agency with the informant Joe Kak'wa, he was told that Joe remembered a certain case from the year 1915. At that time, the agent of the Hudson's Bay Company at Pointe Bleue asked the Mistassini chief George Meta'bi to carry a letter for him to the Mistassini Post of the Hudson's Bay Company.

The Indian was travelling to reach his hunting-ground. His first question was: "How much are you paying me?" and the agent asked him how much he wanted. Meta'bi said: "One dollar" and he got it.

To this story, Kak'wa added:

The boss of the Hudson's Bay Company is the kind of man who loses no money. I'm sure he charged him that dollar with interest on his next winter's supplies without mentioning it.

When the author asked: "And what would have happened if the Indian had lost the letter?" Kak'wa answered with an expression of amazement on his face: "But he already *had the* dollar! So, nothing could happen to him."

SERVICE CONTRACTS

(*uotselshich atustsénenlo:* "help them to work"; *Ka itusset* (worker); *atushkan* (to work). Latin: *locatio conductio operarum*)

Service contracts between the Montagnais-Naskapi are very rare. They may be concluded if, for example, an old couple, getting ready to return to their hunting-grounds for the winter, desire a helper for their household. The wife will contact the mother of some suitable girl to ask her whether or not she may hire her daughter for the coming season in the woods. If the mother refuses her permission, the prospective employer cannot do anything about it. In general, however, it is not customary to refuse the wish of any old persons even if they should be poor and would point out while requesting a household helper that they would be unable to give to the girl any monetary remuneration for her services. In any case, the maid would, naturally, at least get the proper food. Under more favorable conditions the girl might receive about five to ten dollars in cash and, in addition, some clothes or material for dresses. Such a girl joins the family as whose maid she has been engaged only on their actual departure to the hunting-grounds.

Both parties have, according to my information, the right to discontinue the contract at any time. This is only then impossible when employers and girl are in the woods on the hunting-ground without any possibility of immediate return. The master cannot claim damages if the servant leaves before the expiration of the time agreed upon.

If a boy is to be hired, his future employer goes to his father to agree with him in the same manner upon a contract. This boy servant now helps with the hunt, with the setting of the traps and all other men's work. If he really does the job of a man, he receives half of the hunted furs. If besides the hired boy other young men take part in the hunt, the employee will not receive half of the bagged furs but rather a fraction of it or else he receives his share in cash. His salary is not always agreed upon in advance upon conclusion of the contract since the payment varies with his efficiency at the hunt and is calculated accordingly.

Service contracts between the Hudson's Bay Company and the Indians are numerous, but owing to their specific nature they fall more or less into the sphere of white man's law. The Mistassini Reports contain numerous mentionings of service contracts with Indians. The Company hires them as voyageurs, guides, transport workers, servants, and mail carriers. The Indians do not always carry out the received orders to the full satisfaction of the Company because the nature of these service contracts as required by the Company was originally foreign to the Indian mind. The Reports contain numerous complaints about alleged irresponsibility and inclinations to desertion displayed by the Indians. The different managers seem to disagree occasionally as to the amount of the remuneration due to servants. In a letter to Hardisty, dated Ruperts House, July 8, 1829, Beioley revealed that a voyageur received 40 cents a day—i.e., the equivalent of 40 cents paid in goods. In the Mistassini Reports of 1835–1836 William K. Kay named the sum of 35 MBr as the customary payment for one round trip Mistassini-Ruperts House-Mistassini. He stated that

Wapatch . . . still has a large debt remaining, the cause of which is owing to his having been advanced full payment for trip to Rupertshouse last summer and having gone down part of the May, he thought proper to run away from the canoes. For which reason the goods which he has taken on account of trip were all placed to his debt—being 35 MBr, which is the payment for bowsman and steers man from Mistasinny and back hitherto again.

At times a single trip from Ruperts House to Mistassini —the more difficult way into the interior—required from thirty-seven to forty-nine days (Mistassini Post Journal, 1827–1828). On another page, the voyage is described as taking twenty-seven days (Mistassini Post Journal, 1824–1825).

In a letter from Joseph Beioley to Richard Hardisty and William M. Kay dated Ruperts House, August 15,

1828, the former dwelled in detail upon the question of compensation.

There are several objections to the system of remunerating Indians for work and labour performed, by deductions from their outstanding debts—the goods which they receive to pay furs, fur ought to be paid for with furs;—and next summer therefore the Indian voyageurs are to be paid in full for their services with such necessary articles as they may require from the stores, instead of having any deductions made from their outstanding debts. The Indian Powtans who deserted from, and disappointed Mr. Kellock this spring—after engaging as a voyageur—is not on any account to be engaged and employed as a voyageur next summer—neither is he to receive any indulgences—nor any goods in debt from you—but what is necessary to presume him in existence. He is a bad Indian and we can get our business done without making use of his service in transporting goods.

CONTRACTS OF SPECIALIZED MANUFACTURE

(*nchi atustsémao tyäohi tótak postselakanéo:* "I give him a piece of work to do")

Contracts of specialized manufacture are not unknown to the Indians even if, in this case, the Hudson's Bay Company may have contributed toward a more thorough development of the Indian's legal consciousness. We cannot speak of the existence of guilds, not even in their earliest forms, nor even of full specialization for a livelihood, but certain families were known for their outstanding skill in the manufacturing of certain articles. Among the Mistassini, for instance, Robert Moar, the father of Tommy Moar, was a preferred canoe builder, while Maggy Moar's bead work was considered so outstanding that other members of the band ordered boats or needlework from them for which they paid either with money or with bartered goods. With the Lake St. John Band Josèphe Jourdain was a sought after canoe builder while Johnny Conelly was known and respected as a manufacturer of ornamented birch-bark containers. Joe Kak'wa's chieftain's coat was in part the product of Maggy Moar's needlecraft.

SURETYSHIP

Suretyship is known. If someone intends, for instance, to order a complete winter's supply consisting of many items, he may consult a solvent friend known as a good hunter or even the chief himself to ask them to act as his surety. In general, women are not acceptable as sureties, unless they do their own hunting and trapping on their own hunting-grounds.

COLLATERAL SECURITY

Collateral security given by a surety is unknown. A surety is responsible only after the debtor, never together with him. The death of a surety of course terminates his obligation. If a surety wishes to be indemnified by the principal debtor, he has no means of enforcing his claim. He simply has to wait until the debtor chooses to pay; and even the chief himself cannot compel a debtor to pay. But the pressure of public opinion may make him pay, since a right to indemnity is recognized, but no special machinery exists for its enforcement. I tried very hard to get from my informants some indication of a machinery for the enforcement of contract debts, but always, the unanimous answer was "You can do nothing but tell your friends what happened to you." It is worth noting that for a whole sector, and not an unimportant one, of Montagnais-Naskapi law apparently no special machinery exists to enforce the law. But for the ethnologist who has studied the whole set-up of Naskapi society this fact is not so amazing; the Naskapi is very generous concerning property and service of his own. On the other hand, his honesty has developed a high respect for the property and service of his fellow-men. So it seems that the need for the creation of a special machinery to enforce the law of contract debt did not arise and it sufficed to mention the name and the deed of the offender to one's friends. This works in such a way that either the debtor fulfills his obligation or that he loses face with all the consequences involved. My question whether in such cases perhaps the shaman would be approached was answered in the negative. The only machinery which regulates and, to a certain degree, enforces this part of Naskapi law, is public opinion.

TRADEWAYS

PLACES AND TIMES OF TRADING

The Indian trading and gathering places (*ótenú*) have remained almost unchanged since the advent of the whites and the establishment of the Hudson's Bay Company. Posts were almost invariably established at places where the Indians had their traditional summer camps long before the arrival of the white man. As a rule, the white merchant went to the camping places of the Indians to trade his provisions for their precious furs. Only in exceptional cases were Posts established at locations not already designated by tradition—and such posts had indeed but little influence on the yearly migrations of the Indians.

These summer camping places (*nípin tāuin*) had to serve many purposes, because the entire social life of the tribe, or band, found its expression during the short summer months. During the winter the members of the tribe remained in the woods and on their hunting-grounds, where as a rule only a single family or a few families hunted together. There was little opportunity there for them to take part in social, legal, or community activities. All such activities had to be postponed until the summer, when all members of the community met at a well-known and well-defined traditional place, camping close together.

It was here that marriages were performed, quarrels were settled, religious feasts celebrated, bartering and trading took place, gossip was exchanged. These gathering places were always near a body of water and

could easily be reached during summer time, by birch-bark canoe, the Indians' only means of transportation. The great trading season was always the summer, from the end of May to the middle of August. This is the general rule, although there are such cases as that of the Mistassini Indians who, coming to Pointe Bleue from the far North, stay there for merely two weeks, starting back to their hunting-grounds as early as the latter part of June. Those Indians who hunt close to a Post bring in their furs for trading at any time during the year, be it New Year's Day, April, or even October. We learn this from various entries in the Journal of Occurrences of Lake St. John of the year 1846 in which the manager stated the Indians returned on October 18 with the products of their fall hunt. Other remarks in the same journal indicate inter-seasonal trade with the Indians:

December 6th: Paulish's son arrived this afternoon with a few furs.
December 20th: François Atiquapie arrives here this forenoon. He traded a few skins and left immediately afternoon.
December 31st: Thursday. Almost all the Indians belonging to this Post were now here.
April 4th, 1847: Arrive two Indian women with a few skins.
April 28th: Indians brough a few martins.

On May 4, three Indian women "traded some Maple Sugar for a few goods and provisions" and on May 6 an Indian sold "a moose skin."

BARTER AND TRADING AMONG THE INDIANS THEMSELVES

Even though the all-important trading business, namely that between the Indians and the Company, could develop only after the establishment of the Company's Posts, trading between friendly Indian bands was customary in the olden times before the advent of the Company and is still practiced today. Not only did members of one individual Indian band gather at the trading and assembly places, but other Indians came there from far away, in order to barter and to trade especially desirable goods available not at all, or only in inferior quality, in their own regions. In this respect, the Mistassini Indians occupied a rather central position and their short stay made it possible for others to take in both the Mistassini season and some of their own. The Mistassini Reports furnish an instructive picture of the gathering of many Indians from the east, north, west, and south at the Mistassini Band's summer camping place who, if not more closely specified are designated by the writers as "Eastward," "Southward," "Westward," and "Northward" Indians. Close relations seem to have existed especially between the Mistassini and the Ruperts House Bands of the Northwest; the Eastmain Band in the North, and the Nichikun Band in the Northeast. Also Indians belonging to the group of Southern bands are mentioned as visitors to the Mistassini Post, namely, members of the Waswanipi, Têtes de Boule, Lake St. John, and Bersimis Bands. On the other hand, Indians belonging to the Mistassini Post undertook long trips to the neighboring tribes in order to exchange certain goods with them, or even to hunt during the winter with friendly families of other bands. According to the records, the chief Nosipatan especially seems to have been a great traveler who during his lifetime played an international role, so to speak, among the Indians of the interior of Labrador.

Among the trading objects exchanged by the tribes at the gathering places, the following may be mentioned: red and black pipestone as raw material was imported from James Bay with the Ruperts House Indians serving as traders and middlemen. (The red slate stone was called *mekwashini:* "Red Stone.") The Mistassini in turn manufactured pipes from the stone, especially from the red variety, and traded the finished product, artistically decorated and inlaid with lead ornaments, with the Southward Indians, as far south as the St. Lawrence Bands. The northerly tribes, including the northward hunting Mistassini Indians, obtained moose skins from the Southward Indians by trading, since the moose no longer existed in the northern region. Even today Indians of the northern bands make special trips to Chibougamau in the Mistassini region in order to procure the desired moose skins. The Nichikun Indians, on whose hunting grounds porcupines were plentiful, brought to Mistassini porcupine quills which, in the olden times, were, according to my informants, used for the decoration of moccasins, skin bags, and pouches. In the region of the southern Mistassini near Chibougamau a mountain, "paint hill" to the Indians, yields mercuric oxide, the precious vermilion. The Indians claim that this is the only place in the whole region where this product can be found. In order to procure this vermilion, the Indians of the neighboring tribes traveled there from far away. They use the red color for the decoration of their canoes and other birch-bark articles. Red is still the favorite color of these Indians and their characteristic fashion. The red dye of Chibougamau seems, however, not to have been an object of trade, since any Indian, even members of another band, could apparently go there to get his own supply of the color without payment and without asking anybody's permission, but only as much of it as he himself needed and by no means any larger amount. All informants agree that it was strictly forbidden to sell the vermilion. Today, the source of this dye is the property of a mining concern which bought the mountain because gold had been found in its neighborhood. The Indians now buy their supplies of red color from the Hudson's Bay Company in the form of aniline paint.

Other objects of barter are animal skins, castoreum, and birch bark for the manufacture of household articles. Food supplies are not traded among the Indians; in case of need, they are either borrowed or offered as a gift. If any Indian should refuse to share some of his surplus with someone in need, misfortune would befall him

and his family. It seems that the Mistassini for the most part traded finished products, for their toboggans and birch-bark canoes were in demand and the snowshoes, the bead-studded leather goods, and the ornamented birch-bark containers manufactured by them, were most desirable objects of trade with their neighbors. After the establishment of the Hudson's Bay Company, steel traps—especially beaver traps—became a desirable object of barter among the Indians, a fact frequently stressed in the Mistassini Reports.

With the appearance of the white man and his trading companies, the emphasis of trading has shifted in favor of business between the Company on one side and the Indians as a whole on the other. The trading company, in our case the Hudson's Bay Company, is the one partner in the trading contract while the Indian who sells his furs, etc., to that firm in exchange for supplies, is the other. The advent of the Hudson's Bay Company undoubtedly created deep repercussions in the economic life of the trading practices of the Indians. Gunpowder and lead replaced bow and arrow; instead of wooden traps built by the native trapper himself, steel traps were purchased; the traditional native clothing and housing were discarded in favor of the white man's clothes and tents. But, on the other side, the Company gave to the Indians the security of constant demand and a steady market for their trading objects and animal skins. An element of security was introduced into their lives—should they survive the winters in the woods without dying of starvation or disease, and transport the bulk of their furs safely to the Hudson's Bay Company Post.

THE SELLERS AND THE MERCHANDISE

The Indians have just arrived in their canoes at the camping place of their band. Their tents are about to be put up on the exact spot prescribed by tradition over the years. The goods they have brought back from the woods may be of many varieties. Besides the precious furs—beaver, mink, muskrat, and fox—they may have bear, caribou, or moose skins. The main objects of trade are the furs, but in former times venison was also frequently traded, as well as birch bark for the manufacturing of canoes—castoreum (as bait for their traps), and maple sugar.

At times, it must have been extremely difficult for the managers of the Hudson's Bay Company to trade enough birch bark for the manufacture and repair of their canoes from the Indians. In his reports to his superiors for the years 1829–1830 and 1830–1831 Richard Hardisty, the manager of Mistassini Post, got nearly frantic in this matter.

Mistassini Report 1828–1830

Mishell was here in May last in company with Joan Moar and brought some canoe bark with him. He promised me he would be here again some time in the summer and bring with him as much canoe bark as will build one large canoe, and more, if he can find it.

Mistassini Report 1830–1831

I have not been so fortunate in procuring canoe bark as I expected to have been. Only one small roll was procured from the Mistasinny Indians during the year—the whole of which has been used for putting in repair the two Mistassini canoes required for this summer's service and 6 fathoms from Pine Lake (traded here by the Indian Mishell) all of which has been supplied to Timmiskimay Post. The bark which Mr. Rich. Thomas acquainted me in the course of the winter 1829–30 that he expected to receive at Pike Lake from his Indian Otowwyhow in the summer does not appear to have been brought in there by that Indian. Consequently—notwithstanding Mr. R. Thomas informed me in his letter dated Jan. 20th (Vide Journal p. 41) tis his Indians promised to bring some bark to Pike Lake in the spring. I am afraid very little dependence can be placed upon this post being supplied with near so much bark from Pike Lake as will be sufficient to build the requisite number of canoes for Mistasinny and Timmiskimay posts for service 1831–32. I will endeavour to send to Pike Lake in the course of the summer whatever bark may by that time have been procured there—and shall also continue to do everything in my power to prevail on the Mistassiny Indians to procure some for us likewise, but judging from the small quantity of bark that the Mistasinny Indians have ever yet been in the habit of bringing to the Post, nothwithstanding they are repeatedly spoken to on the subject—no hopes can be entertained of getting much from them. They all say that there is no bark to be found without going near to Woswonaby. When the Indian Mishell was attached to this Post most of the bark made use of here was procured from him—but since he ran off from here in the fall of 1827 to go to Swobmooshwon—Mistsinny has been much distressed for that article.

The fur bundles are packed in a way sanctioned by tradition; they are about nine inches to one foot high, eighteen inches to two feet long, and one foot to eighteen inches wide. Their average weight is twenty-five pounds.

Such a bundle contains all sorts of skins. Even if there were enough minks or martens to make separate bundles, the contents of each package is invariably mixed. An average package may contain beaver, mink, marten, otter, fox, and ermine pelts. Only skins of lesser value are packed in sorted bundles: muskrat, bear, moose, deer, etc. Rabbit skins are not objects of trade with the Company. However, they are sometimes traded among the Indians themselves, since they are used to make blankets.

The reactions and actions of the Indians after their return from the woods in connection with the sale of their furs to the trader may find entirely different expressions. Contact with the white world in modern times has created, especially in the border regions of civilization, certain characteristic types of Indian fur sellers. There is first the conservative Indian, attached to the Company by habit and tradition. Such Indians will, as in the olden times, pick up their fur packs to go immediately upon their return to the Hudson's Bay Company store, while their family is pitching the tent. Bashfully opening the door, they will throw down their bundles, take off their hats and wait until they are addressed by the manager.

The second type of Indian is that of the more modern youngster who is, from the point of view of the Company, not as trustworthy. He may often break away from the Company and, since the abolishment of the Company's trading monopoly, he may be ready to sell his furs to other merchants.

A third type of Indian shuns the Company's store altogether. Carefully registering minute reports concerning their hunting success, such Indians prefer to wait in their tents for a buyer in the belief that they may get a better offer there. If for some reason such a hunter dislikes a trader, he will pretend to possess no furs at all. But he will show his furs to any other trader who happens to pass by and will sell to the one who pays him the highest price. If a buyer makes an offer, the Indian's wife will frequently interfere and may remark, in the hope of boosting the price: "Wait for the other fellow!"

Each Indian who is of age and who trades with the Company usually has his own account and the manager, of course, knows his customers very well. He knows who is to be trusted with credit because he knows who is a good hunter.

When an Indian has just arrived back from the hunting-grounds he does not, as a rule, stay long on his first visit to the store. He asks for some tea or tobacco for which he does not pay in cash since the price of such purchases will be charged to his personal account. Then he leaves, making an appointment with the manager for a second visit. It is entirely up to the hunter to determine at what date and time he is to trade his furs, and in many cases the Indian will wait until his friends have also arrived. He is by no means in a hurry to take up the strenuous business of trading.

As a rule, only the men carry on the trading business. In very rare cases a man may be accompanied by his wife. Even unmarried daughters sometimes have furs of their own, but most of them are too shy to accompany their fathers to the store. They usually wait for the moment when the merchant passes their tent and makes an offer for their furs. The girls always keep these few skins with them in the tent and may keep the money received for them. Small boys often take some squirrel or even mink or muskrat furs to the store, shouting even from a distance: *"Pepramint!"* for all they want in return is some peppermint drops. It also may happen that a three-year old toddler enters the store, skin in hand, shouting but one word: *"Stemáo!"* ("tobacco!").

A widow who has hunted on her deceased husband's lands brings in her own furs for trading. Her grown-up sons who have hunted with her invariably bring in their furs separately and have their own accounts. Only if their mother is very old and no longer able to hunt herself do the sons keep a joint account with her; such an account is kept in the name of one of the sons.

The actual trading business starts some days after the arrival of the Indians at the assembly place. In the old times it sometimes happened that all the married men, led by the chief, brought their fur bundles jointly to the store and then enjoyed a mutual all-around smoke. The delivery of fur bundles to the Company was, thus, in the past somewhat more ceremonial. At some posts the Indians received small gifts from the Company at the beginning of the trading season: tobacco, some yards of cloth for the wife, or sweets for the children. Today this custom does not exist any more.

If the manager does not speak the native language, the Company is always served by an interpreter who acts as a confidant of the firm during the negotiations. In Pointe Bleue this work has been efficiently done for years by Tommy Moar. Sometimes, the Indian trader is accompanied by his own interpreter.

Each Indian knows his own fur bundles. He either recognizes them by the way in which they are wrapped or tied together, or, more often, his own identification mark is stamped or painted on the skins. Frequent patterns of identification are a cross, a circle, or the quaintly written name of the owner. The Hudson's Bay Company designates these fur bundles in their account books either as "fur packs" or, with a French expression, as *"pactons."*

THE PROCEDURE OF SELLING

The Indian himself opens his packages. He is very proud if he arrives with many skins, because then he feels that he is a great hunter. Sometimes he does not show up at the gathering places if his fur pack is too small. In such a case he is afraid of losing face with his friends. In the Mistassini Report of the year 1839–1840 W. M. Kay wrote of the Indian, Tootchesaiquon:

> I think the cause for his not coming in the spring is owing to his having made a poor hunt, as he wishes to be considered a great man among the Indians.

If he notices other bundles in the store, he will ask the identity of their owners.

Inside the package, the furs have been arranged according to the species of animal. Beaver furs, which are the largest, usually lie at the bottom of the bundle. The hair of all skins is always turned toward the inside. If an Indian has brought a few bear, moose, or caribou skins he will pack them in separate bundles.

The trading business is informal, the whole procedure consisting in verbal agreement only, without any written formalities. It is always transacted in the private office of the Hudson's Bay Company's manager. There are no witnesses except the interpreter who, however, has no part in the proceedings but limits his activities exclusively to the translation of what both parties are saying.

Spreading out his furs on the counter, the Indian will pick out an unusually beautiful skin, will shake it a bit and ask shrewdly: "How much are you paying for this?" According to his business abilities, the skin he picked out may be the smallest or the largest of the lot. The manager gives him a good price which, however, is of

no practical significance since the Indian never finds out the exact price of each individual skin. He only wants to know whether he will get enough money from his furs to pay his debts and to be able to get a good load of provisions for the coming winter season. The manager has a good look at the furs and names the final lump price he is willing to pay to the seller.

Each Indian knows the approximate value of his furs, but he has no positive notion of monetary value. The darker and silkier the fur is, the more valuable. The total amount of money an Indian gets for his furs is kept a secret, known only to himself and to the Company. If he brings a number of fur bundles, all are opened at the same time and he is told the total. The Indian does not bargain much for his wares. It is true that both sides try to change the price a bit by praising or belittling the skins, but even if they do not come to an immediate agreement there is no special joy in haggling. This oriental passion, so common among many African peoples, is unknown to the Indians. Usually, both parties modify their first demands.

The preparation of the different skins for sale varies. With the exception of bear, caribou, and moose, the skins consist of the pelts of whole animals, including the head. In the case of the beaver the legs are cut off, leaving only short stumps. The skin has been stretched in an elongated oval, so that the shape of the head has become almost unrecognizable. This form is produced by making, after the animal has been killed, the first slash underneath the throat and by pulling the skin over the head, thereby bringing the openings of mouth, nose and eyes not near the margin of the skin but rather toward its center. With the muskrat, the hind legs are gashed and a small cut is made from mouth to throat, after which the whole skin is pulled over the head. The only skin which is delivered with the hair turned outside is the fox, whose legs are slashed before the pelt is pulled off the body. The skins of all fur animals, except the beaver and the muskrat, are delivered with the tails still on.

Under normal conditions the Indian, after paying his debts from the preceding year, possesses a quite handsome surplus which, however, he rarely receives in cash, and if at all only in partial payments. The surplus is kept mainly for the purchase of the summer provisions and, partly, as an advance down payment on the next year's winter provisions. After the deal has been concluded the Indian usually buys some small gifts for his wife and children, perhaps some sweets or the material for a dress.

The Indian has the habit of keeping one skin, which he reserves for the priest or the missionary. If he doesn't like his spiritual adviser too well, he will choose a skin of smaller value. He delivers his gift in person to the priest who quite frequently sustains the mission from such gifts. In the woods, the Indians place furs instead of money upon the missionary's collection plate, and the priest sells these furs to the merchant who pays best—and this is not always the Hudson's Bay Company. The above is a description of the usual procedure of fur selling and buying. There is, however, especially in the border region, another type of Indian who acts somewhat differently. Such an Indian enters the store, hands in pockets. He carries no fur packs but buys cigarettes, flour, lard, and other merchandise. He asks the price, and then suddenly produces a mink skin from out of his pockets. When he is given a price for the skin he finds it too low. He fumbles around with the skin as if he intended to pay with it after all, but then puts it back again. After such maneuvers he finally decides to use the mink skin to pay for the merchandise. If it is not enough to cover the amount of his purchase he may suddenly produce another mink skin from another pocket. New bargaining starts, until he has paid for all he has received. The clerk may then asked him: "Do you possess some more skins?" The Indian pretends to be surprised by this question and behaves as though he never had heard of any furs before. Later on, however, he will return again and again, selling his skins piece by piece to get merchandise in exchange. This type of Indian does not enjoy the benefits of a winter supply which the more conservative Indian gets on credit from the Company. With him, only cash deals are closed. He receives no credit.

The cooperation between the Hudson's Bay Company and the older Indians adheres closely to the old-established forms, but in the case of the present-day younger generation this relationship is rapidly breaking down.

The manager of Pointe Bleue reported to the author a case in which the grandfather, an old "Company Indian," delivered his furs regularly to the Company each year and could, therefore, be fairly confident of enjoying an economically secure winter. His son first tried to do business with other traders but returned to the Company and had remained faithful with it ever since. The grandson, however, was in the habit of not only breaking his hunt around Christmas, but also of immediately spending the money received for his furs for alcohol. (Indian reservations are under strict prohibition law. White men who sell liquor to the Indians are punished with heavy fines. Nevertheless, bootlegging is a sad but widespread occupation of irresponsible individuals.) With the approach of autumn the grandson naturally had no chance to get winter supplies and was forced to live from hand to mouth. He had solemnly promised the Company on two occasions to change his conduct and had thereafter received two winters' supplies on credit. The debt, however, was not repaid. His father's promise to look after him was useless, as the son did not hunt with him but with his young wife on his father-in-law's hunting-ground. At the beginning of the third year the young man was again without a winter supply. This was now furnished him by his father who

had it charged on his personal account, but with the reservation that the son now join him on his old hunting-ground and pay his new debt with the approaching winter's catch. This was actually done since the father could keep an eye on the son, but payment was made only for the one-year's supply. There is no known record of what happened to the previous debt.

It happens only on very rare occasions that an Indian who returns in the spring is willing to give some of his furs to another Indian to enable him to pay his debts with the Company.

PRICES AND ACCOUNTING

Besides the Beaver Coins already described another unit of evaluation was used, the so-called "Made Beaver," abbreviated in the Company's accounts as MBr. It is difficult to describe exactly the value of one MBr, since it is not directly defined in the Mistassini Reports and it is also not stated in what proportion the furs themselves were evaluated whenever the MBr was used as an entity of calculation. Only in one instance, in the Journal of Mistassini Post of the year 1824–1825, do we find a reference concerning the value of one MBr, and there also only by implication. John Walford, then clerk at Mistassini Post, complained about the exorbitant prices paid by the Company's competitor at Swabmooshswan. On September 18, 1824, he stated:

> They give three times as much goods to the Indians for their furs as we do, of some articles with them a beaver skin is 3 MBr, a male marten 2 MBr, a female marten 1 MBr, a prime otter skin 6 MBr, a common otter 3 MBr. The Indians get 3 lbs. gunpowder for a beaver skin—1 blanket of four points for six male marten skins—a fine gun for two otters—a bag of flour at Chicoutimi for six Muskrat skins, a blanket of three points for 1 black bear and other things proportionally cheap.

And, in his record of January 28, 1825, he added:

> These boys informed us that in December last they saw their uncle Nosipatan somewhat beyond Little Mistassini Lake who said that he and the Eastward Indians had last spring been to a Post called Mihtinicup, situated at the coastmar or at the Gulf of St. Lawrence—that the people there traded very liberally and gave them a great deal for their furs but no presents, that they get a woman's coat of good cloth for a beaver and a martin skin, and a gun for 2 otter skins. That the furs were reckoned as follows: an otter skin 10 MBr; a beaver, full grown, 5 MBr; a male martin 3 MBr; a female 2 MBr; a mink 1 MBr.

From this may be concluded that the competitors at Swabmooshswan were at this time paying—at least to preferred prospects—three times higher prices than the Company and those at Mihtinicup even more. While at Mistassini a beaver skin was counted as 1 MBr, the Company's competitors paid three and five MBr respectively for the same skin. In the same year Chief Trader J. Clouston announced in a letter dated January 29, 1825 ("Journal Mistassinie Expedition") the prices paid by another competitor:

> Saykon informs me that it was at Pathlicoman where "Presque Verrcout" came to their tent about the time of the new moon in March last, Saykon had then 6 large beaver and 2 cub beaver and 4 martins for which Presque gave him 2 of the large beaver traps, 1 shawl and as much calico as made a frock for one of his boys (about 3 years old), exclusive for ammunition and a little tobacco.

The commercial year closes as a rule on May 31. The Indian accounts are balanced by that date and the balances are carried forward to the next year for the winter's supply. The Hudson's Bay Company clerk has a great deal of work to do. He is supposed to make the annual balance and to send reports to his superiors, as well as to sell merchandise to the Indians at their camping places.

For obvious reasons it is not possible to publish here the accounts of Indians now trading with any Post of the Hudson's Bay Company. As an example, however, the account may be published here of an Indian family by the name of Chilnish who already belonged to Mistassini Post in the year of 1864–1865. At that time there was no more calculating with MBr which had now been replaced by dollars and cents. It may be interesting to compare the purchases in this account with the purchases of the Indian Joseph Basil at Pointe Bleue of July, 1935, and of another Pointe Bleue Indian of August 29, 1935 (see p. 451).

1864	PIRRE CHILNISH	*D*	*Cr*
Oct. 16	By 30 large beaver	....	$60.00
Oct. 16	By 19 small beaver	....	19.00
Oct. 16	By 13 musquash	....	1.30
Oct. 16	By 1 prime mink	....	2.00
Oct. 16	By 2 comm. otters	....	8.00
	To Goods		
	40 lbs flour	2.00	....
	2 plugs tobacco	.12	....
	2 lbs pork	.30	....
	1 lb sugar	.20	....
	By note of hand gd. shoes Rep.	31.00	....
	1¼ yard flannel	.63	....
	20 lbs shot	2.00	....
	3 lbs powder	1.50	....
	1 blanket, 3 points	3.50	....
	1 blue coat, 4 ells	5.00	....
	12 yards white flannel	6.00	....
	20 plugs tobacco	1.00	....
	1 brl flour	10.00	....
	9 yrds red flannel	4.50	....
	1 middle axe	1.20	....
	1 small dto.	1.00	....
1 ipie saw fill 20; 14 lbs pork 2.10; 5 lbs sugar 100		3.30	....
1 handkf. 25; 1 knife 25; 2 dz. G. Flints 20		.70	....
1 pce codline 100; 1 dz. box matches 60		1.60	....
1 g. frock 150; 1 fine dressing comb 35		1.85	....
1 woolen shawl 1.50; 3½ yds étoffe 4.20		5.70	....
1 blue blanket 3½ pts. 450; 2 lbs tea 160		6.10	....
½ gallon molasses 50; 1 pr men's stockings 50		1.00	....
2 reels thread 10; 3 pipes 3		.13	....
		$90.33	$90.33

1864	MARY CHILNISH	*D*	*Cr.*
Oct. 18	By 3 small beaver	....	$3.00
By goods	To 3 yds. white flannel	$1.50	....
	1 pr long stockings	.80	....
	1 cotton handkf.	.25	....
	1 knife	.25	....
	1 lift thread	.12	....
	1 row pins	.08	....
		$3.00	$3.00

1864	PIRRE CHILNISH	*D*	*Cr.*
Dec. 27	By 2 prime lynx	....	4.00
	100 lbs. flour	4.00	....
		$4.00	$4.00

1864	PIRRE CHILNISH	*D*	*Cr.*
Dec. 27	By 1 prime otter	....	6.00
	To 14 lb. porc 2.10; 1¼ lb. tea 100	3.10	....
	To 1 lb. tobacco 70; 12 box matches 60	1.30	....
	By 1 pocket knife 37	.37	....
	To note of hand Lgd. Skoss 27th Dec.	1.23	....
		$6.00	$6.00

1865	CHILNISH	*D*	*Cr.*
April 5	By 4 large beaver	....	8.00
	By 4 small beaver	....	4.00
	By 1 prime lynx	....	2.50
	By 2 prime ermine	....	.10
	By 1 prime squirrel	....	.03
	To 10 lbs. shot 1.00; 4 lbs powder 2.00; 80 lbs flour 4	7.00	....
	To 17 plgs tobacco 1.00; 1 lb black tea 100	2.00	....
	To 6¾ lbs. pork 1.00; 1 lb salmon twine 60; 2 box capes 1.26	2.86	....
	To 1 flat file 40; 8 box matches 40; 8 lfts threat 32	1.12	....
	To 1 pocket knife 37; 1 paper needles 13	.50	....
	To 3½ yards striped cotton 1.05; 1 lb ball 10	1.15	....
		$14.63	$14.63

1865	CHILNISH	*D*	*Cr.*
June 15	By 10 large beaver 20.–; 7 small beaver	....	27.00
June 15	By 12 musquash (1.50), 2 prim. lynx (5.00)	....	6.50
June 15	By 2 pr. lynx (4.00), 2 pr. bears (16.00)	....	20.00
June 15	By 1 pr. mink	....	2.00
June 15	To cash	29.29	....
June 15	To 8 yds. dress stuff	1.60	....
June 15	To 1 pr. moleskin trousers	2.50	....
June 15	To 1 white cotton shirt	1.50	....
June 15	To 6 plugs tobacco	.35	....
June 15	To 1 large cotton shawl	.80	....
June 15	To 1 slpd. cotton short	1.50	....
June 15	By 2 large, 1 small beaver	....	5.00
June 15	By 2 musquash	....	.25
June 15	To amount of account	13.00	....
June 17	To ½ Barrel flour	5.00	....
June 17	To 13 lbs. pork, 1.98.—½ lb. tea	2.75	....
June 17	To 17 plugs tobacco	1.00	....
June 17	To 1 glen cap	.75	....
June 17	To 1 dz. pins	.10	....
June 17	To 6 lbs. flour (30), 2 lbs. pork	.61	....
		$60.75	$60.75

1865	CHILNISH SON	*D*	*Cr.*
June 15	By 1 large beaver (2.00), 1 pr. lynx (2.00)	....	4.00
June 15	By 3 musquash (0.37), 1 pr. bear (7.00)	....	7.37
June 16	To 2 yards étoffe	2.40	....
June 16	To 1 spr. cotton shirt	1.50	....
June 17	To 1 spr. cotton shirt	1.50	....
June 17	To 4½ yards étoffe	5.97	....
		$11.37	$11.37

1865	PROMPT TRADE FOR FURS CHILNISH WIFE	*D*	*Cr.*
June 15	By 1 pr. bear 4.00, 2 pr. mink 4.00	....	8.00
June 15	By 1 comm. marten 1.50; 2 sm. beaver 0.40	....	1.90
June 17	To cash	4.00	....
June 17	To 2 pr. stockings	1.60	....
June 17	To 1 fine comp, 1 large comp	.45	....
June 17	To 1 white shirt	1.50	....
June 17	To cash	2.35	....
		$9.90	$9.90

1865	CHILNISH WIFE	*D*	*Cr.*
June	By 2½ lbs Castorum	....	2.50
June 17	To 5 lbs sugar ds. print	1.25	....
June 17	To 2 yards dress stuff	.40	....
June 17	To soap 20, cast 65	.85	....
		$2.50	$2.50

The report which the manager sends to his superiors consists mainly of a survey of the past trade year and of the increase or decrease of sale and profit. These reports make up, so to speak, a history of commerce for the region and furnish us with a clear picture of the hunting results of each year.

The following pages give the comparative statistics of trade for the years 1827–1828 to 1830–1831, compiled by the managers of the Hudson's Bay Company Post at Mistassini.

A COMPARATIVE STATEMENT OF THE TRADES AT MISTASSINY POST 1827–1828 AND 1828–1829

	Trade of 1827–1828	Trade of 1828–1829	Increase on trade 1828–1829	Decrease on trade 1828–1829
Bears, black, large, prime, No.	—	5		
Do., black, small, prime, No..	—	6		
Do., black, large, comn., No...	15	4	3	—
Do., black, small, comn., No..	—	3		
Beaver, whole	335	389	54	—
Do., half	216	244	28	—
Castorum, lbs.	26	31	5	—
Cats, large, prime, No.	—	7		
Do., small, prime, No.	5	2	6	
Do., small, stages No.	—	2		
Fox, cross, prime	—	2	2	—
Do., cross, D and S[1]	—	—	—	—
Do., red, prime	2	1	—	1
Do., silver	1	2	1	—
Do., D and S.	—	1	1	—
Martins, prime	240	258	18	—
Do., Comn. D and S.	16	48	32	—
Minks	11	19	8	—
Musquash	1505	896	—	609
Otters, large, prime	—	66		
Do., small	—	1		
Do., large, common	135	50	8	
Do., small		26		

The trade of this Post for the past year as traded from the Indians amounts to 1087½ Made Beaver of furs and castorum—it is more than last year in every description of fur—excepting in musquash and red foxes—the former being 609 and the latter one less than last year. 34 Made Beaver of the Increase may be attributed to the addition to this post of the Indian Pimassom, he being transferred from Timmiskimay to this post last summer. The principal increase however is occasioned by the Southward Indians having hunted considerably more than last year.

To Jos. Beioley, Esq.
Chief Factor

Mistasinny Post, June 1st, 1829
RICHARD HARDISTY.

[1] D and S stand for "damaged" and "staged."

A COMPARATIVE STATEMENT OF THE TRADES OF MISTASINNY POST 1828–1829 AND 1829–1830

	1828–1829	1829–1830	Increase 1829–1830	Decrease 1829–1830
Bears, large black prime No.	5	3	—	2
Do., small black prime No.	6	2	—	4
Do., large black common No.	4	4	—	—
Beaver, whole No.	389	447	58	—
Do., half No.	244	308	64	—
Castorum, lbs.	31	38½	7½	—
Cats, large prime No.	7	8	1	—
Do., small No.	2	4	2	—
Fox, red, prime No.	1	—	—	1
Do., cross prime No.	2	1	—	1
Do., silver prime No.	2	—	—	2
Do., silver, D. and S. No.	1	—	—	1
Martins, prime, D. and S. No.	258	223	—	35
Do., D and S No.	48	61	13	—
Minks No.	19	27	8	—
Musquash No.	896	633	—	263
Otters, large prime No.	66	84	18	—
Do., small prime No.	1	—	—	1
Do., large common No.	50	58	8	—
Do., small common No.	26	27	1	—
Wolverines No.	—	2	2	—

Mistasinny Post
June 1st, 1830
RICHARD HARDISTY.

COMPARATIVE STATEMENT OF THE TRADES OF MISTASINNY POST 1829–1830 AND 1830–1831

	1829–1830	1830–1831	Decrease 1830–1831	Increase 1830–1831
Bears, large prime No.	3	10	—	7
Bears, small prime No.	2	5	—	3
Bears, large, common, No.	4	4	—	—
Beaver, whole No.	452	514	—	62
Beaver, half No.	312	306	6	—
Beaver, very small No.	—	5	—	5
Cats, large prime No.	8	21	—	13
Cats, small prime No.	4	11	—	7
Cats, large, staged No.	—	2	—	2
Cats, small, staged No.	—	2	—	2
Castorum, lbs.	38½	43	—	4½
Foxes, cross, prime No.	1	—	1	—
Martins, prime No.	223	504	—	281
Martins, damaged and staged No.	61	93	—	32
Minks No.	27	28	—	1
Musquash No.	645	663	—	18
Otters, large prime No.	89	97	—	8
Otters, small common No.	27	33	—	6
Otters, large common No.	60	46	14	—
Otters, large Drest No.	—	1	—	1
Wolverines, No.	2	—	2	—

Mistasinny Post,
June 16th, 1831

I now beg to conclude by subscribing myself with much respect

Dear Sir
Your most obedient and very humble servant
RICHARD HARDISTY

To Josh Beioley, Esq.
Chief Factor

THE SUMMER SUPPLY

During the Indians' short stay in the summer at Pointe Bleue, a period of merely a few weeks or months, almost all articles of food consumed there are bought in the store of the Hudson's Bay Company Post. Additional food is furnished by rabbits, partridges, and fish and, occasionally, by a stray moose that comes near the reservation.

The Indians, while still enjoying themselves on the summer places, are at the same time slowly preparing for their departure for the fall and winter hunts. Summer food is usually not paid for in cash but is taken on credit, to be paid for the following year. However, all articles considered as luxuries, as well as wearing apparel, are paid for in cash. All food is bought by the men. Women buy dresses, blankets, children's goods, and other small objects. If a man goes shopping for food on a larger scale, his wife generally accompanies him.

Even if there is money enough at hand it is not customary to pay in cash for such merchandise as staple food used during the summer. There are some Indians who like to pay cash for everything they acquire during the first month, but all their later purchases are taken on credit. But as a rule only luxuries are paid for in cash and not the necessary food. When the Indians return from the woods, they have a vast appetite for all the things unavailable in the wilderness which now appear as the greatest of luxuries, such as pickles, mustard, sweets, etc. All that women need for the making and decoration of moccasins, such as beads and silk ribbons, is bought by them alone, as well as combs, soap, and similar what-nots. Soap is a much-desired article, but is used much less for washing than for the processing of furs and pelts.

The manufacturing of moccasins and their sale to the Company is women's work. They get paid for it in cash. The manager, however, generally tries to induce them to spend their earnings on other goods sold by the Company.

Girls and women keep the money thus earned for themselves, but a young girl will usually spend some of her money for household goods (sugar, tea, etc.) so that, after all, the whole family benefits from her earnings. If the number of moccasins to be sold is unusually large, the husband will occasionally accompany his wife to the store and receive some gift from the Company for himself. If the women comes alone she will not buy anything for her husband but only for herself, the children, and the household.

Snowshoes represent a much higher value than moccasins; they are partly men's work, since it is the men who carve the frames. Consequently, snowshoes are traded by the man. With the amount received he will buy goods for the household and for himself, with a little "luxury" gift for his wife—perhaps a dress, a small pin, or the like.

As a "beautiful" color, red is preferred, especially when the Indians are at their summer camps. Young men like to wear red shirts. But this is only a fashion for the youngsters. Old experienced Indians prefer dark and unspectacular colors so as not to frighten away the wild animals.

THE WINTER SUPPLY

When the day of departure for the fall and winter hunt approaches, the Indian must think of the winter supplies he wants to take along. As a rule, the man takes care of his winter supply, buying all that the family will need during the cold season: flour, lard, tea, tools, guns, traps, nets, cords, snares, knives, and other necessities. Just as they do in the civilized world, the attitudes of buyers differ. Some want to inspect closely every item they buy, others are not much interested in details. Only very few Indians ask the price of each single article they purchase.

When most of the important purchases have been made, the man brings his wife and children to the store and buys first the things she needs, then the children's clothing. His own needs, such as his personal winter outfit, come last. If he buys clothing for himself in larger quantities, he will ask his wife's advice.

The Indian does not want to see any itemized or specific bill. Before making his purchase he is asked how much he wants to spend. He ponders over this. If in the previous year he received three hundred dollars for his furs, he will probably say that he does not want to spend more than this amount. There are Indians, however, who are not interested at all in the price as such. They try to get as many goods as they can on credit. Sometimes an Indian watches another get more supplies than he received. The chances are that he will not fail to point out then that he is a much better hunter than the other fellow, and that the Company does not treat him fairly.

He first buys his food supplies and then asks for the total amount. He later buys the women's things and again is only interested in the total price. The articles which are for personal use and pleasure such as, for instance, women's dresses, are immediately taken along. The other merchandise is sent to their tent.

When the entire winter supply has been purchased, the Indian asks: "How many debts do I have?" and is told the total amount. When he hears this sum in the fall, he generally raises no objections. In spring, however, when he returns with his furs, he may say: "My debt was too high. I am unable to pay for all of it." During the winter a customer may forget the amount he owes and may ask for it again in the spring, and at that time he is apt to consider it as too high. In such a case he is allowed a glimpse into the Indians' account book after which he will say, quite satisfied: "Perhaps you are right."

There are hardly any arguments between husband,

wife, and children. No one gets angry because he wants to buy something the family cannot afford. Young girls never make debts on their father's account without first procuring his consent.

Mr. Fawley, in 1935 manager of the Hudson's Bay Company Post at Pointe Bleue, has introduced the custom of having the Indians hand in a written order when making large purchases. This prevents future unpleasant complaints or arguments. The Indians do not learn to write their own language, but during the few months at the summer camps they receive some instruction in French or in English from the missionaries. It is, therefore, astonishing to see how many Indians teach themselves how to write their own language phonetically. Naturally, such purchasing orders are not written in correct phonetics—but the Hudson's Bay Company clerk is certainly able to read them and to keep them on file. When the Indian who wants to submit a purchase order is unable to write, another man will do it for him.

In Pointe Bleue there are about fifty Indian families who within one month must be supplied for the winter. It is therefore much better for all concerned when written orders are at hand. The Indian reads each article he wants as recorded on his own slip of paper or piece of birch bark and the clerk takes down the different items according to his dictation.

Following are two commercial orders as written by two Indians, one on rough paper, the other on birch bark. The original wording has been retained in order to give a picture of the peculiar spelling.

COMMERCIAL ORDER 1

(Written on packing paper on July 30, 1935, by an Indian—Joseph Basil—of the Lake St. John Band)

Original 1935		*English* 1935	
30		30	
Juton p· Sham		July	
Joseph Bashid		Joseph Basil	
MushKuotS	4	Flour	3 (sacs)
p·m·[2]	4	Lard	4 (pails)
KuKuh	30	Porc	30 (pounds)
KaShiuaS	25	Sugar	25 (pounds)
ShiutaKm	20	Salt	20 (pounds)
Koup·plit	12	Baking powder	12 (pounds)
Shauts	20	Beans	20 (pounds)
pap·tum·n[3]	15	Rice	15 (pounds)
tutush p·m·	20	Butter	20 (pounds)
Sh·ptsh·Kn	2	Files	2 (pieces)
ushtushK	2	Axes	2 (pieces)
Bak ma Shi	1	Gunpowder and shot	1[4]
muKmanis	1	Pocket knife	1 (piece)
ShaptnKn	1	Needles	1 (package)
ShiShtuk[i]ap·	4	Thread	4 (reels)

[2] The letter i is often used as a so-called "debased i," as a point only without the letter under it.

[3] *Papitumin* or *papumints*, the Naskapi word for "rice," means, literally, "laughing berries." At the summer place, the natives often heard the French term for rice, namely *riz*. They were also familiar with the identically sounding word *rit* (from *rire*), meaning "(he) laughs." Promptly, they took both words for one with the one meaning of laughing and translated the "laughing" *riz* back into their own language, *papu* denoting "one laughs"; *min(ts)* meaning berry or fruit. Consequently, rice, the "laughing berry," became to them *papumints* or, as spelled in the above, *papitumin(ts)*. I am indebted to my friend Frank G. Speck for this information (letter of August 21, 1946).

[4] The number 1 means only the amount of powder desired. Basil forgot to mention how much shot he wanted.

The following is written on the back of the order: "utschimau umelu miShin·Kn umelu tschim·lat Ka Kusha·t" "To the boss this order[5] this to give to him who is going into the woods for the winter."

COMMERCIAL ORDER 2

(Written on birch bark by an Indian trapper who had one wife and six children. This is his complete list of winter supplies)

Original	*English*
Pastishikan Kanishnapiskamuts	Gun with two barrels
Tshisheshiniu pastishikan	Rifle
12 bags luskuanti	Flour
12 pimi	Lard
50 lbs Kukush	Pork
6 lbs Kapi	Coffee
30 lbs nipish	Tea
100 lbs Kashinati	Sugar[6]
10 lbs papituminishati	Rice
10 lbs atishiminati	Dried peas
schaiuti[7]	Dried beans
15 lbs KapelaKasKualuskanti	Oat meal
51 lbs Kapaschutau uapaminti	Dried apples
12 tins kaupepaliti	Baking powder
6 little bags shiutakan	Salt
1 lb tapuepal	Pepper
1 uapuian	Blanket
35 apakuashun patiman	35 yards tent-canvas
3 p alakapeshakan	Men's trousers
3 pitukuban	Shirts
3 pitupitukupan	Pants ("inside wear")
5 tapskakan	Handkerchiefs (used as neckwear)
3 pakuteun	Belts
50 lbs shini	Shot (lead)
15 puk	Gun powder
4 box matishati	Percussion-caps
4 Nameschalipi	Fish nets
10 pishakanapi	Cord
2 doz. tashulakanti	Small traps
3 KaKaKanuti mastishin	Boots
3 Napeu mitish	Men's socks
2 iskueu mitash	Women's stockings
3 aush mitash	Children's stockings
5 astishati	Mittens
2 mistamukuman	Butcher's knives
4 mukumanish	Small knives
Nil Minikush Shusep	"I am Minnegouche, Josèphe"
upo pishum 29.1935	Month Sun (August) 29.1935

[5] Means here *credit* order.

[6] Compare Commercial Order 1, item 4.

[7] He forgot to mention the amount desired.

CANCELLING AND TRANSFER OF INDIAN DEBTS

There is no time of the year when the manager of the Hudson's Bay Company Post would not be kept busy by his various duties. Toward the end of the summer, he balances the Indians' accounts and sends out his reports. Occasionally, on second inspection of the accounts, the manager may be forced to write off certain amounts because the man who owed them has not returned from the woods.

If the manager learns that some negligent debtors did not return to the Post because they did not want to pay and hoped to get their new winter's supply on credit at another Post of the Company, he will take preventive measures. This was done by W. M. Kay, manager of Mistassini Post who, on September 14, 1835, wrote to his colleague, S. B. Anderson of Timmiskimay a warning toward that end:

> Enclosed is a list of Indian debts of those who may visit Timmiskimay—who are belonging to Mistassiny. Do not let them have any debt from you and allow them to trade as little as possible and let it be only powder and shot.[8]

The same foresight was used in reverse effect by an earlier manager of Mistassini Post, Richard Hardisty, who notified his colleague William M. Kay, Clerk in charge of Timmiskimay (Mistassini Post Journal, 1828–1829):

> The Timmiskimay Indian Camatuet came in here in a starving condition on the 21st February—he brought 6½ MBr of Furs belonging to himself which I received from him on account of his debts at Timmiskimay. He also traded 2 MBr of furs belonging to his brother. . . . Please do let me know by the first opportunity the amount of debt due by Camatuet and his brother to Timmiskimay.

And under the date of January 29, 1825, J. Clouston made this entry in the "Journal Mistassinie Expedition":

> M. Robertson and R. Chilton arrived from Waswanipie and handed me a letter from W. Kellock enclosing a list of Waswanipie Indian debts.

Thus it may happen that some shrewd redskin returns quite bewildered from a visit to a Post to which he does not belong after having had ample opportunity to admire the white man's witchcraft and omniscience.

THE DIARIES

The trade statistics and the annual accounts of the Indians give us a picture of events only in terms of cold commercial totals. The actual ups and downs of the trade itself are shown in the reports on the Indians as individuals. This leads us to some remarks on the relation between the Indians and the white merchant, of the latter's attitude toward the Indians, and of the way the Indians feel toward the Company.

The Company's employees were expected to keep a diary, apart from keeping the regular accounts, and at the end of each commercial year to make a comprehensive report on the individual Indians who were customers of the Company at the Post in question. These annual reports are a mine of wealth to any scientist and, especially, to the ethnologist. The manager of the Hudson's Bay Company Post knew his clients only too well, not only from the merchant's point of view but also from a human standpoint. I personally have the greatest esteem and admiration for those employees of the Company who represent the interest of their firm in the interior of the woods of Labrador, far away from the conveniences of civilization. Inasmuch as a white woman will agree to share their hard and lonely lives only in rare cases, the Company men are often married to Indian women or to half-breeds and live in closest contact with the Indian tribe in question. Their position in the economic life of the tribe and their influence on the legal institutions of the Indians are important. Even today in many places they are authorized to perform marriages and funerals. Formerly they served both as judges and executives and exercised legislative power as well.

Even though managers could exert great influence on the Indians—whether such power was bestowed upon them or acquired—it was necessary for them to use it wisely, for the Indians were always free in their criticism and were afraid of neither managers nor Company. The reports give a clear picture of the criticism the Indians made of the Company itself, its employees, its merchandise, and its commercial customs. In almost every case the Indians' demands were granted. In one case, the Company even relieved from his Post a manager disliked by the Indians. James Clouston mentioned this occurrence in his report of 1820–1821:

> *Tipatabanous, Mecosh, Petanbineiviscam* and *Cawapatch.* These went to Nitchequon in the fall and told Mr. John Pebister that they were dissatisfied with the treatment they received from the person who was in charge of Naosquiscaw and would not return thither, but should go to the Canadians if they received no supply and as soon as they learned that Alexander McElvin was removed from Naosquiscaw they returned thither again.

Life at such a Post was not always as entertaining as some incidents described seem to indicate. It is touching to study the old papers and to find there evidences of monotonous life, common to all such diaries, reflecting the daily routine in the woods about Mistassini. The description of one single week in June, as given in the Journal of Mistassini Post of 1826 may serve as an example:

June 25th, Sunday:	5 fish from the nets
June 26th, Monday:	4 fish from 4 nets. Hoeing potatoes, rain in the evening
June 27th, Tuesday:	8 fish from 4 nets, got some prime bark for roofing the houses.
June 28th, Wednesday:	Employed as yesterday. 9 fish from the nets
June 29th, Thursday:	6 fish to-day, variously employed

[8] Compare also Mistassini Report 1829–30, where Richard Hardisty reports to the manager of Pike Lake the debt of the Indian Mishell.

June 30th, Friday: 6 fish from 4 nets, hoeing potatoes
July 1st, Saturday: 8 fish from 4 nets. Hoeing potatoes. Rain at times.
July 2nd, Sunday: 10 fish from 3 nets. Rain.

There is much talk in the Reports of Indians starving to death in the woods. Consequently, one might suppose that the Company was to some degree responsible for such occurrences. From my personal knowledge of conditions, I can state that this is not the case. It is impossible to force Labrador Indians to settle down and to adopt an agricultural form of life which to them is artificial. As long as the woods of Labrador exist, the Indians will remain hunters. Life in these woods, however, is hard and perilous. It is impossible for the Indians to live exclusively on the winter's supplies they have brought along—and since they are hunters they are obliged to secure their additional food in the form of meat. If for some reason they are unable to bag enough animals for food, they are doomed to starve unless there is some neighbor who is ready to help and in a position to do so. This is true of the old times as of today. The Company is helpless to prevent such incidents. Anyone who knows the Company employees in the woods, their profound knowledge and experience with that type of life, who knows how ready they are to help and how generous in granting credit to the Indians, can only have the deepest admiration for them. They are, of course, merchants by profession—but this does not stop them from being deeply human.

When I asked Mr. Sandy Ritchie, the manager of Chibougamau Post, about Indian debts and the credit they receive from the Company, he told me that one Mistassini man had piled up unpaid debts for five years. Every fall he came back to tell another pitiful story, and each time Ritchie would give in and provide him with new supplies. When the author asked the reason for this indulgence, Mr. Ritchie simply said to him, "Because I want to sleep at night." He had watched too many Indians starve and did not want to have any responsibility, however remote, for such deaths. It is indeed a fact that the Indians, when one of them starves in the woods, after refusal of winter supplies, are inclined to blame the Hudson's Bay Company manager.[9]

When the Indians have left, the manager of the Post has to prepare for the reception of white hunters and tourists who may want to buy Indian-made moccasins, snowshoes, and other products of their handicraft. But tourists are rare, for roads passable by cars lead only as far as Pointe Bleue. Only passionate hunters dare to proceed farther north.

Thus the manager is left alone, at leisure again to cover pages of his diary with those laconic sentences which are so typical of the fall and winter season—sentences such as have been written down so often in the old diaries, as:

[9] Compare, however, p. 394.

September 4th, 1848: Fine calm weather. People employed reaping the Barley. . . .

or, on December of the same year:

This being Christmas day, the men have had a holy day. . . .

Naturally, the reports of the Hudson's Bay Company managers are, first of all, commercial documents which deal mostly with their trade with the Indians. For this reason, they have been discussed in this chapter dedicated to the trading practices of the Indians. But aside from being mere commercial records they furnish the history and, partly, the ethnology and psychology of the Mistasinni Band over a period of twenty years, namely, the years from 1820 to 1840. From this point of view these documents may be considered as being unique and noteworthy.

VIII. THE DIARIES

(REPORTS ON THE INDIANS WHO TRADED AT MISTASSINI, WRITTEN BY THE MANAGERS IN CHARGE OF THAT POST)

REPORT OF THE NAOSQUISCAW DISTRICT (MISTASSINI) FOR THE YEARS 1820–1821 [1]

OF THE INDIANS AT MISTASSINIE POST

Nosepetan: Brought 65 MBr. He did very well till Feb. 7 when he fell in with some Suabamouswam Indians, whom he brought to Mistassinie. Afterwards his attention was directed to procure provisions for those Indians in order to induce them to resort in future to Mistassinie to trade—and their residing with them lessened his chance of procuring furs, as they obtained part of what he would otherwise have procured.

Cawosawosit: Brought 95 MBr.

Missenahegganish: Brought 75 MBr.

Achappee: Brought 58 MBr.

Minaheg: Brought 55 MBr.

Camatued: a youth, brought 32 MBr. All the above Indians did well in winter. Snow was deep in the ground and they killed several deer.

Esconish, Paishabnawescan, Nistish: These three Indians were met by Nosepetan in the month of February and came to Mistassinie. Lately they resorted to Swabamouswan but they have promised to resort to Mistassinie in future, the latter post being the nearest to their hunting ground.

The following Indians who traded at Mistassinie, principally with NW traders, now resort to Swabmouswan and the Post lately established to the eastward of Mistassinie Lake—viz: *Anitugan, Stecimaw, Stecimashish, Wapistan, Meawapaish, Canuguassue, Ustesi-*

[1] I quote these reports exactly as they appear in the original. The different spelling of Indian names and place names has been retained, as well as the numerous errors in spelling and grammar, and the occasional gaps in the text.

man, Skekank, Intaish, Watscutess, Sacatchoonapao, Utish. Whiskjohn and *Shashaway have lately died.*
(signed) JAMES CLOUSTON.

MISTASSINI REPORT 1823

Following is a list of the Indians who have been at Mistassini Post since July last:

LIST OF MISTASSINI INDIANS

Names	No. of Indians	No. of Wives	Sons	Dgths.	Dependents	Total	Single Men
Achappie	1	1	3	3	—	8	Commatoit
Chumooshominaban	1	1	1	2	—	5	
Chumooshonunom	1	1	2	1	—	5	
Chistosack	1	1	—	—	1	3	Etap
Cawasawesu	1	2	5	2	2	12	
Micoosh	1	1	1	—	—	3	Kawapatch
Misinahig	1	2	3	3	1	10	
Mishill	1	1	2	1	—	5	
Misinnaigganish	1	1	1	3	—	6	Mococum
Nasipatan	1	2	1	4	—	8	
Nistash	1	1	1	1	1	5	
Nitish	1	1	2	—	1	5	Octimlaw
Mittawashiw	1	1	1	2	1	6	
Ootawhiow	1	2	1	1	—	5	
Oopisquon	1	1	3	2	2	9	
Ootish	1	1	—	1	—	3	
Oosconish	1	1	—	1	—	3	
Paishabbanawiscam	1	2	—	3	—	6	
Pitabbanawiscam	1	1	—	—	2	4	
Pimasom	1	1	—	—	—	2	
Staumon	1	1	2	1	—	5	
Snappie	1	1	—	—	1	3	
Shickack	1	1	—	—	—	2	
Saykon	1	1	3	1	1	7	
Tippatabbonosi	1	1	2	—	1	5	
Wapatch	1	1	1	—	—	3	
Watchicolaish	1	1	—	—	—	2	
Wishitashish	1	1	2	—	—	4	
Wichimagan	1	1	—	—	—	2	

Achappin: Formerly belonged to Naoquiscaw but has lately traded at Mistassini; brought this year about 35 MBr of prim furs. He broke his gun in the winter, owing to which he hunted less furs than usual. Is a quiet Indian but not a furst rate hunter. Has been employed in the river.

Chimooshominaban: Lately belonged to Rush Lake Post. Has hunted this year about 40 MBr prim winter furs. He is perfectly satisfied with his treatment at Mistassini. Is a pretty good hunter.

Chumooshonusiou: Lately belonged to the Kings Posts. Often went to Grand Lake. He is a good hunter. Brought this year 75 MBr chiefly winter furs. He sometimes brings 100 MBr.

Chistosac: Is a Rush Lake Indian, an old man, a pretty good hunter and very punctual in paying his debt.

Cawasaweset: Brought this year 60 MBr. He generally hunts more. He is one of the best hunters at Mistassini. He formerly belonged to Nusquescaw.

Mesinahid: Brought this year about 50 MBr prim winter furs chiefly beaver and otter skins. He always hunts prim furs.

Mishill: Always hunts little. Seldom pays his debt.

Misinnaigganish: Has hunted less than usual this year. Says he was starving most of the winter. Did not pay his debt.

Mittawashin: Never came to Mistassini till this year. He belongs to the Kings Posts. Brought a few furs.

Nosipitan: Brought about 70 MBr principally beaver and otter skins. He is a good hunter and a good Indian and generally pays his debt.

Netesh: belonged to the Kings Posts till this year. Brought but few furs.

Nestash: Owes a large debt. We have not seen him this year. It is supposed he is gone to some of the Kings Posts.

Ootauhio: He is a Rush Lake Indian. We have not seen him this year. It is supposed he is gone to Grand Lake; he owes a large debt.

Oopisquon: Seldom hunts or thinks of paying his debt. In f... he is good for nothing.

Ootish: Belongs to the Kings Posts. He is an old man, a tolerable hunter. Brought about 60 MBr prim fur, a great part in beaver and Martins.

Ooconish: It is an old man—a poor hunter. Has a large debt. He formerly belonged to the Kings Posts.

Paishabbanaiviscam: Never hunts anything worth mentioning. He has two wives and a great debt.

Pimasom: Is of the same decription as the foregoing.

Stacimau: Never came to Mistassini till this year. He belongs to the Kings Posts. Brought 20 MBr furs.

Snappie: Hunts little at all times.

Shickack: Belongs to the Kings Posts. He is a son of Kannaqussa. Brought 30 MBr winter furs.

Sakyon: Is a Rush Lake Indian. Has lost the use of his limbs. Notwithstanding he hunts well and is very punctual in paying his debts. He brought this season about 40 MBr prime furs.

Wapatch: Belonged to Rush Lake till this year. He is not a first rate hunter. Brought last winter 30 MBr.

Weshirashish: Also belonged to Rush Lake. He is a brother of the foregoing and a much better hunter. He generally goes with Chushmooshommahan: brought this year 40 MBr winter furs chiefly beaver-skins.

Wechimagan: Belongs to the Kings Posts. He was at Mistassini last fall. Hunted very little the last winter. It is reported a wolverine ate the greater part of his furs. He sent a few skins to me which had parts of them eaten away.

Watchicoraish: belongs to the Kings Posts. Visited Mistassini last term. He unfortunately had 40 MBr prime furs eaten by a wolverine last winter, brought 12 MBr, the remains. 7 of this were damaged. He

says he took every precaution to secure the furs at the place where he hid them.

Commatoit, Etap and *Mococum* are single men. Neither of them hunts much. Commatoit is the best.

The undermentioned Indians visited Mistassini Post last autumn and took their debts. I have not seen them since. I understand that they have gone to Ruperts House and that most of them have paid their debts to the amount of 125 MBr. They went to Mistassini on account of Nusquescaw having been abandoned.

I have heard that in future they intend to attach themselves to Ruperts House. Their names are as follows:

Teppatabbananosi
Petabbanawiscam
Micoosh
Kawapatch
Ootumcanish
Wabbanousi
Cawasawisith
} Nusquiscaw Indians

Besides these there were two others, *Asconnawiscam* and *Questashoo,* who came to Mistassini last fall. Have not seen them since. We suppose they are gone to Big River or Eastmain Posts.

Some of the Nitchiquon Indians visited me last autumn. They were desired not to come again but to go to the coast for their supply. They are the following:

Catsputsway
Pitabis
Pipoonasm
} Nitchiquon Indians

Many of the Mistassini Indians are in a very wretched condition as to food and clothing and particularly Oopisquon, Snappie, Mishill and Pimasom. This is owing entirely to their indolence, for notwithstanding all that can be said to them—they seem determined not to hunt.

From the Indians who formerly went to the Kings Posts I got about 130 MBr prim furs. It is said they prefer coming to Mistassini for their trade on account of the badness of the river leading to Shicuttaneg, the place where they have been accustomed to go.

Signed:
JOHN WALFORD to JOSEPH BEIOLEY,
Chief factor of the
Eastmain Department

MISTASSINI REPORTS, 1824

..Here follows a list of the Indians now belonging to Mistassinie Post

Achappee: A middle aged man and a tolerable hunter. Has hunted the last year about 50 MBr, chiefly prime. Has seven children, three sons and four daughters.

Chimooshominaban: Formerly belonged to Rush Lake. He came in last March, brought 22 MBr. Since I have not seen him. Has one son and two daughters.

Cawasaweset: Is the best hunter at Mistassini on an average of years. He brought 86 MBr, chiefly good skins. Has seven children, five sons and two daughters.

Chemooshominow: Has not been in for nearly two years. He has a large debt. We suppose he is gone to the Kings Posts.

Chistosac: Died last autum. He was a good hunter. Had 5½ MBr debt at his death.

Commatawet: An unmarried man. Goes with Minnahig. Hunts little. Has not been in this year.

Etap: A son of Artawayam, a young man, goes with Wapatch. Hunts very little.

Meshell: Was at the house several times during winter, brought little, never came in by water.

Minnaheg: Not came in this year.

Mettawayshew: An eastward Indian. Has not been in since last August.

Mococum: The son of Ootawihow. Was at the house in March. Brought a mere trifle of furs. Has a large debt and hunts little.

Misinnaigganish: Hunted about 45 MBr winter furs. Has one wife, 1 son and three girls.

Netesh: An Indian from the Kings Posts: have not seen him since last August.

Nepenapao: From the Kings Posts. Hunted 15 beavers of fur last winter. Is single.

Nistash: Owes a good deal, but has not been in for two years. I believe he trades at the Kings Posts.

Nosepetan: One of the best hunters. Has not been at the post since last August. He was with the eastward Indians.

Oopisquon and son: Have large debts. Suppose they are gone to the Kings Posts, as we have not seen them since the spring of 1823.

Ootish: From the Kings Posts. Has not been in.

Oosconish: Has not been since the fall.

Paishappanawescam: Sone of the preciding. Has not been in since the fall.

Pemasom: Generally hunts little. He hunted last winter about 12 MBr. Never pays his debt. Has a wife and son.

Sakyo: Formerly belonged to Rush Lake. Hunted last winter about 40 MBr prim furs. Very punctual in paying his debt. He is lame and unable to walk and has been for many years.

Shekack: Has not been in since last August. He came from the Eastward.

Snappie: Hunts little. Never pays his debt. He was in during winter but not in the spring.

Stacimow: From the Kings Posts. Has not been in.

Wapatch: Hunted this year about 30 MBr winter furs. Has a wife, son and daughter.

Wichimagan: From the Kings Posts. Has not been in.

Watchicotaish: As the foregoing.

Wishitashish: Sent his furs in by Chimooshomnaban amounting to 16 MBr, but we did not see him since last autumn.

J. Lannacuassa and *Sacatchiminewpew* are two old men from the Kings Posts. Have not seen them since the fall.

Calspitsiways: Came to Nitchequon last fall. Brought about 40 MBr, chiefly whole beaver skins. He said more of the Nitchequon Indians were coming to Mistassinie.

Cataypiwits: Sometimes trades a few furs, but he belongs to Waswanipi Post.

(Signed)

JOHN WALFORD

MISTASSINI REPORTS 1824–1825

Several of them came to the house starving in the early part of winter, but afterwards they were pretty well off, having been successful in killing deer. Most of the Indians who have visited us this season have hunted better than last year. The Eastward Indians who were debited last August have hunted considerably more than last year as may been seen by the Indian debt book. Here follows a list of the Indians:

Achappie: A middle aged man and a tolerable hunter. Has hunted this year about 60 MBr, chiefly prime furs, has seven children, three sons and four daughters.

Ashew: Never was at Mistassini. We got a few marten skins from him at Camooshawenttashu last June. Told us he had not been at any post for eight years. His sons *Cheemooshomenow* and *Sheshekawayo* have lately traded at Swabmooshswan, but I believe they traded at Rush Lake in the years 20 and 21.

Cheemooshominaban was at Swabmooshawan last summer but returned to us in December last and brought 25 MBr of furs at that time, being his fall hunt. The furs we have had from him this year amount to about 90 MBr, but a part of this was deposited summer furs of the preceeding year's hunt. He formerly traded at Rush Lake, but when that post was given up, he came to Mistassinie. Met with an accident last February and had his left hand nearly frozen off. It had not healed when he came in the spring. I believe he has nothing hunted since the accident occured tho' his son has.

Camasaweset: is the best hunter at Mistassini on an average of years. He and his son have this year hunted about 80 MBr, chiefly prime skins. Has eight children, five sons and three daughters.

Chemooshaminow: Formerly traded at Rush Lake. Was once at Mistassini Sept. 1822. Is the son of Asjew and a good hunter. I have heard he now trades at Swabmooshswan.

Chistosac: Died in summer of 1823. He was a good hunter.

Commatawet: Came in last October and brought only two MBr. Said he had parted with his uncle Mennahig in February 1824 but did not know to what post he had gone with some of the Nitchiquon Indians to a plan called Pisquamiske, situated East of Mistassini. Commatawet is a single man, hunted this year 24 MBr, was employed by M. Clouston last March to accompany R. Chilton going on a very fruitless search after Cotish, Nosipitan, and we thus lost any furs he might have procured.

Etap: Is a son of Artawayham, goes with Wapatch. Hunts little. Hunted this year about 11 MBr. He was hired last spring by M. Clouston to work at the house as a hand—by this circumstance lost his spring hunt.

Meshell: Was at Swabmooshwan last summer. This is the man James Robertson fell in with at Waquannichu. He never hunts much. Has hunted this year about 25 MBr. He formerly traded at Rush Lake.

Minnaheg: last time at Mistassinie summer 1823.

Mettawayshew: An eastward Indian from the Kings Posts and a brother of Achappie. Came first to Mistassinie summer 1822. Last time in August 1823.

Misinnaigganish, a brother of Nosipitan, brought this year about 50 MBr prim skins. Has always regularly traded with us, has one wife, one son and three daughters.

Netesh: An Indian from the Kings Posts, came first to Mistassini in the summer of 1823 and had brought all his furs since. Hunted this year about 30 MBr of the best quality, is quite young and a brother of Achappie.

Nitash: has not been in since October 1822. I believe the first came to Mistassinie in the year 1821. Now he trades at some of the Kings Posts.

Nosepetan: Before the union was a captain, formerly belonged to Misquiscow. Have not seen him since August 1823. Have heard from his nephew (who saw him) that he has gone to Mithtinimp, a post said to be situated on the coast of the gulf of St. Lawrence. Nosepetan is a good hunter.

Copisquon and son: Last time at Mistassinie May 1823; understand they now go to Swabmooshwan. It will be well if they remain there, for they are both worthless. They once traded at Rushlake.

OOtish: Formerly traded at the Kings Posts, came first to Mistassinie October 1822 and had brought all his furs since. Has hunted this year about 36 MBr, chiefly prime. Last year did not arrive till after the canoes had gone down to the coast in the spring.

Oosconish: Has not been in since the fall 1823. He formerly belonged to the Kings Posts. Goes to Swamooshswan. Is an old man, seldom hunts much.

Ootawehaw: I never saw [him], I believe he never was at Mistassinie. He traded with Rush Lake and when that Post was given up spring 1822 he had 63

MBr debt which was transferred to Mistassinie. He now goes to Swabmooshswan. Is a good hunter.

Paishappanawescam: A son of Oosconish. Last time in with his father, fall 1823. Goes to Swabmoushswan. It a much more worn hunter than his father.

Pemasom: Is a brother of Wapatch. A young man and much improved lately. A few years ago he hunted very little. Has hunted this year about 30 MBr chiefly prime. Has a wife and son.

Sakyo: Formerly belonged to Rush Lake. The furs we have from him this year are about 60 MBr. But part of this was deposited summer furs of the preceeding year's hunt. Very punctual in paying his debt, is lame and unable to walk and has been so for many years. I heard he sent a few skins to Swabmooshswan last March at the time Caitapewit sent his.

Shekaack: from the Kings Posts. A son of Kennaquassa. Came first to Mistassinie summer 1822, last time in August 1823. Went with Nosipitan.

Snappie: went with Meshell last summer to Swabmoushswan. I believe he has a large debt there. Returned to us in January. Always hunts little, but has done extremely well this year having brought 13 MBr.

Stacimow: From the Kings Posts came first to Mistassinie June 1823 and has all his furs since. Hunted this year about 50 MBr, chiefly prime.

Sacatchewenewpew: From the Kings Posts, came first to Mistassinie summer 1823 and has brought all his furs since. Hunted this year about 45 MBr, chiefly prime. Is an elderly man, has lost one of his hands.

Sheshekawayo: Was never at Mistassinie. He had used to trade at Rush Lake and had debt there when that post was given up, 1822, which was transferred to Mistassinie. We saw him at Camooshavoscuttashe last June and got about 30 MBr furs from him [through] his father, his nephew, and several women, in all amounted to 55 MBr, chiefly marten skins. Is a son of Ashew.

Wapatch: Has hunted this year about 40 MBr, chiefly prime. Has a wife, son and daughter. Is a brother of Pimoson.

Wechemagan: A young man of the Kings Posts. Came first to Mistassinie with Ootish October 1822. Last time in summer 1823. Never hunted much. Went away with Nosipetan whose daughter he has got for a wife. I think he brought about 15 MBr spring 1823.

Watchetotaish: A Kings Post Indian, came first to Mistassinie June 1823, last in August following. Went away with Nosepitan, brought very fine furs.

Wishetashish: Was at Swabmouthswan last summer, but returned to Mistassinie with his stepfather Chumooshominaban last January. Has been lame and unable to hunt this winter. Got about 30 MBr from him, part of this was deposited summer furs of the preceeding year's hunt. He was maintained a part of the winter at the expence of the Post. Lost the use of his left leg and thigh last summer, but is now upright and nearly recovered.

Kannaquassa: A very old man from the Kings Posts and father of many of the Eastward Indians.

Catspitsewayo: Is a Nitchiquon Indian. Last time at Mistassinie October 1823. I have heard from Camatawet that he was coming again last summer.

Caitapewit: Is a Waswanopie Indian. Sent a few furs by James Robertson's return from that place last January, partly prime and summer. He had used to trade a few furs with me some time. But he belongs to Waswanopie Post. Sent some furs to Swamooshswan last March and went there himself last June. Is a good hunter.

Neippeskeish: is eldest son of the foregoing, a lad who goes with Sakyo and brings a few furs to Mistassinie.

Mococun: A son of Ottawehaw. Last time in with Oosconish August 19th 1823. Hunts little, used to trade at Rush Lake. Goes to Swabmooshswan. James Robertson saw him in Jack Winter River last May, but he had no furs.

(Signed)

JOHN WALFORD, Clerk

MISTASSINI REPORTS 1827–1828

LIST OF INDIANS BELONGING TO MISTASSINI POST, 1828

		Indians	Wives	Sons	Daughters	Total
1	Nosipitan	1	2	1	4	8
2	Wechemaugan, son-in-law of 1	1	1	2	—	4
3	Cowosowasit, brother of 1	1	2	5	4	12
4	Chuskatawautick, son of 3	1	1	—	—	2
5	Missenahigganish, brother of 1	1	1	1	5	8
6	Achappy, brother-in-law of 1	1	1	2	5	9
7	Etapas, son-in-law of 6	1	1	1	3	6
8	Chemooshuminaban, Dos. grandsons	—	—	3	—	3
9	Waupatch	1	1	1	3	6
10	Sachko, brother of 8	1	1	2	—	4
11	Nappishkeesh, nephew of 8	1	—	—	—	1
12	Notoway, Dc. of Dc.	1	—	—	—	1
13	Jochuckone, Dc. of Dc.	1	—	—	—	1
	Dos. mother, a widow	—	1	1	3	5
14	Meshell	1	1	2	2	6
	Old women	—	3	—	—	3
		14	17	22	29	82

36 males.
46 females. Total: 82.

The Indians attached to the Post are:

Nosipitan: A chief who has a powerful influence amongst the Indians and expects to be treated liberally while at the House. His hunt of furs this year amounts to 77 MBr—which is 20 MBr less than he brought last year. The deficiency is in martens—animals which have been exceedingly scarce during the past winter.

Wechemaugan: Is son-in-law of the above and resides always with him. His hunt amounted to 53 MBr which is just as much as he brought last year.

Cowosowosit and 2nd son: This Indian is a good hunter and is in the habit of getting a few yards of gartering upon his coat. He expects—and perhaps ought to be well treated, as he has a number of sons—some of whom are beginning to hunt furs. He brought 121 MBr—which is 40 MBr more than he hunted last year.

Cheeskatawautick: is a son of the last mentioned Indian and a young man. He brought 65 MBr which is 30 MBr more than his hunt of last year.

Missenahegganish: is a good hunter but having been very nigh (?) starved to death last winter—prevented him from hunting so well as usual. He however brought 67 MBr, which is 11 MBr less than he paid last year.

Achappie and Son: made a large hunt this year, having brought 127 MBr which is 56 MBr more than they brought last year. About 40 of it was musquash.

Wesotaishish: Died on the 22nd of April. He had previously hunted 34 MBr. His hunt of last year amounted to 63 MBr.

Waupatch: Brought 73 MBr—which is much about the same as he hunted last year.

Etapao: Made the best hunt this year he ever did, having brought 49 MBr—which is 28 MBr more than he hunted last year.

Neshell: was employed last summer to bring birchrind for large canoes, and he did bring some. He was last here in the month of October with 3 MBr of furs but I have not seen him since. It is reported he has gone to Opponents at Swabmousewan—his ground being in the vicinity of that post, altho Mr. J. Robertson informs me he was tenting last spring about a days journey from Pike Lake—along with an Indian belonging to that post.

Chemushuminaban: A Chief who, together with his son (a youth) brought 88 MBr—which is 10 MBr more than they hunted last year.

Sako: Is and has been for many years deprived of the use of his legs, notwithstanding which he is an excellent hunter, having brought 70 MBr. This is 30 MBr less than he brought last year. He Complains of the Woswenaby Indian Wuckochash having been on his ground last fall and also this spring, who killed a number of his beaver.

Nappishkeesh: is a young man, but very lazy. He however hunted better this year than usual, having brought 30 MBr, which is rather more than his hunt of last year.

Foechuckone: is a young man who hunted very well, having paid 53 MBr being 16 MBr more than his hunt of last year.

Notoway: is a youth and the youngest brother of the two last mentioned Indians. He paid 45 MBr which is 20 MBr more than he brought last year.

Wauppistan: is an old woman who brought 23 MBr.

(Signed) J. KELLOCK
Mistassini Post
19th June, 1828

MISTASSINI REPORTS 1828–1829

OF THE INDIANS

1.) *Nosipitan:* The principal Indian belonging to this Post—and a very expensive one too. He has been more than usually in this winter—owing to his having passed the winter very near to the House—which enabled him to send in here very frequently for ammunition, rum, and tobacco, etc. He is getting rather old now and complains of feebleness in his limbs. He is still however a good hunter— and including the furs of his son (a young lad about 14 years of age) has brought this year to the Post 107 MBr of furs, principally beaver skins, which is 30 MBr more than last year. I have no doubt he would have hunted considerably more, but for the ill state of health of his son-in-law (Weechimaugan) during the great part of the winter, whose family as well as his own he had to provide provisions for.

2.) *Cowosowozit,* brother of No. 1.) An old man but a good hunter, has a large family to support and was but poorly off for provisions during the winter. With the assistance of one of his sons, a very young lad about 14 years of age) he hunted this year 103 MBr of furs, be principally beaver and otters, being less than last year by 17 MBr.

3.) *Cheeskathawatick,* son of No. 2.) A very industrious young man. He has not, however, done quite so well as he did last year. He has only brought 61 MBr of furs of various description—being less than last year by 4 MBr.

4.) *Missenhaigonish,* brother of No. 1.) A middle aged man and a good hunter. Has brought this year to the Post 88 MBr of furs of various descriptions—which is more than last year by 21 MBr. He paid his debt and has a few furs to trade.

5.) *Weechimaugan,* son-in-law of No. 1.) A strong young man and an able hunter, well in health. He has however been very unhealthy this last winter and towards the spring had to be hauled about on a sled. He brought 47 MBr of furs, being 6 MBr less than last year.

6.) *Achappy:* brother of the Timmiskimay Indian Neepinnaupai. He is an old man but a good hunter

(with the assistance of his eldest son, a young man about twenty years of age). He has not done so well in the fur way as he did last year. His hunt consists of Furs of various descriptions, and amounts to 95 MBr—being 32 MBr less than last year.

7.) *Etapeo,* son-in-law of No. 6.) He is a very industrious young man and hunts well, considering he has such poor lands to hunt upon. He has brought this year to the Post 60 MBr of furs (principally beaver and otters) which is 11 MBr than last year. He also brought during the winter [2] lbs of green Venison which he traded for ammunition etc.

8.) *Cheemooshoominaban.* A principal Indian among the Southward Indians. He is an old man and has a large family of daughters and grandchildren to provide for. Him and his son (a young man about 20 years of age) have brought this year to the post 133½ MBr of furs, a great part of which is in beaver skins—and is 45 MBr more than last year.

9.) *Sako.* Brother of No. 8. He is a cripple but hunts well and generally manages to pay his debt. Has brought this year to the post 77 MBr of furs, principally beaver—which is 7 MBr more than last year.

10.) *Narpaishkish,* nephew of No. 9.) A strong young man, but remarkably lazy—a character which is given him by his brothers and all who know him. Indeed it is said that some of the furs he brings to the post are given to him by his younger brothers. Has brought this year to the post 39 MBr of furs of various descriptions, being 7 MBr more than last year.

11.) *Toochasaiquon,* brother of No. 10.) An industrious young man—and a good hunter. He has brought this year to the post 85½ MBr of furs, principally beaver skins, being 32½ MBr more than last year.

12.) *Notoway,* brother of Do. A mere lad but hunts well. He has however only brought 40 MBr of furs this year, principally beaver skins, which is 5 MBr less than last year.

13.) *Waupatch.* A young man and hunts well—is also a good voyageur. He has brought to the post this year 90 MBr of furs, principally beaver and otter skins—being 17 MBr more than he hunted last year.

14.) *Pimassom,* brother of No. 13. Was transferred last summer from Timmiskimay to this post, he having expressed a wish to join his brother (Waupatch), thinking by that means to be able to hunt more furs than he has hitherto. He had brought this year to the post 34 MBr of furs, principally beaver and otters—it is more than he hunted last year, but I cannot say how much more as I have no memorandum of the quantity of furs he hunted last year.

Sako's mother. Died last fall in consequence of an injury she received last summer by being thrown on a stump by Sako's wife while they were drinking together. She brought 23 MBr of furs last year—and took 11 MBr of goods in the summer in debt. I had hoped that Sako would now have paid his mother's debt. When I mentioned it to him he left it to me to take payment of his furs if I thought it proper—but from the way in which he expressed himself I knew I should displease him if I had done so—and as he has such a fecility of going to Swabmoushiven I consider the Company's interest best attended to by giving up the debt as lost.

Neconish. An old woman. Widow of Cheetosak. Has brought to the post this year 6 MBr of furs and Castorum which is about the same as she brought to the post last year.

Missenhahaigonish's Mother-in-Law including her son, a young lad about 12 years of age. Has brought to the post this year 22 MBr of furs, being 5½ MBr more than she brought last year.

Toochasaiquon's mother. Has brought to the post 3 MBr in Castorum. She brought nothing last year.

Otowemow and Son. Swabmoushwon Indians, visited this post the 10th June 1828 and brought one beaver skin which was included in the trades of 1837–28. I have never yet seem them as they have not been in here since.

Servants' hunts: Only 40 MBr of furs (principally Martins) have been hunted by the Company's servants during the year.

(Signed) RICHARD HARDISTRY
Mistasinny Post, June 1st, 1829

To Joseph Beioley, Esq.
Chief Factor

MISTASSINI REPORTS 1829–1830

OF THE INDIANS

1.) *Nosipitan.* The principal Indian belonging to this Post. An old man but a good hunter. He has a son about 15 or 16 years of age to assist him in hunting. He has brought this year to the Post 115 MBr of furs, principally beaver and otter, which is 8 MBr more than he brought last year. I don't believe this man has either sent—or has any furs by him to send to our opponents. Some musquash which he told me in winter that he intended to send to Swobmooshwon he brought with him to the house this spring, and I got them from him.

2.) *Weechimaugan.* Son-in-law of No. 1. A young man and a good hunter—but he is unhealthy. He brought this year 87 MBr of all sorts, but principally beaver and otters, making 40 MBr more than he brought last year.

3.) *Cowosowozit,* brother of No. 1. An elderly man, He was very ill for two months during the winter, during which time he could hunt nothing. The furs he brought to the post were hunted by himself and one of his sons, a young lad about 15 or 16 years of

[2] No number given.

age, and amounted to 105 MBr—principally beaver and otters, being only two MBr more than he brought last year.

4.) *Cheeskathawatik,* son of No. 3. A very fine young man and a good hunter. He hunted during the year 93 MBr furs of all sorts, but principally beaver and otters, being 32 MBr more than he hunted last year. He is one of the Indians engaged this summer as a voyageur.

5.) *Missenhahaigonish,* brother of No. 1. This Indian almost invariably pays his debt. He has not been in at the house since last August, but sent his furs in this spring by another Indian—and which amounts to 54 MBr, principally beaver and otters, being 34 MBr less than last year. But as it was very early in the spring when he gave his furs to the Indian to bring in to the house—I expect he has some more furs by this time. And whatever he has promised to give to the people as they pass him on their way down to Ruperts House.

6.) *Achappy,* Brother-in-Law of No. 1 and Brother of the Timmiskimay Indian Neepinnaupai. He is an old man but a middling good hunter. Himself and son (Kyharapaywershits), a young man about 21 years of age, have hunted this year 128 Made Beavers of furs of various sorts, but principally beaver and otters—being 33 MBr more than they hunted last year.

7.) *Etapao.* Son-in-law of No. 6 and son of the Ruperts House Indian Artawayham. A very industrious young man. He hunted upon his father-in-law's lands during the winter which being strange lands to him he hunted very little, only having brought 33 MBr of furs, principally beaver and Martins—being 38 MBr less than he brought last year.

8.) *Cheemooshoominaban.* The principal Indian among the Southward Indians. Last year his son's (Harshaimank) hunt was included with his and amounted together to 133½ MBr—this year's joint hunts amount to 169½ MBr skins and is 36 MBr more than last year. It was this Indian and his sons whom I was fearful had gone off to Swobmooshwon—instead of which it appears they went on their own lands near Nimmishkau, where they hunted most of their furs—their have gone so far off was the reason they did not visit the Post last fall and so often during the winter as usual. I don't believe this man has been with or sent any part of his furs to Swabmooshwon.

9.) *Harshaimauk,* son of No. 8. This is the young man who after having [been] engaged last August's to accompany the Company's servants as a voyageur down to the coast—deserted them the same day he left the house. He has however done his best since to make up for his bad conduct. But his account in the Indians' debt book it will appear that he only hunted 48½ MBr all in beaver skins, which paid his debt—besides which he gave 35 MBr to his father which enabled him to pay his debt also. I have engaged him for voyaging this season—with the view of keeping him from visiting Swobmouthswan, notwithstanding which he tells me that he intends to send to that Post during the summer for a beaver trap.

10.) *Sako.* Half-brother of No. 8. This man is a cripple, having lost the use of his limbs several years ago by catching cold in a "sweating house." He can only go about on his hands and knees—and when travelling in winter some of his family has to haul him on a sled. Notwithstanding this unfortunate is a good hunter and invariably pays his debts. He has brought this year 83 MBr of furs, principally beaver and otters—which is 6 MBr more than he brought last year. After having—as I thought—received all this Indian's furs I gained information that some furs had been seen in a bundle belonging to him. I immediately went to him and told him what I had heard when he acknowledged to having 2 prime otter skins which he said he was keeping for the purpose of sending to Swobmooshwan to trade beaver traps. I got the otter skins however from him.

11.) *Napaiskish.* Nephew of No. 10. This man having met with the Indian Otowwyhow in the course of the winter, he accompanied him to Pike Lake, at which Post his furs have been taken on account of Mistasinny—but I am ignorant of what amount of furs he paid at Pike Lake on account of this Post. His reason for accompanying the Indian Otowwyhow is his wanting that Indian's daughter for a wife. I understand he intends to go to Swobmouthwan this summer, but will be here by the time he expects the supplies to have arrived here from the coast.

12.) *Toochasaiquon,* younger brother of No. 11. He is a very fine young man and an excellent hunter when in health. Unfortunately he was very ill most of the winter and had to be hauled about on a sled by his mother. His hunt this year amounts to only 49½ MBr of furs, principally beaver skins—which is 36 MBr less than he hunted last year. I have engaged him to go down to the coast this summer as a voyageur.

13.) *Notoway.* Younger brother of No. 11. A youth but promises fair to be in a short time a very good hunter. He has brought to the Post this year 54 MBr of furs, principally beaver—being 14 MBr more than he brought last year. He tells me that he is going this summer to Swobmooshwan for a beaver trap. I have done everything in my power to induce him not to go there—but I am afraid he will go there; notwithstanding all I have said to him he says he will be here again by the time the canoes arrive from the coast with the supplies.

14.) *Waupatch.* This man is considered a good hunter, but he did very little in the fur way last winter, owing, as he says, to so many Indians hunting upon his lands. He only brought 65 MBr of furs of various sorts—

the greatest part of which was in beaver and otters—being 25 MBr less than he brought last year.

15.) *Pimassom.* Brother of No. 14. In general he is but an indifferent hunter—but he has done pretty well this year, having hunted 54 MBr of furs, principally beaver and otters—which is 20 MBr more than he hunted last year.

16.) *Camatuet.* Nephew of the Timmiskimay Indian Catspitsiway. Was transferred last year from Timmiskimay to this post in consequence of this post being nearer to his lands. He has been hunting this year about 20 miles to the westward of Mistasinny and has, I have no doubt, made the best hunt he ever made in his life. The furs he hunted amount to 55½ MBr, more than half of which is in beaver and otters and is 20 MBr more than he hunted last year.

Mishell This Indian left here in the summer of 1827 and went to Swobmouthwon. When he went from here he left a large debt outstanding at this post, and, understanding in the beginning of the winter that he was expected at Pike Lake, I sent an account there of the debt he was due to this Post—and I have since been given to understand that he has paid at Pike Lake a little of his Mistasinny debt, but I don't know what amount. This Indian was here in May last in company with John Moar and brought some canoe bark with him. He promised me he would be here again some time in the summer and to bring with him as much canoe bark as will build one large canoe, and more, if he can find it. I believe he intends to attach himself to this Post again.

Cowmawquet and mother. This young man was a son of the Ruperts House Indian Nooshekao. He was stopping in the spring after the ice broke up along with a number of other Indians—when seeing a fire—as they imaged—they all became alarmed and went off during the night to an island where they merely put the heads of their canoes on the shore and laid themselves down in their canoes to sleep. He however got up in the course of the night while still asleep and thinking he was on the shore got out of his canoe into the water. This awakened the others and increased their alarm and taking him for some wild Indian—a son of Cowosowozit took up a gun and shot him right through the head. His furs were brought here by his mother and amounted to 25 MBr of various sorts and is 3 MBr more than he hunted last year.

Toochasaiquon's mother. She brought 7½ MBr of furs and castorum. Which is 4½ MBr more than she brought last year.

Neecunish. An old woman, widow of the late Cheestosack. She always accompanies her grandson Napaiskish and has not been here since last summer, as she was in at Pike Lake this spring. Probably she has paid her Mistasinny debt there.

Servants hunt. Only 14½ MBr of furs, principally Martins, have been hunted by the Honourable Company's servants during this year.

Meewoppaish. This man is a principal Indian of a small party of Indians some of whom go to Swobmoothwon, and the others to Swan Lake with their furs. They all meet together on a short distance to the Eastward of Little Mistasinny almost every summer and sometimes in the winter. Meewoppaish was here several years ago and left some furs with Mr. Chief Trader Clouston which he was not paid for then, as the articles he wanted were not at the Post at the time. He has not been at the Post since, but last summer he sent in word by Nosipatan for payment to be sent to him. I, accordingly, in hopes that it might be an inducement to him to visit this Post at some future time, sent him by Nosipatan 7 MBr of cloth—the amount of debt due to him—and some tobacco. I have no doubt that if people were sent to the place where this Indian and his party met, a few furs might be got from them. I would myself have sent to them last winter, but Nosipatan led me to expect that he would endeavour to bring them here with him this spring. I shall not fail in acquainting Mr. Chief Trader Corrigal to send to them at any time. I received a martin skin and a half beaver from Meewoppaish, he sent them here by Nosipatan as a foresent.

(Signed)
RICHARD HARDISTY
Mistasinny Post
June 1st, 1830.

MISTASSINI REPORTS 1830–1831

OF THE INDIANS

1.) *Nosipatan* The principal Indian belonging to this Post. He sent three musquash skins to Swobmooshwon last summer for which he got a clasp knife. The furs he brought to this post this year amount to 114 MBr and consist principally of beaver and otters. It is 7½ MBr less than he hunted last year, which may be attributed to his having been starving and in ill health during great parts of the winter.

2.) *Weechimaugan* Son-in-law of No. 1. This man sent a beaver skin and a cat skin last summer to Swobmoothswon and for which he traded some second blue cloth. He brought during this year 80½ MBr of furs, principally beaver and otters—it is 6½ MBr less than he brought last year. But he was starving great parts of the winter.

3.) *Cowosowozit* Brother of No. 1. At one time in the year I was afraid this man would have made but an indifferent hunt, as he was starving and in ill health most of the winter. With the assistance however of two of his sons, he hunted 164 MBr of furs of all sorts—but principally beaver and otters, being 59 MBr more than last year.

4.) *Cheeskathawatik.* Son of No. 3. Hunted 90 MBr of furs of various sorts—being 3 MBr less than last year.

5.) *Missenhahaigonish.* Brother of No. 1. This man brought during the year 106 MBr of furs of various sorts, but principally beaver, otters and martins, being 31 MBr more than he hunted last year.

6.) *Achappy.* Brother-in-law of No. 1. This man and his son, No. 7, brought together 178 MBr of furs of various sorts—but principally beaver, otters and martins—being 50 MBr more than last year.

7.) *Kyharpayweesit,* son of No. 6. This young man is engaged to go down as a hand in one of the canoes.

8.) *Etapao.* Son-in-law of No. 6. Brought this year 67 MBr of furs of various sorts, being 34 MBr more than he hunted last year. He is engaged to go down as a hand in one of the canoes and wishes to engage for the second trip if he is wanted.

9.) *Cheemooshoominaban.* The principal Indian among the Southward Indians. Brought this year 106 MBr of furs—principally beaver and otters—being 20 MBr more than he hunted last year—as 35 MBr included in his last year's acct. were given to him by his son.

10.) *Harshaimauk.* Son of No. 9. A young man who promises to be a good hunter. He brought this year 70 MBr principally beaver and otters, being 13 MBr less than last year.

11.) *Saiko.* Half brother of No. 9. This man is a good hunter notwithstanding he has lost the use of his legs—being able to go about only on his hands and knees. In winter he is hauled about on a sled by one of his family. He sent last summer to Swabmooshwon by the Indian No. 14—as well as I can learn about—7 MBr of furs with which he traded 2 beaver traps besides some handkerchiefs. Both the traps broke during the winter—and he sent to Swobmooshwan in April last for other traps—on this occasion he only acknowledges to having sent 2 MBr of furs. He says he will not send to Swobmooshwan in future. He brought this year 112½ MBr of furs, principally beavers and otters, being 29½ MBr more than he hunted last year.

12.) *Napaiskish.* Nephew of No. 11. This man accompanied his brother No. 14 to Swobmoothwon last summer and again in the month of April last. On the former occasion he says he only took 15 musquash with which he traded a beaver trap and a clap knife. On the latter occasion he says he only took to Swobmoothwon 2 or 3 skins which he hunted while on his way there—but I suspect he did not take less than 10 or 12 MBr to that place. He had with him when he came in a handkerchief and a pair of fine cloth stockings which he said were given to him by the Swobmouthwan Master—but it is my belief that he paid furs for them. He only brought 15 MBr of furs, in beaver skins, being about half as many MBr as he usually hunts during one year—as he is of a very indolent disposition.

13.) *Toochasaiquon.* Brother of No. 12. A very fine young man and an excellent hunter. He brought this year 99 MBr of furs, principally beaver and otters, being 42½ MBr more than last year.

14.) *Notoway.* This young man will, I expect, in a year or two be as good a hunter as his brother No. 13. He went to Swobmoothwon last summer, accompanied by his brother No. 12, where he traded and took in debt for himself and other Indians 4 beaver traps, besides some shawls, handkerchiefs, and several other articles. As well as I can learn he took about 7 MBr of furs there on the occasion belonging to himself and 8 MBr belonging to other Indians. He went again to Swobmouthwon in the month of April last but says he hunted while on his way to that post. When he came in here, he had a great many Swobmouthwon articles with him, such as enough fine blue cloth for a coat for himself, Irish linen for a shirt, large shawls and handkerchiefs, broad ribbons, silkthread, needles, tobacco, etc.—all of which he says were given to him as a present from the Swobmoothwon Master—but it is my belief that he paid furs for them. He promises however not to go to Swobmoothwon in future. He brought during the year 62 MBr, principally beaver skins, being 8 MBr more than he hunted last year. He is now engaged to go down as a hand in one of the canoes.

15.) *Waptach.* This man brought during the year 106½ MBr of furs, principally beaver and otters—being 41½ MBr more than he hunted last year. He is engaged to go down as a hand in one of the canoes.

16.) *Pimassom.* Brother of No. 15. Brought this year 59 MBr of furs of various sorts, but principally beaver—being 5 MBr more than last year. This man is also engaged to go down as a hand in one of the canoes.

17.) *Camatuet.* Nephew of Catspitsiway. Brought this year 77½ MBr of various sorts of furs, being 22 MBr more than he hunted last year.

Paskowhekanan, Mother of Tootass and mother-in-law of Missenhahaigonish. She brought 27 MBr of furs of various sorts.

Servants' Hunts. Amount this year to 56 MBr, principally martins.

(Signed) RICHARD HARDISTY
Mistassiny Post June 16th, 1831.

MISTASSINI REPORTS 1833–1834

OF THE INDIANS

Noosipitan. The principal Indian belonging to this place made but an indifferent hunt when compared with his hunts of former years. He brought this year 84 MBr, being 22 MBr less than last year which may be attributed to the loss of one of his wives who died

some time in last April after being ill most of the winter.

Weecheemaugan. Son-in-Low No. 1. Hunted during the year 48 MBr of furs, being 24 MBr less than last year which he says was caused by his being obliged to hunt for provisions both for himself and his father-in-law as the old man's time and attention was chiefly taken up with his sick son and daughter.

Cauosawisit. Brother to Nosipatan. Hunted 132 MBr in furs, being 20 MBr more than last year. The reason of his hunt being more than last year is owing to his having sent his sons to Newasqueskau River where they found a few beaver.

Cheeskaskawitck. 1st son of Canosawisit. He hunted 67 MBr during the year, being 8½ MBr less than last year. Having lost his wife last fall by death he did not endeavor to look much for fur animals till this spring.

Cauochemassue. 2nd son of Canosawisit. Hunted during the year 34 MBr being 18 MBr less than last year, which he attributes to his wife's illness during the winter.

Missinahagonish. Brother to Nosipitan. Has brought 84½ MBr, being 9 MBr less than last year, which may be owing to his having taken up part of his time in hunting deer.

Achappy. Brother-in-law to Noosipatan. He made a tolerable good hunt, brought 94 MBr, being 18½ MBr more than last year.

Couivapaiwisit. Son to Achappy. Has hunted during the year 69 MBr—17 MBr more than the preceding year.

Cheemooshoominabin, a principal Indian amongst the Southward Indians. Has hunted 54 MBr, being 17½ MBr less than last year—which I attribute to his being sickly all the spring.

Harsheemauk. Son to 9.[3] He only brought 52 MBr which is 22 MBr less than last year, which I attribute to his being in an ill state of health.

Saiko. Half brother to No. 9. Hunted 101 MBr—29 MBr less than last year.

Tootcheesaiquan. Brother to Napaiskish. Has hunted 75½ MBr, being 11 MBr more than last year.

Nautaway. Brother of the above Indians and son-in-law to No. 3. A very good hunter, but he has only brought 43 MBr, being 49½ MBr less than last year, which may be attributed to his being off of his own lands. He was with Canosawisit most of the winter.

Wapatch has made a very poor hunt this year compared to former years, only 48 MBr, being 43 MBr less than last year, which I can only attribute to his taken up the most of his time in killing deer.

Pemassom. Brother to Wapatch. Hunted during the year 40 MBr, which is 11 MBr less than last year. He likewise has taken up the most of his time in going after deer.

[3] But the Indians in this report are not marked with numbers.

Etapai. Now son-in-law to No. 9. Hunted during the year 40 MBr.

Caumattuit. Brother-in-law of Pimassom. Has hunted during the winter 47½ MBr. It is 2½ MBr more than last year.

Pascauwocannan. A very old woman. Mother to the Ruperts House Indian Roolass. She has brought 3½ MBr in furs, being 7 MBr less than last year.

(Signed)

WILLIAM M. KAY

June 19th, 1934.

MISTASSINI REPORTS 1834–1835

OF THE INDIANS

Noosipitan. The principal Indian belonging to Mistasinny Post. Died some time during the winter. It [is] said that the Gruvel was the cause of this man's death. I was told that he had 55 MBr at the time—but they were all made use for food to his family and others when they were starving. I believe the furs were principally beaver skins.

Weecheemagan. Son-in-law to the before mentioned. A very good hunter and made a tolerable good hunt this year, having brought 70½ MBr and mostly in prime furs, in beaver and otter principally. His hunt this year is 23 MBr more than last.

Cauosawisit and young sons. Hunted 149 MBr principally in beaver and otters, a few Martins, Musquash, etc. The old man himself is beginning to fail by age and infirmities—He is an honest good Indian, but very troublesome when in a state of intoxication. His hunt is one MBr less this year than last.

Cheeskathawatick. 1st son to Canosawisit. He hunted during the winter 73 MBr in furs, being 6 MBr more than last year.

Cauachemassnem 2nd son to Cauosawisit. Hunted during the year 68 MBr, being 34 MBr more than last year. Principally in beaver and otters, most winter and seasoned furs.

Missinnahagonish. Brother to the deceased Noosipatan. It is supposed that he died through want of food. He was a good hunter. His wife is still living and was at Mistasinny this spring. She says that her husband was not able to walk when she left him and only one of her daughters was able to get a little wood for a fire. The reason she assigns for leaving him was because she [. . . ?] that she was going to be [. . . ?]. He had 7 or 8 children with him at the time. This man had hunted upwards of 80 MBr in the fall and the beginning of the winter, all of which was made use of for food.

Achappy Brother-in-law to the deceased Noosipatan. Brought 88½ MBr, being 6 MBr less than last year. His furs are principally beaver, otters and Martins. He says that he was in an ill state of health during part of the winter.

Canivapaiwisit, son to Achappy, has hunted during the

winter 61 MBr, and principally in beaver, being 8 MBr less than last year, This man was also almost starved to death last winter, He was stopping with Missennahagonish and was left when not able to walk—either to die or live just as it might happen. They had no provisions excepting beaver skins which they used occasionally.

Cheemooshoominabin. A principal Indian of the Indians who hunt to the Southward of this place. He brought 61 MBr, chiefly beaver skins, probably he might have hunted more had his son not died some time in the early part of the winter. But I am told that he caused his son to be strangled: when he was near the last stage being apprihensive that his son would turn out to be a cannibal if he should recover. This man brought 7 MBr more than last year.

Havsheemauk, son of the aforementioned Indian. This young man died last winter, or was strangled to death. He was a very good hunter and a good voyageur in the river. He had hunted 20 MBr before his demise, which the father brought.

Saiko. Half brother to Chumooshoominabin. A very good fur hunter. Brought 97 MBr in furs, being 5 MBr less than last year. This man generally pays whatever debt he takes. After he left Mistasinny last August, when he came to his lands, he there found two of the St. Maurice district servants hunting beaver and otters who remained with him for some time. They traded some beaver traps with him, for which he gave them some summer furs. They promised to come and see [him] in six years hence.

Napaishkish. Nephew to Saiko. A very poor hunter. He brought this year 20 MBr, being 4 MBr more than last year.

Tootschesaiquon. Brother to Napaishkish. A good hunter, brought 70 MBr, chiefly beaver and bears, being 3 MBr less than last year. He was sickly during part of the winter.

Nautoway. Brother to Tootshesaiquon. Was a very good hunter but has not hunted much these two years [. . . ?] he brought this year 61 MBr in furs, being 10 MBr more than last year.

Wapatch. A very good hunter. Brought this year 103 MBr in furs, principally in beaver, otters, and cats.

Pimassom. Brother of Wapatch. Hunted this year 61 MBr in furs, being 21 MBr more than last year and chiefly in beaver and cats.

Etapao. Son-in-law to Chumaoschoominabin. Hunted during the winter 58 MBr in furs, principally in beaver—being 9 MBr more than last year.

Caumattuit. Has hunted this year 55 MBr and principally in beaver and otters, being 3 MBr more than he brought last year. He was also starving during the winter.

Cauwapatch, Ruperts House, who hunted nearer to Mistasinny Post than to Ruperts House and is now at his own desire permitted by M. Factor Beioley to attach himself altogether to this Plan. He paid a debt of 50 MBr due at the Coast and traded 66 MBr of the furs included in Mistassiny Post trade. His mother-in-law paid a debt of 4 MBr due at the coast and traded 13 MBr for the account of Mistasinny Post.

(Signed)

WILLIAM M. KAY

MISTASSINI REPORTS 1835–1836

OF THE INDIANS

No. 2. Cauosawisit. A principal Indian and a good fur hunter for the Honourable Company and is much respected [originally: "respecting"] by the other Indians. He is now since the deceise of his brother (Noosipitan) the leading man of the Indians who hunt to the Northward of this plan. He has made a very good hunt this year, with the assistance of three of his sons—one of them is a man, having a wife and child. The other two are only lads yet and promise to be good hunters if they live. They brought in all this year 170 MBr, chiefly in beaver, otter and martins, cleared off all their debt and had some to trade.

No. 4 Cheeskatawatick, 1st son to No. 3. A very good hunter and a good hand as a voyageur in the River. He brought this year 83 MBr, being 7 MBr more than last year. I was obliged to him for to build a large canoe this spring which I have no doubt stopped him in some extent from hunting so many furs as he might have done. This man also paid all his debts.

No. 5. Canochemassne. 2nd son to No. 3, a pretty good fur hunter and a very good hand in the river. But did not bring so many furs this year as the preceding one, having brought 59 MBr which is 17 MBr less than last year. Nevertheless he paid all his debt and had a few to trade.

No. 7. Achappy. An excellent hunter, but is now getting to be an old man, beginning to fail. He brought this year 105 MBr, with the assistance of his 2nd son who is now getting to be a lad. Had 26 MBr more than the year before, which chiefly consists in beaver, martin, musquash, and a few otters. Has been troubled with illness a part of the winter.

No. 8. Camapauwisit. A tolerable good hunter and 1st son to the above. He brought this year 62 MBr which is one half beaver more than last year. He also states that he was unwell in health most of the winter and starved a good deal, not being able to procure provisions enough.

No. 9. Cheemaoshominabin. A principal Indian formerly when young and had great influence over the Indians who hunt to the Southward of this plan and was titled a chief amongst them. He has made a very poor hunt this year. He brought in his furs last

April, which only amount to 33 MBr, being 29 MBr less than last year.

No. 10. Saiko. Brother to 9, a very good hunter who's lame that he has not the power to use his legs and goes on all fours. He brought this year 77 MBr in furs being 20 MBr less than the year before. He did not make his appearance here this spring but sent his furs in by his nephews. Last time I saw him was on last October at which time he told me that the trappers who came up the river St. Maurice had killed a great many beaver on his lands and that he was now at a loss to know where to find any beaver. And I am sorry to state here that I beg to be excused for not having mentioned this last winter in my official letter to the gentleman in charge of the Ruperts River District. This Indian has two boys who are now beginning to hunt furs, and are very industrious.

No. 11. Naipaiskish. Nephew to No. 10, a very poor hunter and very lazy. Brought this year between him and his grandmother 27½ MBr being 7 MBr more than last year.

No. 12. Toochusaiquon. Nephew to No. 10. A very good hunter and an excellent hand in the River. He goes down this summer as a hand, to bring up the supplies. He brought this season 70½ MBr, principally in beaver and otters. This includes 7½ MBr which his mother hunted, being the same as he brought the year before.

13. Nautoway. Brother to the above No. 10, a good hunter and a very good hand in the River. He goes down this year as a hand in one of the canoes. He brought this year 79 MBr in furs, chiefly in beaver, Martins, musquash, and otters, being 18 MBr more than last year—and still has a large outstanding debt, owing to his having made a very poor hunt in 1834, which I am afraid he never will be able to pay. He also brought 2 MBr. in Castone [instead of "Castoreum"].

14. Wapatch. A very good fur hunter and a good hand in the River and is engaged to go down as a bowsman to one of the canoes. He brought this spring 79 MBr, including Castorum. His furs consist of principally bears, beaver, martins, otters, cats, etc. Notwithstanding he brought a very good hunt. He still has a large debt remaining, the cause of which is owning to his having been advanced full payment for trip to Ruperts House last summer and having gone down part of the May, he thought proper to run away from the canoes. For which reason the goods which he has taken on account of trip were all placed to his debt—being 35 MBr, which is the payment for a bowsman and sturs man from Mistasinny and back hitherto again. He is engaged this year again to go down—not being able to get hands enough without him.

15. Pimassom. A tolerable good hunter and a good hand in the river. He hunted this year 69 MBr, principally in beaver, otters and musquash—being 8 MBr more than last year. He is engaged to go down in one of the canoes and is generally one of the sturns men.

16. Etapao. A middling hunter, but made a poor hunt this year, having only brought 38 MBr which is 20 MBr less than last year. He also brought 3½ MBr in Castore. He has a large debt remaining and is another man who run away from the canoes last summer, in company with No. 14—which causes his debt to be more than it otherwise would have been, had he kept to his engagement.

17. Caumattuet. A tolerable hunter—but this year having left his own lands and joined his relations who came to Timmiskimay, he had made little or no hunt. He only brought 4 MBr in furs, being 5½ MBr less than last year, and I perceive by Timmiskimay Indian debt book that he has traded 7 MBr there—for necessavins. [?] I have engaged him for to go down the River and clean the portages which are in a very bad condition. . . .

No. 18 Cauwatch. A Ruperts House Indian, but generally got his supplies here, on account of Ruperts House and the furs brought by him sent down in the Mistasinny canoes. This year he was considered as an Indian belonging to this post, but has not yet made his appearance. He is an excellent hunter. He brought last year between him and his stepson 118 MBr, I suppose that he has taken his furs to Nitchiquon, as that Post is on the visinity of his grounds.

(Signed)
WILLIAM M. KAY

MISTASSINI REPORTS 1837–1838

OF THE INDIANS

1. Cauosawisit. A principal Indian, hunts to the Northwest of this place and was a very good hunter, but now he is getting old and sickly and is often laid up with the Gravil. Did not arrive this spring but sent in his furs by two of his sons and which amounts to 75 MBr including Castorum and some furs received last August. His [?] tell me that they were obliged to haul him every time they had occasion to remove during the whole spring—and when they left him last he scarcely could go out and in at the hunt. He is looked upon as a chief by the Indians—and I have indulged him on that account more than any of the rest of the Indians. He has received a Chief's coat for these three years past. His hunt this year is 15 MBr less than last year, which they attribute to their being scarce of provisions during the winter.

2. Cheeskathamatuk, 1st son to Cauosawisit. A good hunter but has hunted very little this year. He was here sometimes in last March. He then told me that he could not reach the lands which he had intended to pass the winter in—owing to the winter having set

in so soon, and was the cause of him not hunting more beaver in the early part of winter, as there were very few beaver where he left his canoe, and that part of the country being rather scarce of provisions he most of his time was taken up in looking for something to subsist on. His hunt was brought by his brother, which amounts to 29 MBr, being 78 MBr less than last year. But I have heard by the Indian Potish that he has hunted 30 MBr more this spring. He is a good hand as a voyageur in the river.

3. *Cauochemassue.* 2nd son to Cauosawisit, a very good hunter but did not hunt so much this year as he did last, owing to his being with Saiko who is his father-in-law and could take no beaver house, except what the old man pleased to allow him to take. He brought 63 MBr of furs, being 14 MBr less than last year. He goes as a hand to Ruperts House this season.
4. *Caupimiquasit.* 3rd son to Cauosawisit. He is but a poor hunter, the worst fur hunter of that family. He brought this year 30 MBr which is 7 MBr less than the year before.
5. *Weecheemagan.* A tolerable good hunter, and has brought very few furs this year. He only brought 17½ MBr, being 33½ MBr less than last year. I saw him in May last, he then said that he has been starving most of the winter. I told him that I wanted him to make a trip to Ruperts House. But I have not seen him since.
6. *The late Wissinnahagonish's son.* A young lad and a pretty good hunter, but did not so well as last year, as he was induced to eat some of his beaver skins, to keep soul and body together. He brought 26 MBr which is 19 MBr less than the preceeding year.

Cauiapawisit. 1st son of the late Achappy, died this last winter. Was a pretty good hunter. He brought last year 40 MBr.

7. *The late Achappy's 2nd son.* A young lad and promises to be a good fur hunter. He brought this year 60½ MBr of furs, being 13¾ MBr more than last year, tho he had some of his father's hunt along with it.
8. *Cheemooshominabin.* A very old man and does not hunt near so much as he used to do. But one of his grandsons, a young lad, makes up for his failings, as he is getting to be a pretty good hunter. But this year the old man met with a misfortune the martins having destroyed no less than 30 MBr of furs, and mostly beaver skins, the old man says. He brought 34 MBr this year which is no less than 58 MBr less than last year.
9. *Saiko and sons.* This man cannot walk and has been in that state for many years. Yet notwithstanding he is one of the best hunters who come to this place. He sent in his furs in the spring by his wife and 1st son which amounted to 70½ MBr, including castorum and 7 MBr was received from him before. He is the Indian who brings most canoe bark, and the best. But he sent word that he would not be able to bring any this year.
10. *Napaiskish.* Nephew to the above. A very poor hunter. He brought 15½ MBr, being 5½ MBr less than last year. I have engaged him as a hand to go to Ruperts House in one of the canoes.
11. *Tootcheesaiquon.* Brother to Napaiskish, a very good fur hunter, but has hunted very few furs this year, having wintered with the deceased Cauiapawisit who he was obliged to haul about and preserve provisions for and for all the family of the late Achappy whose daughter he has for a wife. He passed here on the 11th April but had left his furs which his mother-in-law brought, on the 18th June —and amounted to 12 MBr. This Indian arrived since and brought 38 MBr which makes in all 50 MBr, being 36¾ MBr less than what he hunted the year before.
12. *Nautoway.* Brother to the above. A good fur hunter. He was here on the 24 April. He then told me that he had hunted 60 MBr in furs but has not yet made his appearance. Tho I told him that he would be required to make a trip in the river this summer. This man has arrived since and brought 87 MBr which is 26 MBr more than he hunted last year.

Wapatch. A very good fur hunter, but has made a poor hunt this year, compared to his hunt of last year. He brought this season 44 MBr, including castorium, which is 27 MBr less than last year. His son died some time in the spring which I suppose is partly the cause of his not hunting more. He is very poorly himself. He is engaged as a hand in one of the canoes, but I much fear he will not be able to go.

Pimmassom. Brother to the above. He died sometime late in the fall when the cold weather began to set the small bushes fast with ice. He was a tolerable good fur hunter and an excellent voyageur in the river. His hunt last year amounted to 65 MBr, the most of which was hunted by the deceased before he got very ill. Which is 48 MBr less than last year. Was employed last summer clearing the portages.

Etapao. A middling fur hunter and perhaps would be a good one if he had lands which he could call his own. But as that is not [the] case he is obliged to keep about the outskirts of other Indians' lands, and when he stops with any of them he can kill no beaver except what they chose to allow him. He belongs to the coast and was taken inland when he was a boy. He hunted this year 45 MBr, being one MBr less than the last year. He is engaged as a hand to go down to Ruperts House in one of the canoes.

Caumattuit. A pretty good hunter some years—but this year he has made a very poor hunt indeed, having only brought 16 MBr of furs which is 35 MBr less than last year. Which can only be attributed to his being very unsuccessful in his endeavours to kill beaver as, by his own account, he found several plans

where the beavers were stopping. He was employed last summer [to] clean the portages.

Cauwapatch. A very good hunter, but did not come here since 1836. He now goes to Nitchiquon, together with his stepson.

The mother of the late Indian Wabbinoose, going to Nitchiquon.

Potish. Formerly a Ruperts House Indian but considered a Mistasinny Indian. Brought 66 MBr in furs—which is 42 MBr less than last year. But then what he brought last year was the hunt of two years. In that case he has done better this year and would have brought more had he not been obliged to eat 20 beaver skins when he was starving.

Espahinwescome. A tolerable good hunter. Died this last winter through starvation. He left his mother, a brother and a sister when they were in want of food and took one brother along with him who came here with Potish. He is but a small boy yet. The little fellow says, the night his brother died—the deceased ate 4 partridges before he went to bed, laid down and never moved again. Before he went to sleep he told his little brother that he found his stomach very full and was rather uneasy but did not offer to get up. The little boy was several months by himself—till he saw old Potish. The deceased brought last year 48 MBr and [. . . no amount given] MBr that was taken down by the Nitchiquon people. The boy brought 18½ MBr in furs—12 of which I allowed him to trade.

Metweabunno. Has not yet arrived.

Ashawabanuwiscome. A very good hunter, supposed to be dead. He is brother to the above and is one of the persons that was left. He was not able to hunt last year.

Mithwapaish. An Indian belonging to Swabmoosewon, a very old man. I cannot say whether he is a good hunter or not. He brought last December 12½ MBr of furs, and last year I received from 13½ MBr.

Asoomagan. A Swabmoosewon Indian, but do not know whether he is a good fur hunter or not. I received from him this year 30 MBr in furs, which is one and a half MBr less than last year.

Askanish. A very old man, is not able to hunt much. He is an Indian who belongs to Swabmoosewan. I have received from him 42 MBr including Castorum.

Assinnaby and partner. Indians belonging to Swabmoosewan. I have received from them 52 MBr in furs.

(Signed)
W. M. KAY, Clerk.

MISTASSINY REPORTS 1839–1940

OF THE INDIANS

Canosawisit. A principal man among the Indians and when all his sons were alive had a great influence amongst them. But now has not so much. He generally gets what they call a Chief's Coat, trimmed with Scotch Gartering. In former days he was an excellent fur hunter, but now he is getting old and failing fast, parting owing to having had so many attacks of the Gravel, together with family misfortune. He made a tolerable good hunt this year, having brought 95 MBr including Castorum. This is according to the Indian tariff and including the hunt of his youngest son who is now a lad about 15 or 16 years old, also part of his spring hunt last year is included in this year's trade. He brought last year 50 MBr, being 45 MBr less than this year. His hunt this season is chiefly in beaver skins and martins. He says himself and sons together with all their families were much in want of provisions from the commencement of winter till some time in February, when they began to kill some deer, and since that they did very well.

Cheeskatawatuith. A son to the above Indian. A very good fur hunter but did not so much this year as what he did the year before, which he attributes to the Indian Paitabunowescome of Ruperts House whom he met this spring on the lands where he expected to find beaver and found himself quite disappointed, as the other man had come there last fall and had passed the winter thereabouts. When he knew all this he intended to go further on but then he was informed that his uncle Natcheecapaw had been to the very place where he was thinking of going to. So he was obliged to give up his intentions and come back as fast as he would. He brought 68 MBr, principally beaver, martins and otters, being 17¾ MBr less than last year. He is an excellent voyageur and has [been] engaged to go as a hand in one of the canoes to Ruperts House this season.

Opisquatie. Canosawisit's 4th son. His two brothers, older than himself, died in the Fall of 1828. This young man is a mid. good hunter and brought this year 48½ MBr, principally in beaver and martin skins. His hunt this season is 11 MBr more than last year. He was with his brother when they fell in with Petabinowescome and of course met with the same disappointment. These lands do not belong to these Indians. But as all those are no more who once claimed it, they think they have a prior right to it, being nearly connected with the deceased Indians. This young man is a very good voyageur and engaged as a hand for one of [the] canoes to make a trip to Ruperts House.

Seestick. Son to the late Missinahagonish and stepson to Potish. He is a middly good hunter, considering that he has only just grown up to manhood. He may perhaps be a good fur hunter hereafter. This year he brought 23¼ MBr, chiefly in beaver skins and martins, being 4½ MBr less than last year. He says that he was starving all winter, which prevented him from hunting more as he did.

Caunipecmakissew. A son to the late Achappy and the only son alive. His mother and youngest sister died last summer, and his brother, a boy, died during the winter. This young man promised to be a good hunter whilst his father was alive. But since his father's decease he has not done so well. He brought this season 29½ MBr, being the same quality as what he brought last year. His hunt this year consists chiefly of beaver skins, mostly all prime skins.

Cheemooshoominabin was once an excellent fur hunter. But now is old and cannot hunt much. He has three grandsons, one of them is a man, the 2nd one a stout lad, the 3rd a stout boy. The old man was almost starved to death this last winter, had he not fallen in with his brother Saiko, he said he could not have lived. He was once considered as a chief over the Indians who hunt to the southward of this place, but now all that is done away with. Him and his grandson brought this season 46 MBr, including Castorum, being 8¼ MBr more than last year. His eldest grandson (Wemitsagooshew) went to Swabmoosewon last fall and took a debt of 20 MBr, I am told.

Saiko (alas) the lame man. He cannot walk. They haul him on a sled whenever they have occasion to flit about during the winter. He is a good beaver hunter and has two sons who promise to be also good fur hunters. They brought this year 146 MBr, principally in beaver skins, being 42½ MBr less than last year which he says was owing to his having been so sickly last fall, together with his 2nd son. His 1st son goes down as a hand in one of the canoes. He made a trip last summer for the first time and did his work as well as any of the middlemen.

Naipaiskish. Nephew to the above. A very poor hunter. I have not seen him since last August, but his furs were brought here by his mother this spring, which is only 9½ MBr, and one large otter was received from him last summer, being 10½ MBr all together which is three MBr less than what he brought the year before.

Tootchesaiquon. Brother to Naipaskish. A very good fur hunter. But this year he has been unfortunate and has made a very poor hunt indeed, comparatively to what he used to do before. He sent in his furs by his mother, which only amounted to 35½ MBr and is 40¼ MBr less than last year. Which his mother says was principally owing to their canoes having been spoiled by the cold weather in winter, which prevented them from going to where they had known of a few beaver loges in proper time. They were obliged to raise bark and set to work and make canoes as fast as they could. The old woman says that their canoes were utterly useless when they came to them. It was not possible to mend them without losing more time than what would do by making new ones. This man came here on the 7th of April for some ammunition and other necessities. I told him then that I want him to go down to Ruperts House as a hand in one of the canoes. He then told me that he wished very much to stop and have a spell for one summer—and if he lives will have no objections to make a trip next summer. I told him to voyage, provided, I could find hands enough without him, He said he would see when he came in the spring—but he thought proper not to come. He is a most excellent hand in the river, managing the canoes amongst the falls and rappids. He is a stout strong man. I think the cause for his not coming in the spring is owing to his having made a poor hunt, as he wishes to be considered a great man among the Indians. He told me when I saw him that he had been ill with his eyes for about a month, was not able to go anywhere, being almost entirely blind.

Nautoway. Brother to Sootchesaiquoro. A pretty good hunter. Brought this year 64¾ MBr, being 4¾ MBr more than last year. His mother says that he is often in an ill state of health and that he was not very well when she parted with him last—which was the reason why he did not come in, as he found himself not fit to go down as a hand in any of the canoes. But I am afraid that this is nothing but a made up story.

Wapatch. A very good fur hunter and generally brings a good hunt. His hunt alltogether this year amounts to 94 MBr, including castorum, which is 37½ MBr more than last year and consists chiefly in beaver and lynx skins. This man was sent off in the beginning of April to take letters to Ruperts House and was to hunt furs as he went along—But from what I can learn, after he got back to his tent he did not set out on his journey till past the middle of April, which prevented him from having much time to spare. I have no doubt, had he not been occupied in this manner he would have hunted more beaver in the spring. But for every female beaver that he would kill there would be three or four young ones that would be of value—and by being left alone this season, if the Indian lived to kill them the next year, will be more than what will make up the loss sustained this time. This man goes down as a hand in one of the canoes.

Etapai. A middling fur hunter, but has made a very poor hunt this year having only brought 21 MBr. He went to Swabmoosewan last fall in company with Cheemooshominabin's eldest grandson. He says he merely went there to see how the Indians were treated and says he did not see much difference, except in ammunition and spirits. Says that an Indian will get a measure of powder for three large musquash. He tells the measure is the same size as what it is here. And spirits, he says, they get as long as they please to drink. I hardly can believe this assertion to be altogether correct. He brought this season 32 MBr which is 16 MBr less than last year.

This differing he attributes to his having been obliged to support his father, and mother in law all spring, the latter being so helpless with sickness that the old man could do nothing more than attend her.

Massawan. Son to the late Indian Pimassom, a young lad and promises to be a good hunter. He brought this year 28 MBr which is 6¼ more than last year. He has a mother and sister and three brothers to provide for in winter.

Caumattuit. This man is but an indifferent hunter, have not seen him since the 3rd last may. He brought in the course of the year 20½ MBr.

Cheeshainapai, son-in-law to Wapatch, a poor fur hunter.

Potish. A very good hunter but rather getting old and cannot go after deer as he used to do. He brought this year 58½ MBr in furs and castorum—which is 33½ less than last year—which he attributes to other Indians having gone over his grounds before he got to them last fall. Vizt. Petabanowescome, Natchecapow and old Cauosawisit. Those are Indians belonging to Ruperts House. He says that he was much in want of provisions [al]most the whole winter, which was the cause of his not being able to kill more martins than what he did.

Nautam, Jabinoose. A boy—and brother to Metweabino. He passed the winter along with Potish who both belong to the same lands. He brought this season 17½ MBr, mostly in beaver skins, and I think if he lives to be a man that he will turn out to be a good hunter. He is brother-in-law to Cheeskathawatuit.

Mithapaish. An Indian belonging [to] Swabbamoosewon and a very old man. He sent in during the winter 7½ MBr of prime and seasoned furs. I cannot say whether he is a good or a bad hunter. I received 9½ MBr from the old man last [year].

Osoowagan. An Indian belonging to Swabbamoosewon and a very good fur hunter. I am told 25½ MBr was received from him this year, being 8¾ more than last.

Merrishan. Another Indian belonging to Swabmoosewan—who[m] I have not seen since last August, at which time I received 2 MBr. It is said that this person is an Hermaphrodite and goes by the name of Oskanish's Daughter.

[The author did not sign this report, but judging from his handwriting it seems to have been written by W. M. Kay.]

IX. CRIME AND PUNISHMENT

The concept of criminal law, as a public law, where the state or, in our case, the band "is regarded as the subject of the right or object of the duty" to act is recognizable only in rudiments. The relatively weak development of government, public power and public interest results only in traces of criminal law in our sense. The community at large reacts vigorously only in such instances in which the peace of the community as such has been violated: that is, the offenses of constant trouble-making and murder. The great sector in modern criminal law dealing with the violation of property rights is not a subject of Naskapi criminal law, nor are the offenses against public morals. It is left to the self-aid of the offended person or family to set things right and to get satisfaction. How weakly the public interest and the public legal components of Naskapi criminal law have been developed is shown particularly by the procedure of the law-enforcing agencies. The public power protects the legal rights of the individual only upon request and not of its own volition. "Where there is no plaintiff, there is also no judge."

CRIMES AGAINST THE PUBLIC ORDER

In this pre-state society of the Naskapi the conceptions of treason and high treason or of taboo violations which latter play so important a role among African and Polynesian tribes, are lacking. However, if the peace of the community is disturbed—and the maintenance of this peace is fundamental—the community will act to enforce the peace. The habitual peace breaker, the constant trouble maker, the incorrigible thief, the chronic quarreler, persons who habitually hunt on the land of others, are punished by the community with expulsion. In Naskapi society, expulsion is equal to a death sentence. The culprit is expelled from the protecting shelter of the band; his hunting-ground is no longer respected; his life is made miserable, since he is shunned by his fellow human beings; he is like a lonely wolf. He is outlawed or, to use a conception from the old German law, he is "without peace" (*friedlos*). Unable to find, beyond the borders of the tribal territory, any hunting-ground enabling him to make his living and to keep himself alive, he is doomed to slow starvation. A classical case of expulsion is the following (Informant Joe Kak'wa).

About 1870 a Tête-de-Boule Indian by the name of Ámechíchi ("The Man Who Strolls About") was expelled from his band and banished from the tribal territory because he continuously used to hunt on foreign soil, despite the fact that he had his own hunting-ground. The chief and the tribe outlawed him. Thereupon, he emigrated with his family to join the Lake St. John Band, but he was not initiated into the band. He therefore went away to try to become a member of some of the other bands—but to no avail. In desperation he withdrew into the woods where he and his entire family died of starvation.

In this case the fact is interesting that the expelled man tried to obtain membership in other bands and that it was their negative and passive reaction which finally doomed him to starvation. The outlawed Naskapi is not, as is the custom with many Australian tribes, killed while trespassing the borderline of another band, because as we have already seen, trespassing

is no crime if the trespasser is in need—and Ámechíchi certainly was in need. In conformity with the spirit and the defensive attitude prevailing throughout Naskapi culture and law the criminal is being sentenced to starvation merely by the passive manner of acting of the foreign bands. The result is, of course, the same—whether the doomed man is killed, as with many Australian tribes, while trespassing into foreign territory, or whether his death is caused, as with the Naskapi, by passive methods.

CRIMES AGAINST PERSONS

Murder and manslaughter are regarded as crimes. A distinction between murder—the premeditated and deliberate killing of a human being—and manslaughter —the killing without prepense—is unknown to these Indians. Even the accidental killing of another person as the result of a quarrel is regarded as homicide. Incitement and active aiding the culprit in murder is punishable, although to a lesser degree than the crime itself. The accomplice receives the same punishment as the perpetrator. Self-defense is permissable and is exempt from punishment.

During a discussion of whether or not self-defense be punishable, one informant emphasized his opinion that this is not the case with the remark: "I would not go even to bury him" (the victim of the slaying). Any person who gives support to the criminal by sheltering or feeding him is not subjected to punishment. The revenge and expiation of a murder lies in the hands of the deceased's relatives, especially his sons, brothers, or grandsons. The band and the chieftain act only in a subsidiary capacity, namely, when neither brothers nor sons nor other male relatives survive the person killed. If those whose duty it would be to avenge the killing should not act against the murderer, it is up to the chieftain to remind them of their obligation and to step in. However, the kin feeling among the Naskapi is not strong enough to develop into a regular blood feud. Revenge for the murder is essential; and the murderer himself—not one of his kin—must be the victim of retaliation. This retaliation is a self-applied satisfaction, a private punishment, yet tolerated, demanded, sanctioned, and considered as legal by the community. Composition is not known.

If the relatives of the murdered person choose not to act or if the deceased is not survived by a male member of his family, the chieftain and the council will interfere. The author's informants maintained that in general murder is punished by the death penalty but that this must not necessarily always be the case. Joe Kak'wa reported one such case in which the murderer escaped with a mere injury—a shot through the leg—after which the matter was settled:

It was about the year 1850 when a Tête-de-Boule man by the name of Chachiow ("Mighty Man") killed another Tête-de-Boule, Naytowcaneyoo ("Great Snowshoe Walker") in order to get hold of the latter's wife. To gain that woman, Chachiow killed Naytowcaneyoo in the woods during the wintertime. Living in the same teepee, they had just finished their meal when Chachiow suddenly rose and shot the other man. The woman sat there and watched it happen. The murderer was something like a headman to whom belongs the task of determining the beginning of the hunt. Instead of burying the slain man in proper fashion, he just covered the body with snow and continued to hunt and trap. Since he was what might be called a chieftain, the woman had to do as he pleased. She remained with him.

When the summer came and the other Indians returned to their supply posts at Mont de Chêne—a place so named by the Têtes-de-Boule since times unknown this man remained against his own custom in the woods to continue his hunting and trapping, keeping the murdered Naytowcaneyoo's wife with him. During that summer, some Indians of his tribe who happened to pass by saw him sitting down to eat a rabbit. On seeing them he wanted to get away, but his own tribesmen shot him through the leg. They allowed him to escape. Nevertheless, they separated him from the woman whom they brought back to the tribe in order to marry her to another man. The murderer, wounded in the described way, returned to the tribe during the following summer to join them on the place of supplies. They did not bother him any more.

Richard Hardisty, in his Mistassini Report for the year 1829–1830, reported a case of unintentional killing:

Cowmawquet and Mother. This young man was a son of the Ruperts House Indian Nooshekao. He was stopping in the spring after the ice broke up with a number of the other Indians—when seeing a fire, as they imagined. They all became alarmed and went off during the night to an island where they merely put the heads of their canoes on the shore and laid themselves down in their canoes to sleep. He however got up in the course of the night while still asleep and thinking he was on the shore got out of his canoe into the water. This awakened the others and increased their alarm and taking him for some wild Indian a son of Cowosowozit took up a gun and shot him right through the head. His furs were brought here by his mother and amounted to 25 MBr of various sorts and is 3 MBr more than he hunted last summer.

Bodily injury is, among these Indians, no subject of criminal law but is settled between the parties concerned. Whether the injured person avenges himself or whether he chooses to act through a shaman is of no concern to society. However, the chieftain may interfere when the injured man has suffered an impairment of his hunting capacities. The perpetrator is then obliged to provide food and shelter for his victim.

During the discussions with various informants the question was raised as to whether or not a man injured through a shaman's magic procedure could ask the assistance of either chieftain or community. The answer was that the only alternative left the injured person was to appeal to another shaman for his help, if he himself was not a spirit man. In no case, however, would either chieftain or community interfere, because, as one informant put it: "Human matters and spiritual matters are different."

The right of asylum and the institution of places of refuge are unknown.

VIOLATIONS OF PROPERTY RIGHTS

As a consequence of the not very strongly defined character of private property and, owing to the economic situation which makes an accumulation of wealth in this classless society impossible, the protection of property rights is not subject of criminal law. Whatever may be the reason for this, whether the sentiments of altruism and indifference or socialistic-communistic trends are responsible, theft, robbery, and arson are not punished. The thief or robber is simply obliged to return the stolen goods.[1] In the case of arson—when, for instance, an Indian has wilfully set afire another Indian's tent—the resulting damage has to be restituted by the man who caused it. If a stranger traveling through another Indian's hunting-ground should, for instance, scare the game away by the smoke of too many fires he built unnecessarily, the owner of the hunting-ground may advise him to stop this practice. If the culprit should continue his damaging actions nevertheless, the chief may step in to sentence the offender to make amends for the damage caused by the scaring away of the game. Unlike the detailed rules which regulate, for instance, all violations of property rights among many West African agricultural tribes, the settling of such disputes is, with the Naskapi, mostly handled by the concerned parties themselves. The community as such does not feel obliged to interfere in such cases with the infliction of punishment. Discussing the hunting rights and their violations in a previous chapter, we have already pointed out that the trespasser is induced to stop his infringements without, however, being subjected to any additional punishment on account of his trespassing. This defensive character of Naskapi law is here again evidenced by the non-punishment of the thief, the robber, the incendiary. This does, however, not imply that the victim of such actions might not be able to bring about the punishment of the offender, even though by methods not necessarily falling under the category of modern criminal law. He may, as in the cases of "The Bersimis Men" and "How the Stolen Traps Came Back" [2] turn to the shaman to secure help or, he may mobilize public opinion against the offender which, being totalitarian in scope, may bring about results much farther reaching and of stronger effect than any formally imposed punishment.[3]

VIOLATIONS AGAINST PUBLIC MORALS

These are not subjects of criminal law. Incest, for instance, is not punishable; however, the community takes precautionary measures in order to express to the offender their disapproval through the means of public opinion. This passive attitude of the community may, as in the case of the Indian Camatuet.[4] result in the emigration of the offender from his band.

Abortion is unknown; rape is not punishable, nor is adultery subjected to punishment. No damages may be claimed. If the criminal cohabition remains without consequences, the husband may reprimand or even beat his wife but will take no other action. "I only would tell my wife that she did wrong" was the answer of one of the author's informants (François Germain). If an illegitimate child is born after an act of adultery, the husband may or may not leave his wife. "That's a personal matter, nobody cares about it."

PUNISHMENT

The following kinds of punishment have been reported: execution by shooting or drowning, as in the case of murder; tying to a tree; pulling off of nails. Degrading punishment and imprisonment sentences, in our sense, are unknown, unless we consider the tying to a tree as an equivalent to imprisonment. The offender tied to a tree as a means of punishment, however, is not considered morally outlawed. He is looked down upon only then if such punishment reoccurs too often. A man tied to a tree as a matter of punishment stands with his arms hanging down; the rope is tied all around his body and arms. Any tree can be used which is strong enough for the purpose.

Fines and mutilation as punishments are unknown.

X. LAW-ENFORCING AGENCIES

PUBLIC OPINION

To designate public opinion as a law-enforcing agency may be a matter of dispute, especially if one subscribes to the opinion that no law whatsoever exists unless a legal norm is enforced by compelling legal statutes and by "the systematical application of the force of politically organized society" (Radcliffe-Brown and others). Without going into a discussion of the theoretical implications of the statement, this opinion can be upheld as far as highly civilized peoples and tribes with advanced agriculture are concerned; it fails however when applied to the single social structures of food gatherers and hunters. Public opinion is indeed an agency to enforce the customary law of simpler societies and, among them, that of the Naskapi. For the Montagnais-Naskapi the maintenance of the peace of the community is fundamental and the strongest preventive against violation of the peace is public opinion. Public opinion is dormant during the winter months—though a man can "lose face" in the woods—as the various families are separated by scores of miles and are dependent solely upon themselves. It is in the summer meeting places that public opinion is particularly strong. It works not only preventively but also punitively and it also asserts itself

[1] Compare, for example, the case of Cotchits, p. 483.

[2] Compare pp. 478, 481, 482.

[3] "The offenders are frequently mentioned and pointed out without reserve. I gather that this is a form of punishment in the eyes of society" (Speck, 1933: 579).

[4] Compare p. 472.

when the peace of the community has been violated. This comes about slowly, however, and then only when the peace of the community rather than that of the individual or family is disturbed. But even in that event public opinion must be prompted by the interested party.

Once public opinion is aroused, it then has a totalitarian meaning because it is the opinion of the whole band which, in contrast to the multiple class opinions of modern civilizations, is a single class community with the same mutual problems, interests, and necessities. Public opinion in such a primitive society is, therefore, much more poignant and, indeed, more forceful than any expression of public opinion could possibly be in our modern civilization with its divided interests.

The following case of the Indian Camatuet as recorded by Richard Hardisty in the Mistassini Report for the year 1828–1829 furnishes a good example of how public opinion acts when a breach of law occurs—in this case, of old-established marriage rules. Camatuet "took his own sister for a wife," therewith committing the offense of incest. Public opinion was in no position to prevent this action; however, after the offense became known it reacted vigorously. The records do not state and it is not even probable that the chief or any other law-enforcing agency did interfere; incest being, as we have previously seen, no subject of criminal law. Nevertheless, the evil-doer did not escape punishment. It was public opinion which treated him as an outcast; his life was made so miserable for him that he decided to leave his band or, at least, to trade at another post of the Hudson's Bay Company. Up to then, public opinion acted merely in a passive way. It had not yet reached the point to punish Camatuet by active measures—with expulsion—as it did in the case of Ámechíchi [1] because Camatuet, worried about the possibility of such a verdict, preferred to quit the tribal territory altogether. The legal development of this case after the birth of a baby to the couple has not been reported.

The Indian Camatuet has also a wish to leave Timmiskimay and come to this post. He came in here in the winter, starving. His lands are situated on the borders of Mistassini Lake and are nearer to this post than to Timmiskimay. The reason he assigned when he came in here in winter for not wishing to go to Timmiskimay was his not being able to percure furs in that quarter without going on other Indians' lands. I have however since been informed by Nosipitan that Camatuet's principal motive for not wishing to go to Timmiskimay is his dislike to the Timmiskimay Indians, believing them to be his decided enemies. This appears very feasible to me—as I know a report was current last summer at Timmiskimay that Camatuet was keeping his sister as a wife—in consequence of which the Timmiskimay Indians would not associate with him. The report originated with Catspitsiway (his uncle) with whom he passed part of the winter of 1827–28—but in justice to the young man I must say that I never believed the report—and consequently consider him to have been grossly calumniated.

His furs have been received here on account of Timmiskimay Post. He has brought about 35 MBr of furs of various sorts. I mentioned in a former part of my report of a rumor being current last summer at Timmiskimay that Camatuet and his sister were living together as man and wife. I did not believe it at the time—but it has turned out to be true enough—as his sister was during the winter delivered of a child by him.

Another case in which public opinion obviously was a decisive factor has been mentioned already [2]: the enforcement of the marriage of Jacob and Maggie, brought about through the pressure of public opinion. Also in the case of the chieftain Chiemooshominaban whose life story has been described [3] public opinion seems to have actively interfered after the death of his son presumably caused by the father himself, and the decision appears to have been definitely in disfavor of Chiemooshominaban who from that moment on was no longer looked upon as a chief and lost all the influence he once had with his band.

If we look for any equivalent in modern life in part comparable to the functions of public opinion in primitive societies we might think of our fraternities, lodges, clubs, and professional organizations with their laws and by-laws. The difference here is only that an Indian in disfavor with public opinion cannot simply leave his tribe to lose himself in some other community, as a member of a club or other organization may do if he violates the rules and laws. The Indian however cannot give up his hunting-ground; and should he attempt to escape unfavorable public opinion he would starve. In these woods where the individual must turn to his neighbors in times of need, as in the cases of illness, poor hunting luck or unfortunate weather conditions, not only the security of his possessions but his very life depends on the attitude of the community toward him.

MUTUAL ASSISTANCE

One of the important fields regulated by public opinion is mutual assistance. The rules of mutual assistance pervade the customary law of the Indians, running through their laws of obligations, their family law, and their commercial laws. It is noteworthy that these rules of mutual assistance have the greatest effect in case of immediate danger of life or of starvation. In such cases they have full priority even over those norms which under ordinary circumstances are sacrosanct.

We have seen that the hunting rights of one's own hunting-ground, anxiously guarded normally, may be broken if the stranger passing the territory is in need of food. In that case he may do sufficient trapping and hunting to provide for immediate needs without, however, having the right to gather meat or furs in order to sell them. The traveling Indian, too, may catch as many animals as he needs to still his hunger, while in the territory. Even the beaver, that most treasured animal the shooting or capture of which is

[1] Compare p. 469.

[2] See p. 420.

[3] Pp. 409–412.

reserved for those entitled to hunt on the grounds, may be killed by a stranger in need. In such cases he may even clean out a beaver house which has been marked by its owner. This most sharply defined individual property right even within the family may be broken by anyone who is really in need. If a person suffering from hunger arrives at the food depot of another Indian he has the right to take one-half of the provisions without asking the permission of the owner and without paying anything. The owner cannot legally demand a consideration—even though public opinion requires the subsequent return to the owner of all that was taken, and even more, as soon as the man is able to do so. An incident of this kind is reported in the following story of Joe Kak'wa:

In 1908, I returned from far back in the woods about one hundred miles off Lake St. John. I had been unable to find any game and was near starvation. While I was walking, I suddenly noticed on the ice a little stick standing like this: ___/_____, pointing toward the shore. This told me that some other Indian had put this sign here to announce that he had hidden some supplies in that direction. On my way to the woods I saw a platform used for food storage. You know what this meant to me. Its four posts arose about six feet above the snow. There, I found three bags of flour. I took half of one bag, 50 pounds, and went back home. Two weeks later I returned to that spot. The man who had erected the platform, old Antoine Conolly, was now camping there. I asked him whether there had been a theft in his storage place. He told me that half of one bag of flour had gone. I informed him that it had been I who had taken the flour because I was short of provisions and near starvation. He said he was very glad that he had been able to help me. I gave him the whole bag of flour—50 pounds more than I had taken originally because he had helped me a lot.

This more passive aspect of mutual assistance, i.e., this only passive readiness of rendering help to a fellowman in an emergency finds its counterpart in the firmly manifested rules on certain actions of active help which anyone in severe need may expect and request. This active part of mutual assistance will, naturally, in the first place benefit the immediate family or the hunting-partner. Numerous remarks in the Mistassini Reports describe cases in which an Indian hunter saw himself obliged to render help to members of his family or to his hunting companions; consequently, he was often unable to hunt and sell as many fur-bearing animals as usual. Saiko, for instance, had always to be hauled about and had to be cared for in many other ways.

Some typical examples of this nature may be quoted in the following. Speaking of Nosipatan, Hardisty wrote in his report for the year 1828–1829:

I have no doubt he would have hunted considerably more, but for the ill state of health of his son-in-law (Weechimaugan) during great part of the winter, whose family as well as his own he had to provide provisions for.

In his report of 1837–1838 W. M. Kay referred to the "very good fur hunter" Tootcheesquiquon who

. . . has hunted very few furs this year, having wintered with the deceased Cauiapawisit whom he was obliged to haul about and preserve provisions for and for all the family of the late Achappy whose daughter he has for a wife.

In 1839–1840 it was Etapai who of the Indians listed as trading with Mistassini Post was able to sell but a few furs at the end of the winter because he had unselfishly given his assistance to needy members of his own family:

He brought this season 31 MBr which is 16 MBr less than last year. This difference he attributes to his having been obliged to support his father and mother-in-law all spring, the latter being so helpless with sickness that the old man could do nothing more than attend her.

In other cases where the entered remarks of the managers might suggest that dying family members or hunting companions have been heartlessly abandoned while in need, it always becomes evident that the reasons for this behavior were either lack of supplies or the fact that the strongest of a group of sufferers left the others for the purpose of securing help from the outside. Nowhere is there in such cases any evidence of malicious leaving or of intentional exposure of the stricken persons.

Caniyapaiwisit, son to Achappy, . . . was stopping with Missennahagonish and was left when not able to walk—either to die or to live just as it might happen. They had no provisions excepting beaver skins which they used occasionally (Mistassini Report, 1834–1835).

Espabinwescome. A tolerable good hunter. Died last winter through starvation. He left his mother, a brother and a sister when they were in want of food and took one brother along with him who came here with Potish. He is but a small boy yet. The little fellow says, the night before his brother died—the deceased ate 4 partridges before he went to bed, laid down and never moved again. Before he went to sleep he told his little brother that he found his stomach very full and was rather uneasy but did not offer to get up. The little boy was several months by himself—till he saw old Potish (Mistassini Report, 1837–1838).

This active mutual assistance is, however, not exclusively limited to an Indian's own family or hunting companions. It comprises his neighbor, his fellow-tribesmen as well as any stranger.

To call for help efficiently in cases of emergency, the Indians have worked out a whole system of means of communication. In cases of illness, accident, or famine, the Indians set up signs calling for help, each of which has a very definite meaning. It is a signal system understood by every Indian and used only in the case of extreme need. When such a sign has been erected its purpose is not to turn "to whom it may concern" but to advise that "everybody is concerned." There are two different kinds of signal posts (*kähíkĕn chakahíkĕn*); one signifies illness or accident, the other hunger and starvation. They can be combined, since hunger and illness often occur simultaneously. In such a contingency a post, about two yards high, is set in the snow

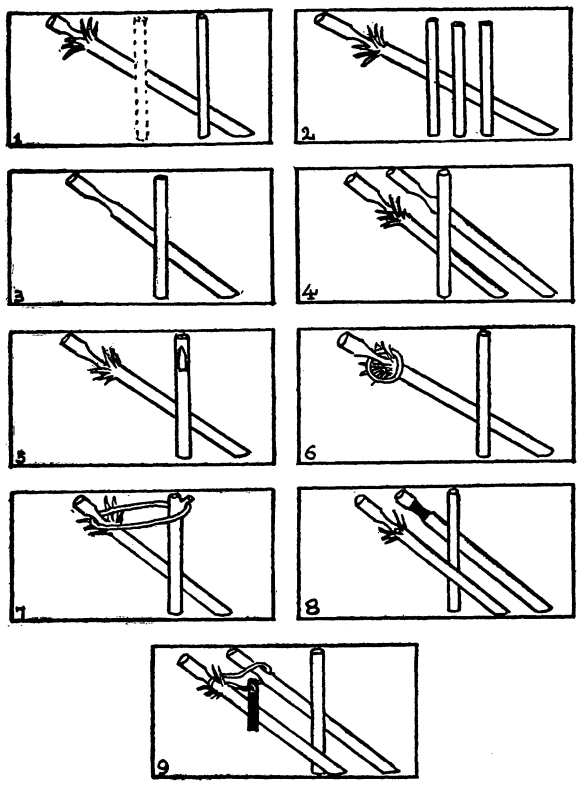


FIG. 17. Montagnais-Naskapi signal posts.

on the border of the hunting-ground or of an Indian path wherever a neighbor or others could be expected to pass by. The pointed tip of the post points in the direction of the tent of the man asking for help. At the upper third the post is carved all around; the deeper the groove the greater is the illness and need, and the assistance required (*nemishta'ákushinan*: "We are very sick"; *chäkat näkokatánan* "We are starving to death") (figs. 17–1 and 2).

The distance of the person seeking aid from the place of the signal post is marked by a second post, set vertically in the ground. If the distance is small, the vertical post is set close to the end of the signal post sticking in the snow (fig. 17–1).

If the person asking for help is farther away the vertical post is set in the snow at a greater distance from the lower end of the signal post (fig. 17–1). If days' trips are to be indicated, at times two or three vertical posts are used (fig. 17–2) each of which signifies a day's trip and the sign is repeated along the way to the tent. The number of posts (indicating a day's travel each) being diminished with the decrease of the distance.

The signal post for hunger and starvation has the same form and is set in the same way as the sign indicating illness or accident. Only in that case the groove is made in the form of an hour-glass (fig. 17–3) and by its depth it indicates the degree of famine and need for help. If the person seeking aid or his family is not only hungry but also ill, combined signal posts are set up in a parallel direction (fig. 17–4). Hence, figure 17–4 would be interpreted as follows: "We, the tent community living in the direction of the signal posts, are about a day's trip away from here. We are very sick and near starvation." (Note the deep notches on both signal posts.) "We call everyone passing by who sees these posts to bring immediate aid."

How does the individual or the outside world react to this call for help? As a rule, aid will arrive in time. As the posts have not been set up at random but, in order to reach the outside world as quickly as possible, on well-known traveling routes of the Indians or along the trap line of a neighbor. The neighbor or any passer-by, noticing this call for help, will rush as soon as possible to the tent of the stricken family. In most cases, however, this cannot be done at once, as the helper may not be prepared for the emergency. He may be on his way to his traps with only enough food for himself. In any event, if unable to help immediately, he will inform the one calling for aid that he has seen the sign and that he is willing to give his assistance. This is done in the following way:

He may make a notch with his axe on the vertical post (fig. 17–5) which signifies: *"shashnichi uapatan,"* "I have read your message," or he may tear off a branch, fold it into a ring and hang it over the signal post. Instead of the branch he may hang up a leather or cloth knot on the signal pole, according to what he happens to have on hand. Generally such a ring means the same as a notch, but it indicates further details. The smaller the ring, the sooner the helper will return (fig. 17–6). If the ring is very large (fig. 17–7) it means that it will take a long time until assistance can be given. Often, the person who has seen the signal must first return to his own tent, far away, in order to get the proper provisions and other means of aid, before he can set out on his mission. In any case, every Indian who has seen such a signal of distress will inform, by means of a ring or a notch of his intended assistance, not only the person calling for help but also all other passers-by (*Neshkwao shetoan*).

When assistance has been rendered the signal posts are destroyed so as not to mislead those who later pass by. It may sometimes happen that the helper arrives after the suffering individual or family has died. In that event the signal post is not destroyed. The notch on its top end is blackened with soot (fig. 17–8); or a blackened piece of wood (fig. 17–9), often in the form of a cross, is suspended on the post. It also is possible to convey the death message by blackening one side of a piece of birch bark. In order to protect it against humidity, it is folded and inserted in the notch of the signal post. Upon seeing this death message every passer-by is informed that his assistance comes too late and that somewhere deep in the woods a person or family died of illness or starvation.

All these signs are erected only in the case of extreme need, and Indians have told me that people to whose aid they had come after such notification "looked terrible and were close to death."

In response to such signals everyone passing by must and will help. No instance is known where assistance has ever been refused; and the erection of such signals occurs very often in the vast woods of Labrador. Even the most hated neighbor or the most despised enemy who perhaps a year ago had destroyed and pilfered another Indian's own traps must and will be assisted by him.

What then compels the Indian to stand by even his hated personal enemy instead of enjoying his misfortune? The answer is: public opinion. Other explanations might be given. Thus, if one asks an Indian why, in such a case, he would assist even a hated personal enemy, he will answer: "If I wouldn't do it, I would have had bad hunting luck and the following morning the Man of the North might order his wind to cover the game tracks with snow." However, the strongest motive prompting them to give immediate and positive assistance is the realization, that, in case they would refuse to assist, they too might be refused needed assistance some day; for, if a case should become known where an Indian maliciously disregarded a signal erected in extreme need, he would likewise be disregarded in case of his own need.

This attitude of helping those in need and the enforcement of mutual assistance through public opinion has, naturally, not remained without influence upon the relationship between the manager and the Indians. It was not always mere leniency or humanity which induced the manager to allow new credit even to the non-paying debtor; but partly the pressure of public opinion which brought about his generosity in some individual cases. In the end, public opinion even expected from him who had his place in the Indian cycle of life and who was a part of their social order, to render active aid in cases of starvation whenever this was possible. This is evidenced by an entry in the Lake St. John Journal of Occurrences for the years 1848–1850:

> Tuesday 29th January. Fine cold weather, wind N.W. Ataquapie arrives in the morning, reports the death of Polish and family which took place last fall. Also that F. Jordan and family are starving. In consequence of such information, I sent him to Jordan's camp upon the river Misticinch with 5 scs Flour, 10 H Beef and 3 H Butter which I trust, if he arrives in time, will enable them all to arrive here in safety.

CHIEF AND COUNCIL

The least developed law-enforcing agency is that of chief and council. This certainly holds true for modern times and, most probably, also for the olden times. The loosely knit political organization and the prevailing economic situation hardly favored the development of any strong chieftaincy. In the regions bordering the white world the importance of the chieftain was further reduced by the institution of the Indian Agent who, as a representative of the government in question. was added as another law-enforcing agency in the reservation. There was, furthermore, the manager of the Hudson's Bay Company to whom, if his personality appealed to the Indians, the latter could turn in case of litigation. In the opinion of the Indian Agent *"le chef est seulement pour le décor."* Upon the author's question to various informants as to when they might choose to turn to the chieftain in order to get a dispute settled, most of them repeated disdainfully: "To go to the chief—what a dirty business!" The frequent resortings to self-aid or to the shaman do not leave much to be administered to the public justice of the chief and his court.

In chapter III when dealing with the rights and duties of the chief I have mentioned some cases in which the chief alone interfered in litigations without, however, resorting to a formal tribunal. In such insignificant disputes he is a one-man court and not dependent upon the advice of any member of the band. There are, however, cases which are dealt with jointly by the council and the chief. Such cases, mostly severe crimes, are of a nature which directly threatens the peace of the entire band.

THE COURT

The court was composed of the chief and the oldest and most highly respected men. It assembled only in exceptional cases and only at the summer places. The session took place in the tent of the chieftain whom the members of the council found on their arrival seated in the rear, a feather crown on his head. The old men sat down around him in a circle. In the center of this circle a small stick was displayed, holding a small package of tobacco. The chieftain was the first to fill his pipe with it, after which all members of the council did likewise. The session was secret in cases of crimes punishable by death or expulsion; lesser offenses required no secrecy.

Without any introductory ceremonies the chieftain opened the session with a detailed summary of the case, followed by the questioning of possible witnesses. The institution of a witnesses' oath was unknown. If the facts were clear (which mostly was the case, since the chief completely informed himself before calling in council and witnesses) the chief assigned one of the men to bring in the defendant (*kanashkistachéo*). After the latter's arrival he was asked by the chieftain whether or not he admitted his guilt. In most cases, the answer was "yes." Any attempts of the accused Indian to justify himself were cut short by a limitation of his speaking time.

Simple majority decided the opinion of the court. The chief pronounced the sentence. If it required exe-

cution, the condemned man was immediately led to his death. Since all members of the council had taken along their guns, three or four men were designated by the chief to carry out the death sentence. The unshackled convict left the chief's tent, slowly going ahead of the executioners. Any attempt at fleeing would have caused him to be shot immediately. He did not turn his head while walking with the men behind him to a lonely spot, often near a lake, where he was shot from behind. His corpse was abandoned, and nobody bothered to bury it.

Only in rare cases does an accused Indian deny his guilt or even bring witnesses for his defense because when such a council is held at all the guilt of the accused man has been proven beyond doubt.

The summons of witnesses does not seem to have originated with ancient Indian law. It appears to have developed under the influence of the white man's civilization. The court assumes that plaintiff, as well as defendant, speaks the truth and that the latter, if guilty, will admit his guilt. This admission is, as we shall see, even before the shaman's spirit tribunal the essential presumption for any passing of sentence. The Naskapi language knows no abstract term for the word "witness." One uses, however, a circumlocution for the concept: *"nélo kapetakut"*, i.e., "the person who heard it," and *"chiuapemiku"*: "the person who saw it." A witness favorably inclined toward the accused makes the statement:

"nélo napéo wehe": "This is a good man."

The only evidence besides the ocular demonstration is the confession of the culprit. My informants claimed that, originally affirmations or maledictions, as well as oaths of the parties, were unknown. The oath seems to have been developed only under Christian influence. One of my informants, pointing to a picture of Christ which decorated his tent, explained the oath with the words:

"chishä manitu nipätak": "God hears me, and then they believe me."

THE SHAMAN

In the life of the Montagnais-Naskapi, shamanism and all that goes with it play a very important role. In the present connection, however, we are not concerned with the religious or magic aspects of this institution but solely with the functions exercised by the shaman in the sphere of the customary law of the Indians. Also the social and economic functions of conjuring have been merely sketched, as far as they are directly connected with the legal aspect.[4] In the realm of the law-enforcing agencies the shaman is one of the most important pillars.

The shaman's office does not become evident during the time of the summer gatherings in the reservation, since the height of the season when his "court" functions occurs in the winter months in the woods. During that time, which in fact comprises the main part of the Indians' annual cycle of events, it is hardly possible to reach the chief or the manager of the Hudson's Bay Company in order to report to them any wrong done or to have them decide any legal dispute. It would in many cases be impractical or even dangerous for the complainant to wait for the return to the summer place before getting the matter settled.

Beside these factors of time and emergency there may, of course, exist additional reasons inducing an Indian to call upon a shaman in order to secure his assistance. It may be that an Indian prefers a settlement brought about by the shaman and therewith displays a stronger confidence in the powers or the personality of the conjurer than in any other law-enforcing official and that to him the world of spirits and their verdict is more real than that of any other legal body. Furthermore —and this is the most important point—an Indian who has succeeded in interesting a shaman in his case has thereby won a representative who is not only willing to make the complainant's cause his own but who is ready as well to assist him with all the magic powers which are at his disposal.

The position which his agency takes among the other competing or complementary law-enforcing institutions is not entirely clear. I was, for instance, unable to establish whether the shaman even accepts cases which may have been previously decided against the plaintiff by the chief or manager of the Hudson's Bay Company, thereby representing some kind of a court of appeals. The informants however agreed unanimously that any plaintiff who turns over the decision of a dispute to the shaman thereby waives his right to submit the same matter to any of the other law-enforcing agencies. The informants' reports seem to prove that the law-enforcing agencies of the shaman, the chief and the Company manager are co-existing and that they function independently of each other. It seems to be up to the complainant to choose one of the three. The choice once made, however, decides for him irrevocably the legal steps to take, since the three agencies exclude one another. Yet it has not been established beyond doubt whether in practical usage this distinction is always clearly made and whether a complaint may not resort to the shaman

[4] A. I. Hallowell (1942) has recently dealt with the shaman complex in Saulteaux Society and has also compiled the available material on Montagnais-Naskapi conjuring. I think he has done an excellent job. However, in this present study I am not concerned with the broader complex of conjuring among the Montagnais-Naskapi, even though I have collected extensive field notes pertaining to the different sectors of shamanism. Only the legal function of the shaman within the framework of the "Law-enforcing Agencies" is here the subject of my study. Also the description of the construction of the spirit house has to be regarded from this point of view, since the informants told me that some details of this construction also depend on the use of the spirit house for legal or other purposes.

merely as an *ultima ratio*. In my opinion, the position of the shaman is more that of an attorney or champion than that of a judge, though the matter is not beyond doubt, and the shaman is certainly no ordinary attorney. He can indeed represent but one party and must refuse to take care of the interests of that party's adversary if the latter should choose to approach him also. It is up to him whether or not to take a case, and he takes care to find out all circumstances including the trend of public opinion before taking on a client. He cannot risk his reputation and influence on a bad case, at least not if he happens to be a person of ethical stature.

The shaman does not administer justice, neither does he pronounce or execute sentence. All this is the task of the "court" of spirits which, however, stands to a higher degree under the influence and the ability of the shaman than would any other court with any other "lawyer." Certainly the proportion of cases turned over to the shaman is by far larger than that submitted to either of the other agencies. Since hunting is the center point of all Montagnais-Naskapi life these disputes mainly deal with infringements of the hunting rights and the hunting-grounds.

PROCEDURE

The procedure of submitting a case to the shaman and asking his assistance is regulated and prescribed by custom and tradition. The client who wishes to engage the services of a shaman for whatever case it may be sets out to visit the conjurer with a present. The present consists mostly of some tobacco and a choice piece of meat, say a fat beaver tail or a roast of bear. Reaching the tent of the spirit man, he politely offers him his gift, whereupon he is usually invited to stay and to share the meal prepared of the accepted roast. By this time, the wizard is supposed to know through his magic powers the reason which induced his visitor to come to his tent. Yet it is considered proper for the client to tell during this meal in a seemingly casual fashion whatever is on his mind without, however, appealing formally to the shaman for his assistance since the conjurer already knows what his visitor expects of him. As a rule, the shaman then dismisses his prospective client with the advice to return at some later date, ordinarily in about one to two weeks. The shaman uses this intervening time if he does not already know to find out whether his prospective client is right and if so to set to work by warning the Indian's adversary either to right his wrong or to stop doing damage to his client, whichever the case may be. This warning can be given in a variety of ways. If the shaman is personally acquainted with the offender, he may warn him in person or he may, by virtue of his magic powers, send him his own spirit or *mistapéo*. The latter may be done by the way of dreams or also physically, since the spirit of a shaman is capable of assuming any form he happens to choose. Such prewarnings transmitted to his client's adversary may have either a friendly or a hostile character. If they are intended as amicable hints, the shaman may appear in such a dream perhaps as a tail-waggling dog who will not bite; if he chooses to appear as an enemy the wizard may prefer to visit his client's adversary as a long-haired, long-tailed biting dog or as a frightening gigantic bird or bear. If real life instead of a dream is chosen as a means of prewarning, the adversary may encounter many a mishap in his daily routine. He may be stung by some dangerous insect; a wolverine may rob and destroy his traps; a bear may inflict bodily injuries upon him. There exists, however, no obligation on the part of the shaman to warn the offender at all; and there are cases on record in which the shaman has acted against the offender with all his power through a performance in the spirit house without having warned him at any previous occasion. In many cases, however, such warnings are sufficient to scare the offender into settlement. When I asked my informants to report to me any special incidents of this nature, I received the emphatic reply that "any number of cases" could be given, "since many Indians have had the same experience." The following typical case was then developed by the group of informants present:

An Indian, B., hunts illegitimately and against the explicitly expressed will of the owner on the hunting-ground of another man, A. Despite A.'s repeated warnings the intruder refuses to leave the region and continues to trap and to hunt there. Thereupon, A. pays a visit to the shaman and explains the case to him. As a rule, the shaman will now make it a point to see the offender in order to give his personal warning. He will tell him that one of his recent dreams brought to his attention B.'s unauthorized trapping and that he, the shaman, would not consider it healthy for B. to stay on A.'s hunting-ground any longer. B., knowing the spirit man, is now well aware of the fact that he has been officially warned and that the matter may turn out to be dangerous for him if he should choose to disregard the received hint. Depending on the degree of his stubbornness, he now either withdraws immediately or he decides to remain. If the latter should be the case, the shaman himself or his spirit (*mistapéo*) sent by him will appear to the offender—perhaps in the disguise of a huge strange bird of a species never seen before—as a messenger of a last, urgent warning. If B. disregards also this sign, a gigantic bear may appear or a wolverine will destroy his traps. In any case, he knows now that the times of good hunting luck are over and that evil spirits have set out to haunt him. He will not wait now until he himself has become the victim of an accident but will hurry to leave immediately the hunting-ground on which he has encroached.

A special case was reported by François Germain whose hunting-ground is located at Rivière au foin:

About the year 1905 two neighbors, Bernard (Minnegouche) and Jim (Raphaël) quarrelled with each other. Bernard had taken away a trap from Jim's hunting-ground and had used this trap on his own lands. After fruitless attempts to make Bernard return the trap, Jim went to a Spirit Man to discuss the matter with him. One night after this consultation, Jim dreamed that a bird was leading him

to the spot where the stolen trap had been set. In the morning he went to the place he had seen in his dream and found the trap with a beaver caught in it. Taking the trap and the beaver, he went home. Bernard, in turn, went out to have a look at the trap which he was unable to find. However, he noticed the trail left by his neighbor Jim and he knew that Jim had reclaimed the stolen trap. He also knew that Jim could have found the trap only with the help of the shaman. Knowing now that the spirits were after him, Bernard understood the warning and he became frightened. Wanting to make up with Jim he went to visit him, taking along a fine piece of bear meat. Meeting Jim at his tent, he gave him the meat and casually asked whether he had recovered his lost trap. He explained that he, Bernard, being in urgent need of a trap came across one of his neighbor's which he had taken as a matter of emergency. Expressing his satisfaction that Jim had been able to find the trap again he tried to straighten out the whole matter. And, indeed, he was forgiven.

After the warning has been brought to the attention of the offender three ways of reaction are open to him: (1) He decides to stop his wrongs and chooses to heed the warning as in the case previously described. (2) He decides to disregard the warnings of the shaman and feels ready to defend himself—a case occurring mostly when the offender himself is a conjurer who, naturally, has confidence in his own magic powers. (3) He seeks the assistance and help of another shaman. The following case illustrates this third possibility. Forewarned by the actions of the shaman, the opponent took adequate counter-measures in a case which did not end in a performance in a spirit house.

The Case of the Bersimis Men

Informant: Joe Kak'wa

Between the years 1905 and 1910 two hunting neighbors, both Bersimis men,[5] had a long, drawn-out quarrel because each of them claimed that the other continuously and unlawfully hunted on his hunting-ground. A had hunted on B's hunting-ground for a period of years and vice versa. When it became evident that there was no possibility of settling the dispute amicably, A went to the shaman who frightened B by sending him his mistapéo in the disguise of a large multicolored bird. After the bird, a huge bear appeared whom B was unable to kill. This bear hurt B so considerably that the Indian fell sick for a long time. During his illness B asked another shaman for his help and then waited to see what would happen to him. One night, he had a very significant dream. He dreamed that he received the visit of a strange man who outlined for him certain actions to be taken in order to rid himself of his enemy, A. B was advised in his dream to take some of his own blood and to pour it into a birch-bark container. This pan he was to put near the fire, taking care that only one side of it was heated. When the blood near that side began to boil, B was to allow it to continue boiling. At the moment when half of the blood became thick, B's enemy, A, would become very sick. If B now would not remove the pan from the fire but rather allow the blood to cook on until all of it had been thickened, A would have to die. In addition to this, the man in the dream gave B another counsel: B was to take his gun and fire one shot over the ice-covered lake in the direction of A's tent.

[5] The informant asked the author for obvious reasons not to mention the names of the two.

Awakening the next morning, B told his dream to another Indian who happened to be one of his neighbors. This man told him to carry out every detail as described in the dream, because he should not neglect to follow the orders sent to him by the shaman through his *mistapéo*.

Consequently, B, by injuring himself slightly, procured the blood which he collected in a shallow pan of birch-bark to set it near the fire. At the same time he asked his neighbor to load his gun—because he himself was still too sick to do this himself. The neighbor obliged and also erected a stick on the ice to indicate the direction of A's tent. Since B was still unable to leave his tent it was opened for him and B shot a bullet in the direction of the stick. Both men heard the sound of the bullet jumping over the ice.

In the meantime the blood in the birch-bark pan had begun to boil on the side turned toward the fire. The neighbor urged B to leave the container there until all of its contents had been thickened. But B, suddenly moved by pity, took it away when only half of it had boiled.

They soon learned that during that very same night B's enemy A had become very ill and that he had almost died. B was convinced that, if he had allowed all of the blood in the container to boil, A would have died instantly. After the magic performance, B felt very much better and soon recovered completely. The other man, however, A, died soon afterwards.

If the time fixed by the shaman for his client has passed without producing any result in favor of his client, the latter will pay a renewed visit to his attorney and will not neglect to offer him another present. It may well be that after this second visit the wizard decides upon another period of waiting before he finally agrees to a performance in the spirit house. If this last

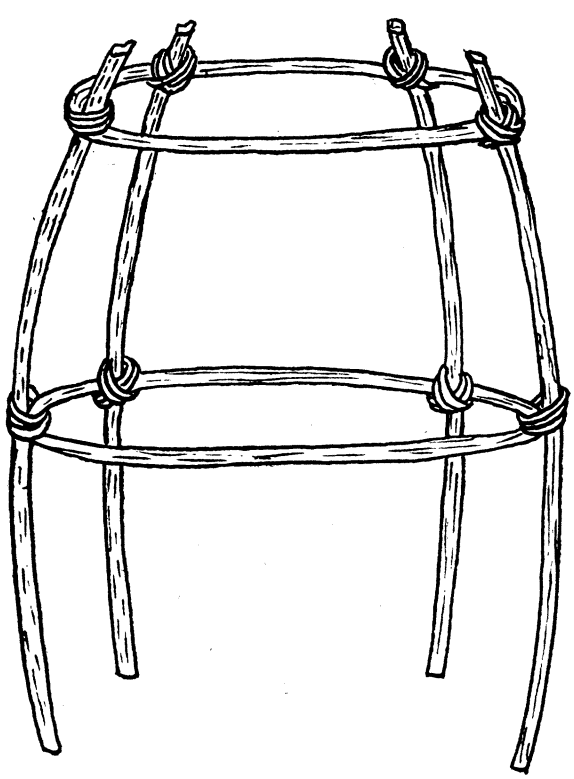


FIG. 18. Construction of the spirit house (after Joe Kak'wa).

time set for the benefit of the opponent has expired without success, the legal dispute has reached its climax and, as a last resort, it will be taken to the spirit house.

The next step is, therefore, the construction of the *cabanon, "wapanon,"* or spirit house.

BUILDING THE CABANON

(*Kooshapashíkĕn:* spirit house)

Size and stability of the spirit house depend on the kind of struggle which is expected to take place in it; whether many spirits will engage in a mighty fight or whether just a few may encounter each other. According to informant Joe Kak'wa whose own father was a renowned shaman, four wooden poles form the pillars of the hut. Informants Blacksmith and Tommy Moar (Blacksmith is himself a well-known shaman) who have witnessed more than forty performances of spirits fighting each other in *cabanons* claim that not four but rather six wooden posts are used in their region. If possible, these six posts consist of six different kinds of wood. However, sometimes it is impossible to secure in the neighborhood, especially in the more northern regions, six different species. In this case, fewer varieties of woods have to do, but the informants stated that at least three types of wood must be used for the building of a *cabanon.* Among these, the black pine or spruce (*cheshekátuk*), the birch (*waskwoi*), and the tamarack (*wachnaken*) are preferred. These three kinds of wood are used in such a manner that each furnishes two of the six poles. The hoops, however, always consist of tamarack wood.

As soon as the poles have been driven into the ground the center hoop is inserted from the inside and is firmly tied to the six (or four) holding pillars. The upper hoop which now follows is considerably narrower than the first one, therewith—after having been firmly tied to the posts—giving to the structure its typical tapering off shape. This upper ring is pulled over the structure from without—a fact stressed as important by the informants.

When the fundamental structure of the *wapanon* has been thus concluded, it is covered with a coat of square pieces of birch bark sewn together in such a way that they remain flexible and can easily be put all around the wapanon. The upper opening may or may not be closed by this covering.

In modern times even the *wapanon* may be covered with canvas rather than with birch bark, but the ancient material is still preferred. The hut must stand in the direction of the rising sun, facing east to west. For the tying together of the wooden parts, any type of string or root may be used with the sole exception of metal wire. The same holds true for the tamerack hoops which, if constructed of metal, be it iron or any other metallic substance, would prevent the spirits from entering the hut.

The shaman himself never helps with the construction

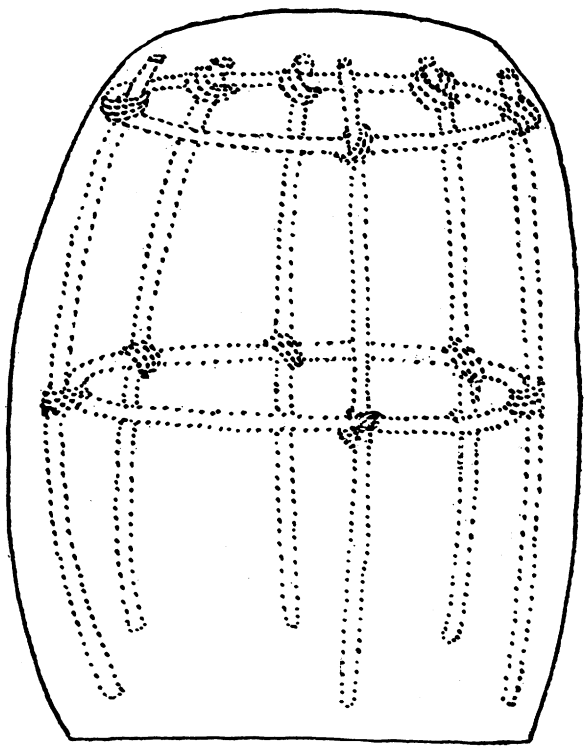


FIG. 19. Construction of the spirit house (after Tommy Moar).

of the spirit house. It is built by his client with the possible cooperation of neighbors and friends or even of women and children. Each *cabanon* must be made of new posts and hoops. It is not permissible to use any of these materials more than once for this or any other purpose. If the hut is taken apart after use, the poles must be put aside to rot.

Fire of any kind must be kept away from the spirit house. Even cat or rabbit furs must not lie in its vicinity since such pelts might emit sparks. Especially taboo are cigars or cigarettes which, belonging to the civilization of the white man, are hostile elements to Indian spirits. A pipe, however, is considered unharmful since it belongs to the native culture. It is even permissible to light a pipe near a spirit house. While the called-up spirits are present one may even offer them from the outside a well filled and burning pipe by reaching it from under the cover into the hut, whereupon one may hear three mighty puffs after which the empty pipe is handed back to the Indian who waits outside.

According to Joe Kak'wa's statements the choice of the wood is often dependent upon the purpose for the sake of which the *wapanon* is to be constructed—a point which I consider extremely important. If, for instance, the spirit house is being built in order to chase by the performance of the shaman a stranger from the complainant's hunting-ground, the wood of such trees as are most frequent on that hunting-ground will be used for the posts. Or, if the assistance of the shaman is sought

for the purpose of improving the hunting luck of a so far unsuccessful hunter or trapper, the posts will be cut from the kind of wood preferred by the desired game.

The model *wapanon* constructed by Joe Kak'wa and the author [6] was built of cedar poles, each about eight feet high. For real spirit houses, much thicker poles are used and are driven so deeply into the ground that no human power could possibly shake them. Yet, according to the unanimous opinion expressed by my informants, these logs are supposed to "vibrate" as soon as a spirit enters the hut or when the great fight of the spirits begins.

The ground plan of our hut as indicated by the posts was a square, 35 by 41 inches wide. A tamarack branch was tied together to form a hoop with a diameter of about 35 inches. Twill cord was used as a binding material. After this hoop, a second ring of tamarack wood, about 45 inches in diameter, was made in the same fashion. About 45 inches above the ground this second hoop was now tied to the four poles with the same kind of cord.

Asked for the reason why the structure had a circular shape, Joe gave three reasons: he considered it "more practical" in view of the "fights" going on within the hut; furthermore, this shape requires less cover material and, finally, "in the olden times, all Indian tents have been round." He could not recall any magic significance ascribed to the circular shape as such.

After the second hoop had been firmly tied to the four posts, the first hoop was affixed at a distance of about 40 inches above the second. Since this ring was somewhat narrower than the former, the hut now gained a pointed shape. Both rings firmly attached, the projecting ends of the four poles were cut off to prevent a possible tearing of the cover. The floor was covered with balsam twigs, just as in any ordinary tent. These preparations concluded, the hut including its upper opening was covered with canvas which isolated it entirely from the outside world. The conception of the expected spirits is that of immaterial beings able to penetrate all walls.

The terms applied to the different parts of spirit house are: *kooshap chikenátŭk* ("posts for the spirit house"); *apakwachikĕn* ("canvas cover"); *was'chépokwi* ("birch-bark cover"). No special words are used for the floor covering and the tied knots.

PERFORMANCE AND PROCEDURE IN THE CABANON

The location chosen for the construction of the cabanon may vary according to circumstances. The Indian who has called upon the assistance of the shaman may build it on the spirit man's own hunting-ground. Indeed, it may even be constructed within the wizard's own tent. Or the shaman may visit his client on the latter's hunting-ground in order to use for the magic performance a *cabanon* erected there for this purpose. This is mostly then the case when the disputes are to be settled which have a direct bearing on the client's own hunting-ground rights.

After the completion of the spirit house, the participants wait for the darkness, whereupon the shaman enters the hut of his own accord. Lifting the canvas only partially, he first slips his head into the *cabanon,* after which he follows with the rest of his body. Before entering the magic hut, he ties a piece of cloth, usually his handkerchief, around his head. He fashions it not like a turban but in a triangular shape, pointed at the top. In his hand he holds a round shaman's drum which may be single or double headed. Across the whole length of the drum-skin a sinew is tightened to which are attached up to eight small bones mostly taken from the legs of a new-born caribou.

For his performance in the *cabanon* the wizard assumes a sitting position resembling a prayer pose. Before he begins to beat the drum in short, rhythmical sequences, he touches the floor covering of the tent with his face, his hands and knees.

Outside of the spirit house are gathered in anxious tension the client, members of the shaman's own family, friends and even children. Nobody is allowed to utter a single word while all listen to the drum-beat with its vibrating undertones of the bone fragments touching the drum-skin, to the chant of the shaman and, later, to the increasingly audible fight of the conjured-up spirits. After some time—about an hour—the shaman reaches the state of trance. This is the moment when, according to Indian belief, the shaman is replaced by his *mistapéo,* his "Great Man"—in other words, his own spirit—who now takes over the performance. The mistapéo of the shaman has the power to conjure up the spirit of any object he may choose to call in, be it plants, animals, stars, sun, or moon. What spirits he selects depends first on his own capacities as a shaman, secondly, on the circumstances involved in the legal dispute. Since the performance is not directed against an unknown party and since the personal and factual details are known to the shaman, the following situations are possible.

(1) The Client's Adversary not Prewarned by the Shaman

As previously pointed out, it is entirely up to the conjurer to prewarn the offender either in person, in a dream, or by actual happenings. He may choose one of these methods of prewarning the offender, but he is by no means bound to do so. The latter situation, however, occurs only very rarely when the performance has as its object the settlement of a legal case, because the final outcome of each struggle in the spirit house invariably ends with the death or with serious illness of the defeated party. A shaman preparing for so serious an outcome would, therefore, endanger his own prestige if

[6] Compare p. 426, fig. 15.

he should neglect any prewarning of the offender, and public opinion would disapprove of such procedure as of a misuse of the shaman's powers. We must not forget that the construction of the spirit house always constitutes an *ultima ratio* bound to end in tragedy for the loser of the fight. This, however, does not exclude the possibility of the misuse of the shaman's own magic powers. Informant Tommy Moar emphasized this point by relating a case which took place in 1922 between the Ruperts House Indian Peter and the Waswanipi Indian Willy:

Willy of the Waswanipi Band was a Spiritual Man employed with Peter of Ruperts House as a transportation worker for the Hudson's Bay Company. Willy did not like Peter and always quarrelled with him. One evening Willy said to Peter: "You will not see the morning." But Peter, feeling in top shape, laughed off this remark. Sitting with a number of companions they all smoked their pipes. Suddenly, Peter rose and went behind the tent, blood dropping from his mouth. As his pals came to his assistance, they pulled a leech out of his mouth. A few hours later Peter was dead. This was the deed of Willy.

(2) *The Client's Adversary, although Warned by the Shaman, Disregards the Warnings and Does Not Stop his Offenses*

In this case, as in the previous one, the shaman usually does not deem it necessary to call in many other spirits in order to strengthen his client's cause. His own *mistapéo* is regarded as powerful enough to defeat the offender's *mistapéo*. Sending out his own *mistapéo,* he is considered able to bring into the spirit house the *mistapéos* of his client as well as that of the offender. The offender's spirit always follows such a summons to appear in the cabanon where he is invited to fight the spirit of his accuser. The spirit of the complainant first asks the *mistapéo* of his adversary whether he has really done all the damage and whether he is guilty. The spirit of the accused will thereupon not tell any lies but will answer in the affirmative. After this, the two spirits will start to fight.

The people listening outside can now hear a rustling sound, followed by the sound of falling bodies and accompanied by the noises of the fight. With the help of the shaman's *mistapéo* the spirit of the offender is thrown down. In this same moment, it is firmly believed, the offender will fall down and drop dead wherever he may be at the moment, in his tent or on his hunting-ground.

It may, however, happen that the offender's *mistapéo* does not immediately succumb and that he returns. In this case, the offender will not die immediately. The shaman who obviously has overestimated the powers of his own *mistapéo* and has, therefore, neglected to call in a sufficient number of additional spirits, will from now on "do lots of bad things to him (bad weather, no game), and in the end the offender is bound to starve to death" (Joe Kak'wa).

(3) *The Client's Adversary has, in Turn, Called Upon Another Shaman to Represent Him*

In a case of this nature the final outcome is uncertain and a great fight is to be expected, since in this case a summons of the guilty man's *mistapéo* which occurs in any case results in the fact that, besides the accused, the shaman also who represents him sends along his own mistapéo. The latter now has the ability to call in all additional spirits under his power. Victorious will be the spirit man who is able to conjure up the most numerous and powerful spirits. Whoever can achieve this is, in the words of the informants, "the strongest and the wisest man." The situation takes an especially critical turn when the opponent is able to let appear a spirit unknown to the other shaman. This would decide the struggle in favor of the former, since even the most skillful shaman is powerless against unknown spirits. Upon the question why in such a case the performing shaman and his client would be defeated, the informants answered unanimously: "Because the other fellow knows more and is wiser!"

After the noises of the performance have died down the audience sits in silence, and all are waiting for the shaman to reappear. At last, the spirit man crawls out of the tent, exhausted and perspiring, the performance having lasted some three hours. He removes the pieces of cloth from his head and wipes the perspiration off his brow.

Immediately after use the spirit house is taken apart with utmost care. While doing this work the Indians doff their hats as in church. They believe that any crude or rough handling of parts of the spirit house would cause their own death and that of all other helpers and onlookers. The used poles are laid together in the direction of the rising sun where they are left to rot. If women or children should touch these poles disrespectfully or if they would disarrange them, they would be doomed to die.

The following case relates in some detail the story of a quarrel which was finally settled by a performance of the shaman.

How the Stolen Traps Came Back

Informant: Tomo Kak'wa

This story was told to me by my father, and I am going to tell it to you.

It was about the year 1860 that two Indians, both of the Lake St. John Band—François Atiquapie and Michel O'Tomma—had a great and bitter quarrel over stolen traps. Atiquapie had gone to the hunting-ground of Michel where he stole his whole trap-line, more than a hundred steel traps. To escape starvation, Michel was forced to build wooden traps whereupon he went to the tent of Atiquapie whom he suspected of having stolen and hidden his traps. However, the visit was of no avail. Michel did not find the traps and went home to his own tent. Some time went by, until Michel decided to pay a visit to old Utish, the spirit man, who lived four days away from him on his hunting-ground near Lake Chibougamau. As a gift to the Very Old,

Michel took with him a fat beaver tail which he presented to the spirit man. Utish invited him to stay for dinner. While they were eating, his host asked Michel to tell his story, and the incident of the stolen traps was duly reported. Utish listened to him and told Michel to return to him in a week's time.

This he did and at this second visit Utish revealed to him that Atiquapie was indeed the thief of the traps. Bad dreams had already been sent to him to frighten him. Utish's *mistapéo* had warned the thief and had ordered him to return the stolen traps to their owner. But all this was done merely through the spiritual power of Utish and without the construction of a spirit house. The spirit man now advised Michel to wait one more week in order to find out whether or not Atiquapie would return the traps. If he should not obey during this week, Utish would frighten him with a gigantic bird with multicolored plumage who would follow Atiquapie wherever he went. If that was not enough, a wolverine would destroy the thief's own traps to make him realize that his hunting luck had left him and that the spirits were after him as long as he still refused to return the stolen property.

When Michel returned for the third time to Utish, he brought with him a fine roast of bear meat for the old man. Since Atiquapie had not heeded the warnings of the spirit man, it was now time to build the spirit house. There was a mighty fight in the *wapanon*—a fight about which people kept on talking through the years. Atiquapie's *mistapéo* finally admitted that he was the thief and he consequently lost the fight.

After four days, the wife of Atiquapie came to the tent of Michel, bringing the stolen traps back to their owner. As a gift, she offered him a large roast of beaver. She reported that her husband had suddenly died without any trace of previous illness.

This is the story my father told me.

It may also occur that two spirit men have a quarrel which they of course try to settle in their own way without resorting to other law-enforcing agencies. Each shaman is in such a case his own lawyer and representative. Whether in such cases any performance in the spirit house does take place I was not able to find out definitely. It seems, however, that both spirit men use their magic powers to damage each other whenever they can; and even if I could not establish proof that they resort here as in other cases finally to the *ultima ratio* performance in the spirit house, there is also no reason to assume that they do not. The following case tells of such a quarrel between two spirit men. The author was unable to find out how this struggle ended, if we assume that it was carried on.

The Case of Two Spirit Men Who Had a Hunting-Ground Quarrel

Informant: Joe Kak'wa

About 1878 a man named Louis Clairy, a half-breed whose Indian name was Palcuta'ugen ("A Big Hole in the Back") went out to Little William's hunting-ground to hunt there for the winter. Louis had not asked Little William's permission to hunt on his lands and did so without the owner's consent. The following spring, when the hunting season was over, Louis hid his traps on Little William's hunting-ground so that nobody could find them. The hunting-ground was near Lake Chibougamau. Little William, suspecting that Louis had hidden his traps on his hunting-ground, set out to get them. But he was unable to find the traps.

It so happened that both men were spirit men. Louis knew that Little William intended to steal his traps. He therefore sent out his spirit (*mistapéo*) in order to watch over the traps. His mistapéo was invisible to other human beings and also to Little William. When Little William found himself unable to trace the traps he sent out his own *mistapéo* to find them. When Louis' *mistapéo* noticed the approach of Little William's spirit, he blinded him so that he could not find the traps.

With a very grave voice, Joe added: "Louis told me this story. He was my friend."

Since this case ended rather abruptly I tried to find out from the informant to what Little William was actually entitled. But I did not quite succeed in my endeavor. The repeated answer was always: "Little William was a spirit man and he could do whatever his powers were able to achieve. The other man, being a spirit man too, could take care of himself."

THE POST MANAGERS OF THE HUDSON'S BAY COMPANY

With the appearance of the Hudson's Bay Company, a fourth law-enforcing agency was added to the three already existing. Yet the manager of the Hudson's Bay Company took over neither the functions of public opinion nor those of the shaman or the chief; his position was of a more subsidiary nature and had no *ex officio* character. The legal status of the manager was more or less dependent upon the extent of esteem he enjoyed from the part of the Indians and whether or not they were ready to accept his aid as a mediator by acknowledging his decisions. Here, again, as with the chieftain, the quality of the personality in question rather than power as such played the decisive role.

The Mistassini Reports of the year 1820–1821 reveal a case of dislike and distrust felt by the Indians toward one Alexander McElvin who was at that time Manager at Naosquiscaw Post. They certainly would not have chosen him for their judge and mediator. On the contrary, they successfully insisted that he be removed from his post.[7] If, however, the white man enjoys the trust and esteem of the Indians, he is in cases of emergency considered well fit to act as a judge or a mediator even in matters not exclusively concerned with trading problems.

The old diaries do not mention a single concrete case of dispute of a legal nature outside of the realm of trading as having been settled by the manager. This, however, is not surprising since practically all entries center exclusively in statements pertaining to the actual trade. In the fields of contracts and law merchant the manager was the representative of the one contracting party and, though this was a powerful party, that did not make him a judge. And yet, numerous remarks scattered all over the diaries do allow the conclusion that a manager who

[7] Compare p. 452.

had gained and enjoyed the esteem of the Indians was invited as a personally unconcerned third party to mediate many disputes, especially between Indians of different bands who traded with the same Post of the Hudson's Bay Company. Especially one fact seems noteworthy: that the farther removed from civilization the Post was located, the stronger was the inclination to make use of the good offices and the aid of the manager. In Pointe Bleue near Lake St. John, for instance, where the Hudson's Bay Company Post is not too far distant from the Canadian hamlet of Roperval, the manager of this Post is looked upon just as a clerk and is never called upon to decide in cases of dispute; whereas in the interior where the manager is the only white man available this is entirely different.

The manager Sandy Ritchie of the Post at Lake Chibougamau, located between Lake St. John and Lake Mistassini in the interior of Labrador, reported to the author the following two occasions in which his aid was requested by the Indians.

A Mistassini Indian by the name of Jimmy Bosun once asked me to help him to get back some traps which had been stolen from him. At first, I did not feel inclined to interfere, but when the Indian stated that he had marked the stolen traps, I said:

"If you are able to describe the marks before I see the traps, I will try to get them back for you."

Jimmy immediately described the marks to me (two scratches of a certain shape) and we went together to the tent of the alleged thief. His name was "Cotchits" ("Louse"). Cotchits had hunted near Bosun's hunting-ground. I asked him to display all his traps before Bosun and myself, and we immediately identified the stolen traps among those of Cotchits. He was asked to restore them to Bosun and did so with an angry and morose expression on his face. However, the matter was settled therewith.

One night at eleven o'clock, just having gone to bed, I heard a noise at my door. I rose and found outside an old Indian widower of about sixty years of age who asked me to come with him immediately for the purpose of forcing into wedlock a young widow of twenty-two who dared to refuse him as her future husband. Her main attraction for the aged suitor was, besides her youth, a handsome pension she drew from the government. Nor wishing to get involved, I protested and stated that I could do nothing, for fear of being blamed later should the marriage turn out to be a failure. The old man, exasperated, shouted at me: "If she refuses to marry me don't give her any more provisions!" I, however, again refused to intervene on behalf of the old man, Peter Matush ("matu": "to cry") who thereupon married another young girl. Matush was on his trip north but did not continue his journey until he had succeeded in obtaining a young bride. The woman he first wanted was the widow of the thief Salomon Cotchits, known from the previously reported trap case.

XI. THE SPIRIT OF NASKAPI LAW

The legal facts of Naskapi law as presented in the previous chapters furnish, I believe, a fair picture of the spirit peculiar to this law. The spirit of law and justice of a people, however, depend upon different factors which may be derived from outside or from inside of the specific culture of the people in question. The culture of the Naskapi is part of the arctic-subarctic cultures which are spread out over immense regions of the globe, comprising numerous tribes of three continents. The material and spiritual cultures of these tribes have many complexes in common, or they are at least similar to each other. A determining factor in the shaping of the culture of the arctic peoples, more than in the case of any other form of culture, has been the climate which, ultimately, is responsible also for the form of their economics. In the field of law, no monographic study of any specific group of these peoples has so far been undertaken, although some reports scattered in literature furnish a scanty picture of some isolated aspects of their law.

The territory of the Naskapi is wedged between the regions of the Eskimo and the Iroquois, and consequently the cultures of both peoples have influenced the shape of Naskapi culture. Speck (1936*b*; 1937) for instance, has furnished and analyzed a comparative list of Naskapi and Labrador Eskimo traits, and the connections of the Naskapi with the tribes of the Iroquois have been an object of study of numerous treatises among which the *Jesuit Relations* are the most important for the earliest times. It can, naturally, not be the task of this book to attempt a complete analysis of Naskapi culture or even a comprehensive analysis of Naskapi law based on comparative material, since the latter is too sporadic for such an attempt. It shall nevertheless be emphasized that in dealing with the Naskapi we are not confronted with an isolated form of culture or with an isolated body of laws and legal institutions. We have to keep this in mind in order to be able to evaluate against this broader background of the cultural groupings the spirit of Montagnais-Naskapi law. This broader background determining the cultural peculiarities of a tribe or a band must be present in our thoughts if we want to elucidate the legal institutions and the spirit of law in any primitive society, nay, even in our own. On the other hand, the quite different cultural background of primitive peoples should make those scholars who are eager to compare it with our modern institutions somewhat more cautious than they sometimes are.

The law of the Naskapi is not a judge-made law, nor is it a scholar-made law. It is a law of the people, by the people, for the people. The discrepancies so numerous in our society between the feeling of the people for what is right and the decisions handed down by the courts—the opposition of law and justice—hardly exist. As in other respects, so also in legal concepts the individual is merged in the society in which he lives, and his individual acts have repercussions in the whole social structure. Individual and community know very intimately the law and their simple legal principles do not require the interpretation of learned jurists. There is little room for the theoretical angle, since their law is essentially a prac-

tical law created for the sake of life. Its interpretation is determined by this purpose, and so are its decisions. Legislative or appellative corrections are equally impossible as is authoritative law by rigid command from above.

The basically defensive attitude of the whole culture has also influenced the sphere of their laws, and the permissible leeway in meting out justice is sometimes considerable. This does not mean that the technique of the law machinery is chaotic or lacking. On the contrary, it is amazing how in such a primitive culture as that of the Naskapi the legal aspect is developed and how law and procedure have crystallized into an explicit body of rules sanctioned by tradition. But the Naskapi law machinery has retained its flexibility, so that justice can be done in accordance with the people's feeling for justice expressed by public opinion which is rarely divided in the Naskapi one-class society.

The Naskapi Indian is not litigious. Even if the law would be on his side he is sometimes reluctant to insist upon his right and to set officialdom in motion. In this attitude he finds himself in strict contrast to the tribes of, for instance, the west African Negroes whose male population in some regions spends by far the principal part of their days at trials, in an inborn lust for all cases of dispute and settlement and for the sheer sake of arguing as such. Peschuel-Loesche (1907: 86) reports from the Bafioti of Loango that they are born litigists who stubbornly insist on their alleged right.

> To them, palavers and court sessions are entertainment as well as expressions of artistry and power; the tongue is their favorite weapon. They surprise the observer by their insight; a procedure highly logical in their way; their reasoning and, most of all, a phenomenal power of memory. They illustrate their battles of words with animal fables, allegories and proverbs suitable to strengthen their point and to win the sympathies of the listeners. In addition, they like to quote significant parts from speeches held recently or years ago. Precedent cases are of paramount importance to them.

Albert Schweitzer's remarks about the natives of Lambarene are equally elucidative:

> The idea that an offense could remain unavenged is incomprehensible to the negro. In this, his mind is completely Hegelian. With him the legal aspects of any affair always take the spotlight. For this reason, the discussion of law cases demands a great deal of his time. . . . Compared to the negro, the worst European litigist is an innocent child (Schweitzer, 1926: 71).

The completely different attitude of the Naskapi Indian may be explained by the fact that during the main part of the year he has no possibility whatever to enjoy an exchange of mind with his fellow-tribesmen except with the members of his immediate family, and therefore has no chance to discuss certain legal matters and law cases that may interest him. To obtain justice, however, even the Naskapi must set in motion the law-enforcing agencies—be it chief, shaman, or manager. But even there he finds many a retarding element before a charge against his fellow-man is materialized which, in turn, makes him think twice whether or not his grievance is truly justified. The law-enforcing agencies, on the other hand, are rarely acting unless they themselves are convinced that the complainant is right and that public opinion backs them up.

While the manager is very eager and has to be eager to secure the backing by public opinion before he intervenes in a case of dispute, the same holds true, even though perhaps to a lesser degree, for chief and shaman. In both cases reported by the Manager Ritchie the judgment of complainant's probable rights shows in his action. He wanted to be sure his man was right and, equally, to be sure that unmistakable evidence demonstrated to any possible doubters or grievance-hunters that his man was right indeed. The fact that the shaman first sends away the plaintiff before definitely accepting his case is based on the same idea. He first wants to make sure that his client is right. It may be questionable, however, whether this is always done, because it would presuppose a state of flawless ethics in the profession of the shaman-lawyer. But here, too, the regulative element is public opinion, and a possible loss of face and standing is also important to him. The chief is likewise concerned to inform himself completely about the details of a legal dispute and the identity of the culprit before he takes action.

For an Indian it is difficult to understand that an accused man should deny his guilt. Therefore, the establishment of the guilt of the accused through his own admission in the spirit-tent sessions and during the trial before chief and council is an important factor in the procedure of Naskapi law. The behavior of the Naskapi Indian before the court is in strong opposition, for instance, to that of the West African Negro who "as long as he is able to deny his guilt even with the flimsiest semblance of credibility, is honestly enraged by any verdict, although he knows himself actually guilty" (*ibid.*, 72). In many conversations with my informants I tried to clear the reasons for the ready admission of guilt on the part of the culprit. It was especially emphasized that the threat of aggravated punishment for contumacious denial played no role whatever. This certainly does not imply that, ethically speaking, we should consider the Naskapi superhuman beings who put procedural truth beyond anything else. Instead, the informants remarked that each member of the band would know anyhow who had the right on his side and that any denial would, therefore, serve no purpose. Even before the proceedings start, they pointed out, public opinion had reached its verdict. Upon the question whether they could recall any case of a conviction against public opinion they answered with a firm "No."

"Subject to needs" is a general principle prevailing

with Naskapi law: travel, mutual help, hunting permissions, debt lapse on death, etc. are all directly connected with this conception. The few instances when this principle apparently does not operate, as in the case of the deserting husband who has no longer any support obligation toward his wife [1] or in the case of Etap,[2] do not, strictly speaking, belong to the category of subject to needs. Although Etap and his family did not have a special hunting-ground of their own, they did not suffer any need but rather were invited by Etap's father-in-law or by other families of the band to hunt with them. Therewith they were given the opportunity of providing for the necessities of life. In the last analysis also this case is not a cultural or legal *hiatus* but a confirmation of the main principle. Do not let us forget that in all cases the principle was limited to the absolutely essential for the purpose of relieving an immediate danger to life and limb; but it did not surpass these extreme needs and did not entitle the starving person to derive other advantages or financial benefits from his predicament. The deserting husband who, by non-support, forces his wife to appeal to friends and relatives for their aid, pursues a legitimate aim, namely, the dissolution of his marriage. Whether, on the other hand, this self-help of the husband by means of withholding his wife's support may go so far as even to endanger her very life—and only then the general principle of mutual assistance would be violated—we are in no position to know. An elucidation in case of excessive self-help becoming a countergrievance was not obtainable.

The right to get what is necessary in case of need and the enforcement of this rule and principle is not exclusively a feature of Naskapi law. It is difficult to say whether the nature of the land, the special forms of economics, or cultural diffusions and influences from the outside are responsible for this part of Naskapi law. In any case, it is a characteristic feature of the law of the arctic and subarctic tribes whose economic structures are in part different. I shall mention only a few specific examples where "subject to needs" breaks even the strongest protected and most developed property laws, as it is in the case of the beaver with the Naskapi. Among the reindeer-breeding European Laps who have developed a strong individual definition of property rights, it is permissable for anyone to kill a reindeer to use it in his emergency, although it belongs to somebody else (Solem, 1933).

Among the Assja-Samoyeds and the Tungus it is permissible in case of utter need to catch and kill the most cherished musk (comparable to the Naskapis' beaver) even if it is the exclusive property of another hunter (Middendorf, 1867–1875: 1456 ff.).

But the legal principle of "selfhelp in case of needs" is not limited to the arctic and subarctic cultures alone. It can be found among hunting and food-gathering peoples like the South African Bushmen and also the, compared to them, so completely different tribes of the Arabian desert.

The Bushman of the Namib who finds himself in need may take the absolutely necessary supplies from the meat and water *cache* owned by another Bushman with, however, the obligation to notify the owner and to make later restitutions (Trenk, 1910:169). In the Arabian desert the stranger in need is permitted to make firewood of the trees and drink from the wells of the proprietor as much as is required for his need, but the proprietor would "instantly check anyone trying to turn the property to account and to exploit it or its products among others for private benefit" (Lawrence, 1935: 83 ff.).

"Subject to needs" is not limited to foodstuffs alone; it may comprise equipment and means of transportation as well. The only restriction is to personal use and to individual immediate need. In general, there is no distinction made between a member of the home band or a stranger as long as they are in need.

Under the same legal principle falls, finally, the right of members of different Naskapi bands to secure vermilion for their own use in the Lake Chibougamau region without asking the permission of the owner, but here again this privilege is limited to their own individual use and the gained vermilion may not be used as an object of trade. Similar institutions are reported from several Australian tribes, the objects in question being flintstone for the fabrication of axes and certain ochre colors obtainable only at isolated spots of the country. Hellwig (1903: 6), for instance, quotes the English traveler Jessap after a source mentioned by Bastian (1872):

> The red earth (coveted for mourning) is found in one spot only in the North. . . . Deputations of not more than two or three individuals were allowed to pass unmolested at all times through every tribe, provided they were going for the ruddle (red earth) and did not exceed the number of days required for such purpose. They were allowed by the tribe, which owned the hallowed earth, to take of it as much as they could carry away.

This strong emphasis on the "subject to needs" principle has as its counterpart a relatively scanty development of property-law and its subdivisions. The rules of Naskapi property law are aimed at the economic security of the whole community and, subsequently, of each member of this community. The individual has the granted right to satisfy his hunger and sustain his life, and this not as a matter of charity. This right is so strong that even the most exclusive private property rights may be broken under certain conditions, with the owner being obliged to grant permission. If we keep in mind this general principle, the various rules pertaining to the hunting-ground and the numerous restrictions which the owner of a hunting-ground has to put up with gain increased significance. That within

[1] See p. 424.
[2] See p. 431.

the framework of Naskapi law as a whole the rules of individual property rights do not have a paramount significance is further evident by the only recent development of property marks and, in the law of contracts, by the fact that no machinery except public opinion exists for the enforcement of contract debts. Settlement in cases pertaining to property law is mostly ruled by compromise. The laws and by-laws of property rights render impossible the accumulation of wealth in the hand of one individual; they therefore prevent the formation of classes and level the economic life of the members of a band to the same standard. These, if we may call them so, communistic traits, characteristic not only of Naskapi law but of the great mass of arctic peoples, cannot be explained by the nature and the climate of their land alone but must be somehow anchored in the inner nature and structure of their cultural life. This may be indicated also by the great Potlatch festivals of the Northwest American Indians who prevent lasting accumulations of riches by their *do ut des* rules [3] which finally enforce an economic equalization despite the accumulation of wealth *pro tempore* by certain individuals. Despite this tendency of economic levelness in Naskapi law there exists, on the other hand, a strong and unmistakable tendency toward individualism within a definitely democratic pattern. In spite of his concern and his keen responsibility for the welfare of his band, his altruism, his generosity toward his fellow-man, the Naskapi is a strong individualist with quite utilitarian and practical tendencies. It is the circumstances of his life, his lonely existence in the woods with no one to depend on but himself that mold him into being an individualist. This pronounced individualism is, however, not directed against the social order, although it is, together with the lack of a spirit of political competition, co-responsible for the loosely knit political organization and the somewhat confused position of the chieftain-complex within this organization. It is furthermore possible that the particular form of Naskapi chieftainship has been influenced by the chieftain-conception of the surrounding Eskimo and Iroquois. Among the Eskimos, chieftainship hardly exists even in mere traces. The community is thoroughly democratic. The idea that one person should be bestowed with authority or the power to command others is so completely alien to the mind of the Eskimo for instance of King William-Land, that, as Hall (1879: 256) reports, they were even after decades still amazed at the fact that the employees of Franklin carried out the orders he gave them during his expedition. "Just like boys" said these Eskimos whose own chief has no means of enforcing his commands. The chief's lack of power among the Central Eskimos has been described by Boas (1888: 580) in these words: "His authority is virtually limited to the right of deciding on the proper time to shift huts from one place to the other, but the families are not obliged to follow him. He may ask some men to go deer-hunting, others to go sealing, but there is not the slightest obligation to follow his orders." The same powerless position of the chief—if there was any such office to begin with, and not just one artificially created by the Russians—is reported by Bogoras (1904–1909: 543 ff.) from the Chukchee.

In contrast to this, the Iroquois who were the southwestern neighbors of the Naskapi had a very pronounced and differentiated form of hereditary chieftainship and within their political organization even women stepped into the political limelight (Morgan, 1904; MacLeod 1924).

The question of the chieftain complex among the Montagnais-Naskapi should be sufficiently clarified by the collected facts, by the discussions of the problem with the various informants, and by the compilation of the life-stories of three Mistassini chiefs of over a century ago. The material shows equally well the individualistic-critical attitude of the single Indian toward the chief and the extraordinarily democratic and utilitarian tendencies of the community who acknowledge the chief as their representative only so long as he serves—or is able to serve—their aims. Although they do not actually remove such an inefficient chief from his position to elect a successor, the office loses its power. They regard him no longer as their chief and the community just has to get along without one.

Public opinion controls and regulates also the power of the chief. If he ceases for any reasons to be backed by public opinion, his orders are no longer carried out and he simply sees himself boycotted.

One might easily suppose that the influence of the shaman upon the political shape of chieftainship could be authoritative. There is no doubt that a successful shaman might be able to influence public opinion for better or for worse. An outstanding lawyer-shaman may also count on many followers on earth, beyond his powers in the world of spirits. However, the available data concerning a political influence of the shaman stress unanimously that the mere existence of spiritual powers in a person does not entitle him to political leadership (Rasmussen, 1905: 161; Jenness, 1922: 93).

If, however, a political leader has the additional gifts of a shaman, his influence and his standing are increased by this fact. On the other hand it may also happen that a highly esteemed shaman rises to political leadership if he excels, in addition to the art of shamanism, in such qualities as are regarded indispensable for a political leader by the band in question. Such cases are exceedingly rare. Among the Naskapi I could not observe any such combination of chieftainship and practicing shaman in one individual. Perhaps, Joe Kak'wa may be considered an exception. He was chief from 1924 to 1927 and occasionally practiced shamanism, although in secrecy. His late father, never a chief, was one of the most influential and best known shamans.

[3] See Lips (1938) also for additional literature.

Since the intrusion of the whites, the white man's law has, of course, executed its influence upon the ancient customary law of the Naskapi, yet to a much lesser extent than might be *a priori* assumed. Their contracts and tradelaws have, as a whole, been enlarged and transformed, but even here the ancient law has been preserved in many instances and subdivisions. In the preceding descriptions of the different legal institutions it has been pointed out wherever white influence has become apparent or in what instances white legal concepts have superseded the original customary law. Most surprising in the commercial dealings of the Indians with the white trader is the fact (especially evident in the diaries) that, with only a few exceptions, the Indians faithfully paid their debts although they knew that free traders occasionally took advantage of them up to 2,000 per cent (Speck, 1933: 593). It is proof of the high ethical standards of their ancient trading customs that, at least as far as the reports of the Hudson's Bay Company are concerned, they do not feel justified to cheat the white trader who, after all, is not a member of their tribe. In many primitive tribes, there seems to exist a well-established right to cheat the foreigner, the one who does not belong to their own tribe in spite of high morals in the trading laws within the group (Schechter, 1933; 1935).

If I should be asked to define in one sentence the spirit of Naskapi law, I would quote from the *Institutiones* of Justinian (I: 1, 3): "To live honestly, to harm nobody, to render to every man his due," with only the difference that this rule of equity is, in the case of Naskapi law, not only an ethical obligation but a jural one as well and is enforced by the sanctions of positive law. Thus, "Life, Liberty, and the Pursuit of Happiness" as the Naskapi understands it is not merely an empty phrase but the very essence of his legal life, guaranteed, as it seems to the author, by the rule of law to a much higher degree than in any modern society. And what else could be the paramount yardstick of a harmonious culture but the highest possible degree of "Equal Justice Under Law"?[4]

[4] Inscription on ridge of Supreme Court building in Washington.

PHONETIC KEY

Among the various methods used by other authors for the transcription of the Montagnais-Naskapi language are, especially, the application of primarily French symbols by Father Lemoine and the phonetic method used by Speck and others. Since the diaries of the Hudson's Bay Company post managers which form a part of this study mainly make use of the English alphabet for the transcription of Montagnais words it seemed best to follow the same method for the rest of this book. I have, therefore, used English vowels and consonants wherever possible to transcribe the native terms:

a as in *asset*
e as in *when*
i as in *in*
o as in *soft*
u as in *lure*
oo as in *loom*
y as in *year*
āu as in *owl*
ä as in German *wäre*
ö as in German *könnte*
b as in *beaver*
ch as in *cheer*
d as in *deer*
h as in *house*
k as in *kitchen*
kw as in *queer*
l as in *light*
m as in *mouse*
n as in *night*
p as in *pear*
s as in *sight*
sh as in *sheer*
t as in *tow*
w as in *water*
ts as in German *Zelt*

The indeterminate *"k"* and *"g"* are not strictly differentiated. I have used the *"k"* where Lemoine used a *"g."*

Very short vowels have been characterized by a semicircle over the letter, for instance: *ĕ; ĭ or ŭ.*

Elongated vowels are marked with a dash, for instance: *ā; ē or ī.*

Accents over a vowel indicate the accentuation; intervals are indicated by an apostrophe.

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INDEX

"Abenaki," 433
Accounts, Indian, 447 sq.
Acquisitive economy, 389
Adoption, 415
Agency, 440, 441
Animal skins, as trading objects, 443, 444–446
Arrow, 390
Assistance, mutual, 404, 472 sq., 485

Banock (Indian bread), 391
Bark, red willow, 391
Barter, 443
Bear, high regard for, 388, 389
Beaver coins, 439, 447
Béjean, Napoléon (informant), 385
Beret, ancient, 392; picture, 396, fig. 6
Berries, picking of, 390
Bersimis men, case of, 478
Birch-bark articles, 392
  as trading objects, 443
Birth, 412
Bow, 390
Burial, 415

Cabanon, see spirit house
Cannibals, 411
Canoe, 392
Capacity, 413
  picture of Naskapi boy, coming of age, 425, fig. 11
Castoreum, as trading object, 443
Cawosawisit (chief), 407 sq.
Chamberlain, Joseph P., 379
Chastity, 414
Chewing gum, 391
Chief, 399 sq.
  and council, 475
  duties and privileges, 399
  election of, 399
  female, 400
  position of, 399
  relationship to Hudson's Bay Company, 404
  rights and duties, 402
  succession, 400
Chieftain's coat and headdress 402, 424; picture, 425, fig. 10
Chieftanship, conception of, 400
Children, rights of, 422
  property of, 435
Chimooshominaban (chief), 409 sq.
Church, influence of, 424
Clothing, 391
Commercial orders, Indian, 451 sq.
Common Law, English, 428
Communistic traits, 486
"Company Indians," 404, 446
Conelly, Johnny (informant), 386; portrait, 395, fig. 4
Contracts and tradeways, 438 sq.
  service, 441 sq.
Contracts of specialized manufacture, 442
Contractual relations, 439
Cooper, Sir Patrick Ashley, 379
Cotchits, trap thief, case of, 436, 483
Council, 404
Court, Indian, 475
Courtship, 418 sq.
Crime and punishment, 469 sq.
Crimes against the public order, 469 sq.
  persons, 470

Debts, 487
  cancelling and transfer of, 452
  of the deceased, 438
Defensive attitude, 484
Democratic tendencies, 486
Diaries, of the Hudson's Bay Company managers, 374, 452 sq.
Dowry, 419

Economy, 387 sq.
Education, 414, 422
Elders, council of, 404
Engagement, 418
Eskimo, as enemies of the Naskapi, 399
  chieftainship, 486
  hunting customs, 428
  war with, 404
Estate and succession, 437 sq.
Etap, case of, 430, 431
Ethical standards, 487
Evidence, 476
Exogamy, 417

Family, 416 sq.
  as economic unit, 387, 399
Finder and owner (legal relationship) case, 437
Fishing, 390
Fish, preparing of, 391
Found objects, 436
Free love, 414
Fur sellers, types of Indian, 444
Furs, exchange of, 388
  packing of bundles, 444
  sale to the Hudson's Bay Company, 444–449

Game, preservation of, 388
Gifts, 439
Goods and chattels, 435
Gower, Leweson, 379
Grave, Naskapi, picture, 426, fig. 16
Guilt, denial of, 484

Hair styles, 392
Henpecked husbands, 423
Hermaphrodites, 414
  case of, 414
How the stolen traps came back, case of, 481 sq.
Hudson's Bay Company, as buyer of Indian furs, 439, 442 sq., 444–452
  as buyer of manufactured Indian goods, 393
  as employer of Indian transport workers, 397, 441 sq.; picture of Mistassini voyageur, 396, fig. 7
  competitors of, 411, 454
Hudson's Bay Company managers, 387
  as law-enforcing agency, 482; case, 482 sq.
  as mediators, 401
  marrying Indian girls, 386, 418
Hunt, communal, 388, 428
  family, 387
Hunting-ground, 387, 399, 402, 428, 431
  acquisition of, 430, 432
  division of, 429
  family, 388
  legal status of, 427 sq.
  ownership of, 428
Hunting rights, 429, 430, 431, 437
  encroachment upon, 432
  foreigners', 430
  inheritance of, 437
  loss of, 435
  restrictions of, 432
  transfer of, 430
  violation of, 402; case Stout-Dickson, 402; case Germain, 403
Hunting season, ceremony at beginning of, 389
Hunting weapons, 390
Husband, rights of, 422

Illegitimate children, 414, 415
Illness, 415
Indian agent, 400
Indians, statistics of, 398
Individual, 412 sq.
Informants, 384 sq., 400
Inheritance, 437 sq.
  last will, 438
  liability of heir, 438
  of hunting rights, 437
  women's, 423
Investigation, procedure of, 381

Johnson, Alvin, 379
Jourdain, Josèphe (informant), 384

Kak'wa (Kurtness), Joseph (informant), 384
  as chief, 400; portrait, 425, fig. 10
  demonstrating spirit house, 426, fig. 15, 458, 479
Kak'wa, Tomo (informant), 384; portrait, 395, fig. 1

Labor, division of, 389, 392
Land tenure, 427 sq.
Last will, 438
Law, codified and systematized, 382
Law, primitive, see primitive law
Law-enforcing agencies, 471 sq.
  chief and council, 475 sq.
  Hudson's Bay Company managers, 482 sq.
  public opinion, 471, 484, 486
  shaman, 476 sq., 486
Leather work, 393
Lending, 440
Liability for debts, 438
  of the heir, 438

Lien, 437
Ligitists, African, 484
Llewellyn, Karl N., 379, 382, 383
Loans of money, 440
Lost and found properties, 436 sq.

"Made Beaver" (MBr), 394, 439
Manigouche, Josèphe (informant), 386; portrait, 395, fig. 3
Manufacture of goods, 393
Marriage, contracting of, 419
  dissolution of, 423
  enforcement of, 472
  forms of, 419
  mixed, 417
  prohibitions, 417
Marital life, 421
Meals, daily, 421
Meat, sources of, 391
Moar, Maggy (informant), 385
Moar, Tommy (informant), 385; portrait, 395, fig. 2
Moccasins, 392
Movables, 435 sq.

Names, giving of, 412
Naskapi law, spirit of, 483 sq.
Nosipatan (chief), 405 sq.
Ntahoota (chief), 400, 401

Oath, 403
Office of chief, insignia of, 402
Ordeal, 403
Ownership of hunting-ground, 428

Peace chief, 404
Pemmican, 391
Phonetic key, 488
Pipestone, as trading object, 443
Plants, gathering of, 390
Political leadership, 486
Political organization, 398 sq.
Prices and accounting, 447
Primitive law, divergent conceptions, 381
  exploring and collecting of, 383
  nature of, 381
  sources of, 383
Privileges, reciprocal but qualified, 429
Procedure, 477
Property, 427
  children's, case of, 435
  of goods and chattels, 435, 437
  of land, 427, 428, 430 sq., 432 sq.
Property marks, 435, 436
Property rights, 427
  violations of, 471
Prostitution, 414
Public opinion, 471 sq., 484, 486
Punishment, 471

Questionnaires, 381
Questioning, procedure of, 387

Rank, marks of, 402
Relationship terms, 416 sq.
Rifle, white man's, 390
Roman law, 381, 428
Ruperts House Band, 398

Sale and barter, 439
Security, collateral, 442
Selfhelp, 485
Selling, procedure of, 445 sq.
Separation, 424 (case)
Service contracts, 441 sq.
Shaman as law-enforcing agency, 478; cases, 480, 481, 482
Snowshoe, 392, 393
"Social security," 387
Spear, 390
Speck, Frank G., 379
Spirit house, 478
  construction of, 479 sq.; 479, fig. 18; 480, fig. 19
Starvation, 453
"Subject to needs," 484, 485
Suicide, 415
Supply, summer, 450
  winter, 450 sq.
Suretyship, 442

Taboo, food, 421
Tent, 391; picture, 396, fig. 5
  chieftain's, 404
  sleeping order in, 423
Territory of Lake St. John and Mistassini Bands, 398
  of Montagnais-Naskapi Band, 397
  of Montagnais-Naskapi and Eskimo bands throughout Labrador peninsula, chart, 398, fig. 9
Toboggan, 392, 393
Tradeways, 442 sq.
Trading objects among Indians, 443
  places and times of exchange, 442
Trap-like catching methods, 390
Trappers, white, 434
Trapping, 387, 388, 390
Traps, steel, 388, 390
Travel, 429; case, 433
Trespass, 432

"Urlehrstoff," 382
User, 429

Vermilion, 485, 492

"Wabbanachkees," 433, 434
"Wabbinakus," 433, 434
War with Eskimo, 404
War chief, 404
Wedding, 420
White trappers, encroachments by, 434
Widow, 427
Widower, 427
Wife, rights of, 422, 423
Witnesses, 376, 403
Woods, used by Indian craftsmen, 389
Writing of Indian language, 451